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CITY OF BERKELEY

BERKELEY CITY COUNCIL SPECIAL, JPFA, AND REGULAR MEETINGS

December 2, 2025

WEBVTT

1
00:00:22.770 --> 00:00:25.320
Boardroom: Well, I have a question.

2
00:00:28.450 --> 00:00:29.150
Boardroom: Oh, Jesus.

3
00:00:30.180 --> 00:00:47.359
Boardroom: Okay, hello everyone, good evening! I'm calling to order the special meeting of the Berkeley City Council. Today is Tuesday, December 2nd, 2025. Already, can you believe it? Clerk, could you please start with the roll? Okay. Councilmember Kesarwani?

4
00:00:47.360 --> 00:00:57.370
Boardroom: Here. Taplin? Here. Councilmember Bartlett is absent. Trega? Peasant O'Keefe? Here. Blackaby? Here.

5
00:00:57.400 --> 00:01:13.009
Boardroom: Munapara is currently absent. Humbert? Here. And Mayor Ishii? Here. Okay, quorum is present. Very good. There is a supplemental, on our… on the dais here, folks, and we need to vote to,

6
00:01:13.150 --> 00:01:21.270
Boardroom: Add it. Is there a motion to do so? So moved. Second. Okay, and is there any objection?

7
00:01:21.390 --> 00:01:22.510
Boardroom: No.

8
00:01:23.360 --> 00:01:24.360
Boardroom: Okay.

9
00:01:24.750 --> 00:01:32.209
Boardroom: There's no objection, and we'll… No objection. Alright, very good, motion passes. Okay. We will add the supplemental…

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10
00:01:32.950 --> 00:01:35.200
Boardroom: Very good. Okay, so…

11
00:01:35.260 --> 00:01:48.100
Boardroom: On our action calendar… Very exciting. So I'm very excited for this special session. Infrastructure is one of my top priorities, and it's something that we just don't get a chance to talk about enough.

12
00:01:48.100 --> 00:02:06.940
Boardroom: This isn't about just the streets and sidewalks, it's also about our sewers and storm drains, parks and playgrounds, pools and piers, Old City Hall and Veterans Building, places that really should be community gathering spaces that fill us with pride, but instead are decaying, unfortunately, before our eyes.

13
00:02:06.940 --> 00:02:18.169
Boardroom: We hear you. To the many community members who regularly advocate for better infrastructure in one way or another, my Council colleagues and I know that this is an issue that impacts all of us.

14
00:02:18.330 --> 00:02:43.020
Boardroom: Upon taking office a year ago, I was well aware of the Vision 2050 framework for a sustainable and resilient infrastructure passed in 2020, and it was also apparent that many things had changed since its passage. The elevated threat of wildfire and other climate-related issues, the effects on the economy from the pandemic, shifts in federal policies on inflation and tariffs, the passage of Measure FF for safe streets and sidewalks, just to name a few.

15
00:02:43.500 --> 00:02:56.270
Boardroom: Berkeley still has more than $1 billion, $1 billion, with a B, in unfunded infrastructure needs, and our challenges from climate change, including sea level rise, are only increasing our needs.

16
00:02:56.280 --> 00:03:13.229
Boardroom: Due to these changes and the significant gap in resources, I reconvened the Mayor's Vision 2050 Task Force to update the report and refresh the recommendations. Ray Yep and Margo Shuler, both of whom have decades of experience in infrastructure and have worked for over a decade as volunteers.

17
00:03:13.340 --> 00:03:24.570
Boardroom: far over a decade, I should say, dedicated to improving Berkeley's infrastructure, served as co-chairs, providing leadership and continuity, along with many other former and current task force members.

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18
00:03:24.790 --> 00:03:27.510
Boardroom: Many of whom are today. Thank you all for being here.

19
00:03:27.510 --> 00:03:50.770
Boardroom: The task force met several times during this year and produced a concise update to Vision 2050, which they're calling Realize Vision 2050, and recommendations to address Berkeley's infrastructure. These recommendations are comprehensive and include considerations on integrated planning, using new technologies, improving maintenance, providing new funding to address needs, and better engagement with the public.

20
00:03:50.860 --> 00:03:53.450
Boardroom: Something that matters a lot to me.

21
00:03:54.050 --> 00:04:02.329
Boardroom: They helped organize a very impressive team of resident experts and produce the important report in your packet tonight. So council members,

22
00:04:02.780 --> 00:04:09.759
Boardroom: I, really just want to say, first of all, thank you so much to this impressive team of

23
00:04:09.760 --> 00:04:32.939
Boardroom: experts for their work. Thank you all so much for being here, and I'd really love if you could just stand so we can recognize and acknowledge you for all the work that you've been doing over this past year. So, Ray Yep, Margot Shuler, Councilmembers Taplin and Trey Gubb, Weldon Bradstreet, Karen Perok, former Councilmember Gordon Wozniak, John Kaner, Satu Constantin, Allison Levante, Sophia Scott, Dan Lindheim.

24
00:04:33.050 --> 00:04:42.340
Boardroom: Krista Turnay, John Elliott, Kenichi Soka, Christina Hill, and Larry Henry. If you could all stand, we want to acknowledge you.

25
00:04:49.840 --> 00:05:09.360
Boardroom: Thank you all so much. We really appreciate all the work that you do. Berkeley is filled with amazing residents who have so much knowledge and information, and it's really such a joy that we get a chance to pull together a bunch of experts to learn more from you, so thank you so much, and I'll invite Margo and Ray to say a few words.

26

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00:05:17.870 --> 00:05:24.019
Boardroom: Mayor Ishii and distinguished council members, my name is Ray Yep.

27
00:05:24.240 --> 00:05:30.900
Boardroom: I had the privilege of co-chairing the Regional Vision 2050 Initiative.

28
00:05:31.020 --> 00:05:37.600
Boardroom: Back more than 5 years ago, along with Margo, my colleague here, co-chairing that.

29
00:05:38.360 --> 00:05:53.660
Boardroom: I'd like to tell you that the second time around is way better than the first time. And it's a privilege to have that opportunity to review what we've done and to make improvements.

30
00:05:53.810 --> 00:06:02.059
Boardroom: So here's at least 3 reasons why it's way better. Number 1… The word, realize.

31
00:06:02.210 --> 00:06:06.650
Boardroom: So, we call it the Realize Vision 2050 Initiative.

32
00:06:06.880 --> 00:06:11.550
Boardroom: to realize a Vision 2050 task force.

33
00:06:12.100 --> 00:06:17.060
Boardroom: Realize means we're here to get things done. We're here to take action.

34
00:06:17.170 --> 00:06:25.499
Boardroom: And we followed that direction from Mayor Ishii, and so we're here to get things done. That's an important word.

35
00:06:26.270 --> 00:06:34.800
Boardroom: Second reason… The report is only 8 pages long. You only have to read 8 pages.

36
00:06:35.090 --> 00:06:37.789
Boardroom: But those 8 pages are golden.

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00:06:38.310 --> 00:06:43.550
Boardroom: So, we also took initiative to not prepare a very lengthy report.

38
00:06:43.700 --> 00:06:50.909
Boardroom: Make it concise, make it actionable. So, in those 8 pages are 5 strategies.

39
00:06:51.200 --> 00:06:56.879
Boardroom: Along with goals, action items, and performance measures.

40
00:06:57.100 --> 00:07:00.410
Boardroom: You can get everything you need out of those 8 pages.

41
00:07:01.280 --> 00:07:02.690
Boardroom: Third reason.

42
00:07:02.840 --> 00:07:06.040
Boardroom: is… We got it done in 6 months.

43
00:07:06.650 --> 00:07:11.360
Boardroom: We started in March and delivered the report in October.

44
00:07:11.800 --> 00:07:16.199
Boardroom: And so realize how urgent it is to address our infrastructure.

45
00:07:16.360 --> 00:07:30.099
Boardroom: We took that to heart and made it an urgent effort to work with such distinguished and qualified staff members as these to get it done with some urgency and to deliver it in October that we did.

46
00:07:30.780 --> 00:07:36.470
Boardroom: We thank you for the opportunity, Mayor Ische, to serve on this task force.

47
00:07:36.900 --> 00:07:41.090
Boardroom: I thank, Margot to be co-chair with myself.

48
00:07:41.470 --> 00:07:47.760
Boardroom: And also thank the task force members, many of who are here, some who couldn't be here.

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49
00:07:47.940 --> 00:07:51.069
Boardroom: For their experience, and their time.

50
00:07:51.170 --> 00:07:54.920
Boardroom: and their dedication to the City of Berkeley. Appreciate it.

51
00:07:59.350 --> 00:08:16.550
Boardroom: And I also want to thank you all and my colleagues, and, urge the city and the staff and the elected officials to really dig into those 8 pages, go back to the 2020 report for all the background information for those of you who weren't

52
00:08:16.710 --> 00:08:32.379
Boardroom: involved at that time, and, and make that the basis of your upcoming really serious funding and policy and project decision making. And again, integration with nature, integration with innovation.

53
00:08:32.390 --> 00:08:42.830
Boardroom: The climate is changing fast, and unless we change our infrastructure, we're going to be stuck with what we've got for the next 100 years, and it won't work. So, looking forward to watch the changes. Thank you.

54
00:08:47.590 --> 00:09:07.950
Boardroom: Thank you again, Ray and Margo. I really appreciate all of your work and your effort and wrangling all the cats. It's always a big task to do that. So, and thank you all so much, really appreciate it, and I know you're looking forward to the next item, so I'll move us over to item number two.

55
00:09:07.950 --> 00:09:32.939
Boardroom: I really also want to appreciate the great work that city staff do every day to maintain and improve our beloved community assets with the limited resources that they have. And I think one of the things that's most impressive and exciting about the City Manager's report, is the leveraging with previous measures, T1, O, U1, etc, and Measure FF is also now being collected for streets, sidewalks, and safety.

56
00:09:32.940 --> 00:09:52.570
Boardroom: So really just want to call that out and appreciate, the city staff for doing the work of leveraging, and also just for the voters for approving these items, because, again, like, infrastructure is something that we don't get a chance to talk about enough, and this is really our opportunity to highlight and say, like, look, we've done all this great work, and we also have a lot of need.

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57
00:09:52.570 --> 00:09:56.690
Boardroom: So I'm gonna turn it over to our city manager and to our city staff.

58
00:09:56.950 --> 00:10:07.449
Boardroom: And I, I realized also I, I neglected to thank Terrence Davis, who also joined us for the last couple of meetings for our Vision, 2050 Task Force, so thank you very much for that as well.

59
00:10:10.440 --> 00:10:12.329
Boardroom: Thank you, Mayor Ishii.

60
00:10:12.690 --> 00:10:19.140
Boardroom: We have staff coming to the table now, to go through a presentation for you.

61
00:10:19.940 --> 00:10:23.730
Boardroom: I think, assistant to the city manager.

62
00:10:24.150 --> 00:10:30.910
Boardroom: Arendondo's going to set up the presentation, so I'll just start talking while she's getting it set up to say that

63
00:10:31.010 --> 00:10:47.809
Boardroom: We're excited to be before you tonight. As the… as was just mentioned in the previous item, there's a lot of deferred maintenance on infrastructure. There's a lot of, needs for fixing, replacing, rebuilding, creating infrastructure in the city.

64
00:10:47.810 --> 00:10:59.049
Boardroom: And there has been a lot of good work that has been done in the past in that regard as well, so we want to acknowledge and honor that as well. You can go to the next slide, so I want to…

65
00:10:59.360 --> 00:11:08.350
Boardroom: just, I'll just walk you through a little bit of what the agenda is before you tonight, and I won't read through all of this, but we will start off with more of that context and background.

66
00:11:08.600 --> 00:11:23.630

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Boardroom: Talk a little bit about a potential community survey for which we've already done an RFP. And then the, a big part of this is looking at potential infrastructure items for your consideration.

67
00:11:23.630 --> 00:11:47.419
Boardroom: in a potential $300 million general obligation bond, so you'll see in your packet that you have at the end a list of projects that fall into three buckets. One is critical infrastructure, another is public safety, and the third is community facilities and quality of life. And we spend a lot of work as staff putting that together, and our team will go through that.

68
00:11:47.930 --> 00:11:59.499
Boardroom: Finally, not finally, but we also will talk a little bit about the, the geobond analysis, both from the perspective, a little background on what a bond is, we'll go through some potential tax rate implications.

69
00:11:59.530 --> 00:12:11.659
Boardroom: We'll talk through timelines, and then leave you all with some questions to consider, and we very much look forward to the discussion and direction from you all regarding this. We have a terrific group of staff.

70
00:12:12.060 --> 00:12:20.990
Boardroom: we're going to present tonight. Deputy City Manager David White, Assistant to the City Manager Carrie Arundando,

71
00:12:21.140 --> 00:12:36.870
Boardroom: Our Parks Director, Scott Ferris, is… several people will be online, and that's Parks Director Scott Ferris, Public Works Director, Terrence Davis, our Finance Director, Henry Oyakami, and our Fire Chief, David Sprague, as well as our…

72
00:12:37.040 --> 00:12:48.989
Boardroom: municipal advisor from NHA, Craig Hill. So, all those folks are going to be online, they'll all have a piece of this presentation, they'll all be available for questions at the end. And with that, I will hand it over to Deputy Senior Manager David White.

73
00:12:48.990 --> 00:13:04.239
Boardroom: Thank you, City Manager, and good evening, Mayor and City Council. As our City Manager mentioned, I'm David White, your Deputy City Manager. And as the Mayor well stated just a few moments ago, the City has significant unfunded infrastructure needs, more than a billion dollars.

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74
00:13:04.240 --> 00:13:13.719
Boardroom: And today's discussion is all about setting the stage to seek your direction on moving forward to determine the feasibility in pursuing a revenue measure in 2026,

75
00:13:13.800 --> 00:13:17.519
Boardroom: To generate much-needed resources to invest in our infrastructure.

76
00:13:17.930 --> 00:13:27.749
Boardroom: More specifically, as we move through this presentation, we will be discussing a variety of projects to apply to a general obligation bond in an amount up to $300 million.

77
00:13:28.460 --> 00:13:38.459
Boardroom: In the past, Berkeley voters have approved several bond measures, and with those resources, the city has been able to modernize numerous facilities, increase the supply of affordable housing.

78
00:13:38.580 --> 00:13:50.029
Boardroom: Address deferred maintenance needs, invest in street improvements and green infrastructure for a more sustainable and resilient future, and overall improve the community's quality of life.

79
00:13:50.520 --> 00:13:54.149
Boardroom: We are going to definitely touch on all of this tonight at a high level.

80
00:13:55.010 --> 00:14:11.799
Boardroom: In addition to the bond measures that have been adopted, there have been several parcel taxes that have been adopted as well. Measure FF in 2020 and 2024, Measure P in 2018 and 2024, and an increase to the parks tax that was Measure Y in 2024.

81
00:14:12.180 --> 00:14:21.240
Boardroom: And all these have enabled the city to strengthen its emergency response, expand programs and services to expand housing opportunities and address homelessness.

82
00:14:21.430 --> 00:14:31.580
Boardroom: maintain our cherished parks and open spaces, and continue to make safety improvements to our road network and pedestrian paths to achieve our Vision Zero objectives.

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83
00:14:32.020 --> 00:14:51.679
Boardroom: As we look to the future, we are cognizant that to address our infrastructure needs, we need a focused, coordinated approach, and the work of the Vision 2050 Task Force provides this guidance, along with further affirmation of the need to evaluate the potential for a bond measure in 2026.

84
00:14:56.070 --> 00:14:58.509
Boardroom: So how will we gather community input?

85
00:14:58.700 --> 00:15:04.970
Boardroom: As indicated in the staff report, we intend to launch a community engagement process in early 2026.

86
00:15:05.100 --> 00:15:10.749
Boardroom: And while the details are still being worked out, this will be an opportunity to hear about community priorities.

87
00:15:11.200 --> 00:15:19.819
Boardroom: In addition to that, we would like to implement one, if not two, community surveys that would be designed to gather the input of Berkeley voters.

88
00:15:20.280 --> 00:15:28.039
Boardroom: This slide in front of you provides some of the details, including trying to connect with 500 likely November 2026 voters.

89
00:15:28.760 --> 00:15:43.020
Boardroom: The survey itself would be designed to gauge voter sentiment about city services, and to understand their priorities and potential support for a bond measure on the November 2026 ballot, should the City Council authorize us to proceed.

90
00:15:43.480 --> 00:15:49.380
Boardroom: Once the survey is completed, we would return to City Council with the results over the survey.

91
00:15:53.060 --> 00:15:56.800
Boardroom: So what have we done with resources that voters have adopted in the past?

92
00:15:57.010 --> 00:16:08.560

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Boardroom: This slide and the slide that follows highlights just some of the improvements that we, as a city, have been able to achieve with previous bond measures and parcel taxes adopted by Berkeley voters.

93
00:16:09.020 --> 00:16:20.960
Boardroom: There is no way that we will be able to shine a light on all the projects, but this and the slide that follows provides a high-level overview of investments made throughout the totality of the community.

94
00:16:21.240 --> 00:16:27.910
Boardroom: This particular slide highlights the recently completed Willard Clubhouse, Upgrades to the Rose Garden.

95
00:16:28.030 --> 00:16:33.420
Boardroom: revitalized North Berkeley Senior Services Center, and new affordable housing opportunities.

96
00:16:34.150 --> 00:16:43.600
Boardroom: The next slide builds on the previous slide and demonstrates public safety enhancements and the work we have done to address homelessness with adopted parcel taxes.

97
00:16:43.940 --> 00:16:49.349
Boardroom: Also, a couple of green infrastructure projects that have been implemented are also noted for you.

98
00:16:52.930 --> 00:17:03.109
Boardroom: Given the City's infrastructure needs, and that existing bond measures have largely been exhausted, we spent some time developing a proposed list of projects for City Council's consideration.

99
00:17:03.510 --> 00:17:07.989
Boardroom: These projects, in detail, are listed in the staff report as Attachment 5.

100
00:17:08.550 --> 00:17:17.809
Boardroom: In developing the list of projects, we looked to a number of criteria summarized on this slide, including public health and safety, community use and equity.

101
00:17:18.050 --> 00:17:34.689
Boardroom: As well as external funding opportunities, which means that should a bond measure be successful, similar to all of our past work, we would look to leverage these resources and funds such that the investment

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in the community would likely exceed the $300 million raised through the proposed bond.

102
00:17:35.290 --> 00:17:43.769
Boardroom: Finally, it is worth noting that the criteria that we developed to develop this list of projects is harmonious with the Vision 2050 Task Force.

103
00:17:46.320 --> 00:17:57.870
Boardroom: What ultimately resulted from our work to develop a list of proposed projects for City Council consideration is a logical grouping of projects into three categories. Community facilities and quality of life.

104
00:17:58.130 --> 00:18:02.149
Boardroom: Public safety, and critical infrastructure and accessibility.

105
00:18:02.260 --> 00:18:07.609
Boardroom: Each category roughly consists of numerous projects that roughly totals $100 million.

106
00:18:08.380 --> 00:18:14.650
Boardroom: And now, I would like to transition to a more detailed discussion of each of the categories and the projects that are proposed.

107
00:18:15.020 --> 00:18:27.289
Boardroom: We're going to start with our Director of Parks, Recreation, and Waterfront, Scott Ferris, to discuss community facilities. Then we'll transition to our Fire Chief, who will discuss projects proposed under the Public Safety category.

108
00:18:27.360 --> 00:18:35.160
Boardroom: And finally, our Director of Public Works, Terrence Davis, will discuss the projects that comprise the Critical Infrastructure and Accessibility category.

109
00:18:52.300 --> 00:18:53.130
Boardroom: Not fair.

110
00:18:53.840 --> 00:19:01.920
Boardroom: Okay, well, Mitt, perhaps, our Director of Public Works is having some trouble connecting, so I'll just pick up from here and then transition to our Fire Chief.

111

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00:19:02.210 --> 00:19:14.669
Boardroom: So, in looking at these projects, what we tried to accomplish was really looking at a number of different important community investments. So, as you can see on the slide for… can you go back two slides? Thank you.

112
00:19:15.020 --> 00:19:26.349
Boardroom: First of all, we looked at upgrading our Frances Albuyer Community Center. This is a much-needed improvement to this facility in our community. We looked at a high-use pool, which is King Pool and Locker Room.

113
00:19:26.640 --> 00:19:38.339
Boardroom: An upgrade to the turf at Harrison Field, which is critical because this will allow the field to be used year-round, 365 days a year, as well as lighting and improvements to Live Oak Quartz.

114
00:19:38.460 --> 00:19:47.150
Boardroom: San Pablo Sports Field, as well as we hear overwhelmingly about the need for enhanced and increased number of dog parks throughout the city.

115
00:19:47.430 --> 00:19:52.429
Boardroom: And then there are also important park restroom upgrades throughout various parks throughout the city.

116
00:19:53.340 --> 00:20:09.099
Boardroom: In addition to that, we looked at upgrading our open spaces, as well as addressing a number of projects to address issues of resilience and sea level rise. And this slide highlights just some of the projects that we put into that bucket and category. The Adeline Corridor open space improvements.

117
00:20:09.210 --> 00:20:12.650
Boardroom: Aquatic Park, which would include improvements to Dreamline Park.

118
00:20:15.770 --> 00:20:16.839
Boardroom: Scott's on now?

119
00:20:21.140 --> 00:20:23.190
Boardroom: Yeah, same Scott, you can keep going.

120
00:20:29.530 --> 00:20:30.670

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Boardroom: I can keep rolling.

121
00:20:31.810 --> 00:20:32.600
Boardroom: Yep.

122
00:20:32.880 --> 00:20:52.820
Boardroom: As well as you can see a number of other improvements down in the marina. A couple of projects I want to point out that are specifically designed to address sea level rise, which is the Bay Trail Marina Boulevard, as well as University Avenue Bike Park, which we anticipate will be incredibly well received. And all the details of these projects are in the packet for Council.

123
00:20:52.820 --> 00:20:57.290
Boardroom: So now we'll turn it over to our fire chief, to talk about the public safety category.

124
00:20:58.300 --> 00:21:05.209
Dave Sprague (BFD): Good afternoon, Council and Mayor. Today, I want to briefly walk through the major capital projects proposed for the Fire Department.

125
00:21:05.320 --> 00:21:11.740
Dave Sprague (BFD): These projects are rooted in the City's Comprehensive Fire Facilities Master Plan, completed in 2023.

126
00:21:12.020 --> 00:21:22.980
Dave Sprague (BFD): That plan lays out the condition of all existing facilities and provides the city a long-term strategic roadmap for all the needed reinvestment in these critical pieces of infrastructure.

127
00:21:23.420 --> 00:21:26.580
Dave Sprague (BFD): Most of Berkeley's stations were built in the 60s.

128
00:21:26.740 --> 00:21:38.940
Dave Sprague (BFD): and have received partial seismic upgrades in the 1990s. While those efforts were important at the time, our stations are now no longer meeting current health, safety, and operational standards.

129
00:21:39.020 --> 00:21:48.160
Dave Sprague (BFD): They're not designed for a modern emergency response system, nor for the demands placed on firefighters, paramedics, or the community.

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130
00:21:48.750 --> 00:21:55.149
Dave Sprague (BFD): We now have conceptual designs for all our fire stations that was completed in the fire facilities master planning process.

131
00:21:55.400 --> 00:22:05.660
Dave Sprague (BFD): And the need to begin with these 4 projects is important, as it's going to take approximately 10 to 20 years to complete all 9 projects in the Fire Facilities Master Plan.

132
00:22:05.970 --> 00:22:11.079
Dave Sprague (BFD): This means every year we delay, we push the entire sequence of projects further into the future.

133
00:22:11.460 --> 00:22:19.289
Dave Sprague (BFD): So, to review the four projects before you, Fire Station 4 at 1900 Marin requires a complete rebuild.

134
00:22:20.030 --> 00:22:34.129
Dave Sprague (BFD): The Fire, EMS, and Community Emergency Response Training Center, currently located at 997 Cedar Street, is undersized, incapable of supporting modern training needs, and in the middle of a residential neighborhood, which is really problematic.

135
00:22:35.210 --> 00:22:51.880
Dave Sprague (BFD): The City's Emergency Communication Center at 2100 MLK, that's our 911 dispatch center. That's the heart of all, police, fire, and EMS dispatch operations. And finally, the firehouse at Station, Station 6 at 999 Cedar Street.

136
00:22:52.070 --> 00:23:01.170
Dave Sprague (BFD): You'll note that, for both the training center and Fire Station 6, there's a note saying, we hope to move this to the new fire headquarters facility.

137
00:23:01.170 --> 00:23:18.629
Dave Sprague (BFD): And when the Fire Facilities Master Plan was complete, we didn't have that facility under construction, so we're proposing that we do an analysis to actually modify and improve that facility and acquire the remaining third of that block.

138
00:23:18.660 --> 00:23:24.860
Dave Sprague (BFD): to allow for both those facilities to exist there instead, which would then free up the Cedar Street facilities.

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139
00:23:25.880 --> 00:23:36.259
Dave Sprague (BFD): So replacing these facilities is essential to ensuring that Berkeley firefighters, paramedics, and dispatchers can continue to respond quickly, safely, and effectively to the needs of our community.

140
00:23:36.370 --> 00:23:48.830
Dave Sprague (BFD): This bond would allow the city to complete 4 of 9 critical infrastructure projects, and we envision a second bond at some point in the future, would allow us to complete the remaining 5 projects.

141
00:23:48.960 --> 00:23:51.959
Dave Sprague (BFD): And I'll pass it off to Terrence.

142
00:23:54.800 --> 00:24:01.739
Terrance Davis: Thank you, Chief. Good late afternoon, Mayor, Council, Community, Terrence Davis, Director of Public Works.

143
00:24:01.800 --> 00:24:12.129
Terrance Davis: And so, in this last category or bucket, as the Deputy City Manager indicated, for these public works projects, we really focused on

144
00:24:12.140 --> 00:24:28.890
Terrance Davis: improvements to the Civic Center, but also to accessibility, to these kind of high-use civic facilities. And so, these are not only modernization, as I'll go through the list, but also really around accessibility.

145
00:24:29.030 --> 00:24:40.289
Terrance Davis: And making critical improvements to activate some underused or, poorly used facilities just that don't have access because of, their lack of modernization.

146
00:24:40.370 --> 00:24:50.819
Terrance Davis: So this first group is, really what I would consider some of the first phase requirements of a Civic Center vision.

147
00:24:51.020 --> 00:25:01.489
Terrance Davis: To really activate these three facilities that right now all lack, adequate seismic upgrades. So, the, Madel Chirac building.

148

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00:25:01.750 --> 00:25:11.899
Terrance Davis: the, Veterans Memorial Building, and then also MLK Civic Center Annex, which is the building adjacent to 2180.

149
00:25:12.200 --> 00:25:22.490
Terrance Davis: Used as a, high-need specific, facility. Also houses our permit center, etc.

150
00:25:22.890 --> 00:25:40.770
Terrance Davis: And so, these projects would be for just bringing these, three sites into, current seismic standard. They're, all historic buildings and like that, so, those resources would be used to bring those facilities into, compliance.

151
00:25:41.180 --> 00:25:46.410
Terrance Davis: The second list here is… and there's some overlap between the facilities, but…

152
00:25:46.540 --> 00:25:52.239
Terrance Davis: really modernization of these high-use civic facilities. So, again,

153
00:25:52.650 --> 00:26:02.779
Terrance Davis: 2180, which is obviously a key building for city business, and, you know, holds council offices and other key city offices.

154
00:26:03.110 --> 00:26:22.769
Terrance Davis: And that building, frankly, just the interior and the envelope of that building requires some modernization and some upgrades. Many folks who are occupants in that building know we've recently done some issue, improvements around our water system, and also around the paint in the facility, so…

155
00:26:22.810 --> 00:26:27.249
Terrance Davis: More of those facilities in terms of investing in the plumbing, electrical.

156
00:26:27.650 --> 00:26:32.210
Terrance Davis: And other building systems to really bring that system to standard.

157
00:26:32.810 --> 00:26:34.600
Terrance Davis: Excuse me, that building to standard.

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158
00:26:34.810 --> 00:26:47.910
Terrance Davis: Similarly, the Public Safety Center has, is an aging facility. Some of the finishes, some of the electrical HVAC of that facility also have been deferred for some time.

159
00:26:48.000 --> 00:27:02.440
Terrance Davis: And same case with the animal shelter. An aging facility that, through the years, we've just, not made the adequate investments that we need, so there's quite a bit of deferred maintenance there. Very similar in terms of,

160
00:27:02.440 --> 00:27:15.359
Terrance Davis: drainage improvements, HVAC, lighting, etc. So really just some modernizations to make those facilities, to bring them, up to current standards, and really make them.

161
00:27:15.520 --> 00:27:23.079
Terrance Davis: the shining examples of our community service that we think is so important, so…

162
00:27:23.730 --> 00:27:30.570
Terrance Davis: Next is really focusing on our ADA and accessibility programs, two categories here.

163
00:27:30.610 --> 00:27:46.059
Terrance Davis: So these are… most of these projects come from either existing customer demand, so I'll talk about the 50-50 program in second, but the ADA accessibility improvements, these are citywide improvements to civic facilities.

164
00:27:46.200 --> 00:27:53.920
Terrance Davis: And these are derived from the city's ADA Transition Plan, and that consists of,

165
00:27:55.080 --> 00:28:14.490
Terrance Davis: The city did a complete assessment of all of its facilities, and right-of-way, through that process, it did a very careful cataloging of all of the, what we would call barriers, and those are anything in the… either right-of-way or in our facilities that do not meet ADA standards.

166
00:28:14.490 --> 00:28:21.130

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Terrance Davis: And so that deferred list totals about $48 million of improvements that need to be made in our right-of-way.

167
00:28:21.130 --> 00:28:33.150
Terrance Davis: And also, in our facilities to bring those facilities to ADA code, and also just really improve and increase accessibility for all of our community members.

168
00:28:33.190 --> 00:28:41.770
Terrance Davis: The second is the City's 50-50 program, which is our partnership with community members and property owners.

169
00:28:42.000 --> 00:28:54.900
Terrance Davis: Who can, do some cost share with the city to do repairs in front of their properties, to bring… to alleviate any trip, fall, or other disrepair in the sidewalks.

170
00:28:55.070 --> 00:29:10.009
Terrance Davis: And that program right now has a pretty significant backlog. The city, you know, has invested in that program over the years, but through our CIP program, but ultimately, we haven't been able to keep up with the demand.

171
00:29:10.020 --> 00:29:18.940
Terrance Davis: There's quite a few that sit in queue now, so there's very high demand, but the city's match is not available to really accelerate that program.

172
00:29:19.030 --> 00:29:36.580
Terrance Davis: And this is, what we think is a very good way to make some very quick improvements throughout the city, for a program that has demonstrated demand and success, but just unfortunately lacks all of the resources necessary to complete all of the projects.

173
00:29:37.250 --> 00:29:42.339
Terrance Davis: And with that, I think I'll turn it back to… Deputy City Manager White.

174
00:29:43.670 --> 00:29:48.169
Boardroom: Thank you, Terrence, I appreciate it. And so, now I want to talk about,

175
00:29:48.480 --> 00:29:56.189

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Boardroom: the money side of things. How do we achieve these vision and these projects? And so, as we've talked about on a couple occasions this evening.

176
00:29:56.190 --> 00:30:14.989
Boardroom: We want to talk about the opportunity to, put a general obligation bond onto the November 2026 ballot. And so what this slide really is trying to do at a high level is just really call out, sort of the fundamentals of a GO bond, and I know Council is well familiar with this, so I won't spend too much time on this.

177
00:30:15.000 --> 00:30:24.430
Boardroom: But just try to call out a few different of the bullet points on this slide that I think are particularly pertinent and relevant, particularly to the next slide that we'll get to in a moment.

178
00:30:24.550 --> 00:30:39.149
Boardroom: So, first of all, the costs, are based on the assessed value of a property. Importantly, in order to pass a general obligation bond, it requires two-thirds of voter approval, and they're typically repaid over about a 30-year time frame.

179
00:30:39.550 --> 00:30:54.250
Boardroom: What they can be used for is specific, they can be used for major capital improvements, and in the far right-hand column of the slide in front of you, you can see a very… a high-level list of the types of projects that a geobond can support.

180
00:30:54.250 --> 00:31:01.029
Boardroom: They cannot be used to support regular maintenance needs that we have as a city. They have to go into capital projects.

181
00:31:02.290 --> 00:31:13.459
Boardroom: So, the next slide, and what this slide is really designed, to help us understand is what a proposed general obligation bond would mean for taxpayers

182
00:31:13.640 --> 00:31:22.630
Boardroom: With this following key assumption, that we issue $100 million is issued every 5 years, and that issuance commences in 2027.

183
00:31:23.030 --> 00:31:26.449
Boardroom: And this slide really does two things, for you. First.

184

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00:31:26.680 --> 00:31:32.530
Boardroom: It provides a historical view of tax rates associated with general obligation bonds previously approved.

185
00:31:32.960 --> 00:31:44.890
Boardroom: And secondly, it provides a perspective view of a proposed $300 million general obligation bond that we are discussing this evening when combined with bonds that have already been authorized.

186
00:31:45.790 --> 00:31:52.149
Boardroom: So when combined with existing authorizations, a new $300 million general obligation bond

187
00:31:52.400 --> 00:32:09.190
Boardroom: Assuming, again, $100 million issued every 5 years is estimated to require an average tax rate over 40 years of 0.0441%, or roughly $44 for $100,000 MSS value.

188
00:32:09.800 --> 00:32:18.330
Boardroom: Based on the median assessed value for a home in Berkeley today, that would translate to an average tax rate of roughly $242 per year.

189
00:32:18.900 --> 00:32:20.899
Boardroom: I would also note the following.

190
00:32:21.510 --> 00:32:25.910
Boardroom: This figure indicates that the resulting projected average tax rate

191
00:32:25.980 --> 00:32:42.899
Boardroom: when combined with existing authorizations from 2027 to 2067, is less than the historical average tax rate from existing authorizations until they are anticipated to be paid off. And that's the timeframe 1993 to 2056.

192
00:32:43.520 --> 00:32:59.409
Boardroom: Also, this figure demonstrates that the combined average tax rate for the new $300 million general obligation bond, plus existing authorizations, is less than the tax rate in the late 1990s and early 2000s when initial bonds were issued.

193
00:33:00.100 --> 00:33:07.200

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Boardroom: All of this to say that what is being proposed is well within the range of historical tax rates that the Berkeley community has experienced.

194
00:33:09.270 --> 00:33:20.139
Boardroom: So, lastly, I just want to talk about the timeline of what is in front of you. So, tonight, obviously, we're here with the initial work session to get input and feedback from the Council.

195
00:33:20.450 --> 00:33:37.769
Boardroom: In January of 2026, I mentioned we want to initiate and launch a community engagement process, and then depending upon the feedback we received tonight, we've held the site potentially coming back to the City Council towards the end of January in another work session. Again, that's if needed and necessary.

196
00:33:38.230 --> 00:33:53.139
Boardroom: With the feedback we received tonight, our intention would be to start development of the community survey as soon as possible. If we can get the consultant on board, we'd start that in January, because Council may likely have to approve that contract, that work would begin in February.

197
00:33:53.370 --> 00:34:12.780
Boardroom: In March, we would like to come back to you with the first results of that initial survey, and then depending upon what are the results of that survey and the feedback we get from Council, we could envision doing a second survey in April of 2026, and coming back to you in May with the results of that second survey and additional feedback from Council.

198
00:34:12.980 --> 00:34:20.059
Boardroom: And assuming that all goes well, we'd be seeking specific Council direction in June, to start drafting ballot language.

199
00:34:20.170 --> 00:34:36.699
Boardroom: All of which has to get done and submitted to the county by no later than August 7, 2026. We obviously would like to get this done within the timeframes that Council meets, so July 28th would be the last meeting of Council when we would seek final adoption, if necessary.

200
00:34:37.929 --> 00:35:02.850
Boardroom: So that's the totality of our presentation for you this evening. We're certainly available and looking forward to the discussion and questions from Council. In this next slide, we did prepare some specific questions that we would like to garner feedback on. So the first

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question is whether or not we should proceed with a community survey. We would like Council feedback on that, and certainly any input and feedback of what should be in that survey that we may not be

201
00:35:02.850 --> 00:35:04.210
Boardroom: Including at the moment.

202
00:35:04.770 --> 00:35:14.419
Boardroom: And then as it pertains to the specific geobond, a number of very specific questions that we can come back to. Does the City Council wish to explore a bond measure for infrastructure improvements?

203
00:35:14.790 --> 00:35:21.410
Boardroom: If so, is City Council supportive of evaluating an amount up to $300 million for inclusion in the survey?

204
00:35:21.880 --> 00:35:34.430
Boardroom: Are there any additional projects that staff should evaluate and consider adding to the proposed list of projects? And then on the flip side, are there any projects that should be removed from the proposed list? So with that, I'll turn it back to you, Mayor.

205
00:35:36.000 --> 00:36:00.879
Boardroom: Thank you very much. What I want to do is start with questions from Council, and then do public comment, and then, have us come back for Council comments as well. And thank you, and then I'll ask you probably to pull up that slide again so we can make sure we answer those questions. Thank you so much, for… to staff for just all of your work in putting this together. I really appreciate it, and, I'm gonna see if any of my Council colleagues have

206
00:36:00.880 --> 00:36:02.150
Boardroom: questions.

207
00:36:06.600 --> 00:36:09.680
Boardroom: Yes, Councilmember Humbert.

208
00:36:09.800 --> 00:36:10.610
Boardroom: Wow.

209
00:36:11.740 --> 00:36:16.949
Boardroom: Thank you, Madam Mayor. It's hard to believe I'm the first one to click.

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210
00:36:17.360 --> 00:36:28.569
Boardroom: Really, I just have one question, and I have a number of comments, but I just have one question about the community survey. Would any thought be given to

211
00:36:28.620 --> 00:36:39.609
Boardroom: Asking the community about a range of amounts. In other words, we're talking here about $300 million, would it make sense to ask the community about

212
00:36:39.640 --> 00:36:58.860
Boardroom: lower amounts, or even higher amounts? It absolutely would, and that would be part of the process, because we'd want to understand, what voter support is at that level, and then understand… because it could be that there isn't support, and we'd want to understand what the threshold is lower. If there's direction to look higher, we could do that as well.

213
00:37:01.780 --> 00:37:13.990
Boardroom: Okay, questions next from Councilmember Blackaby. Thanks, Madam Mayor, and thanks to the staff for putting together this wonderful presentation, and to the Vision 2050 team as well for coming with the framework that helps us evaluate this.

214
00:37:14.000 --> 00:37:38.970
Boardroom: I had a couple questions. One is just stepping back one more level, and the mayor referenced it earlier, which is we've got this billion dollar plus, you know, infrastructure backlog that's accumulated over time. And I like a lot of the benchmarking in here about the tax rate. What I'm interested in is, how do we kind of benchmark the $1 billion goal for a city of our size? And, you know, I know it's impractical, impossible, we would never drive that to zero.

215
00:37:38.970 --> 00:37:43.150
Boardroom: It doesn't make sense to spend and drive our infrastructure backlog to zero.

216
00:37:43.150 --> 00:37:50.379
Boardroom: But one other kind of, at least, reference point for me in terms of how big the bond should be, or this and the next bond, is…

217
00:37:50.380 --> 00:38:08.030
Boardroom: what's our goal for what we want to take our backlog down to? And is that the right way to think about it? It's the way I'm thinking about it, but is that the right way we should think about it? Because if

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we do this $300 million bond, we've got a billion dollar infrastructure backlog now.

218
00:38:08.280 --> 00:38:26.190
Boardroom: you know, we'll accrue more infrastructure over that time period, so, you know, is there a way to think about that, benchmark that to other cities? What should the goal be? I know that's kind of a big question, but that's something I'm kind of wrestling with as I'm thinking about this. I would like to see if our Public Works Director has any thoughts on that one. Terrence?

219
00:38:29.520 --> 00:38:37.370
Terrance Davis: Yeah, it's a… Councilmember, it's a great question. Certainly, we can benchmark in terms of looking at other…

220
00:38:37.540 --> 00:38:45.710
Terrance Davis: Municipalities in terms of what their general backlog or unfunded liabilities are, and see kind of where we compare

221
00:38:46.070 --> 00:38:47.960
Terrance Davis: And use that as a metric.

222
00:38:48.130 --> 00:38:53.700
Terrance Davis: I… I don't know that we can pursue investments in capital,

223
00:38:54.030 --> 00:39:11.279
Terrance Davis: In that way directly, in that part of the problem we'll continue to run into is that billion dollar number as we… it's very difficult for us to project out into the out years, given all the variability around construction pricing and up, you know, materials pricing.

224
00:39:11.740 --> 00:39:26.649
Terrance Davis: and prioritizations that shift, so I think it'd be very difficult to chase that into the future. I do believe that the strategy we're taking around, kind of, prioritization of categories of projects is important.

225
00:39:26.840 --> 00:39:32.940
Terrance Davis: And then measuring that over time, and we can certainly kind of try to project out

226
00:39:33.330 --> 00:39:47.360

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Terrance Davis: beyond a 5-year look, or beyond even a 7-year look, but if we try to get too far out, I think that that number becomes very, kind of, amorphous and very difficult, in my experience, for us to really.

227
00:39:47.680 --> 00:39:48.920
Boardroom: Make it real?

228
00:39:48.920 --> 00:39:58.550
Terrance Davis: So, we would just be pursuing this number that's kind of floating out there and morphing and changing, and very difficult to predict.

229
00:39:59.620 --> 00:40:17.450
Boardroom: I appreciate that, and I think I tend to agree that the more tangible projects anyway are the things that are gonna make voters stand up and say, hey, this is something worth doing or not. It's not, you know, people don't vote based on getting a billion down to $800 million, like, that doesn't inspire much participation.

230
00:40:17.450 --> 00:40:24.589
Boardroom: But it is an interesting context. At least, I think it may give voters some confidence that we are on the right track, or that we have kind of a…

231
00:40:24.590 --> 00:40:41.909
Boardroom: this fits into sort of a big picture strategy, or how we kind of shape up with, you know, are we a little bit behind, are we a little bit ahead in terms of these sort of obligations? So, anyway, I know we don't necessarily have the answer tonight, but I would love to continue that part of the conversation at some point. I don't think that's the big driver, but I'm interested in that.

232
00:40:41.970 --> 00:41:01.109
Boardroom: And the second thing on the tax rate, the bond analysis, and I see Gordon in the audience, and we had a similar conversation to this over a coffee a few weeks ago, but, looking at the total, kind of annual payment, and let me see what… I don't know what slide that is, but the big… the chart that had all the years.

233
00:41:02.330 --> 00:41:17.500
Boardroom: And note that this talks… this is basically talking about the, the debt service piece to the taxpayer, and looking at how, if we add the $300 million of bonds.

234
00:41:17.520 --> 00:41:29.620

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Boardroom: in 5-year tranches, what this will do to the kind of average tax rate, which is useful. I do… I did find in the staff report, when we looked at the total tax bill.

235
00:41:29.680 --> 00:41:38.570
Boardroom: to be really instructive, because I do think that most people, at least the folks I talk to, in my district about these sorts of issues.

236
00:41:38.640 --> 00:41:48.220
Boardroom: don't necessarily discern between the debt service part versus the parcel tax part versus the school district's part versus the county's part. They just look at the total number at the bottom.

237
00:41:48.630 --> 00:42:05.200
Boardroom: And so, I do think that, like, this is… I mean, this does tell us that we've probably under-leveraged our bond capacity over time, so there's more room. But I'll say, I think most voters won't just think about it from this perspective.

238
00:42:05.210 --> 00:42:22.100
Boardroom: Because one thing this probably doesn't show, maybe, is what has actually happened with parcel taxes since the 90s until now. Which, in my presumption, not seeing the data, is we probably have more parcel taxes now than we did back then. So anyway, so I just, again, I also…

239
00:42:22.100 --> 00:42:26.949
Boardroom: Would love to see some of this that looks at the total, kind of, average

240
00:42:27.010 --> 00:42:38.440
Boardroom: tax payment for a resident, and also a business, for that matter, over time. Because again, I just think that context is going to be really useful as we try and communicate this.

241
00:42:38.650 --> 00:42:41.090
Boardroom: Anyway, that's… I think that's it for my…

242
00:42:41.200 --> 00:42:44.719
Boardroom: Questions now, thank you. Okay. Thank you, Councilmember Lunopara.

243
00:42:45.040 --> 00:43:01.000
Boardroom: Thank you, I have two questions. I'm curious if these surveys typically include the other measures that are likely or confirmed to be

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on the ballot, measures that are not proposed by Council, like voter initiatives or regional measures to kind of gauge voter fatigue?

244
00:43:01.480 --> 00:43:18.580
Boardroom: It would… it is not standard that we would include other tax measures, whether they're citizen-related, to be on our community survey, but it would be very typical if there were other measures that the Council wanted to advance, that we would include those as well in the community survey.

245
00:43:18.840 --> 00:43:27.220
Boardroom: I guess I meant more, questions such as, if this… if these are the things on the ballot, would you still vote for… for this bond measure?

246
00:43:27.310 --> 00:43:45.100
Boardroom: You know, I… when you frame it that way, I do think that's something I'd want to bring back to our consultant, because I think it is important that we'd want to, explore whether or not the cumulative effect of… measures that we were aware of could impact someone's ability to vote on something, so that's feedback I would want to bring back to the consultant to see how we could integrate that.

247
00:43:45.380 --> 00:43:56.829
Boardroom: Okay, great, thank you. And my other question is about Old City Hall. I might have missed it, but I didn't see it on the list of projects, and I'm curious if there's a reason why, or if I just missed it. Which one?

248
00:43:56.830 --> 00:44:13.690
Boardroom: Old City Hall. So, that did show up on there. It's only a piece of the project, which is where we refer to the Model-Shireck building, where we're, talking about investing in, seismic improvements into that facility. Okay, thank you.

249
00:44:14.760 --> 00:44:17.340
Boardroom: Thank you. Okay, Councilmember Trega.

250
00:44:20.910 --> 00:44:22.549
Boardroom: Thank you so much.

251
00:44:22.810 --> 00:44:29.610
Boardroom: I think some of the questions I had, may have been…

252

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00:44:30.080 --> 00:44:37.450
Boardroom: partially answered. I wanted to ask this in a different way. So the…

253
00:44:37.760 --> 00:44:44.940
Boardroom: I appreciate your historical representation of

254
00:44:45.940 --> 00:44:54.969
Boardroom: The projected average tax rate, in relation to bonds, I have,

255
00:44:55.900 --> 00:44:59.660
Boardroom: you know, hard, it was actually…

256
00:45:00.200 --> 00:45:11.749
Boardroom: interesting, I recently, received an analysis from the, our county tax assessor, in response to,

257
00:45:12.110 --> 00:45:19.340
Boardroom: some concerns that I think have been shared with the Council as well, of certain,

258
00:45:19.670 --> 00:45:29.120
Boardroom: Certain properties, having a property tax, rate that seemed to, Increase,

259
00:45:29.340 --> 00:45:43.820
Boardroom: pretty, dramatically. And it turned out that, BCEPT, and I think Measure FF, and one more, were partially responsible for those increases.

260
00:45:44.080 --> 00:45:54.540
Boardroom: there were some decreases as well. So, my question is, is there an opportunity?

261
00:45:54.880 --> 00:46:06.189
Boardroom: for the benefit of the Council, and maybe the public as well, to do a representation of the overall,

262
00:46:07.080 --> 00:46:15.969
Boardroom: tax, basis, and, how, not just the bonding,

263
00:46:16.460 --> 00:46:20.539

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Boardroom: Portions, but, parcel taxes as well.

264
00:46:20.540 --> 00:46:41.619
Boardroom: And I, I heard you… I heard your answer to the previous question. I was wondering if, if it was demarcated even just to city, city and BUSD-based, bonds and parcel taxes, if that is something that could be calculated as a historical average.

265
00:46:41.770 --> 00:46:51.000
Boardroom: So I… what we… what we can do, and I want to bring it back to the team, but I think what we can do is in… as Councilmember Blackaby noted, in the staff report.

266
00:46:51.040 --> 00:47:06.579
Boardroom: We did an analysis looking at the total tax bill, so I think what we could hypothetically do is, you know, assuming all else equal with parcel taxes, and we could see what we could make assumptions around the school district and their indebtedness, but we could model out

267
00:47:06.580 --> 00:47:11.510
Boardroom: if these additional bonds are added, how would that impact the total tax bill? And I think that's also what

268
00:47:11.510 --> 00:47:21.539
Boardroom: was asked previously, so I do believe that is something that we could make a set of assumptions, and we could produce that and provide that information to the Council, when you're evaluating this request.

269
00:47:22.060 --> 00:47:29.710
Boardroom: I think that would be very valuable. My other question, Well…

270
00:47:29.890 --> 00:47:32.429
Boardroom: My other two… one was the…

271
00:47:32.540 --> 00:47:49.170
Boardroom: Within the, priorities that were, stated, was that basically the… how you got to the $300, million dollars, or were there, further priorities,

272
00:47:49.630 --> 00:47:53.100
Boardroom: Within, you know, the…

273
00:47:56.770 --> 00:47:59.610

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Boardroom: My question is, basically, is…

274
00:47:59.990 --> 00:48:05.599
Boardroom: Is what was presented, around the…

275
00:48:05.830 --> 00:48:22.739
Boardroom: community facilities and quality of life, public safety and critical infrastructure and accessibility. Were those the types of projects that rose to the top as priorities, or, were there further prioritization,

276
00:48:23.110 --> 00:48:26.339
Boardroom: That could be done, within that list.

277
00:48:26.550 --> 00:48:30.610
Boardroom: Or needed to be done to get to the $300 million.

278
00:48:30.780 --> 00:48:35.469
Boardroom: I'll add a couple of things in answer to your question.

279
00:48:36.300 --> 00:48:39.840
Boardroom: Those are the elements before you

280
00:48:40.130 --> 00:48:47.280
Boardroom: were also looked at in regards to, the potential for them to have other funding associated with them.

281
00:48:47.510 --> 00:48:56.490
Boardroom: the, geographic dispersion throughout the city, health, life, safety concerns.

282
00:48:56.590 --> 00:49:12.650
Boardroom: So we did use some of those Envision criteria in coming up with the total, group that we put before you, and… and it could… definitely could be changed if you all have… if there's projects, and that's one of the things we'd like to hear from you, if there's…

283
00:49:12.830 --> 00:49:20.770
Boardroom: infrastructure that you don't see on here that you feel like would be important to include, or if there's something on here where you feel like, maybe not. It'd be good for us to

284

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00:49:21.120 --> 00:49:24.120
Boardroom: get that direction and thought from the Council.

285
00:49:24.860 --> 00:49:35.680
Boardroom: Thank you. And then my last question was on the 50-50, sidewalk repair program. What is the,

286
00:49:36.460 --> 00:49:44.480
Boardroom: current backlog, I think somewhere, I've heard, two and a half to three years, is… is it?

287
00:49:44.480 --> 00:50:07.359
Boardroom: That is a longer… Our Public Works Director Davis can opine on this more, but I will say that when we… when we started going through this exercise of putting this all together, we had a lower amount for the backlog for 50-50, and then we decided that, you know what, it's sufficiently important that why don't we just put the entire backlog on here, so that if we were to fund this, and correct me if I'm wrong, Director Davis, if we were to fund…

288
00:50:07.420 --> 00:50:11.990
Boardroom: The 50-50 program at the amount that we put in here, that would cover the existing backlog.

289
00:50:12.620 --> 00:50:19.899
Boardroom: Now, how long that would take is a different question, but from a dollars and cents perspective, and I'm sure Director Davis can add a little bit more to that.

290
00:50:20.220 --> 00:50:33.219
Terrance Davis: Yeah, city manager, that is correct. So that what's represented there is to fund the entire amount. I do have, both our city engineer and, deputy

291
00:50:34.030 --> 00:50:46.469
Terrance Davis: director should be in the room as well, who can give you the specifics on the backlog amount. I don't want to misspeak, but I know that somebody either on the panel or Wahid may have that specific number.

292
00:51:00.250 --> 00:51:09.419
Boardroom: Good evening, everyone. Wahit Amir, Deputy Director for Public Works. Currently, we have approximately 1,100 locations that have been logged.

293

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00:51:09.530 --> 00:51:22.579
Boardroom: And to, Director Davis's, feedback, the estimate that we provided would bring us fully, compliant or remediate issues up to 2025.

294
00:51:23.020 --> 00:51:26.150
Boardroom: And that will clear out all of the backlogs.

295
00:51:27.070 --> 00:51:33.319
Boardroom: our sidewalks back to, in a state of good repair, ADA compliant, and so forth and so forth.

296
00:51:35.110 --> 00:51:36.430
Boardroom: Thank you.

297
00:51:38.740 --> 00:51:49.289
Boardroom: Is that your… Oh, okay. So, moving on to Councilmember Taplin. Thank you, Madam Mayor, and thank you, Super Budenhagen, Director Sprague, Davis, and Ferris.

298
00:51:49.480 --> 00:51:59.890
Boardroom: Deputy Director White, Deputy Director Amiri, and Kari, and everybody. I just have one question,

299
00:52:00.810 --> 00:52:06.449
Boardroom: Will we be including the city's unions, in our community engagement?

300
00:52:09.860 --> 00:52:19.789
Boardroom: In our community engagement as we move forward through this process? Yes. Yes, we will. Our intention is to have, like, a pretty robust community process, which would include talking with our labor partners as well.

301
00:52:20.340 --> 00:52:21.680
Boardroom: Wonderful, thank you so much.

302
00:52:23.380 --> 00:52:39.039
Boardroom: Thank you, Councilmember Kasarwani. Thank you very much, Madam Mayor. Thank you, Deputy City Manager White, for the presentation. Thank you to the Vision 2050, Task Force for being here, and, and for all of your work, over many years.

303
00:52:39.040 --> 00:53:02.010

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Boardroom: And thank you to the mayor for reconvening that group and having this time to talk about infrastructure. So, I just wanted to… well, first, I know this is a question time, but I did want to just second something Councilmember Humbert had said about looking at a range. So I am in support of the community survey. I guess we're going to do those comments later, so I'll… let me just say that I thought a range was…

304
00:53:02.160 --> 00:53:09.210
Boardroom: important. And, you know, I think, I appreciate getting all of the, the…

305
00:53:09.520 --> 00:53:34.499
Boardroom: the possible projects that could be funded. Obviously, I assume we can't fund all of them for $300 million, so I think what would be helpful moving forward, and I can say this as a question, is, you know, what are the highest priorities for repair? For streets, we know that the longer we wait, the greater the cost is, because you have to fully rebuild the street, so I'm wondering, is there any

306
00:53:34.500 --> 00:53:46.780
Boardroom: Anything here that, you know, the longer we wait, the more costly it is, or, you know, there's a safety or health risk to the community. I was thinking maybe of some of the climate resiliency work.

307
00:53:46.780 --> 00:53:55.079
Boardroom: So… so I think that would be helpful moving forward, to get a sense of what should we be prioritizing of this long list. And then…

308
00:53:55.230 --> 00:54:03.990
Boardroom: on… I know Sidewalk, the 50-50 Sidewalk program is mentioned, and I do want us to be careful. I have a question, because I know Measure FF

309
00:54:04.260 --> 00:54:18.459
Boardroom: provides funding for sidewalks at 15%, and I was just looking at the language there on our website. It says 15% for sidewalks and pedestrian paths until the backlog of damaged sidewalks and pedestrian paths is eliminated.

310
00:54:18.460 --> 00:54:25.380
Boardroom: So, I just want to be careful here. I'm worried about putting sidewalks in here again.

311
00:54:25.380 --> 00:54:44.890

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Boardroom: when the voters just approved a significant parcel tax that… with a big piece of it being sidewalks, I think we need to calculate, you know, how much are we going to get from that, how much will that go towards sidewalks, and is there any leftover that we want to fund through this? And I… I'm kind of inclined to just not do it, because

312
00:54:44.890 --> 00:54:52.080
Boardroom: we already did something focused on streets and sidewalks, but I think it's still worth the analysis, and so… so I did have a question.

313
00:54:52.140 --> 00:55:02.360
Boardroom: Sort of what, if we had thought about that when we put sidewalks in here, that… is it because we still believe that there's a need beyond the FF funding?

314
00:55:03.840 --> 00:55:06.660
Boardroom: I'll defer… Director Davis, you want to comment on that?

315
00:55:07.500 --> 00:55:08.110
Terrance Davis: Do her thing.

316
00:55:08.700 --> 00:55:18.620
Terrance Davis: Yes, Councilmember, we thought about that and did contemplate that there's some overlap, and we were very careful in proposing these projects with Measure FF funding.

317
00:55:19.110 --> 00:55:28.469
Terrance Davis: Having not been even deployed yet, and really having that resource for our, streets and sidewalks. I will say.

318
00:55:28.910 --> 00:55:32.629
Terrance Davis: that Measure FF funding by formula is…

319
00:55:32.830 --> 00:55:45.010
Terrance Davis: Fairly limited, and so… and we also have other accessibility and sidewalk improvement projects that we'd like to do around the city, so this would be another force multiplier.

320
00:55:45.190 --> 00:56:01.279
Terrance Davis: But certainly, if it was the Council's prerogative to, move away from 50-50 and just focus on other ADA barrier removals that are not currently funded, we could certainly do that if that was, the desire, or if it was,

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321
00:56:01.600 --> 00:56:19.860
Terrance Davis: interest in kind of, taking a look at what Measure FF projected over the next few years would actually be able to accomplish in terms of funding that backlog. But, as you know, there's quite a bit of pressure on Measure FF already as we contemplate the first, you know, couple rounds of projects, and so…

322
00:56:19.960 --> 00:56:31.709
Terrance Davis: It's… it's very unlikely that with the entirety of Measure FF sidewalk funding dedicated to 50-50, we'd be very limited in doing other safety projects.

323
00:56:31.940 --> 00:56:33.800
Terrance Davis: Or making other improvements.

324
00:56:33.860 --> 00:56:43.549
Boardroom: Okay, okay, I understand. So, I think that, we may want to flesh that out more, and get an understanding of how much

325
00:56:43.550 --> 00:57:01.399
Boardroom: can be done on the 50-50 program with the Measure FF funding, and then it sounds like you're talking about, you're talking about sidewalks, but some specific ADA upgrades. So maybe that is slightly different. So I don't want to take it off the table, because I do think sidewalks are something everyone uses, and it's…

326
00:57:01.450 --> 00:57:26.210
Boardroom: very important to have them be, you know, walkable. You know, people use walkers, they use mobility assistance devices, and they can't navigate our sidewalks right now, because they're so bumpy. So, I think it's important. I just… I think we need to just be clear about what it is we want to do with this versus FF. So, that's why I wanted to ask that. And then, I think Councilmember Traeger was getting into this issue, and as was Councilmember Blackaby, just…

327
00:57:26.360 --> 00:57:41.430
Boardroom: the concept of, like, well, how much is this really going to cost? I know it's… it's, it's complicated because there's certain older bonds that are expiring, and so you're saying… when you say $44 per $100,000 of…

328
00:57:41.570 --> 00:57:49.070
Boardroom: property value, that's everything, right? That's… that would be this bond plus all the other…

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329
00:57:49.340 --> 00:58:05.660
Boardroom: bonds, right? Correct. That would be the average, over about a 40-year time frame. Okay, so… and Councilmember Trigger may have been asking this, like… so I think we have to think in the survey, I assume we're trying to get at

330
00:58:05.840 --> 00:58:24.059
Boardroom: voters' willingness to pay, right? And so, I think we need to be careful, because this actually, could be a lot, right? I mean, because a $1.5 million home value, median home value, so this is over $500, right, for that? That sounds like a lot, but,

331
00:58:24.060 --> 00:58:34.009
Boardroom: But I don't know if there's any way for us to think about, well, how much is this? If we don't do this, in the absence of this, like, sort of what is the… the incremental cost of this?

332
00:58:34.280 --> 00:58:50.280
Boardroom: maybe that's what we would ask the voters. I know we have time to develop the question, but I think we just need to clarify a bit. I don't know how we've done this question in the past, because I know we've pulled for bonds in the past, and I'm not sure how exactly we get at

333
00:58:50.280 --> 00:59:04.169
Boardroom: you know, the incremental cost of this one. Yeah, I'll have to take a look, because we have, as you said, we have surveyed this in the past, but I'll take a look at that in terms of how we've talked about that incremental cost. Okay, because I think that's…

334
00:59:04.540 --> 00:59:22.700
Boardroom: probably… that's how I would think about it, you know, as somebody who gets the privilege of paying that bill. So, so I think maybe that would make sense. So I just wanted to ask you, but for our purposes, okay, so you're saying… and I think that… I want to thank you for that chart, as I had asked for us to have something like that, because it puts it in context.

335
00:59:22.830 --> 00:59:24.280
Boardroom: of,

336
00:59:24.850 --> 00:59:31.659
Boardroom: Sort of where we are, and, and where we have historically been with, with, paying down,

337

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00:59:32.730 --> 00:59:38.890
Boardroom: the, these bonds. So, that's all I have in terms of questions. I kind of veered into comments, so thank you very much.

338
00:59:41.650 --> 00:59:53.510
Boardroom: Just so we're clear, I want to make sure. You said something about $500, Councilmember, and then I think that you had said something about $242 or something? I just want to make sure I'm understanding…

339
00:59:53.630 --> 01:00:18.539
Boardroom: the amount that voters might have to pay for, homeowners might have to pay for. So the figure I, provided was based on the median assessed value for a home. So, you know, the assessed value will range from folks who've owned a home for many, many years and have a low basis to someone who just bought a home, so obviously the actual amount will vary widely based on what is someone's actual assessed value. The figure I quoted was just based on looking at the median

340
01:00:18.540 --> 01:00:21.480
Boardroom: And assessed value for the totality of the city.

341
01:00:21.490 --> 01:00:27.150
Boardroom: And what was that? $550,000. 550,000.

342
01:00:27.320 --> 01:00:35.780
Boardroom: That's the median? Prop 13. Yeah. Alright. Got it. Okay.

343
01:00:35.910 --> 01:00:40.479
Boardroom: Thank you, no, I appreciate the numbers. I know, gosh, I don't have…

344
01:00:41.110 --> 01:00:55.289
Boardroom: Anyway, so I have some questions. I know everyone's now thinking about their property tax bill. Could you speak a little bit more about the community engagement that you're hoping to do in January?

345
01:00:55.910 --> 01:01:02.590
Boardroom: So, we have not fully developed it, but we've talked about wanting to speak to specific commissions, and so, you know.

346
01:01:02.730 --> 01:01:18.269
Boardroom: like I said, we just haven't fully put all the meat on the bones yet, but in essence, we want to try to do some engagement, use our commissions, and try to just get out there and hear from the community

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outside of a survey, what are their perspective on these proposals, the projects, etc.

347
01:01:18.380 --> 01:01:21.030
Boardroom: Got it. Okay, great. And…

348
01:01:21.360 --> 01:01:31.230
Boardroom: Could we also make sure that the RFP gets the firm's… I know you said it's already been out. Does the RFP, have the firm's…

349
01:01:32.140 --> 01:01:37.119
Boardroom: Sorry, I'm not sure I understand what's written here. I'm gonna skip that question.

350
01:01:38.450 --> 01:01:53.570
Boardroom: I'm wondering, I think I'm feeling really nervous about the timeline, just knowing that things aren't going to be finalized until quite late into 2026, and so I'm wondering if it's possible for Council to give direction to move forward on

351
01:01:53.570 --> 01:02:03.280
Boardroom: you know, an agreement with a firm, but then come back for retroactive approval, which I know we sometimes do with things that happen during the break.

352
01:02:04.560 --> 01:02:19.579
Boardroom: I mean, yeah, I think a couple things. One, if we get enough clarity and direction from you all tonight to move forward with the community survey faster than coming back in February, we can do a contract with, with a survey firm

353
01:02:19.800 --> 01:02:27.540
Boardroom: in the interim that would allow us to do that. It might have to be a smaller contract, and we'd have to come back to you later to get council authority to increase it.

354
01:02:27.860 --> 01:02:44.449
Boardroom: But yes, we could do that. Okay. And in fact, that would be… that would be fantastic if we could do that. Yeah, that would be great, because I think the later we, you know, get a firm, the later we get the portal, the later, you know, all this stuff happens. So, that's great, thank you very much. And I think that this question here is,

355
01:02:44.850 --> 01:02:53.289

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Boardroom: Around if we've asked these, in the RFP, if the firms have experience,

356
01:02:54.950 --> 01:02:58.490
Boardroom: On resiliency and climate change?

357
01:02:58.570 --> 01:03:18.449
Boardroom: related surveys? No, we didn't ask that specifically, we just asked for their totality of experience doing community surveys, but we didn't focus on them on any particular topic. Okay, and then the other thing is, some of the council members brought up the question for me about

358
01:03:18.450 --> 01:03:22.710
Boardroom: How many of these projects, $300 million will cover?

359
01:03:22.750 --> 01:03:29.590
Boardroom: I just want to make sure I understand that. Oh, the total number of projects we have listed is…

360
01:03:29.640 --> 01:03:30.320
Boardroom: Of course.

361
01:03:31.130 --> 01:03:33.159
Boardroom: It's gotta be more than 31.

362
01:03:33.160 --> 01:03:56.009
Boardroom: I mean, I think the key point is the total number of projects listed equals about 300 million, so this is the full group that we're talking about. It's a little over $300 million, but that's essentially the group that we're talking about. Great, I just want to make sure everybody understands that, because I think that's important, because I think this is actually the short list, not the long list of projects, so, great. Thank you very much for that. Any other questions?

363
01:03:56.020 --> 01:03:59.080
Boardroom: Oh, Councilmember Blackbee, you have a follow-up?

364
01:03:59.500 --> 01:04:18.120
Boardroom: One last one, and it was spurred by your question. I noticed in the Vision 2050 report, there was a question about whether this is a 2026 or 2028 kind of decision. Obviously, the sooner we do it, the sooner we have the bonds, the sooner we can start making investments in

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infrastructure, but there could be some considerations for what's the best ballot, what's the best electorate, kind of all that.

365
01:04:18.160 --> 01:04:24.589
Boardroom: What's, you know, have you thought about the timing, and what's driving the 2026 in particular?

366
01:04:25.160 --> 01:04:33.089
Boardroom: Mostly the huge backlog of Infrastructure needs, and wanting to get on that 2 years sooner.

367
01:04:33.150 --> 01:04:51.839
Boardroom: And I will add some other considerations that came to mind. So, as we talked about Measure T1, we're going to do our final issuance of that in early next year, and those projects are already called for, so basically at this point in time, we have, other than Measure FF,

368
01:04:52.030 --> 01:04:57.020
Boardroom: We have very little new resources coming into, our infrastructure, so…

369
01:04:57.170 --> 01:05:04.580
Boardroom: we're also just trying to be thoughtful about, we want to keep reinvesting in our infrastructure, because I think that the point was made before.

370
01:05:04.770 --> 01:05:29.759
Boardroom: the more we delay, the more things deteriorate. The streets example was used, that's very similar for buildings. So we were trying to think about, with all of our existing measures coming to a head, or coming to an end, this would provide an opportunity to keep that machine going, and keep us, investing. Like, the last thing I would add to that is that just that things become more expensive. So two years from now, it's just going to be more expensive. Yeah, makes sense. And I guess, you know, the survey will also

371
01:05:29.760 --> 01:05:33.950
Boardroom: help be a guide. Because if the feedback is folks are not ready.

372
01:05:33.950 --> 01:05:55.229
Boardroom: then we get the message. I mean, so again, I know we'll be open and receptive to that, because that'll… I mean, getting to 67% is a high bar in any election. And so, anyway, so I know most of the timing is driven by the fact we need the resources to start doing the capital

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investment, and I appreciate that, but I also assume we'll be sensitive to what we hear from survey.

373
01:05:55.230 --> 01:05:56.040
Boardroom: Public.

374
01:05:57.900 --> 01:06:16.920
Boardroom: Thank you. Councilmember Trekup, did you have a follow-up question? Yeah, on survey development, is that something that typically goes to the Council, just in terms of, vetting the questions, or do you just move forward with the questions?

375
01:06:18.090 --> 01:06:23.410
Boardroom: I think we would just move forward with the questions once we got the direction from you. Okay, then…

376
01:06:23.550 --> 01:06:27.440
Boardroom: Just because this is my first time going through…

377
01:06:27.650 --> 01:06:34.280
Boardroom: this particular, development of a potential bond measure.

378
01:06:34.440 --> 01:06:46.910
Boardroom: I wanted to ask is, in this survey, how typical is it to provide some contextual questions around

379
01:06:47.010 --> 01:07:04.990
Boardroom: Do you feel that the city is moving in the right or the wrong direction, or do you feel better off now than you were 5 years ago, or things like that? It's very typical for us to ask some contextual questions like that in the survey.

380
01:07:05.100 --> 01:07:06.349
Boardroom: Okay, thank you.

381
01:07:07.140 --> 01:07:20.359
Boardroom: Okay, great, thank you so much. I'm going to open up for public comment, and then we'll come back to Council comments. Is there any public comment? Would love to hear what you folks think about this, projects, etc.

382
01:07:20.590 --> 01:07:21.330
Boardroom: Of course.

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383
01:07:22.250 --> 01:07:26.340
Boardroom: I'm trying to get a sense of…

384
01:07:26.720 --> 01:07:35.710
Boardroom: if anyone else is gonna speak, but I think you can have 2 minutes, because it looks like we've got time for it. So, go ahead, 2 minutes.

385
01:07:38.660 --> 01:07:42.320
Boardroom: Mayor Ishii and council members.

386
01:07:42.470 --> 01:07:52.639
Boardroom: I recall standing in front of the City Council in 2022, when a similar discussion was held on a revenue measure.

387
01:07:53.120 --> 01:07:57.759
Boardroom: I want to, bring to your attention That a number of

388
01:07:57.900 --> 01:08:06.160
Boardroom: pertinent information was presented by staff at that time to Council that are relevant and may be helpful to you now.

389
01:08:06.740 --> 01:08:13.010
Boardroom: One in particular was staff presented an asset management program to you.

390
01:08:13.220 --> 01:08:24.180
Boardroom: This is a life cycle maintenance management program that would help keep that billion dollars at a billion dollars or going down.

391
01:08:24.340 --> 01:08:30.390
Boardroom: So, maintaining facilities is as important as fixing them.

392
01:08:30.779 --> 01:08:36.830
Boardroom: So that document was brought to Council in 20, 2022.

393
01:08:36.979 --> 01:08:41.680
Boardroom: And another document that was important, Was a program planned?

394

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01:08:41.979 --> 01:08:46.020
Boardroom: And that was brought in, I believe it was in May of 2022.

395
01:08:46.270 --> 01:08:51.029
Boardroom: That information is all still available and relevant to your discussion.

396
01:08:51.399 --> 01:08:55.040
Boardroom: A program plan is looking at everything…

397
01:08:55.140 --> 01:08:56.869
Boardroom: That you're trying to deal with.

398
01:08:57.040 --> 01:09:01.400
Boardroom: How do you maintain it? How do you prioritize it? How do you sequence it?

399
01:09:01.500 --> 01:09:08.419
Boardroom: Because what you're dealing with is just kind of like the short list. There's a longer list, how do you deal with the longer list?

400
01:09:08.550 --> 01:09:12.860
Boardroom: So the program plan made a first Pass at that.

401
01:09:12.960 --> 01:09:20.509
Boardroom: And also tried to address the question of the organizational requirements that you might need to implement the program.

402
01:09:20.770 --> 01:09:31.749
Boardroom: So I think there's more to the discussion that could happen that you're having right now, and some of these passwords in 2022 would be helpful in that context.

403
01:09:33.100 --> 01:09:34.340
Boardroom: Thank you.

404
01:09:37.569 --> 01:09:50.229
Boardroom: Good evening, the Mayor and Council. I'm wearing my, hat as coordinator for Community for Cultural Civic Center, DBA, and neighbor, 3 blocks from, the park.

405
01:09:50.229 --> 01:09:59.880

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Boardroom: and the Civic Center. I just wanted to say, you know, the renovation of the Civic Center Park, I think everyone has recognized as a tremendous success.

406
01:09:59.890 --> 01:10:13.279
Boardroom: And it's laying the groundwork for renovating the entire Civic Center and what is possible. And we need and want to continue this, and I want to thank Eleanor, I want to thank Terrence and his staff, Wahid, for their great work.

407
01:10:13.280 --> 01:10:23.600
Boardroom: I also wanted to remember that we… I think only 3 of you were here. In March 22nd, 2022, we presented an innovative seismic study

408
01:10:23.610 --> 01:10:46.679
Boardroom: The CCC paid $14,000, Public Works paid $14,000, we got a low bono proposal that showed we could drop the cost of the seismic renovation by 51 to 54%. So, we've done an incredible job already showing how we can do this affordably. We really need this money in the budget so we can get the FEMA grant.

409
01:10:46.680 --> 01:11:02.780
Boardroom: We need to have the match. So let's build on our success, let's realize… I know it's a challenging budget situation, but I really appreciate it in the list, but I think some great foundational work's been done that the community can build upon. Thank you so much.

410
01:11:03.460 --> 01:11:04.659
Boardroom: Thank you, John.

411
01:11:09.450 --> 01:11:15.160
Boardroom: I want to thank the Council for Taking up this…

412
01:11:15.270 --> 01:11:27.749
Boardroom: And listening to what the Mayor's Task Force has proposed, we have a big problem around infrastructure on a long term. And as they say, in the long term, everybody dies, but there's always other people.

413
01:11:27.860 --> 01:11:34.909
Boardroom: There's gonna still be people in Berkeley. Okay, so we need the infrastructure, we need to invest in it because it costs more

414
01:11:35.150 --> 01:11:36.920
Boardroom: To delay these things.

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415
01:11:37.180 --> 01:11:45.430
Boardroom: And there are… I would say there's a great example of how to do bonds right, and that's the Berkeley Unified School District.

416
01:11:45.950 --> 01:11:51.679
Boardroom: Every 12… 10 or 12 years, they go out for a large bond, like you're doing now.

417
01:11:51.780 --> 01:12:08.880
Boardroom: They list the projects they're going to do, and in 2020, the voters passed a $380 million authorization for the school district. They don't… for Berkeley, the city tends to go out with a lot of little projects, and they go out every other year, or something like that, and I think it's really important

418
01:12:09.020 --> 01:12:17.030
Boardroom: to set up a model like the school district. The school district actually has less infrastructure that it's responsible for than the city does, so… but it issues…

419
01:12:17.240 --> 01:12:31.130
Boardroom: It has $300 million of outstanding bonds, where the city only has $200, so somehow they're doing a better job at dealing with their infrastructure problems than the city does, and we could learn a lot by studying… consulting with them on how they do that.

420
01:12:31.640 --> 01:12:40.630
Boardroom: The other thing I would say is that there's some good news in, especially in the staff report, particularly the leverage that they got with T1.

421
01:12:40.880 --> 01:12:48.829
Boardroom: they got 80%. Well, if you've got a $300 million bond and 80%, that's another couple hundred million dollars, and that helps keep

422
01:12:49.120 --> 01:12:51.700
Boardroom: But if you don't have the money, you don't get the leverage.

423
01:12:51.820 --> 01:13:04.270
Boardroom: And in fact, for the housing, the leverage was even much better. It was, like, 400%. And so, the city should celebrate, this is a good thing. They did a good job there. They were able to leverage taxpayers' dollars, and so…

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424
01:13:04.410 --> 01:13:09.839
Boardroom: We should try to do the same thing, and hopefully we can do as well or better in the future.

425
01:13:10.220 --> 01:13:25.320
Boardroom: The last thing, I would like to just say is that the city's done a great… Sorry, does someone want to give him a minute? Just a minute. The… Okay, someone will get… you've got another minute. Go ahead. Okay. The last thing I would say is that the city's done a great job

426
01:13:25.680 --> 01:13:26.860
Boardroom: on solar.

427
01:13:27.020 --> 01:13:31.509
Boardroom: Building up solar capacity. They've done a really poor job on wind.

428
01:13:31.700 --> 01:13:37.709
Boardroom: And if you look in the report, there's a great picture in there from the… Vision 2050 showing

429
01:13:37.980 --> 01:13:52.059
Boardroom: there's this huge wind power that comes through the Golden Gate, and it's directed exactly, straight at the Berkeley Marina. We should put some windmills down there, okay? Because sometimes when the sun doesn't shine, the wind blows very hard. So, thank you.

430
01:13:52.310 --> 01:13:53.740
Boardroom: Thank you.

431
01:14:04.620 --> 01:14:17.379
Boardroom: I almost need a ladder to pull that thing down. Oh my god. Alright, so I give great thanks for all of you. I hope you had a great Thanksgiving, and enjoy your holiday the next month.

432
01:14:18.040 --> 01:14:23.410
Boardroom: I'm really thrilled that you're focusing on infrastructure.

433
01:14:24.130 --> 01:14:26.349
Boardroom: I really try to prevent harm.

434

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01:14:26.580 --> 01:14:32.350
Boardroom: And I've worked on projects where they didn't want to do a $300 roof leak, and…

435
01:14:32.660 --> 01:14:45.820
Boardroom: $30,000 later. No, and the same thing with the window leak, and, you know, the stucco's hanging on the wall by the mesh, and everything is just rotted out behind it, and you wouldn't know.

436
01:14:46.420 --> 01:14:50.849
Boardroom: I worked on a project up on Spruce Street. The entire house.

437
01:14:51.460 --> 01:14:52.950
Boardroom: was folding.

438
01:14:53.120 --> 01:15:01.460
Boardroom: Collapsing. The hill behind it was sliding. The pipes, the sewer lines, the water lines were breaking.

439
01:15:01.890 --> 01:15:07.610
Boardroom: It's like, things were changing, and, Ms. O'Keefe.

440
01:15:08.160 --> 01:15:11.510
Boardroom: Things do get more expensive if you defer maintenance.

441
01:15:12.520 --> 01:15:32.420
Boardroom: the gentleman who said, it's much better to maintain things. I mean, I do periodic checks all the time, because it's so much more cost-effective, and that brings me to the sidewalks, and I do have an extra minute from my friend back there. He'll raise his hand, I'm sure. Okay.

442
01:15:32.530 --> 01:15:42.000
Boardroom: Look, I've fallen a bunch of times, I'm already in kind of rickety shape. One more fall that might… I'm starting to cry. It might do me in.

443
01:15:42.320 --> 01:15:46.260
Boardroom: Therefore, I get down on my knees and I grind sidewalks.

444
01:15:46.650 --> 01:15:49.280
Boardroom: I can go to the transportation.

445

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01:15:49.510 --> 01:15:54.989
Boardroom: department and say, how… Can I find out what y'all use?

446
01:15:55.440 --> 01:15:56.740
Boardroom: for grout.

447
01:15:57.080 --> 01:16:06.159
Boardroom: That white, cementitious, non-concrete thing that you can just level off the sidewall. Or what about the asphalt that you use for speed bumps?

448
01:16:06.300 --> 01:16:11.080
Boardroom: Well… They tell me that… She has an extra minute, Rose. Thank you.

449
01:16:11.730 --> 01:16:22.810
Boardroom: You know, they give me the name of the materials, and of course, you know, I'd have to buy truckloads of it. But I'm literally… I got spray paint in my car, and so I could at least alert people.

450
01:16:23.110 --> 01:16:24.130
Boardroom: Okay.

451
01:16:24.540 --> 01:16:26.750
Boardroom: So, prevent harm.

452
01:16:28.180 --> 01:16:37.369
Boardroom: Thank you for everything that you have been doing. A lot of the streets have been striped, painted, so that at least people know where to turn. But speed bumps?

453
01:16:37.900 --> 01:16:47.829
Boardroom: they're not getting repainted, and, you know, I'm just about losing… my head almost rolls off my neck if I hit it too fast, because I don't see it.

454
01:16:48.360 --> 01:16:54.129
Boardroom: Yeah, so, and the fire department, good God.

455
01:16:56.930 --> 01:17:05.049
Boardroom: Buildings, I've seismically retrofitted things, because again, you don't want them to collapse. But the ambulances…

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456
01:17:05.560 --> 01:17:12.620
Boardroom: And the paramedics and the fire engines need to be able to Travel. We have idiotic

457
01:17:13.410 --> 01:17:24.949
Boardroom: I'm sorry, I didn't mean to be disrespectful. Traffic lights. We have one-way… we have two-way streets that are only one way, barely. It's like we've gotta get…

458
01:17:25.380 --> 01:17:29.140
Boardroom: Prepared for when people need either medical help.

459
01:17:29.480 --> 01:17:37.730
Boardroom: Instead of having to literally leave town, move out of the country, because they know the ambulance wouldn't get to them in time?

460
01:17:38.220 --> 01:17:45.190
Boardroom: It's like, okay, so infrastructure is definitely quality of life, like we should be able to stay alive.

461
01:17:45.190 --> 01:18:00.700
Boardroom: We should not have to get injured. We should help each other out, and I really appreciate everything that you're doing, and again, I sincerely hope you have a great holiday, given this is the last meeting. Happy Thanksgiving. Bye. Thanks, Priya.

462
01:18:05.120 --> 01:18:29.999
Boardroom: Hello, City Council. Thank you very much for everything you do. I think this is my first time here. My name is Sophia Skoda, and in my day job, I work for all of you at East Bay Mudd as the Finance Director. Thank you for paying your water bills. So, I did want to say thank you for your focus on infrastructure here today. That's also what we are doing at East Bay Mud, and I wanted to say, I hope that you'll consider as you look at how you're, going forward with this important infrastructure, fund and the bond fund.

463
01:18:30.000 --> 01:18:54.990
Boardroom: looking at parcel taxes as well as geobonds. Geobonds, you know, one of you brought up, you know, oh, a $1.5 million average sale price today, so a geo-bond puts the burden of the infrastructure on young families rather than more evenly across the community. So just kind of looking at those considerations, and there are things that can be done to kind of bracket around maybe parcel size, or square footage, or things like that that

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464
01:18:54.990 --> 01:19:17.980
Boardroom: could be a parcel tax, but the geobond on a 550, you know, kind of median kind of assessed value means that, you know, one part of the voter base is, you know, kind of getting a significant benefit. I think it makes a lot of sense for things like schools, where, again, that nexus is closer with who's paying and who's receiving the benefit, but perhaps a parcel tax could make sense. Thank you very much.

465
01:19:18.240 --> 01:19:19.530
Boardroom: Thank you.

466
01:19:20.090 --> 01:19:36.319
Boardroom: Are there folks online? No hands are currently raised, but this is the time to provide public comments on the discussion regarding potential ballot measures, so if you're participating online and you'd like to speak, please raise your hand.

467
01:19:40.540 --> 01:19:43.269
Boardroom: Okay. There are no…

468
01:19:43.550 --> 01:19:50.559
Boardroom: speakers. Okay, very good. We'll go back to Council for Council comments then, starting with Councilmember Taplin.

469
01:19:50.950 --> 01:20:07.070
Boardroom: Thank you very much, and, please allow me to first, express my gratitude to Mary Ishii for allowing me the opportunity to serve on the task force. It was an honor to work with you, and Councilor Tegub, and Ray, and Margo, and everybody, and,

470
01:20:07.780 --> 01:20:19.089
Boardroom: like the mayor, I also have a great love and passion for infrastructure, and it was one of the first things I began to think about when I entered my, life as a public servant in this way.

471
01:20:19.400 --> 01:20:37.950
Boardroom: I strongly support moving forward with the survey, and with the expiration of a November 26 bond up to $300 million. I'm not interested in a parcel tax for capital. I would like for the survey to pull fire projects separately, and also the larger set together, just to see if that…

472
01:20:37.990 --> 01:20:53.040

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Boardroom: you know, if that changes or is different. And I do think it will be important for us to avoid the shortfalls of Measure L, namely a high dollar amount combined with an ill-defined scope of improvements, and to that effect, what

473
01:20:53.100 --> 01:21:07.489
Boardroom: What makes sense to me is to create a clear nexus around immediate safety consideration, disaster and climate resiliency, and recreational equity, and, to list off projects that I feel like exemplify that among the current list.

474
01:21:07.560 --> 01:21:14.179
Boardroom: For immediate safety, Francis Albreyer, the South Cove Seawall Replacement, the Veterans Building.

475
01:21:14.360 --> 01:21:22.230
Boardroom: Mono Shrek Old City Hall, the 5050 Sidewalk Program Backlog, the MLK Civic Center Annex, Fire Stations 4 and 6,

476
01:21:22.260 --> 01:21:36.519
Boardroom: the Police Fire EMS Dispatch Center remodel, the Harrison Street Fire Training Facility, and in the Disaster and Climate Resiliency category, the Marina Boulevard Sea Level Rise and Bay Trail Project, Fire Stations 1, 2, 3, 5, 7,

477
01:21:36.630 --> 01:21:43.870
Boardroom: And in the recreational equity category, aquatic park improvements, Harrison Park AstroTurf field conversion.

478
01:21:44.450 --> 01:21:55.320
Boardroom: Island Corridor Open Spaces, King Pool, San Pablo Park Sports Field Irrigation and Drainage, the University Avenue Bike Park, and the Citywide

479
01:21:55.640 --> 01:21:58.219
Boardroom: dog parks.

480
01:21:59.140 --> 01:22:17.009
Boardroom: And I have a lot more time than I thought I would, but I want to just close by saying I do think it will be important to engage as wide of a sample of the community as possible, including our labor partners, the commissions, the neighborhood groups, our community groups, and…

481
01:22:17.140 --> 01:22:23.760

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Boardroom: I want to just offer any support that my office can provide, And…

482
01:22:24.460 --> 01:22:37.120
Boardroom: you know, I know it will be tough to convince people, but I'm proud of what we've done, and I'm willing to fight and knock on every single door and make every single phone call.

483
01:22:37.240 --> 01:23:00.289
Boardroom: Despite my millennial aversion to phone… to using the phone. I can text, for sure, yeah. But I say that to say that, you know, I believe in… I believe in the city, I believe in our staff, I believe in our community, and, you know, having heard from my constituents and people throughout the city for years, about a number of these projects, I'm fully committed to seeing these over…

484
01:23:00.290 --> 01:23:05.179
Boardroom: over the finish line, if it takes 1 cycle, if it takes 10 cycles, I feel like

485
01:23:05.230 --> 01:23:08.100
Boardroom: I have to see this stuff done. Thank you.

486
01:23:10.130 --> 01:23:12.750
Boardroom: Thank you, Councilmember Humbert.

487
01:23:13.970 --> 01:23:20.600
Boardroom: Thank you, Madam Mayor. And I wanna, there are two items on the agenda, this afternoon.

488
01:23:20.940 --> 01:23:30.020
Boardroom: I guess we're almost into the evening. And so I wanted to address the first one, more fully, maybe. I want to thank,

489
01:23:30.380 --> 01:23:46.789
Boardroom: Thanks, really, vigorous thanks to the Mayor's Vision 2050 Task Force for the report, and to the Mayor for reconvening the task force. I haven't had time to review the report in detail. I know Ray says it's only

490
01:23:46.860 --> 01:23:55.810
Boardroom: 8 or 12 pages, but it's, there are a tremendous number of appendices attached, and I'll want to spend some time with it.

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491
01:23:55.970 --> 01:24:10.460
Boardroom: I appreciate all the work that went into it, and the contribution of time and thought by luminaries such as Ray Yep, and Margot Shuler, and Larry Henry, and all of you, all of you there, sitting out there in the…

492
01:24:10.640 --> 01:24:12.590
Boardroom: In the seats,

493
01:24:12.810 --> 01:24:28.880
Boardroom: I do really appreciate the emphasis on permeable infrastructure and lifecycle maintenance, which both, Mr. Yep and Ms. Shuler have, have emphasized over, over many years. Really critical, critically important things.

494
01:24:28.880 --> 01:24:38.999
Boardroom: I think the challenge we now face is determining how to translate the report and its broad recommendations into concrete actions in the context of highly constrained resources.

495
01:24:39.320 --> 01:24:54.730
Boardroom: The report discusses what criteria we might use to prioritize projects, but it seems the hard work of identifying those priorities and potentially having to leave some projects to a future time lies ahead of us, and actually we're dealing with that, I think, with the…

496
01:24:54.760 --> 01:25:13.059
Boardroom: with a bond, and again, thank you all for all this good work. With respect to item number 2, I want to thank, the city manager and all of our city staff, and, David White, for their incredible work on this effort and this report.

497
01:25:13.100 --> 01:25:32.920
Boardroom: The information is helpful, thorough, and very well presented. I especially appreciate the graphs of tax rates over time, as other folks have mentioned. And I'm very heartened by the timelines presented for developing these potential ballot measures. We're really ahead of the game compared to what happened in 2022, for example.

498
01:25:33.840 --> 01:25:50.070
Boardroom: You know, there was then really a rush for the finish, but this time, if we can stick to these timelines, or even accelerate them, as the mayor has suggested, I think we're well-positioned to have more deliberative discussions and submit our ballot language well ahead of the deadline.

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499
01:25:50.120 --> 01:26:03.669
Boardroom: Knock on wood. I think the list of projects is a great start, a really good list, but… and I agree with about 80 or 90% of it. I mean, I personally am really excited to see the 50-50 sidewalk

500
01:26:03.670 --> 01:26:19.489
Boardroom: repair program listed. The long backlog for this program shows how valued and successful it is, and having previously, myself, put forward budget referrals to get it fully funded, I'd be thrilled to see the 50-50 program.

501
01:26:19.490 --> 01:26:30.070
Boardroom: get fully funded by a general obligation bond, taking into account the concerns of Councilmember Kesarwani about, you know, how we dovetail that with FF.

502
01:26:30.120 --> 01:26:49.739
Boardroom: I'd also like to see, and not necessarily on this list, I'd like to see bus shelters. I think those are really important, and other transit improvements as we move from, you know, an auto-focused city to one that walks and bikes and takes transit.

503
01:26:49.760 --> 01:27:05.989
Boardroom: I have to say, and people might not be very happy with this, I'm less enthusiastic about including the seismic retrofits of the Model Shirich and Veterans building on this list. I strongly support having downtown projects on the list.

504
01:27:05.990 --> 01:27:21.779
Boardroom: But I also want a better future for these buildings, and I do. But candidly, I'm not convinced the currently envisioned uses for the buildings are the way forward, or justify the level of investment necessary to put them back into top shape.

505
01:27:21.780 --> 01:27:31.120
Boardroom: Looking at the projected costs for these projects, it strikes me that at the very least, it would eat up a disproportionate share of the $300 million.

506
01:27:31.290 --> 01:27:36.639
Boardroom: Right now, we're struggling to keep our existing, well-established cultural uses afloat.

507

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01:27:36.690 --> 01:27:53.010
Boardroom: We've already seen the closure of the Jazz Conservatory and the Aurora Theater. Investing significant funds to create more art spaces at a time when we're having trouble keeping our existing ones filled is not fiscally wise, and I think most Berkeley residents

508
01:27:53.010 --> 01:28:08.690
Boardroom: have other facilities that would be higher priorities. I went to the Berkeley rep the other night, and it was about a third full, and I, you know, I think that we ought to be focusing on keeping the Berkeley rep in business, rather than creating new art spaces.

509
01:28:11.300 --> 01:28:17.560
Boardroom: That said, if my staff… if staff and my colleagues feel it's important to poll on those projects, I wouldn't object.

510
01:28:17.640 --> 01:28:36.369
Boardroom: Because if we're going to keep Old City Hall and veterans in the running, I do think it's important that we get a sense of where they fall in the priority list of Berkeley residents. Again, thank you, you know, tons of thanks for all the hard work that went into this. Thank you. Thank you, Councilmember. Moving on to Councilmember Blackbee.

511
01:28:37.200 --> 01:28:51.960
Boardroom: Thanks, Madam Mayor. And just, again, add my thanks to you for reconvening the task force, to Margo, and Ray, and the whole team for participating, and for the city staff for all the hard work that's gone into bringing us to this point. I'm excited that we are kind of on the cusp of

512
01:28:51.960 --> 01:29:05.240
Boardroom: Moving forward with, kind of a major investment in Berkeley's infrastructure. You know, we… we need to do it. We know we need to do it. It's just a question of sort of how, when, how much, and what's involved.

513
01:29:05.240 --> 01:29:15.939
Boardroom: But I think we have a lot to work with here. So to work kind of very quickly through the questions, that you left with us, totally support, moving forward with the survey.

514
01:29:15.940 --> 01:29:40.059
Boardroom: as Councilmember Lunapara mentioned, you know, I am interested as part of that research, making sure we look at this potential measure in the context of other things that are likely going to be on the ballot. We already know that the arts parcel tax may very well be on the ballot. Maybe there's a local transit measure, as well as a regional transit

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measure, potentially a regional housing measure. So, again, I just… putting the context of what we're asking for up against

515
01:29:40.210 --> 01:29:48.420
Boardroom: The other things that may also be on the ballot, I just think makes sense. We need to have that kind of intelligence. I also like,

516
01:29:48.460 --> 01:29:57.359
Boardroom: Councilmember, Taplin's suggestion, which is we might need to bucket some of the categories. We've got, kind of, our three big categories of $100 million each.

517
01:29:57.360 --> 01:30:09.170
Boardroom: And roll that together, but it might be interesting to look at fire separate from parks, and waterfront separate from public works, and just understand where people's, heads are at with respect to those.

518
01:30:09.240 --> 01:30:27.090
Boardroom: I'd also say if part of the survey is, and I know in previous years, we've gotten some public, feedback on the types of infrastructure projects that people support. We should, again, ask and just make sure that what we are putting in the package kind of

519
01:30:27.090 --> 01:30:43.320
Boardroom: ranks highly on what we hear in the survey, and just be ready to adjust the list if what we're hearing from the survey guides us in a slightly different direction. I know we will be, but, you know, I just… I want the data to kind of be our guide, as we go forward.

520
01:30:43.350 --> 01:30:58.319
Boardroom: On the size, as Councilmember Humbert mentioned, I think looking at $300 million, it feels like it's not too hot, not too cold, just right. I mean, it feels okay, but looking at a range, maybe it's a little bit less, maybe it's a little bit more.

521
01:30:58.320 --> 01:31:03.439
Boardroom: Based on the survey, but also on some of these other benchmarks that we were talking about earlier.

522
01:31:03.440 --> 01:31:12.729
Boardroom: You know, what should we be… what do we need to be investing to at least stay at parity, if not actually make a dent in the $1 billion kind of backlog?

523

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01:31:12.730 --> 01:31:17.989
Boardroom: That should be kind of one of the macro guides that helps us inform the size.

524
01:31:17.990 --> 01:31:33.189
Boardroom: And then on a micro level, I think, again, looking at the average tax payment of a resident and a business, and maybe, by the way, it's not just the median, but also what does it look like at the 70th percentile or 90th percentile, because we'll get a wide range of this.

525
01:31:33.270 --> 01:31:46.620
Boardroom: So I think all of those sorts of things, both at the macro level as well as the individual resident kind of tax, piece, should inform the size. But at first blush.

526
01:31:46.680 --> 01:31:54.029
Boardroom: 300 million seems about right, but again, we might look more or less, depending on what we learn and how we benchmark ourselves.

527
01:31:54.390 --> 01:32:01.819
Boardroom: One other piece, I would encourage us to, to test in the research is,

528
01:32:01.820 --> 01:32:24.149
Boardroom: leaning into sort of the oversight and kind of the spending management and just the responsibility part. You've given a lot of really useful information already on how previous bond dollars have been invested in the results, and I think really, you know, taking some pride in that and pushing hard on the fact that we are responsible stewards and will continue to be responsible stewards.

529
01:32:24.150 --> 01:32:38.599
Boardroom: And baked into the bond itself is what's the oversight function look like, and what does sort of the management function look like, just to show taxpayers that we will continue to be responsible and effective with the money that they're good enough to share with us.

530
01:32:41.230 --> 01:32:49.289
Boardroom: I think the list of projects for now, I was very comfortable. I liked the range of what was in it, but again, be open to adjusting based on what we hear and what we learn.

531
01:32:51.690 --> 01:33:11.280
Boardroom: Yeah, and I think that's… that's where we're at. But again, I appreciate this opportunity to participate, to hear from members of the

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public, and to… to move forward, because I think, again, this is, it's an important, it's an important step for the city. We know we have a lot of work to do, and, look forward to embarking on this journey. So, thank you.

532
01:33:11.470 --> 01:33:13.900
Boardroom: Thank you. Councilmember O'Keefe?

533
01:33:14.550 --> 01:33:24.669
Boardroom: Thank you, Mayor. First, I just want to echo, I think everyone else has had a chance to say this, I want to echo the thanks for all the hard work that's gone into both of these items.

534
01:33:24.670 --> 01:33:38.989
Boardroom: And also, thanks in advance for all the work that's coming, because this is a huge undertaking, but it's also, it's really worthwhile. This is one of the most impactful things that any of us may work on, if it… if it happens. So…

535
01:33:39.060 --> 01:33:43.280
Boardroom: Good job, and thanks in advance.

536
01:33:43.590 --> 01:33:54.599
Boardroom: Just regarding the polling, I just want to echo the suggestions that have already been made, that we really, are careful to make sure we get information about how people feel about a

537
01:33:54.660 --> 01:34:10.839
Boardroom: additional taxes in the totality of everything that's happening. I know that's already been said, but I think that's a really, really important, lesson, and, you know, I wasn't around for Measure L, but whatever lessons there are to learn from that, I'm sure we're… I hope we learn and act on those, because I think,

538
01:34:10.930 --> 01:34:12.700
Boardroom: Yeah, I really hope this works out.

539
01:34:13.040 --> 01:34:19.560
Boardroom: So that's my only comment about that. In terms of project, I agree this is a great list.

540
01:34:20.030 --> 01:34:23.269
Boardroom: a lot of… I appreciate the, sort of, spread of different…

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541
01:34:23.620 --> 01:34:30.360
Boardroom: Different kinds of infrastructure and different ways that it could improve people's lives, you know, from safety to quality of life to…

542
01:34:30.490 --> 01:34:38.440
Boardroom: Sea level rise. A lot of really good projects. The only suggestion I have…

543
01:34:38.570 --> 01:34:48.410
Boardroom: that's sort of more categorical, though I have some specific examples, is I'd like to see some more, like, placemaking kinds of projects. It's…

544
01:34:49.030 --> 01:34:56.910
Boardroom: It's easy to overlook it, because it's creating something new, as opposed to refurbishing, but,

545
01:34:56.960 --> 01:35:07.359
Boardroom: There are a lot of places in our city, and I'll give you two examples from District 5, because that's my… my area. It's a lot of areas where there's sort of, like, nothing, and there could be something.

546
01:35:07.360 --> 01:35:22.060
Boardroom: And that's… that's a category that I want to make sure we don't overlook. And one example is, my predecessor, former Councilmember Hahn, has suggest… has submitted, I think, twice, a budget referral to redesign the top of Solano.

547
01:35:22.190 --> 01:35:39.290
Boardroom: And, you know, Solano up there, it's a stupidly wide street. You know, it's not a high-traffic area. Cars don't need so much space, and that whole area could be redesigned to be a really lovely pedestrian plaza that would really enhance the area and the experience of every single person

548
01:35:39.290 --> 01:35:43.750
Boardroom: enjoying that. And, I'm actually going to resubmit that budget, referral.

549
01:35:43.750 --> 01:35:53.410
Boardroom: again, now that there's maybe, like, a glimmer of hope that maybe one day it could happen, I think, things like that are, shouldn't be overlooked. And then another example.

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550
01:35:53.520 --> 01:35:55.420
Boardroom: also in District 5 is that

551
01:35:55.850 --> 01:36:08.049
Boardroom: that weird, like, triple street area on Shattuck at Rose, next to the CVS, if you guys know what I'm talking about, where the farmer's market is. Like, what is that? Like, why are we using our space that way?

552
01:36:08.050 --> 01:36:23.260
Boardroom: that could be… that could be a place for people to, like, stand and sit and lie down, maybe, and really enjoy it. There's no reason for that… there to be 3 different streets. So there's… there's probably a lot of examples of that around the city, but I want to make sure we…

553
01:36:23.390 --> 01:36:29.600
Boardroom: Kind of think about creating, as opposed to just, you know, making, fixing.

554
01:36:30.150 --> 01:36:42.140
Boardroom: Those are my comments. Oh, oh, I'm sorry, Alex will kill me if I don't say. We also need bathrooms at Indian Rock Park. There's actually… there's quite a bit of demand for that, so throw that on the list. Thank you.

555
01:36:42.830 --> 01:36:50.410
Boardroom: Thank you, and actually, could I have you pull up the questions that you have for us? I realize we don't have those up. Councilmember Traika?

556
01:36:52.140 --> 01:37:02.199
Boardroom: Thank you, Madam Mayor. The benefit of going fifth is a lot of what I was going to say has already been said.

557
01:37:02.650 --> 01:37:21.730
Boardroom: in, more eloquently than I would have said it. I wanted to just touch on some, a few points. First of all, I would be remiss in also not, expressing my gratitude to the mayor, for appointing me to the task force.

558
01:37:22.020 --> 01:37:46.710
Boardroom: to, Councilmember Taplan for co-convening it, and for, Gray and Margo, for spearheading it so ably. And I did skim the, report, and

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have confirmed that all the changes that, my Chief of staff, who I also want to thank for her participation in the task force.

559
01:37:46.710 --> 01:37:52.630
Boardroom: have been incorporated, and it's a really good document.

560
01:37:52.800 --> 01:38:05.059
Boardroom: And I think the most important, piece that I really wanted to call out, because so many times this is not the case, but in this case,

561
01:38:05.060 --> 01:38:22.039
Boardroom: there was an informative statement by staff that, what is being proposed as this potential bond measure is in alignment with Vision 2050. I think that's really important. That gives me a lot of confidence.

562
01:38:22.040 --> 01:38:41.310
Boardroom: that this really is a plan that is more than just a concept. It is actually also going to be implementable. It is not going to be gathering dust on a shelf, like so many plans, unfortunately, do.

563
01:38:41.590 --> 01:38:44.629
Boardroom: And I, I do want to,

564
01:38:44.950 --> 01:38:55.510
Boardroom: I appreciated all the public comments. I, I wanted to, appreciate what Ray said about, documents, that…

565
01:38:55.640 --> 01:38:57.749
Boardroom: past councils,

566
01:38:58.330 --> 01:39:12.279
Boardroom: looked at that guided past councils, and that can also guide our council as we embark upon this process. and I can say the same thing about Measure L.

567
01:39:12.600 --> 01:39:28.890
Boardroom: I, I think we're all better off for Measure L having been attempted, and I just want to, voice my appreciation, to the past Mayor and Council for also having the vision around that.

568
01:39:29.160 --> 01:39:39.020
Boardroom: I, it has already been said, so… I'm just going to,

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569
01:39:39.700 --> 01:39:54.109
Boardroom: put a finer point on… it is important, in the polling to look at, yes, definitely what is the Goldilocks range? Is it $300 million? Is it something more or less?

570
01:39:54.220 --> 01:40:10.279
Boardroom: but also really, trying to get at how pervasive the it-all-adds-up argument is, because I certainly have constituents, that are feeling it, and I am,

571
01:40:10.660 --> 01:40:30.630
Boardroom: I am empathetic to, homeowners, particularly newer homeowners, that, have felt, the weight of, tax increases and other, property assessment increases on their… property tax increases on their bills.

572
01:40:30.710 --> 01:40:36.069
Boardroom: But also, it is important to try to quantify as best we can.

573
01:40:36.110 --> 01:40:43.209
Boardroom: what is the cost of delaying it further? And that gets me into,

574
01:40:43.210 --> 01:41:01.220
Boardroom: a point I wanted to make, and this is, one area where I'm going to depart with much respect to my colleague, Councilmember Humbert. I believe that, the rehabilitation and the seismic,

575
01:41:01.470 --> 01:41:13.620
Boardroom: The seismic improvements of, buildings like Madele Shirec and, the Veterans, Memorial Building are…

576
01:41:13.670 --> 01:41:27.869
Boardroom: hugely important to… to me, to my constituents, and I think to the Berkeley community, because, these buildings are the foundation and cornerstone of,

577
01:41:28.110 --> 01:41:34.640
Boardroom: a city's democracy, frankly. And so, how we,

578
01:41:34.680 --> 01:41:44.289
Boardroom: How we're able to maintain them, is going to be important, and it's going to reflect of how we feel as a community about.

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579
01:41:44.290 --> 01:41:58.429
Boardroom: What we value. So I want to at least get that pulled. And I will say, I wish that we had been able to start that had Measure L passed. There were reasons it didn't.

580
01:41:58.430 --> 01:42:15.259
Boardroom: It, we, we would be on our way, and I will… I have a 30-second comment about sidewalks. I'm, I, I understand Councilmember Cassarvani's point, and…

581
01:42:15.450 --> 01:42:30.560
Boardroom: I, I would support whatever gets us to, closing out the backlog on the 50-50 sidewalk improvements. This is a top-five area we hear from, from our constituents. I myself have,

582
01:42:30.650 --> 01:42:37.630
Boardroom: tripped and fallen on our sidewalks, so I certainly, appreciate,

583
01:42:37.630 --> 01:42:55.449
Boardroom: how important it is, to me as an able-bodied person who has, the privilege to get up, and especially to those who are not. So, thank you so much, and I look forward to supporting this process as it continues. Thank you. Councilmember Bartlett.

584
01:42:56.650 --> 01:43:01.549
Boardroom: Thank you, Madam Mayor. And, and thank you, finance team and…

585
01:43:01.730 --> 01:43:09.710
Boardroom: the infrastructure team for putting this together and doing the work on this. I know it was hard, a lot of work, and thanks to the city staff for, pulling together into this omnibus.

586
01:43:09.710 --> 01:43:29.180
Boardroom: wide-reaching, effort here. And I do support, the litany of elements within here, by and large, very wholeheartedly. I think we should do a survey, and I know our surveys in the past have been, really well done. We have some good people in our arsenal.

587
01:43:29.180 --> 01:43:44.449
Boardroom: Be good to work with them again. You know, so, looking at the list of elements here, and being cognizant of the fiscal pressures that our taxpayers are confronted with right now, in the current, economy.

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588
01:43:44.560 --> 01:43:46.970
Boardroom: You know.

589
01:43:47.510 --> 01:43:57.179
Boardroom: when… one… the one that failed, Measure L, it passed in my district, but I remember when I was… when I was advocating for it, talking to people, I could feel the reticence, I could feel the…

590
01:43:57.380 --> 01:44:10.420
Boardroom: Like, I was trading a personal favor for them to vote for it, it felt like. And of course, it did fail, right? Outside of my district. It passed my district, of course. But it was not easy. I went out there a lot. So…

591
01:44:10.620 --> 01:44:22.389
Boardroom: I feel there's a lot of, a lot of competing elements here. We mentioned, Councilmember, Blackaby mentioned these as well, these other measures. So, thinking about that, and in terms of

592
01:44:22.390 --> 01:44:31.730
Boardroom: persuading people to… to sort of pull the trigger on yet another… another debt load for their families. You know, I'd like to encourage us to…

593
01:44:32.110 --> 01:44:50.759
Boardroom: to sort of, wrap our language around, the more transformative elements at play. So, next level, the next iteration of, the… really serving the future as opposed to the purely maintenance, style language, because that's less exciting for people.

594
01:44:50.760 --> 01:45:02.719
Boardroom: And so, and to that instance, I, you know, which makes me think about the Civic Center projects, it looks like they total close to $50 million of the, of the $300.

595
01:45:02.910 --> 01:45:07.330
Boardroom: And it seems like… the…

596
01:45:07.550 --> 01:45:22.129
Boardroom: the seismic retrofitting of the buildings is great, it's necessary, however, is that the final use of those buildings? And this is wrapped up in a larger conversation around the Civic Center in total.

597

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01:45:22.410 --> 01:45:28.770
Boardroom: Like, what is the new Civic Center gonna look like? Will it have a water fountain like we have up there in the hills? Like we want, like I want.

598
01:45:28.940 --> 01:45:39.970
Boardroom: Well, they have, you know, these new buildings, outdoor theater, etc. There's a vision for the Civic Center that I think demands its own sort of special finance district.

599
01:45:40.460 --> 01:45:58.900
Boardroom: And so these buildings within it, will probably need to change, or evolve, or be retrofit to suit a new purpose, which might be better off to just break that off into its own finance district. And there are many, many forms of, increment districts available to us now.

600
01:45:58.900 --> 01:46:12.760
Boardroom: They're very flexible. We deployed one in the Adeline Corridor, for the, the development there. The EIFD worked on so well with the, with Jordan Planning Department. That's my suggestion there, to free up $50 million.

601
01:46:12.760 --> 01:46:19.809
Boardroom: To make the sidewalks better everywhere for everyone, and whatever else we need to do.

602
01:46:20.100 --> 01:46:35.639
Boardroom: And also embracing the coming, hospital shortage. I understand we're gonna be losing, significant amounts of, Medicaid funding, Medicare funding, so we're gonna have, a dearth of people without access to healthcare.

603
01:46:35.640 --> 01:46:49.729
Boardroom: These will be ordinary seniors that live in our district, people with, conditions, and so it'd be interesting to think about, embracing sort of an evolution of the senior center model to be a place where people can get care as well.

604
01:46:50.470 --> 01:46:54.020
Boardroom: We have, what, 3 of them? 4 of them? How many do we have? Three?

605
01:46:54.240 --> 01:46:56.509
Boardroom: Senior centers, too? Just two?

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606
01:46:56.840 --> 01:47:04.660
Boardroom: Okay, we need 3. So, you can envision a scenario in which this extra $50 million

607
01:47:04.800 --> 01:47:16.000
Boardroom: that comes out of the Civic Center goes into making the South Senior Center and the North Senior Center and the future third one somewhere, into a real place where seniors can go and get care.

608
01:47:16.330 --> 01:47:31.290
Boardroom: and get treated. And there's all these new forms. We explored this over at our building in university. That's my suggestion, and that's more, I think, more exciting for people, because it spells out a future vision of the city, that takes us to another level.

609
01:47:31.320 --> 01:47:42.630
Boardroom: And of course, just to always be reminding us of this, Mr. City Manager, you know, you were there. 2017, we passed the, the Berkeley Inclusion and Diversity Index, some called the Bendex.

610
01:47:42.630 --> 01:47:53.460
Boardroom: Not my nickname. And this is a supplier diversity program that has sustained legal muster, and its purpose is to help us partner with new companies

611
01:47:53.750 --> 01:47:59.199
Boardroom: And new developers and new entities, when we do these massive expenditures.

612
01:47:59.400 --> 01:48:13.020
Boardroom: And so, rather than going with the same firms we use with this $300 million, let's get new people in, new local businesses, women-owned businesses, people of color-owned businesses, who've been shut out these last decades. So, that's really important.

613
01:48:13.500 --> 01:48:14.360
Boardroom: Thank you.

614
01:48:14.800 --> 01:48:17.410
Boardroom: Thank you, Councilmember. Councilmember Kesarwani?

615
01:48:17.940 --> 01:48:37.609

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Boardroom: Thank you very much, Madam Mayor. Thank you, again, Deputy City Manager. So, in terms of comments, so I, I think this, I already made this clear, but I'll just repeat myself. So, I think we should proceed with a community survey. I generally think that the list of projects is reasonable, and,

616
01:48:37.610 --> 01:48:42.729
Boardroom: you know, I've been thinking about it more as hearing other folks talk, I'm thinking about,

617
01:48:42.790 --> 01:49:01.190
Boardroom: you know, what we expect in November 2026, there will be a number of revenue measures. I think one important one will be the, the sales tax increase for public transit. I know there's talk of other ones. We heard about, we've heard about signatures being gathered for the arts.

618
01:49:01.250 --> 01:49:20.209
Boardroom: In Berkeley, and so I, I think we just need to be careful on the amount. I know I had expressed a range. I think I'm more interested in testing for lower amounts, actually, than going higher, because I'm thinking about the totality. But of course, you know, in the survey, we have the option to do

619
01:49:20.230 --> 01:49:29.359
Boardroom: various things, and so I just wanted to make that clear, that I think we may need to look at something lower, and in terms of exploring something lower.

620
01:49:29.380 --> 01:49:47.440
Boardroom: you know, obviously we will be guided by the results of that survey, but I just wanted to note, you know, and I was remiss earlier when I asked about prioritization, because there… I do want to acknowledge the tables towards the end of the report, where there is some prioritization. You have the department priority, and you have…

621
01:49:47.660 --> 01:49:58.460
Boardroom: whether the project is an immediate safety consideration. And so, I think others have talked about polling fire facilities separately. I, I want to… I think…

622
01:49:58.590 --> 01:50:18.010
Boardroom: fire facilities, and there's a couple… there are a couple of others that are considered an immediate safety consideration. So I think maybe we could pull on those, and I think that would bring us to a lesser dollar amount, because I think we need to be just really clear with the voters on what the need is.

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623
01:50:18.150 --> 01:50:24.819
Boardroom: And, why it's necessary. I think, you know, as someone who was here for Measure L, and that was…

624
01:50:25.070 --> 01:50:44.179
Boardroom: You know, it's hard to say not successful, because it did get far greater than a majority. It needed two-thirds, and that was what was difficult. Measure FF came back as a citizen's initiative and was targeted for streets and sidewalks, and was successful. I don't believe it got… well, I don't want to…

625
01:50:44.180 --> 01:51:09.150
Boardroom: I need to check on how much it got. I don't know if it cleared two-thirds. So it also didn't clear two-thirds. So I think we're talking about a very tough threshold with two-thirds, trying to get two-thirds. So I think we need to be very targeted, with it, and I think we can test for that with the survey. So I just want to encourage us to do that. And one way we might want to break out, one way we might want to.

626
01:51:09.150 --> 01:51:10.170
Boardroom: sort of…

627
01:51:10.320 --> 01:51:20.749
Boardroom: test a… a subset of this is with that… perhaps with that safety consideration, and see… see what, what the public is feeling about that. Because I think there's…

628
01:51:20.750 --> 01:51:32.140
Boardroom: There's the revenue measures that will be on the ballot, but there's also just the, the general economic climate, which I think is very tough for people right now. So, I think we need to be sensitive to all of that.

629
01:51:32.140 --> 01:51:47.640
Boardroom: And let me see if there's anything else here. No, I don't have anything that I think should be just completely removed. I did just want to reiterate, I think what I'm looking for is just, like, a better understanding of how much we can do on the sidewalks.

630
01:51:47.640 --> 01:52:09.669
Boardroom: with Measure FF, and then what's remaining, and you… I know we talked about ADA upgrades. I think just getting a little bit more understanding offline from staff about, you know, what we're talking about there, would be helpful for me. And that's all. Thank you very

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much. I appreciate that we're having this discussion, that we're having it quite early, so that we can

631
01:52:09.720 --> 01:52:17.410
Boardroom: not be rushed next year when we have to do a lot more work if we're gonna put this on the ballot. So thank you very much.

632
01:52:18.280 --> 01:52:26.989
Boardroom: Apologies for laughing, I'm just like, ugh, I feel like we need to do this sooner! But I appreciate your comments. Thank you, Councilmember, Councilmember Lenopara.

633
01:52:27.410 --> 01:52:46.359
Boardroom: Thank you, and I want to also thank everyone involved in all the work on this. I know it's plentiful and dense, and I'm very appreciative. Along with my colleagues, I think that we should proceed with the survey. I would love to see a tiered survey as well, with numbers below and above 300 million. And I only have a couple things to add.

634
01:52:46.360 --> 01:52:51.689
Boardroom: I wanted to mention the success of the Telegraph and Channing Public Restroom, partly funded by T1.

635
01:52:51.690 --> 01:53:06.270
Boardroom: And would love to see the inclusion of more public restroom projects like that in the survey and the measure. And I also agree with Councilmember Humbert that we should be prioritizing the 50-50 sidewalk program, and Councilmember Trey Gov, that we should be prioritizing the 50-50 sidewalk program.

636
01:53:06.300 --> 01:53:24.080
Boardroom: I also wanted to add that our office has been thinking through and working with AC Transit on a possible parcel tax revenue to raise funds for AC Transit lines and infrastructure in Berkeley specifically, and hoping to restore some of the Berkeley lines cut during the pandemic and in realign.

637
01:53:24.080 --> 01:53:43.169
Boardroom: As well as to improve frequency on high ridership lines. I wouldn't want this to impede on our other priorities, so I would love to add some questions around this on our survey. We're still working through the numbers, and we'll continue to work with staff on that, but I'm hoping that we can include some guidance around including this measure idea in our motion. Thanks.

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638
01:53:44.110 --> 01:53:47.150
Boardroom: Thank you. Any other comments from council members?

639
01:53:47.600 --> 01:54:00.029
Boardroom: Okay, I have a number of comments, so I apologize in advance. First of all, I'm just curious, staff, if you could just address, Sophia's question earlier about why we're recommending a bond versus a parcel tax?

640
01:54:02.540 --> 01:54:07.429
Boardroom: So… With a parcel tax,

641
01:54:08.410 --> 01:54:14.699
Boardroom: That could, be used for a wider array of uses, like maintenance, but we would have to ultimately bond against

642
01:54:14.890 --> 01:54:30.880
Boardroom: So we can only bond against the revenue that comes in, so it's a bit constrained in that way. So, once we go with the partial tax, let's say it generates revenues of $8 million, we're… we reach a cap in terms of how much we can bond, because that will create the ceiling for debt service.

643
01:54:30.890 --> 01:54:36.920
Boardroom: So the bond doesn't provide us with that opportunity, but we can come back and flesh that out more for you as well.

644
01:54:37.330 --> 01:54:47.860
Boardroom: Thank you. And then, also, I know a bunch of, council members have brought up, concerns around, funding for

645
01:54:47.860 --> 01:54:59.150
Boardroom: the Veterans Building and the Old City Hall, and I'm wondering if you could just speak to why now we're looking at this, around the seismic retrofitting for those buildings.

646
01:54:59.500 --> 01:55:10.820
Boardroom: So, a couple of reasons. There was one reference earlier that we have, proactively applied for a FEMA grant that does require, a city match to that, so it would be very timely.

647
01:55:10.820 --> 01:55:23.389

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Boardroom: if this is an item that we're supported by the Council and Berkeley voters, to be able to support that mission. We have a long-standing vision, for that area of the city and its core to, you know, supporting downtown's revitalization.

648
01:55:23.390 --> 01:55:31.789
Boardroom: So, you know, we're very attuned to the need to continue to reinvest in that part of the city as well, so that also was part of our thinking, as well.

649
01:55:32.030 --> 01:55:35.559
Boardroom: Thank you, I appreciate you, you covering that.

650
01:55:35.560 --> 01:56:00.490
Boardroom: So, first I want to say about this, yes, absolutely, I think we should proceed with the community survey. Thank you all so much for doing the work to get us here. I also want to acknowledge what some of my colleagues have brought up about the tax burden, that there are many people who are struggling financially and are concerned about an additional cost, and at the same time, I also want to acknowledge that in the graph that we showed earlier, that

651
01:56:00.490 --> 01:56:16.189
Boardroom: that actually, you know, as bonds kind of expire, there are opportunities there for us to sort of replace them, as opposed to just thinking of this as, like, we're asking for more and more. Actually, you know, it kind of reaches equilibrium at some point.

652
01:56:16.270 --> 01:56:22.889
Boardroom: I want to address also what my colleagues were saying about Measure LL, or Measure L, because I understand that

653
01:56:23.210 --> 01:56:29.069
Boardroom: you know, there's some nervousness around that, and, and I acknowledge that

654
01:56:29.110 --> 01:56:54.049
Boardroom: that for some folks, you know, it might be kind of sore, and I get that, and I also have a lot of faith that our council's really united on focusing on this issue of infrastructure. I think this council is, like, very pro-infrastructure and cares a lot about these different things, and, and I think that our community has shown that they also care about infrastructure, and, that these projects here have the themes, you know, community facilities and quality of life.

655

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01:56:54.050 --> 01:57:00.569
Boardroom: public safety and critical infrastructure and accessibility, and I think that these are things that people can get really excited about.

656
01:57:00.570 --> 01:57:04.740
Boardroom: And then I also want to acknowledge something that was said about FF.

657
01:57:04.750 --> 01:57:18.330
Boardroom: I know that maybe it didn't get a full two-thirds, but just keep in mind that there was also an opposing measure, so that might be something to keep in mind, if you're a little bit concerned about the amount, of votes received there.

658
01:57:19.720 --> 01:57:35.510
Boardroom: I wanna also encourage us to be thinking a little bit more broadly when we're talking about this poll. I think it is still important to include the 50-50 program in the polling, and I agree with my colleagues about, thinking about a range here.

659
01:57:35.620 --> 01:57:58.370
Boardroom: I really want to make sure that we're bonding as fully as we can, because I also think, even though there's some nervousness, we don't want to just leave money on the table. The purpose of doing this poll is so that we can see what people's level of comfortability is, right? So, and I think, similar to what Councilmember Blackaby was saying, you know, we're talking about following the numbers here, right? So it's not that…

660
01:57:58.370 --> 01:58:11.740
Boardroom: you know, we're gonna do this poll, and we're gonna see, oh, people are really concerned, let's just do it anyway, right? I mean, we're gonna use this as information to figure out how comfortable are people, how high can we go? And I'm saying this as someone who recognizes,

661
01:58:11.920 --> 01:58:21.040
Boardroom: you know, when we talked about being newer homeowners, I'm a newer homeowner, and I understand that that means that we'll have, you know, a higher tax bill.

662
01:58:21.670 --> 01:58:46.460
Boardroom: I also want to just, again, say the importance, acknowledge the importance here of having this so that we can leverage these funds, keeping in mind that, okay, if we are able to get this $300 million, that I know that our staff is awesome, and they're looking for grants and

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opportunities to be constantly leveraging. I know that, Carrie, you've done an excellent job of that, so just to call you out and say, you know, I know you and others on staff have done that already.

663
01:58:46.460 --> 01:58:52.050
Boardroom: So we really want to have these funds available so that we can take advantage of the leveraging.

664
01:58:52.050 --> 01:58:55.350
Boardroom: And just in my general feedback.

665
01:58:55.590 --> 01:59:11.129
Boardroom: Let's see… I'm also supportive of this amount, we talked about the range, and in terms of the projects, I really appreciate this themes, this idea of themes. I think these are really essential themes, to just general Berkeley lifestyle.

666
01:59:11.290 --> 01:59:15.589
Boardroom: I'm really a dog person, so I'm excited about the dog parks.

667
01:59:15.720 --> 01:59:23.090
Boardroom: Let's see… Plus one to making sure we're considering the impact of other taxes on a potential bond, which I know is brought up many times.

668
01:59:23.860 --> 01:59:33.840
Boardroom: I'm also interested in knowing how strongly voters in the survey feel about projects that prioritize adapting, to climate change and resilience.

669
01:59:33.920 --> 01:59:39.489
Boardroom: And again, just going back briefly to the Maud al-Shuric, the Old City Hall building, and the Veterans Building.

670
01:59:39.490 --> 02:00:02.459
Boardroom: There's just really so much opportunity here that I think is really exciting. I know many people have complained to me about the downtown. These are really central buildings in our downtown, and two buildings that are completely underutilized, really could just be a home for arts and culture and entertainment. And just, you know, with respect, I want to say that

671
02:00:03.480 --> 02:00:28.010

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Boardroom: You know, given that there are current struggles in the art community, I think that's why we as a city, should be prioritizing a home for that, that's really stable, knowing that some folks might lose their physical home in terms of their performing arts spaces, but still need a home to do their performances. And we really don't have facilities that are large enough in our city to have larger-scale events

672
02:00:28.010 --> 02:00:31.359
Boardroom: The Veterans Building really was that, that space.

673
02:00:31.360 --> 02:00:34.400
Boardroom: Ch-ch-ch.

674
02:00:34.510 --> 02:00:54.370
Boardroom: Oh, and just keeping in mind that there really is a safety risk, we have Berkeley Community Media that's actually in there right now. We used to have our winter shelter there. Right now, our winter shelter is somewhere else. So these are all opportunities that are missed by not having these buildings, have, you know, be seismically retrofitted.

675
02:00:55.520 --> 02:01:00.309
Boardroom: I want to ask, let's see, voters…

676
02:01:00.850 --> 02:01:23.920
Boardroom: Oh, I'm interested… I understand what people are saying about separating out, but I really want to advise against that. I do think that it's stronger. I don't feel that these things are far enough apart from each other that they shouldn't be included together, and I actually think thinking of this as infrastructure as a whole, as one issue, is really going to make

677
02:01:23.920 --> 02:01:36.570
Boardroom: the bond stronger. I think separating out fire, of course, fire is going to be successful no matter what, but I do think that having these things together will help to unify this as a singular issue of infrastructure in our city.

678
02:01:36.950 --> 02:02:01.579
Boardroom: And I want to make sure that the City Manager knows that I support moving forward, with a contract to start the survey process and potentially get it out in January and come back to Council, to just approve that retroactively, so that we can move forward with our timeline. I know this is earlier than normal, and at the same time, I want to make sure we have enough time, because it's going to be important

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that we get community buy-in and that we talk to people and we start moving forward

679
02:02:01.580 --> 02:02:03.100
Boardroom: with this process.

680
02:02:03.610 --> 02:02:12.799
Boardroom: And then, I also think it's really important to incorporate questions about accountability and oversight as part of the questions. I know that we haven't…

681
02:02:12.800 --> 02:02:23.990
Boardroom: polled as well about that in the past, so I really want to make sure that… that we're clear with our residents and the voters, that we're gonna have strong accountability and oversight measures.

682
02:02:24.020 --> 02:02:39.159
Boardroom: So, okay, thank you for bearing with me, I know there was a lot of comments. I really appreciate you all, I've been steeped in this for, like, the last year, so, thank you all so much for your time, and for everyone for being here, coming from the Vision 2050, Realizing Vision 2050 Task Force.

683
02:02:39.160 --> 02:02:44.859
Boardroom: And, thank you so much for staff to just the presentation and all the work you've put into this. Okay.

684
02:02:45.470 --> 02:02:46.400
Boardroom: Great.

685
02:02:46.510 --> 02:03:03.779
Boardroom: Do you need… you don't need anything else, you're good. Right? I think we are with… but I do have one question. The general feedback is all… is all in line with the report, and I think we're all… all good with that. The one question I wanted to ask Councilmember Limipara is, you… you raised the potential for polling also on

686
02:03:03.980 --> 02:03:08.409
Boardroom: parcel tax to support increased AC transit routes, and I…

687
02:03:08.590 --> 02:03:12.060
Boardroom: I wasn't totally clear, so I wanted to just talk with… to hear your…

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688
02:03:12.210 --> 02:03:23.160
Boardroom: collective feedback, but from you first, about, like, is that something you were wanting to have be, like, a separate poll that we start working on right away, or bring back more information to the January 20th meeting, and then

689
02:03:23.790 --> 02:03:26.869
Boardroom: And then give us direction then, I just wanted to get a little bit more clarity on that.

690
02:03:27.240 --> 02:03:42.189
Boardroom: Yeah, I have no, I don't… if this is not the best place to add it, we definitely don't have to add it now. Because the item asked Council to bring forward other measures that we were thinking about, I just… I thought that it would be a good idea to bring it up now.

691
02:03:42.530 --> 02:03:47.270
Boardroom: But I'm also happy to workshop it more, if that's… If that's easier for staff.

692
02:03:48.900 --> 02:04:05.870
Boardroom: Depending on what the rest of my colleagues think. I would say what's most important to me is that this doesn't delay our poll. So I would say, like, you know, if everything's ready to go, and you've got all the pieces, I'm personally okay with including it, I just want to make sure it doesn't delay anything.

693
02:04:06.040 --> 02:04:21.779
Boardroom: That's where I'm at. And I think it's also a question of how deep the dive is. It's one thing to sort of… it's one measure, among other things, that could be on the ballot, but as we know, when we go… when we're testing our infrastructure piece, we're going to go very deep into the components, and maybe split sample various pieces of it, and…

694
02:04:21.780 --> 02:04:31.159
Boardroom: we probably can't, in a 15-minute survey, do the same level of detail on another topic, so I think it'd be more just sort of a… maybe kind of a thumb in the wind kind of a…

695
02:04:31.160 --> 02:04:39.819
Boardroom: in terms of how it's doing relative to our infrastructure thing, and whether it clutters the ballot in a way that would make ours more vulnerable? Anyway, that's…

696

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02:04:40.110 --> 02:04:45.329
Boardroom: my perspective, but… Yeah, I… I feel similarly, as, like, a one or two question.

697
02:04:46.060 --> 02:05:01.329
Boardroom: insert. Okay, I think that's fine. If it's just a couple of questions to test the waters on that, that seems reasonable. If it's a deeper thing, then that's a different poll, but yeah. Thank you, that's helpful. Thank you. Councilmember Treykov?

698
02:05:02.050 --> 02:05:11.720
Boardroom: Yeah, and I, definitely support the intent here, and would also support testing the waters. I just…

699
02:05:11.920 --> 02:05:18.910
Boardroom: I, I want to, just plead for some caution, too,

700
02:05:18.940 --> 02:05:32.939
Boardroom: you know, if it's in the context of other potential ballot measures or priorities, including saving the arts, and that campaign has conducted its own internal following. But,

701
02:05:33.450 --> 02:05:34.380
Boardroom: it's…

702
02:05:34.700 --> 02:05:48.809
Boardroom: it, I just don't want us to go down the road of doing something for one particular, potential measure that is not this one.

703
02:05:48.900 --> 02:05:59.180
Boardroom: At the… in the absence of doing it for general, priorities that, that are additional to… to these.

704
02:05:59.340 --> 02:06:01.509
Boardroom: Thank you. Councilmember Bartlett.

705
02:06:01.720 --> 02:06:20.489
Boardroom: Thank you. I was gonna say, regarding customer's idea, I'd rather than… I would suggest that, rather than taking a lot of time to come back with this, just include, a transit component to this infrastructure piece. And that's just… that's that. This is bus shelters, bus plazas.

706

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02:06:20.550 --> 02:06:23.359
Boardroom: bus elements, right? It's a transit column.

707
02:06:23.570 --> 02:06:27.500
Boardroom: For consideration in this milieu, because it fits.

708
02:06:28.070 --> 02:06:31.770
Boardroom: I don't know if people want it, but it fits, you know, thematically.

709
02:06:32.050 --> 02:06:36.180
Boardroom: I think what she's talking about is something larger scale, is that right?

710
02:06:37.510 --> 02:06:43.100
Boardroom: Yeah, I mean, infrastructure is part of the idea, but it is a larger…

711
02:06:43.360 --> 02:06:47.529
Boardroom: Concept of, bringing back the lines that were…

712
02:06:47.820 --> 02:07:00.240
Boardroom: that were removed during the pandemic, and increasing frequency on highly used routes, which I don't think necessarily would or should fit into this bond, especially because it has the opportunity to

713
02:07:01.360 --> 02:07:04.949
Boardroom: to tank it, which I don't want that to happen.

714
02:07:05.400 --> 02:07:16.550
Boardroom: Oh, I see you're suggesting we fund another jurisdiction's business? It would be very specifically to the City of Berkeley, and lines that only cover the City of Berkeley.

715
02:07:17.480 --> 02:07:25.129
Boardroom: To improve… Councilmember Humbert? Oh, sorry. Councilmember Humbert? Yeah, just kind of following up on, on,

716
02:07:25.960 --> 02:07:38.240
Boardroom: what Councilmember Bartlett was just discussing, I think it does make sense to add a transit and pedestrian realm improvements element to our polling.

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717
02:07:38.290 --> 02:07:40.720
Boardroom: You know, bus shelters, things like that.

718
02:07:40.730 --> 02:08:00.080
Boardroom: you know, making transit, easier and safer and more enjoyable. I'm thinking about the transit plaza at downtown Berkeley surrounding the BART station. It's a wonderful, it was a wonderful improvement. You know, I think that would fit in as a, as, you know, another…

719
02:08:00.180 --> 02:08:09.080
Boardroom: infrastructure element, and I think this should remain focused on infrastructure. So those are my thoughts. Thanks.

720
02:08:10.130 --> 02:08:18.890
Boardroom: Yeah, Councilmember Chaplin. I do just want to point out that, we have been discussing facilities that are…

721
02:08:19.690 --> 02:08:25.869
Boardroom: identified in current existing plans, and that these are projects that have,

722
02:08:26.420 --> 02:08:35.080
Boardroom: advanced to some degree through their, completion process, so I am a little reticent to

723
02:08:35.190 --> 02:08:46.239
Boardroom: Poll on, potential… Theoretical projects that staff has not contemplated or presented?

724
02:08:51.240 --> 02:08:52.200
Boardroom: So…

725
02:08:53.260 --> 02:09:08.920
Boardroom: Yeah, yeah. Yeah, I see what you're saying. Yeah, so that these other items have been part of a process and included before, so you're concerned about including them, and I would agree with that.

726
02:09:09.020 --> 02:09:17.219
Boardroom: I think it is important that we take into account the work that was done to prioritize, these current items, and I appreciate your comment.

727

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02:09:17.410 --> 02:09:31.619
Boardroom: I don't… do you have clarity around… I mean, I'll say a couple things. I still have a little bit of, Measure L regret around including both housing and infrastructure in one big poll and one big measure.

728
02:09:31.620 --> 02:09:54.210
Boardroom: I know that's not what's being proposed, but I'm just saying that I do have that. That said, I think we could work with the polling firm that gets selected to say, hey, we are curious about transit, do you feel like adding a couple of transit questions to this survey would throw things off, or put people off in a way that influences the rest of the survey negatively, or do you think it's fine to ask a couple of transit questions?

729
02:09:54.210 --> 02:09:56.339
Boardroom: If they say, yeah, we think that's fine.

730
02:09:56.340 --> 02:10:11.159
Boardroom: then it sounds to me like you all would be open to that being a part of it, and if they say it seems like a separate thing, we could come back to you and tell you that, and you could give us further direction. Since this is Councilmember Lunaparaz's situation, I'm gonna let her go first. Go ahead.

731
02:10:11.160 --> 02:10:31.779
Boardroom: Thank you, yeah, I think we might be getting a little confused here, because there's two different things that we're talking about. The transit measure is an… the idea is an entirely separate thing from the bond, versus the idea of bringing in transit infrastructure into the bond. So I just wanted to clarify that we're talking about two different

732
02:10:32.320 --> 02:10:33.600
Boardroom: pieces here.

733
02:10:33.870 --> 02:10:51.500
Boardroom: Yeah, and I think given what you're just… you've just said, Paul, I would be inclined, since we don't actually have anything in front of us right now, I think it would probably make sense to move forward with this survey without including anything about this AC Transit potential measure, just because

734
02:10:51.520 --> 02:11:03.230
Boardroom: I feel like it would be easier if we had more clarity around what it looked like to figure out if it made sense to include it or not. And since we don't have that, I think it's better to see if we can address that separately.

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735
02:11:03.420 --> 02:11:07.949
Boardroom: But I'm open to having that conversation at another time, once there's more information.

736
02:11:08.120 --> 02:11:20.809
Boardroom: Okay, yeah, that's fine. I guess, yeah, my thought process was also around the funding, and if that would be a whole other budget proposal. I don't know if we want to think through that, but I'm generally totally okay with that.

737
02:11:20.950 --> 02:11:23.950
Boardroom: Okay. Alright. Thank you. Okay.

738
02:11:24.120 --> 02:11:29.329
Boardroom: I think that's it. We should end this meeting because we have another one.

739
02:11:31.060 --> 02:11:37.759
Boardroom: Alright, is there a motion to adjourn? So moved. Second. Is there any opposition to adjournment?

740
02:11:37.960 --> 02:11:40.540
Boardroom: Okay, we are adjourned. Thank you very much.

741
02:11:40.870 --> 02:11:48.690
Boardroom: So, folks, we have a joint powers authority. Yeah, we should take care of that.

742
02:11:48.950 --> 02:11:55.769
Boardroom: And I'm… Just the consent calendar.

743
02:12:02.700 --> 02:12:13.290
Boardroom: Right now, okay. I am pulling up the joint… okay, so I'm gonna call to order the Berkeley Joint Powers Financing Authority meeting. Today is Tuesday, December 2nd, 2025.

744
02:12:13.720 --> 02:12:19.750
Boardroom: And Clerk, could you please take the roll? Okay. Agency Member Kesarwani?

745
02:12:20.710 --> 02:12:26.949

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Boardroom: Here. Taplin? Present. Bartlett? Yes.

746
02:12:27.050 --> 02:12:38.680
Boardroom: Trey Gibb? Present. O'Keefe? Here. Blackaby? Here. Unupara? Here. Humbert? Here. And, Chairperson Ishii? Here. Okay.

747
02:12:39.070 --> 02:12:44.739
Boardroom: Okay, is there public comment on non-agenda matters for this Joint Power Authority meeting?

748
02:12:45.170 --> 02:12:48.680
Boardroom: We are… No.

749
02:12:48.850 --> 02:12:51.280
Boardroom: Okay. No one online? Nope.

750
02:12:52.970 --> 02:13:03.769
Boardroom: Okay, so… we're gonna move on to the consent calendar, and ask if there's any public comment on consent calendar and information items only.

751
02:13:07.540 --> 02:13:24.470
Boardroom: Okay. No speakers online. Okay, and any comments from my council colleagues? Nope. Okay, is there a motion to approve? So moved. Okay. Second. Is there any opposition, or do we need to take a vote? No. Okay, is there any opposition?

752
02:13:24.780 --> 02:13:34.750
Boardroom: All right, we have passed our consent calendar. Are there any other public comments on items not listed on this agenda?

753
02:13:34.850 --> 02:13:35.860
Boardroom: Okay.

754
02:13:37.410 --> 02:13:43.279
Boardroom: Nope. No comments. Okay. Oh, wait, there's one hand. Okay.

755
02:13:44.050 --> 02:13:46.030
Boardroom: Let's see who we got here…

756
02:13:46.530 --> 02:13:51.500

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Boardroom: This is… this is for public comment on the Joint Powers Financing Authority.

757
02:13:52.560 --> 02:13:57.580
Cheryl Davila, Former Councilmember, Founder CEMTF: Okay, we have one speaker, Cheryl Davila, former council member.

758
02:13:59.130 --> 02:14:05.159
Cheryl Davila, Former Councilmember, Founder CEMTF: I thought you said that it was, for items not on the agenda, since you already passed it.

759
02:14:05.380 --> 02:14:07.750
Cheryl Davila, Former Councilmember, Founder CEMTF: So that's why I raised my hand.

760
02:14:07.890 --> 02:14:08.440
Boardroom: Yes.

761
02:14:08.440 --> 02:14:14.530
Cheryl Davila, Former Councilmember, Founder CEMTF: And, how much time do I have? Because I don't see a clock.

762
02:14:14.930 --> 02:14:17.400
Boardroom: You have 45 seconds left.

763
02:14:17.540 --> 02:14:29.359
Cheryl Davila, Former Councilmember, Founder CEMTF: Can you restart my time, then? So, here we are on day 700, I believe it's 787 of the genocide.

764
02:14:29.490 --> 02:14:47.139
Cheryl Davila, Former Councilmember, Founder CEMTF: And it's the last day for your council meetings for the year. Interesting how in, 2020, y'all got a raise and have shortened your time dramatically, taking more breaks, longer breaks.

765
02:14:47.540 --> 02:14:59.670
Cheryl Davila, Former Councilmember, Founder CEMTF: And, you know, pretty much basically not listening to the constituents, your constituents, or giving them an opportunity to speak with the such…

766
02:15:00.050 --> 02:15:11.010

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Cheryl Davila, Former Councilmember, Founder CEMTF: Limited time, and, opportunities to speak up at a council meeting, and the, you know, they're shorter.

767
02:15:12.680 --> 02:15:23.420
Cheryl Davila, Former Councilmember, Founder CEMTF: And it's really upsetting that you haven't done anything about, a genocide, and that none of y'all support it, and one of you went through the.

768
02:15:23.420 --> 02:15:27.620
Boardroom: I'm sorry, your time is up. Are there any other public comments?

769
02:15:28.370 --> 02:15:35.939
Boardroom: No hands raised. Okay, is there a motion to adjourn? So moved. Second. Is there any opposition to adjourning?

770
02:15:36.070 --> 02:15:58.459
Boardroom: Okay, we are adjourned. Thank you very much. Okay, so, we have another meeting, it's the 6 o'clock meeting, we're running late, clearly. What I'd like to do is take our 10-minute break, but then… but then we can come back and get through some of the consent calendar, but we'll take an earlier break, if that makes sense.

771
02:15:58.930 --> 02:16:02.910
Boardroom: So, actually, can we make that 5? Can we make this one 5? Yeah.

772
02:16:03.570 --> 02:16:13.259
Boardroom: Let's make this one 5, and then we'll come back and do a little bit, and then take a longer break, because there's a lot of people here just for our ceremonial calendar. Thank you.

773
02:16:17.100 --> 02:16:18.780
Boardroom: Hello, folks!

774
02:16:19.120 --> 02:16:28.309
Boardroom: If I can have your attention, please! We're gonna get started. It was tough for me to wrangle everyone back here quickly, so please sit down.

775
02:16:30.150 --> 02:16:47.169

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Boardroom: Okay, can we… yes, alright, I'm calling to order the Berkeley City Council meeting. Today is Tuesday, December 2nd, 2025. Can you please take the roll? Okay. Councilmember Kesarwani is present.

776
02:16:47.379 --> 02:16:53.980
Boardroom: Taking the roll. Present? Okay. Taplin? Present. Councilmember Bartlett?

777
02:16:54.150 --> 02:16:56.160
Boardroom: Is currently absent.

778
02:16:56.260 --> 02:17:03.400
Boardroom: Trey Gub is currently absent. O'Keefe? They're both in the back, but I'm here. Okay. Blackaby? Here.

779
02:17:03.530 --> 02:17:10.689
Boardroom: Councilmember Lunapara is currently absent. Councilmember Humbert? Present. And Mayor Ishii?

780
02:17:10.950 --> 02:17:13.249
Boardroom: Here. Okay, quorum is present.

781
02:17:16.180 --> 02:17:27.030
Boardroom: Okay, it is the actual first meeting of the month, and so typically what we've been doing is taking turns saying the land acknowledgement statement, and…

782
02:17:33.240 --> 02:17:34.860
Boardroom: Okay, Councilmember Triga.

783
02:17:36.740 --> 02:17:37.500
Boardroom: I ain't.

784
02:17:46.700 --> 02:17:53.319
Boardroom: The City of Berkeley recognizes that the community we live in was built on the territory of Huchun.

785
02:17:53.730 --> 02:17:59.300
Boardroom: the ancestral and unceded land of the Chocheno-speaking Ohlone people.

786
02:17:59.410 --> 02:18:05.899

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Boardroom: The ancestors and descendants of the Sovereign Verano Band of Alameda County.

787
02:18:06.260 --> 02:18:14.899
Boardroom: This land was and continues to be of great importance to all of the Ohlone tribes and descendants of the Vorano Band.

788
02:18:15.230 --> 02:18:32.089
Boardroom: As we begin our meeting tonight, we acknowledge and honor the original inhabitants of Berkeley, the documented 5,000-year history of a vibrant community at the West Berkeley Shell Mound, and the Ohlone people who continue to reside in the East Bay.

789
02:18:32.480 --> 02:18:46.040
Boardroom: We recognize that Berkeley's residents have and continue to benefit from the use and occupation of this unceded, stolen land since the City of Berkeley's incorporation in 1878.

790
02:18:46.469 --> 02:19:01.290
Boardroom: As stewards of the laws regulating the City of Berkeley, it is not only vital that we recognize the history of this land, but also recognize that the Ohlone people are present members of Berkeley and other East Bay communities today.

791
02:19:01.680 --> 02:19:12.500
Boardroom: The City of Berkeley will continue to build relationships with the Lejeon tribe and to create meaningful actions that uphold the intention of this land acknowledgement.

792
02:19:13.490 --> 02:19:27.969
Boardroom: Thank you very much, Councilmember. So for our ceremonial items this evening, we have a presentation by Senator Jesse Aragin. I believe that he is online, but to give him, a little bit of time also to come

793
02:19:28.070 --> 02:19:36.820
Boardroom: forward, I'm going to have us do our proclamation and adjournment, and memory for Evie Wozniak, which will be presented by Councilmember Humbert.

794
02:19:38.740 --> 02:19:40.210
Boardroom: Thank you, Madam Mayor.

795
02:19:41.719 --> 02:19:45.650

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Boardroom: And here is the… is that proclamation.

796
02:19:46.469 --> 02:19:52.429
Boardroom: Whereas, Evie Wozniak was a beloved wife, mother, grandmother, friend.

797
02:19:53.080 --> 02:20:01.969
Boardroom: whose irreverent humor, boundless curiosity, and deep devotion to her family and to Berkeley continue to inspire us.

798
02:20:02.870 --> 02:20:18.880
Boardroom: And whereas Evie was dedicated to public service as a community organizer in Berkeley during the tumultuous 1970s, and a member of the Berkeley Waterfront Commission, where she did important work, parenthetically, and whereas

799
02:20:18.880 --> 02:20:31.110
Boardroom: Evie embraced the world with fearless energy, maintaining a special connection to Indonesia, and pursuing adventures that ranged from scuba diving and boxing to skiing and tennis, and…

800
02:20:31.410 --> 02:20:41.469
Boardroom: Whereas, Evie also found joy in the richness of daily life, whether maintaining a garden full of flowers, exploring family history in the Mayflower.

801
02:20:41.620 --> 02:20:59.670
Boardroom: Enjoying K-dramas and the music of Leonard Cohen, or sharing coffee and fancy birthday cakes with friends, and whereas Evie was a passionate champion of the arts, the arts and culture, serving as a devoted patron to institutions such as the Berkeley Rep.

802
02:20:59.960 --> 02:21:04.529
Boardroom: You know, the Aurora Theater, the Junior Center for Art and Science, and BAMFA.

803
02:21:04.570 --> 02:21:23.049
Boardroom: Believing in the power of creativity to enrich our community, and whereas Evie leaves behind a legacy defined by her commitment to learning, her spirited advocacy for public spaces, and the vibrant, gracious warmth she shared with her husband, Gordon.

804
02:21:23.100 --> 02:21:27.790

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Boardroom: Her children, her grandchildren, and her wide circle of friends.

805
02:21:28.020 --> 02:21:41.369
Boardroom: Now, therefore, be it resolved that I, Adina Ishii, Mayor of the City of Berkeley, do hereby honor the life, legacy, and service to the Berkeley community of Evie Wozniak.

806
02:21:43.560 --> 02:21:44.640
Boardroom: Thank you.

807
02:22:03.210 --> 02:22:04.960
Boardroom: Three of us presenting here.

808
02:22:08.120 --> 02:22:08.820
Boardroom: Yes.

809
02:22:33.630 --> 02:22:39.380
Boardroom: So, I… I'm gonna go first, and Linda Schaack and Lonnie Hancock are gonna say something.

810
02:22:39.670 --> 02:22:40.889
Boardroom: I just…

811
02:22:40.990 --> 02:22:53.990
Boardroom: want to stress how much Evy was devoted to Berkeley. When I finished my PhD in 1974 and was looking for jobs, and I got a job offer from Brooklyn, or Stony Brook.

812
02:22:54.360 --> 02:22:59.590
Boardroom: in Long Island, She said, I'm not going to Long Island.

813
02:23:00.050 --> 02:23:01.869
Boardroom: My friends are in Berkeley.

814
02:23:02.190 --> 02:23:05.849
Boardroom: this is where I want to live. You gotta find a job in Berkeley.

815
02:23:06.890 --> 02:23:17.400

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Boardroom: And eventually, I did. I got a job, actually. I talked for one year at Cal, and I got a job at Lawrence Berkey Lab, and so it was the best decision that ever made. So, thank you.

816
02:23:18.150 --> 02:23:18.940
Boardroom: Linda?

817
02:23:24.310 --> 02:23:43.560
Boardroom: I was fortunate enough to be really good friends with Evie for more than 40 years. I met when… her when we were both… had little children playing together and going to school together. And, I just remember mostly that she was brave, and,

818
02:23:44.400 --> 02:23:45.550
Boardroom: daring.

819
02:23:45.730 --> 02:23:58.310
Boardroom: She… Gordon, by the way, met her and was taken with her, and decided to throw a party at his house so that she would show up again, and he could get to know her better.

820
02:23:58.590 --> 02:24:01.730
Boardroom: And that went on for a long, long time.

821
02:24:01.840 --> 02:24:03.940
Boardroom: Evie was…

822
02:24:04.070 --> 02:24:14.059
Boardroom: just brave. There was one point when she did love Leonard Cohen, and, she wanted to go to a…

823
02:24:14.160 --> 02:24:16.900
Boardroom: Leonard Cohen concert in Europe.

824
02:24:17.000 --> 02:24:28.500
Boardroom: And she asked me, and she asked all her friends, did you want to come along? Nobody could go, so she went alone. And that was, pardon me, this kind of thing that she did.

825
02:24:28.630 --> 02:24:37.960
Boardroom: At the same time, she was warm and loving, and particularly loved her grandchildren and her family, and the city of Berkeley.

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826
02:24:38.130 --> 02:24:46.679
Boardroom: She, when she was in Indonesia at one point, she sort of disappeared for about a month.

827
02:24:47.180 --> 02:24:57.370
Boardroom: And nobody knew where she was, and her mother had not heard from her, and called her state senator, I think in Rhode Island, and said, my daughter's disappeared in Sumatra.

828
02:24:57.500 --> 02:24:59.760
Boardroom: And I don't know where she is.

829
02:25:00.110 --> 02:25:15.960
Boardroom: So, they sent out State Department investigators, and they couldn't find her, but she had just gone on a trip up a river, and was alone, and that was fine. But she was that kind of brave, and that kind of adventurous, and

830
02:25:15.960 --> 02:25:21.209
Boardroom: I will always miss her, and I will think of her often. Thank you for doing this for her.

831
02:25:21.410 --> 02:25:22.410
Boardroom: Appreciate it.

832
02:25:28.440 --> 02:25:41.549
Boardroom: Hi, everyone. I'm Ronnie Hancock, and I actually think I've known Evie longer than anybody else here, even her children. She didn't know Gordon when I first met her.

833
02:25:41.670 --> 02:25:45.269
Boardroom: But she was a quintessinal Berkeley person.

834
02:25:45.650 --> 02:25:55.749
Boardroom: Evie was an adventurer, as Linda pointed out. She was also the consummate, make-the-world-just-a-little-better kind of person.

835
02:25:56.000 --> 02:25:59.770
Boardroom: And when I was first on the Berkeley City Council.

836
02:25:59.980 --> 02:26:04.409
Boardroom: She worked with me on the Berkeley Marina.

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837
02:26:04.620 --> 02:26:20.790
Boardroom: And honestly, the reason that we have this wonderful facility with so many of the facilities for kids and other things was because Evie Wozniak figured out we weren't getting enough rent for the slips at the marina.

838
02:26:20.910 --> 02:26:30.389
Boardroom: That we were the cheapest marina around, and 3 quarters of the people with boats here didn't live in Berkeley. Anyway, this woman was relentless.

839
02:26:30.610 --> 02:26:38.069
Boardroom: And is really responsible for so many of the good things we have there, as well as other places.

840
02:26:38.720 --> 02:26:41.000
Boardroom: She would love this right now.

841
02:26:41.290 --> 02:26:59.930
Boardroom: going from a person who was part of an opposition political group, I sometimes say we were the barbarians at the gates, and look at us… look at us now. But, she was there then with selling masks

842
02:27:00.250 --> 02:27:06.939
Boardroom: that she brought back from Borneo at our… one of our first peace feasts in the anti-war movement.

843
02:27:07.130 --> 02:27:11.180
Boardroom: To make working and loving the city her whole life.

844
02:27:11.310 --> 02:27:18.070
Boardroom: So, it's very fitting that we honor her tonight. Thank you all for making it possible.

845
02:27:24.570 --> 02:27:28.699
Boardroom: Good evening, I'm John Gage. I'm Linda Shaq's husband.

846
02:27:29.310 --> 02:27:33.270
Boardroom: And Linda and Evie had a special relationship.

847
02:27:33.780 --> 02:27:39.360

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Boardroom: very special relationship. You've heard of Evie's service in changing the marina.

848
02:27:40.200 --> 02:27:46.199
Boardroom: When she first went on the commission, people thought she wasn't knowledgeable. She proved to be knowledgeable.

849
02:27:46.460 --> 02:27:52.149
Boardroom: As she altered the structure of fundamental infrastructure in Berkeley.

850
02:27:52.950 --> 02:28:01.689
Boardroom: She also worked closely, or discussed continuously, with Gordon Berkeley could become.

851
02:28:02.460 --> 02:28:09.279
Boardroom: When Gordon initiated the Berkeley 2050 project, some of you were here, many were not.

852
02:28:09.640 --> 02:28:12.280
Boardroom: But the notion of thinking ahead

853
02:28:12.780 --> 02:28:18.290
Boardroom: Based on the experience of those who live in Berkeley every day, But…

854
02:28:18.430 --> 02:28:25.220
Boardroom: pattern, that way of thinking, that way of involving people in Berkeley in deciding what our future can be.

855
02:28:25.680 --> 02:28:29.980
Boardroom: Evie exemplified that and serves, I think, for all of us.

856
02:28:30.080 --> 02:28:35.359
Boardroom: here today, all watching, and those thinking ahead for the future of Berkeley.

857
02:28:35.730 --> 02:28:40.070
Boardroom: One person can make a difference, and Evie certainly did. Thank you.

858
02:28:49.220 --> 02:28:51.770

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Boardroom: What is this?

859
02:28:52.510 --> 02:29:03.750
Boardroom: Oh my goodness, hand sprayer. Hand sanitizer. So, I'm Tom Bates, and I just really wanted to echo what my friends have already said about the

860
02:29:03.750 --> 02:29:13.640
Boardroom: She was such a wonderful person. We were so lucky to have her in our community. She was a leader, she was a fighter, she cared about people, she cared about the environment.

861
02:29:13.750 --> 02:29:17.880
Boardroom: And we all miss her very, very much. So, thank you for doing this.

862
02:29:18.150 --> 02:29:20.059
Boardroom: Thank you, ma'am. Thank you.

863
02:29:23.350 --> 02:29:27.499
Boardroom: Wow, our ceremonial calendar has 3 former mayors.

864
02:29:27.880 --> 02:29:35.070
Boardroom: And speaking of, we're gonna move over to, our presentation by Senator Jesse Aragin.

865
02:29:36.580 --> 02:29:38.510
Senator Jesse Arreguin: Well, good evening, Mayor Ishii.

866
02:29:38.740 --> 02:29:42.459
Senator Jesse Arreguin: former colleagues and members of the Berkeley City Council.

867
02:29:42.530 --> 02:30:01.390
Senator Jesse Arreguin: City staff in the Berkeley community. It's great to be back in the Berkeley City Council Chamber, albeit virtually, as your new State Senator, representing Berkeley in Senate District 7, to provide a brief update about our work this year to advance Berkeley and California's priorities, but I want to first, reflect on the life and accomplishments of Evie Wozniak and

868
02:30:01.390 --> 02:30:14.909

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Senator Jesse Arreguin: My heart breaks hearing about Evie's passing, and, was said so eloquently in the proclamation, she's somebody who was active in Berkeley Civic Affairs for decades, serving on the Waterfront Commission, helping improve our waterfront in Berkeley Marina.

869
02:30:14.990 --> 02:30:22.849
Senator Jesse Arreguin: And was a loving and supportive wife and partner of my former colleague, Councilmember Gordon Wozniak. I know that Gordon loved Evie so dearly.

870
02:30:23.240 --> 02:30:32.220
Senator Jesse Arreguin: So my heart goes out to you, Gordon, and to your family, and I wish to extend my deepest condolences on her passing, and may her life be a blessing and memory for all of us.

871
02:30:33.890 --> 02:30:48.530
Senator Jesse Arreguin: Shifting gears, I did listen before your meeting regarding your presentation on the new Vision 2050 plan and ballot measures, and really things come full circle, because it was just a few years ago that we were looking at

872
02:30:48.530 --> 02:31:02.850
Senator Jesse Arreguin: how we can address Berkeley's critical infrastructure needs and launch the Vision 2050 process, led by former Councilman Wozniak and John Gage and Ray Yep, and so many of the leaders that were there. And I just want to thank Mayor Ishii for reinitiating that process and helping

873
02:31:02.850 --> 02:31:10.979
Senator Jesse Arreguin: revise that roadmap to provide a plan for Berkeley to advance its critical infrastructure needs, and very committed to working with you

874
02:31:10.980 --> 02:31:25.989
Senator Jesse Arreguin: not just to support that effort, but see how we can leverage state resources to help make these projects happen. Additionally, the Equitable Black Berkeley Initiative, that's also on your agenda, something that I launched when I was the mayor of Berkeley, to advance a reparative framework for how we're,

875
02:31:25.990 --> 02:31:34.440
Senator Jesse Arreguin: advancing development at Ashby Bart in the South Berkeley community. I'm glad that that initiative is still moving forward. Mr. Clerk, are you going to control the slides, or am I controlling the slides?

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876
02:31:34.970 --> 02:31:39.849
Boardroom: I did not receive the slide deck, Mayor, so I think you will…

877
02:31:40.020 --> 02:31:42.139
Boardroom: Have to do that, if that's okay.

878
02:31:42.140 --> 02:31:46.750
Senator Jesse Arreguin: That's not a problem. I'm very skilled at how to use Zoom, so .

879
02:31:46.750 --> 02:31:48.140
Boardroom: Yes, indeed.

880
02:31:48.780 --> 02:31:49.990
Senator Jesse Arreguin: Let me pull that up.

881
02:31:51.150 --> 02:31:54.350
Senator Jesse Arreguin: Okay… Alright.

882
02:31:56.060 --> 02:32:04.370
Senator Jesse Arreguin: So, briefly, I want to touch upon the work that the state has done in the past year to support the City of Berkeley.

883
02:32:04.660 --> 02:32:11.100
Senator Jesse Arreguin: A number of housing projects, have received state funding, including the Madel Miller-Shireck community.

884
02:32:11.100 --> 02:32:30.739
Senator Jesse Arreguin: 87 units of affordable housing that opened this year. And as well, we're working to help secure state funding for the projects at North Berkeley and Ashby BART to build, hundreds of homes, including affordable homes, at these two BART stations. I want to lift up the work that we did collectively to improve the Gilman Interchange with the new pedestrian and bike crossing.

885
02:32:30.780 --> 02:32:37.349
Senator Jesse Arreguin: As well as the improvements at North Berkeley BART through a $25 million state grant, and other grants to improve street safety.

886
02:32:37.620 --> 02:32:39.440
Senator Jesse Arreguin: Moving on,

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887
02:32:39.830 --> 02:32:59.580
Senator Jesse Arreguin: to the next slide. Immigration. And I want to thank the City Council and the Mayor for your bold leadership immediately after the election of Donald Trump to re-new the city's commitment to protect our immigrant and refugee communities by adopting an ordinance to codify our sanctuary policy.

888
02:33:00.210 --> 02:33:03.569
Senator Jesse Arreguin: At the state level, we've taken several actions to

889
02:33:03.900 --> 02:33:11.060
Senator Jesse Arreguin: push back against the immoral and unjust and unconstitutional actions of the Trump administration targeting our immigrant communities.

890
02:33:11.410 --> 02:33:26.710
Senator Jesse Arreguin: We allocated $50 million, $25 million for legal, legal defense and rapid response to help support people who are facing arrest and deportation, and $25 million to allow our state attorney general to take legal action against the Trump administration, against unconstitutional

891
02:33:26.710 --> 02:33:47.080
Senator Jesse Arreguin: executive orders and actions, including freezing billions of dollars of funds. We've actually filed over 40 lawsuits, we have an over 70% success rate in those lawsuits, and we've been able to unfreeze billions of our taxpayer dollars for education, healthcare, transportation projects, money that we rightfully are owed as the biggest donor state in the union.

892
02:33:47.090 --> 02:33:56.349
Senator Jesse Arreguin: We've also advanced several critical pieces of legislation, including SB81, and I want to thank the Berkeley City Council for its endorsement of that measure, which the governor signed,

893
02:33:56.360 --> 02:34:01.620
Senator Jesse Arreguin: In addition to other bills to protect our schools and to protect our immigrant communities.

894
02:34:01.620 --> 02:34:25.949
Senator Jesse Arreguin: And we are committed in coming back to the legislature in January to increase our investment in rapid response and legal defense to protect our immigrant communities. On public safety, and

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I just want to lift up the really transformative work that Berkeley's done in the last few years to advance an initiative to reimagine public safety. That was a key focus of the work of the legislature this year, including my work as the chairman of the Senate Standing Committee on Public Safety.

895
02:34:25.950 --> 02:34:34.730
Senator Jesse Arreguin: And I just want to touch upon a few bills that I was able to successfully author and get the governor to pass, including Senate Bill 524 that requires the use

896
02:34:34.730 --> 02:34:52.020
Senator Jesse Arreguin: that in the case of AI being used in developing police reports, there are certain disclosures and guardrails. Senate Bill 627, the No Secret Police Act, that would prohibit law enforcement and federal agents from concealing their identity by wearing masks during official operations. No secret police in Berkeley or any

897
02:34:52.360 --> 02:35:05.380
Senator Jesse Arreguin: city in California, and Senate Bill 704 to regulate the separate sale of firearm barrels that are used increasingly to create illegal ghost guns. Additionally, we worked to implement Prop 36, a ballot measure that was passed by the voters

898
02:35:05.380 --> 02:35:13.219
Senator Jesse Arreguin: Just last year, by allocating $100 million as an initial investment, including $50 million, to expand behavioral health treatment in California.

899
02:35:13.220 --> 02:35:17.110
Senator Jesse Arreguin: on Health and Human Services, and I really want to touch upon this in the context of

900
02:35:17.110 --> 02:35:24.590
Senator Jesse Arreguin: what we saw last month during the prolonged shutdown, in which the Trump administration, for the first time in over 60 years.

901
02:35:24.780 --> 02:35:37.050
Senator Jesse Arreguin: did not provide SNAP benefits to Americans. Fortunately, we worked immediately once a favorable court decision came down to get those SNAP benefits out to California, so there was no interruption in SNAP benefits in California.

902
02:35:37.080 --> 02:35:44.870

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Senator Jesse Arreguin: while we were working to also augment resources for our food banks to fill the gap, we know that even before Trump's inhumane attack on

903
02:35:44.960 --> 02:35:51.590
Senator Jesse Arreguin: on, food security, that… there was growing hunger in California and growing hunger in the United States.

904
02:35:52.160 --> 02:35:54.580
Senator Jesse Arreguin: That increase even post-pandemic.

905
02:35:54.670 --> 02:35:59.439
Senator Jesse Arreguin: And so, that is the challenge that we face coming back to the legislature next year.

906
02:35:59.440 --> 02:36:17.240
Senator Jesse Arreguin: with H.R. 1, the big oily bill, that's going to make drastic cuts to SNAP benefits, we need to do everything we can to make sure that we support our food banks, that we provide essential benefits, that people do not go hungry in California. But that was part of a broader effort that we were engaged in, including strengthening,

907
02:36:17.570 --> 02:36:35.150
Senator Jesse Arreguin: access to childcare, and resources for workers that were impacted by mass layoffs, and we're committed to doing everything we can to push back against the Trump administration's cuts to Medi-Cal, to SNAP, and to our social service safety, because it's so essential for people in our state. On transportation.

908
02:36:35.150 --> 02:36:39.859
Senator Jesse Arreguin: Several bills, and I want to thank the Berkeley City Council also for supporting this legislation.

909
02:36:39.860 --> 02:36:56.989
Senator Jesse Arreguin: We were able to get a commitment of $750 million in the Budget Act as a one-time bridge loan to Bay Area transit operators to make sure that next year that they don't have to close stations or reduce service. We also passed Senate Bill 63, which will allow the Bay Area to consider a regional sales tax measure next year.

910
02:36:56.990 --> 02:37:05.169
Senator Jesse Arreguin: to provide 14 years of funding, operating funding, to stabilize BART, Muni, AC Transit, and all of our major transit agencies in the Bay Area.

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911
02:37:05.330 --> 02:37:17.219
Senator Jesse Arreguin: In addition, through the passage of our CAP and Invest program, we have increased funding for transit operating resources and transit capital, including an investment towards making the high-speed rail project a reality long-term.

912
02:37:17.270 --> 02:37:30.229
Senator Jesse Arreguin: And this is part of a broader package of climate initiatives that we're funding through Capit Invest, including efforts to reduce emissions, reduce energy bills, and to invest in transit and capital projects for transportation in California.

913
02:37:30.370 --> 02:37:32.190
Senator Jesse Arreguin: On climate and environment.

914
02:37:32.580 --> 02:37:42.129
Senator Jesse Arreguin: I really just want to lift up the incredible leadership of Chief Sprague and the Berkeley Fire Department. Berkeley is really a thought leader on the issue of fire safety.

915
02:37:42.400 --> 02:37:51.580
Senator Jesse Arreguin: And the first challenge that we faced when we came to the legislature this year was the devastating wildfires in Los Angeles, which showed that urban wildfire risk is real.

916
02:37:51.670 --> 02:37:55.300
Senator Jesse Arreguin: Something that we've known for a long time. That fire season is year-round.

917
02:37:55.300 --> 02:38:03.249
Senator Jesse Arreguin: And so, while we were able to allocate immediate relief to support LA, we've also allocated billions of dollars of funding through Prop 4 and through…

918
02:38:03.250 --> 02:38:26.320
Senator Jesse Arreguin: cap and invest, and other general fund resources to be able to provide more money for, reducing fuels, managing vegetation, home hardening, and other critical steps to make our communities fire safe. And so, working with Councilmember Blackaby and your staff, we're going to work to make sure that we get our share of resources to support Berkeley's projects and the East Bay's projects, and the work of the East Bay Wildfire Coalition of Governments.

919
02:38:26.500 --> 02:38:37.090

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Senator Jesse Arreguin: And lastly, on housing, once again, I want to lift up the incredible leadership of the City of Berkeley, passing the Middle Housing Initiative, something that we started when I was mayor, just a few years ago.

920
02:38:37.280 --> 02:38:50.620
Senator Jesse Arreguin: I really think Berkeley demonstrates incredible leadership on how we can think smartly and effectively address housing and homelessness in California, and I think really is a model. And so, this was a banner year for housing in California.

921
02:38:50.620 --> 02:39:07.190
Senator Jesse Arreguin: From CECA reform to SB79, to legislation that I was able to author supporting ADUs and streamlining the permitting process. And, please know that housing affordability and housing production will continue to be my top priorities next year in the California legislature. So that was it.

922
02:39:07.190 --> 02:39:31.850
Senator Jesse Arreguin: In addition to serving as the… your state senator, I was on to chair two standing committees in the Senate, the only senator to do that, in addition to eight committees, and work to advance Berkeley's priorities. And so, welcome your input on how we can work together to provide the resources to support Berkeley and advance Berkeley's values in Sacramento. It was an honor to serve as the mayor and a city council member for 16 years, and it's an honor to serve as your representative in the California State Senate.

923
02:39:31.850 --> 02:39:32.820
Senator Jesse Arreguin: Thank you very much.

924
02:39:38.000 --> 02:39:52.909
Boardroom: Thank you very much, Senator. We are very lucky to, have a representative that knows our city so well, and we've been in touch quite a lot over this past year, and I really just want to thank you so much for your service, to our city and to, you know, the whole region, so…

925
02:39:52.910 --> 02:40:01.850
Boardroom: Thank you also for coming this evening. I really appreciate having a presentation from you directly to our City Council and our community, so thank you very much.

926
02:40:03.950 --> 02:40:09.839
Boardroom: And, I… we have one additional adjournment in memory,

927

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02:40:10.460 --> 02:40:28.730
Boardroom: Sadly, we lost a member of our Berkeley Fire Department recently, Fire Captain Scott Hall, and so I'd like also to adjourn our City Council meeting this evening in his memory. I spoke with the, president of the

928
02:40:28.790 --> 02:40:38.340
Boardroom: the firefighters Union today, and one of the things he shared with me is that Captain Hall was someone who was very joyous, and, always

929
02:40:38.660 --> 02:40:41.170
Boardroom: Very bright, and,

930
02:40:41.260 --> 02:40:58.959
Boardroom: he said something funny, which was that he was very difficult to make angry, which I really appreciate, because this is a group that jokes around a lot, and I think that that's very special. Captain Scott Hall passed away at home on November 28th, 2025. He was only 56 years old.

931
02:40:59.070 --> 02:41:05.430
Boardroom: He served the citizens of Berkeley, California with honor and distinction for 33 years.

932
02:41:05.630 --> 02:41:25.600
Boardroom: Scott is survived by his wife, Laura, of 23 years, and their children, Savannah, 30, Madeline, 28, and Ethan, 21. And so, it is really just so incredibly sad to lose a member of our Berkeley firefighters, and I want to give the Chief, if you have, something you'd like to say, I want to give you an opportunity to speak.

933
02:41:26.440 --> 02:41:27.470
Boardroom: Thank you.

934
02:41:31.900 --> 02:41:40.739
Boardroom: Thank you, Mayor and Council. Yeah, just in short, this was, and for members of the public, this was, unexpected and tragic, death.

935
02:41:41.110 --> 02:41:46.980
Boardroom: We're all reeling and trying to take care of one another, but primarily focused on the family.

936
02:41:47.390 --> 02:41:53.090

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Boardroom: And, we've had a lot of ups and downs over the last couple days.

937
02:41:53.360 --> 02:41:56.860
Boardroom: Lots of laughs telling stories about Scott, because there's plenty.

938
02:41:57.240 --> 02:41:59.139
Boardroom: He was a gregarious…

939
02:41:59.260 --> 02:42:13.159
Boardroom: person full of life, and he'll be missed deeply, and services are gonna be announced here really soon, in the next week, and of course, you're all invited and encouraged to come. Thank you very much. Appreciate it. Thank you.

940
02:42:13.670 --> 02:42:24.790
Boardroom: And I know as a council, we send our condolences to his family, and just to all the firefighters. I know it's so challenging that, you need to continue working at this time, and so I really want to thank you all for your service.

941
02:42:24.970 --> 02:42:32.659
Boardroom: And thank you also to the council members who, you know, brought this forward and also wanted to make sure that they honored him, so thank you all.

942
02:42:33.170 --> 02:42:40.150
Boardroom: So we'll adjourn in honor of both, Evie Wozniak and also Captain Scott Hall. Thank you.

943
02:42:41.900 --> 02:42:42.970
Boardroom: Okay.

944
02:42:44.900 --> 02:42:53.579
Boardroom: We are moving on with our agenda for this evening. We have quite a long one. City Manager, did you have any comments this evening? I don't. Thank you, Madam Mayor.

945
02:42:53.990 --> 02:43:03.419
Boardroom: And I also saw our, auditor, but she does not have comments for this evening. I will now take public comment on non-agenda matters.

946

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02:43:34.980 --> 02:43:48.810
Boardroom: Okay, the first… Five names, we have Carol Morasovic, we have Rhonda Gruska, Ann Hoyer… Cheryl and Robert.

947
02:43:52.050 --> 02:43:54.330
Boardroom: Okay, so if you heard your name, please come on up.

948
02:43:54.970 --> 02:43:57.419
Boardroom: This is for public comment on non-agenda matters.

949
02:43:58.520 --> 02:43:59.650
Boardroom: Starting with Carol.

950
02:44:01.300 --> 02:44:13.959
Boardroom: why we need a sex trafficking task force. A couple of weeks ago, when I was volunteering with, food and clothing, giving it out in encampments, I came across a

951
02:44:14.250 --> 02:44:23.910
Boardroom: Young girl, visibly, Advanced pregnancy. Boyfriend looked about 60 years old, and…

952
02:44:23.970 --> 02:44:35.330
Boardroom: I, gave her things, and referred her to Women's Daytime Drop-In Center, and next day, I called up the Women's Daytime Drop-In Center, set up an appointment.

953
02:44:35.330 --> 02:44:57.340
Boardroom: called the Options Encampment Wellness Team. They went out the following day. She, they gave them a four-person tent, blankets, and again, tried to get her to the women's daytime drop-ins there, even took them out to lunch, and, said they would pick her up and bring her there the following day. She, by the… they went back the following day, and they were gone.

954
02:44:57.340 --> 02:45:03.659
Boardroom: And… When you know something's off, I don't… I don't know what you can do.

955
02:45:03.820 --> 02:45:05.349
Boardroom: Thank you. Thank you.

956
02:45:12.430 --> 02:45:13.680

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Boardroom: Good evening.

957
02:45:14.040 --> 02:45:17.759
Boardroom: I'm Rhonda Grushka. I'm here to speak for the plans.

958
02:45:17.910 --> 02:45:26.520
Boardroom: You are destroying and want destroyed. I'm here to speak for the animals whose food and shelter you are destroying and want destroyed.

959
02:45:26.630 --> 02:45:33.280
Boardroom: I'm here to speak for the people who have begged you to listen to reason and stop your destructive ways.

960
02:45:33.530 --> 02:45:44.400
Boardroom: Regardless, you have made it clear you plan to continue down this path of environmental destruction and hard-heartedness that is driven by a self-serving political agenda.

961
02:45:44.810 --> 02:45:54.560
Boardroom: City Councilmember Brent Blackaby, as you clearly have expressed authenticity… Sorry, just a reminder not to address specific council members, just to the… us as a body.

962
02:45:55.500 --> 02:46:11.490
Boardroom: Authentic interest in serving the majority of your constituency, and continue to champion draconian plant removal mandates that are not based in established science, I hereby serve you with these documents to initiate your recall. Thank you, and good night.

963
02:46:15.280 --> 02:46:17.070
Boardroom: And this is for the city park.

964
02:46:18.740 --> 02:46:19.960
Boardroom: Well, it goes to the…

965
02:46:23.170 --> 02:46:25.070
Boardroom: Actually, I guess I need to put the time.

966
02:46:25.260 --> 02:46:29.620
Boardroom: Whoever's next, whose name's been called?

967
02:46:30.530 --> 02:46:33.060

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Boardroom: If your name was called, you can come up.

968
02:46:33.580 --> 02:46:36.749
Boardroom: Oh, okay. Was someone else's name? Yeah, okay, come on up.

969
02:46:37.010 --> 02:46:40.170
Boardroom: Okay, thank you.

970
02:46:40.540 --> 02:46:41.210
Boardroom: Okay.

971
02:46:41.960 --> 02:46:43.920
Boardroom: Anyone else?

972
02:46:44.290 --> 02:46:46.699
Boardroom: Yeah, this is a coffee preview. Okay.

973
02:46:47.140 --> 02:46:49.780
Boardroom: And… The official, do I?

974
02:46:53.430 --> 02:46:57.160
Boardroom: Cheryl, was your name called? Yes. Thank you. Okay.

975
02:46:57.330 --> 02:46:58.160
Boardroom: Come on up.

976
02:47:00.480 --> 02:47:01.810
Boardroom: Goodbye, son.

977
02:47:06.100 --> 02:47:07.010
Boardroom: Okay.

978
02:47:09.090 --> 02:47:09.790
Boardroom: Read it.

979
02:47:10.410 --> 02:47:14.000
Boardroom: So, for one, I want to say shame on…

980
02:47:14.200 --> 02:47:18.249
Boardroom: the City of Berkeley. I was at the Indigenous Peoples Day.

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981
02:47:18.410 --> 02:47:22.059
Boardroom: I know it's been a while, I was out of the country for a few weeks.

982
02:47:22.890 --> 02:47:29.830
Boardroom: But shame, because on Indigenous People's Day, all the trash cans We're covered up.

983
02:47:30.770 --> 02:47:34.650
Boardroom: It was pathetic. I couldn't take a picture, but…

984
02:47:34.760 --> 02:47:36.789
Boardroom: Cause my phone was full, but…

985
02:47:37.280 --> 02:47:42.170
Boardroom: The garbage cans had plastic over them, you couldn't put any garbage in them.

986
02:47:42.590 --> 02:47:46.410
Boardroom: And I just thought that was so pathetic, disrespectful.

987
02:47:46.900 --> 02:47:52.559
Boardroom: Kind of racist, definitely racist against the Indigenous people.

988
02:47:54.700 --> 02:48:02.290
Boardroom: I'm like, why? Why would you do something like that? That's just, like, so, so, so pathetic and petty.

989
02:48:02.730 --> 02:48:05.909
Boardroom: And I hope that doesn't happen next year.

990
02:48:06.700 --> 02:48:14.030
Boardroom: Otherwise, it was a great event, but I didn't see any of y'all here, thankfully.

991
02:48:14.630 --> 02:48:26.380
Boardroom: Anyway… Also… Please accept my condolences to the fire department.

992

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02:48:26.780 --> 02:48:29.090
Boardroom: Further loss?

993
02:48:29.470 --> 02:48:34.459
Boardroom: I'm really sad, and I'm sorry to hear that, so please accept.

994
02:48:35.150 --> 02:48:42.059
Boardroom: My condolences, for your loss, and, rest in peace, rest in power.

995
02:48:43.010 --> 02:48:52.959
Boardroom: And also, there's an Arms Embargo Now campaign. I hope y'all have signed it, because Oakland Airport is shipping

996
02:48:54.200 --> 02:49:03.029
Boardroom: Weapon, cargo, parts… to murder Palestinians, they're going straight to, it's not real.

997
02:49:03.270 --> 02:49:19.849
Boardroom: To, kill people, murder people, murder children, murder women, whole families… Whole communities… Tear down buildings.

998
02:49:19.960 --> 02:49:27.140
Boardroom: And they're not allowing any, aid in, food, medical, nothing.

999
02:49:27.490 --> 02:49:34.810
Boardroom: Or very, very, very small amounts. It's not enough to people that are starving, and…

1000
02:49:34.980 --> 02:49:39.270
Boardroom: You know, almost passed…

1001
02:49:39.830 --> 02:49:51.280
Boardroom: being able to recover from what's been happen… what's happened to them with starving them and not giving them any medicine, shelter. They're holding back tents.

1002
02:49:51.590 --> 02:50:06.679
Boardroom: It's just freakin' insane, and it's just really disgusting that you all are elected officials, one of you, is not wearing the keffiyah that they used to wear, and I think that's a little shameful, because nothing's changed.

Unofficial Text File

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1003
02:50:06.930 --> 02:50:10.420
Boardroom: There was no ceasefire. People continued to die.

1004
02:50:11.190 --> 02:50:25.579
Boardroom: Today, it's a 797th day. Thanks for your comment. And people are being killed and murdered. Your time is up. Your time is up. I understand that, and I'll be finished in a second. Cheryl, I'm sorry. Shame on you. You know, we're really strict with time, and we've got a long agenda.

1005
02:50:25.670 --> 02:50:33.639
Boardroom: You know, I don't give a crap about your long agenda. I know you don't, but… we're, we're, we're finished. Your time is finished now.

1006
02:50:34.700 --> 02:50:36.240
Boardroom: Thank you.

1007
02:50:37.020 --> 02:50:41.820
Boardroom: For the online comment, Mr. City Clerk? Yes, let's take a look here.

1008
02:50:42.660 --> 02:50:46.730
Boardroom: So this is, for…

1009
02:50:47.310 --> 02:50:50.320
Boardroom: Public comments not on the agenda.

1010
02:50:50.730 --> 02:50:57.719
Boardroom: For people, on the Zoom, raise your hand. First is Daniel Brownson.

1011
02:51:03.690 --> 02:51:12.110
Daniel Brownson: One thing I noticed, when, our no-goods state senator was speaking is he,

1012
02:51:12.360 --> 02:51:16.410
Daniel Brownson: didn't mention how he voted for AB715.

1013
02:51:16.530 --> 02:51:20.780
Daniel Brownson: A bill that, you know, seeks to muzzle

1014

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This information provided by Zoom. The City of Berkeley cannot certify the following text since we did not create it.

02:51:21.010 --> 02:51:27.149
Daniel Brownson: our educators from teaching the actual history of Palestine.

1015
02:51:27.250 --> 02:51:31.790
Daniel Brownson: Especially in our Ethnic studies program,

1016
02:51:32.100 --> 02:51:43.130
Daniel Brownson: as it adopts a definition of antisemitism that conflates anti-Semitism with criticism of Israel.

1017
02:51:43.520 --> 02:51:48.080
Daniel Brownson: So, while he com… while he talks about how fascist…

1018
02:51:48.290 --> 02:51:51.009
Daniel Brownson: Trump is, he himself voted for

1019
02:51:51.150 --> 02:51:58.800
Daniel Brownson: A measure that is also, fascist and authoritarian, law.

1020
02:51:59.620 --> 02:52:03.950
Daniel Brownson: That is… Also, deeply unconstitutional.

1021
02:52:05.460 --> 02:52:10.910
Boardroom: Thank you. Next is… Jerry's iPad.

1022
02:52:12.120 --> 02:52:13.130
Boardroom: I'm sure exactly.

1023
02:52:14.990 --> 02:52:17.090
Boardroom: Should be able to unmute, there you go.

1024
02:52:17.340 --> 02:52:34.749
Jerry’s iPad: There we go. Good evening, everybody. This is Jesse Sheehan, Director of the Chess Club. I'd like to thank Mrs. Lunapara's office. We have the Telegraph Holiday Festival will be taking place on Telegraph Avenue. Again, everybody that helped make that happen, please give… give yourself some credit.

1025
02:52:34.830 --> 02:52:48.329

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Jerry’s iPad: Thank you for doing that. It'll be 3 weekends in December. I would like to also point out, that it shouldn't have been in jeopardy. We changed the seat of government in District 7, Mrs. Lunapara.

1026
02:52:48.510 --> 02:53:04.790
Jerry’s iPad: we shouldn't be having these same issues. We know Peter Radu set out to cancel our festival last year from the city manager's office. Mr. Budenhagen, I know you weren't there when Peter Radu was there last year. He unilaterally decided to move the festival

1027
02:53:04.790 --> 02:53:16.459
Jerry’s iPad: Bypassing the mayor and the council's office. He… Peter Verdue did the same thing this year. He bypassed the council's office, and bypassed the mayor, and unilaterally decided

1028
02:53:16.560 --> 02:53:23.119
Jerry’s iPad: a neighborhood wasn't gonna have their holiday festival. I will have a table asking for Peter Radu's.

1029
02:53:24.540 --> 02:53:26.650
Boardroom: Next is Maria Soule.

1030
02:53:33.800 --> 02:53:34.800
Boardroom: Maria?

1031
02:53:37.810 --> 02:53:39.420
Boardroom: Should be able to unmute.

1032
02:53:39.900 --> 02:53:49.320
maria sol: Oh, I'm so sorry. Okay, so hi again. I forgot to mention a few things when we were speaking about the infrastructure, and I've really got to.

1033
02:53:49.320 --> 02:54:00.749
maria sol: I'm really thrilled that there's a siren, but I don't know if it's still working in terms of notifying people, and I don't know what the central command or coordination

1034
02:54:00.770 --> 02:54:17.740
maria sol: stems from, because in my work in Contra Costa County, they had comms really handled so that people could be informed, even by radio, possibly, especially since the police scanning thing has been shut down.

1035

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02:54:17.800 --> 02:54:19.820
maria sol: And that really sad.

1036
02:54:22.980 --> 02:54:40.950
maria sol: in terms of emergency shelter for people to warm up and stay dry. I really request that we find some safe space for people to park and hopefully sleep safely, and I'm concerned about all of the obstructions

1037
02:54:41.020 --> 02:54:45.439
maria sol: in… on the streets, that are blocking, ADA.

1038
02:54:45.440 --> 02:54:47.100
Boardroom: Thanks, Maria.

1039
02:54:47.100 --> 02:54:48.240
maria sol: Thank you, thank you.

1040
02:54:50.610 --> 02:54:54.300
Boardroom: This is non-agenda public comment, so, yeah.

1041
02:54:54.790 --> 02:55:04.909
Boardroom: Next to… You can only offer a minute if your card was selected. Since your card wasn't… yeah.

1042
02:55:05.220 --> 02:55:11.649
Boardroom: Okay, last, hand raised is caller ending in 000.

1043
02:55:15.810 --> 02:55:16.660
1510****000: I agree.

1044
02:55:16.870 --> 02:55:26.029
1510****000: Hi, good evening. This is Eid, so I'm a assistant store manager handy some bever. Please, Eid, you can respond. We're not small, we're a big company.

1045
02:55:26.340 --> 02:55:29.959
1510****000: at one time, the biggest company in the Bay Area in consumer electronics.

1046
02:55:30.250 --> 02:55:32.159
1510****000: Couple of comments, very quickly.

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1047
02:55:33.930 --> 02:55:40.159
1510****000: We contributed over a million dollars in business, pricing, and tax to the city treasury, City of Berkeley Treasury.

1048
02:55:40.410 --> 02:55:43.880
1510****000: Mayor again, ex-Mayer again, filled us completely.

1049
02:55:44.280 --> 02:55:50.040
1510****000: he backed on his word. He did not at all keep his words, not as a…

1050
02:55:50.240 --> 02:55:52.129
1510****000: As a mayor, but as a man as well.

1051
02:55:52.310 --> 02:55:59.150
1510****000: Also, he brought in that genocide moron monosaur in the White House. When he refused.

1052
02:55:59.250 --> 02:56:03.289
1510****000: to pass ceasefire resolution. That was awful.

1053
02:56:04.080 --> 02:56:10.820
1510****000: Lots of people sit home, and that's why this monster in the White House got elected were looking at some of the darkest.

1054
02:56:10.970 --> 02:56:12.120
Boardroom: History.

1055
02:56:12.170 --> 02:56:18.209
1510****000: on the planet. Thank you, and you know, let's both of us wish luck. I do like to meet the mayor.

1056
02:56:18.450 --> 02:56:22.509
1510****000: Is CT, the mayor, next, as soon as possible.

1057
02:56:24.810 --> 02:56:26.080
Boardroom: Okay, that's it.

1058
02:56:26.490 --> 02:56:27.890
Boardroom: No more hands raised.

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1059
02:56:28.000 --> 02:56:32.620
Boardroom: Okay, thank you very much. Alright.

1060
02:56:32.730 --> 02:56:37.240
Boardroom: Moving on, we are going to our consent calendar.

1061
02:56:37.680 --> 02:56:39.360
Boardroom: But there's the…

1062
02:56:39.590 --> 02:56:47.209
Boardroom: union public comment. Thank you, yes. Is there anyone here for public comment from employee unions?

1063
02:56:47.360 --> 02:56:50.180
Boardroom: Any designated representative. My apologies.

1064
02:56:52.130 --> 02:56:55.130
Boardroom: Anyone online here for public comment?

1065
02:56:55.240 --> 02:56:57.070
Boardroom: By employee unions.

1066
02:56:59.000 --> 02:57:00.689
Boardroom: I don't see any hands raised.

1067
02:57:01.600 --> 02:57:02.280
Boardroom: Okay.

1068
02:57:03.120 --> 02:57:04.940
Boardroom: Okay, alright, we will…

1069
02:57:05.300 --> 02:57:11.529
Boardroom: We will then be moving on to the consent calendar. Does Council have any comments on the consent calendar?

1070
02:57:15.610 --> 02:57:20.790
Boardroom: Yes, Councilmember… Councilmember Humbert.

1071
02:57:21.840 --> 02:57:30.900
Boardroom: Again, first… I didn't… I didn't think I would be.

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1072
02:57:31.350 --> 02:57:41.689
Boardroom: I just… I want to, contribute some money to various of these items, with respect to 20… number 28, which is the annual Berkeley Holiday Fund.

1073
02:57:41.860 --> 02:58:01.339
Boardroom: From Mary Ishi, I'd like to, to, to contribute $250 for my office account. Item 29, the Urban Compassion Project, authored by Councilmember Kassarwani, would like to contribute $250 to that.

1074
02:58:03.200 --> 02:58:17.119
Boardroom: Item 31, Creations Berkeley Black Joy Kwanzaa Toy Drive and Celebration. I would like to match Councilmember Bartlett's contribution of $250 on that for my office account.

1075
02:58:17.370 --> 02:58:29.179
Boardroom: I wanted to, thank, Councilmember Blackaby and his co-sponsors for item number 36.

1076
02:58:29.190 --> 02:58:41.279
Boardroom: Which is a referral to the city manager to develop a proactive communication system to alert the community of upcoming infrastructure projects. That's… I think it's really important.

1077
02:58:41.310 --> 02:58:52.630
Boardroom: to notify folks about this, to give them time to adjust their lives in advance of major works of improvement, including Safe Streets work, which I'll be really excited about.

1078
02:58:52.750 --> 02:58:54.850
Boardroom: And then, finally…

1079
02:58:55.290 --> 02:59:06.080
Boardroom: Well, not quite, finally. 37, I'd like to contribute $100 to the Berkeley Symphony Orchestra Winner Promenade. That's an item,

1080
02:59:06.370 --> 02:59:10.049
Boardroom: Authored by, Councilmember Lou Napara.

1081
02:59:10.200 --> 02:59:14.990
Boardroom: And with respect to 38…

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1082
02:59:15.210 --> 02:59:20.539
Boardroom: Which is the renewal of the Elmwood Avenue bid for calendar year 2026.

1083
02:59:20.870 --> 02:59:36.080
Boardroom: We still have a long way to go, so just a quick thank you to Eleanor Hollander and Vincent McCoy from OED, and thank you to all the merchants and individuals who've been involved with EBA, especially District 8's bid member, Andrew Hahn.

1084
02:59:36.080 --> 02:59:41.550
Boardroom: as well as Cara Hammond, Michael Byrne, Eric Green, Sarah Sabra Stepak.

1085
02:59:41.570 --> 02:59:52.120
Boardroom: Jesus Chavez, Michelle Shore, Claudia Hunka, and all the others who've been involved with the bid, the Merchants, and the Merchants Association, in the Elmwood.

1086
02:59:52.430 --> 02:59:54.590
Boardroom: And I think that's it.

1087
02:59:56.110 --> 02:59:59.399
Boardroom: Okay, very good. Thank you, Councilmember Bartlett.

1088
03:00:00.900 --> 03:00:04.880
Boardroom: Thank you, Madam Mayor. And, quickly, just running through the…

1089
03:00:05.230 --> 03:00:17.089
Boardroom: You know, I'm… I apologize, I think… I think that item was on the action calendar, because it's a public hearing, so… But I still mean all those things.

1090
03:00:17.720 --> 03:00:26.300
Boardroom: That's fine, thank you. Noted for the future. This one, item 22, the, the tree planning proposal, I'm curious as to…

1091
03:00:26.470 --> 03:00:28.890
Boardroom: Is there a geographic plan for the…

1092
03:00:29.070 --> 03:00:37.839

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Boardroom: The tree planting pearls there, I see this $750,000 for tree planting. I love this. Years ago, we put forward a measure to, ramp up tree production.

1093
03:00:39.370 --> 03:00:48.070
Boardroom: I don't know if, are you on the line, Director Ferris? I know that he had… this was, like, part of an original grant that did have a geographic plan, and there was a big equity component to it.

1094
03:00:48.190 --> 03:01:05.650
Boardroom: And it went in fits and starts and finally got funded, so that's why we're coming back before you tonight. Oh, wonderful. Great. Because I'm hoping, of course, this goes where the, where the air needs to clean up the most, right? Right. Okay, thank you. Item 24, the, I want to call out the YouthWorks program and the…

1095
03:01:05.650 --> 03:01:23.460
Boardroom: funding there, really, really great program, a lot of young people getting tooled up. Wonderful to see. I'm very happy to see, the two, I guess, two companion reports around, loan modifications for the Housing Trust Fund projects. Some of these are in my district, and I really support these projects really well, a lot.

1096
03:01:23.500 --> 03:01:28.199
Boardroom: And this… this… the monies are hard to fund… find nowadays, it's good, and we can…

1097
03:01:28.250 --> 03:01:34.799
Boardroom: We can, achieve sort of new financing protocols around them to extend their viability.

1098
03:01:35.180 --> 03:01:49.769
Boardroom: And then, of course, the, holiday party, the Berkeley Holiday Fund, I went to contribute myself, $250 as well. Thank you, Madam Mayor, for a good party. Be there with some eggnog in hand, eggnog. Okay, the,

1099
03:01:50.210 --> 03:01:56.059
Boardroom: And then, I want to thank everyone, for, contributing to…

1100
03:01:56.650 --> 03:02:06.219
Boardroom: our holiday drive for the Black Joy Club Kwanzaa Toy Drive, should be a lot of fun. Get these toys out to these kids. You know, Kwanzaa actually was actually created, adjacent to Berkeley.

1101

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03:02:06.220 --> 03:02:17.639
Boardroom: These are Berkeley people that created the holiday. They're in Berkeley and Oakland. Really, it's a local holiday they made. It's a locally derived holiday that, has created spirit around the country.

1102
03:02:17.640 --> 03:02:21.979
Boardroom: And the world, even. So, great to support it. And I think,

1103
03:02:23.830 --> 03:02:32.719
Boardroom: I wanted to also give $100 to the Urban Compassion Project, and thank you, Councilman Kessar-Wani, for your item there, I'd love to support you there. And,

1104
03:02:32.820 --> 03:02:34.010
Boardroom: That's it, thank you.

1105
03:02:34.780 --> 03:02:43.039
Boardroom: Thank you very much. Councilmember Taplin. Thank you. On item 28, I would like to relinquish 500.

1106
03:02:44.080 --> 03:02:46.260
Boardroom: I am 29-250.

1107
03:02:46.950 --> 03:02:49.060
Boardroom: Item 31-250.

1108
03:02:49.500 --> 03:02:52.489
Boardroom: And item 37250.

1109
03:02:55.190 --> 03:03:14.990
Boardroom: Okay, thank you very much, Councilmember Lockabee. Thanks, Madam Mayor. First, I'd just like to say, if anybody's got a legal notice, I'm happy to meet you out front later. If you'd like to do it in person, happy to do that also, rather than… it might be easier to do it next time in person, so I'm happy to do that. So, more than willing to do it over coffee or over lunch as well, so either that would work.

1110
03:03:14.990 --> 03:03:33.510
Boardroom: On the consent calendar, let me just say, item 17, I just appreciate the work that Berkeley Community Media does. They air our council meetings, they've also aired a number of our community events, around Ember and other stuff, and just wanted to lift up the good work that they do to keep our, residents informed about the work that the city is doing.

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1111
03:03:33.540 --> 03:03:35.510
Boardroom: I wanted to…

1112
03:03:35.900 --> 03:03:49.189
Boardroom: comment on item 26A and B that I support… I appreciate the work from the HACC. I do support the staff companion report that does not forgive the accrued interest, and I appreciate that from a fiscal responsibility perspective.

1113
03:03:49.500 --> 03:03:55.700
Boardroom: And on 27A27B, similarly support the staff report on,

1114
03:03:55.850 --> 03:04:00.630
Boardroom: allowing Council to sort of make referrals through the budget process in terms of those recommendations.

1115
03:04:00.920 --> 03:04:09.720
Boardroom: I'd like to add $500 as a co-sponsored item 28, I'm already a co-sponsor, so that's done. On item 29, $250 for my office.

1116
03:04:10.250 --> 03:04:29.469
Boardroom: And on item 31, $250, and item 37, $250. I want to appreciate the support of Councilmember Trega, Councilmember Kastarwani, Councilmember Taplin on item 36, and also, the work from the City Manager and his team. You know, we've had a couple of

1117
03:04:30.140 --> 03:04:36.750
Boardroom: feedback kind of opportunities for members of District 6 as we're doing more and more street repaving work.

1118
03:04:36.920 --> 03:04:40.640
Boardroom: There's a lot more of this activity that's gonna continue to happen with Measure FF.

1119
03:04:40.700 --> 03:04:55.280
Boardroom: And I think being able to proactively communicate with residents about, projects that are happening in their area is just gonna help everyone sort of understand how to navigate. And so I appreciate the city managers already… we've been kind of talking about how this might work, and, and look forward to

1120
03:04:55.280 --> 03:05:09.329

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Boardroom: having that come back so that we'll have a better system for notifying people. And also, I would just invite staff to lean on the council member offices as well, because, again, we're doing regular communications already with constituents, and if we can be a part of that process, we'd be happy to help.

1121
03:05:09.360 --> 03:05:18.179
Boardroom: item 37, Contribute 250, I think I mentioned. And then the last thing, to Eleanor and her team, on the information calendar is this great report.

1122
03:05:18.180 --> 03:05:35.220
Boardroom: an economic impact study on Berkeley's creative economy that I just encourage us all to take a look at. And just a couple of factoids out of there, just in terms of the importance that the creative economy plays in Berkeley. That, the fact is that about 7% of our total workforce, or 8,000 people.

1123
03:05:35.220 --> 03:05:41.349
Boardroom: are employed in the creative economy. It's a significant part of what we do here in Berkeley. It's a really important part of the economy.

1124
03:05:41.350 --> 03:05:44.310
Boardroom: It is not recovered post-pandemic.

1125
03:05:44.350 --> 03:05:49.579
Boardroom: So, efforts that we can continue to do to support it and nurture it are really, really important.

1126
03:05:52.450 --> 03:06:05.389
Boardroom: the total impact of the creative economy on Berkeley is about a billion dollars in terms of our gross regional product as a city. It's a significant driver of economic activity. And visitors to…

1127
03:06:05.450 --> 03:06:19.220
Boardroom: arts and culture organizations generate approximately $56 million in additional local spending every year. So I just want to lift up this report, and I encourage people to take a look at it. The importance of the arts, the,

1128
03:06:19.650 --> 03:06:29.509
Boardroom: the economic impact of the support, the grant funding that we made during COVID to keep this, this part of the economy afloat has paid huge dividends.

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1129
03:06:29.510 --> 03:06:46.959
Boardroom: And it continues to be a real driver of our economy locally. So, I'm proud to be a supporter of the arts in Berkeley. I'm also proud to be an early supporter of the new arts measure that's worth signatures being gathered. I just really lift up the work that the creative economy does here in Berkeley, so…

1130
03:06:47.570 --> 03:06:48.669
Boardroom: That's it, thank you.

1131
03:06:51.230 --> 03:06:53.610
Boardroom: Okay, thank you very much. Councilmember Trigut?

1132
03:06:54.760 --> 03:06:58.169
Boardroom: Thank you so much, Madam Mayor.

1133
03:06:58.600 --> 03:07:04.280
Boardroom: I, would like to give $2.50.

1134
03:07:04.490 --> 03:07:07.060
Boardroom: from my D13 account.

1135
03:07:07.330 --> 03:07:11.740
Boardroom: On items 29, 31, and 37.

1136
03:07:11.850 --> 03:07:17.820
Boardroom: With appreciation to, the co-authors of those items.

1137
03:07:18.090 --> 03:07:23.420
Boardroom: and the… Organizations, that this supports.

1138
03:07:23.830 --> 03:07:30.900
Boardroom: I've wanted to, make a brief remark in…

1139
03:07:31.000 --> 03:07:47.539
Boardroom: sincere appreciation for the work that the Housing Advisory Commission and the Civic Arts Commission does every day. Not to… just wanted to call out those two, since a couple of their items are on our agenda tonight.

1140

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03:07:47.540 --> 03:07:55.860
Boardroom: And I just want you to know that, regardless of whether we, end up, passing

1141
03:07:55.860 --> 03:08:15.110
Boardroom: A or B on the consent calendar. You know, in particular, item 27, which is an item that is very near and dear to my heart, and that work started, right around the time that I was finishing up my time on the Housing Advisory Commission.

1142
03:08:15.250 --> 03:08:22.930
Boardroom: this is only going to be the beginning, not the end of the conversation, whatever we do tonight.

1143
03:08:23.470 --> 03:08:29.139
Boardroom: And I wanted to also, just appreciate,

1144
03:08:29.470 --> 03:08:38.409
Boardroom: Everyone who has been a thought partner, to us in the items, we have authored,

1145
03:08:38.850 --> 03:08:43.040
Boardroom: Item 32, a budget referral,

1146
03:08:43.250 --> 03:08:59.040
Boardroom: to, refer the Addison Cadenary Lighting Project, the Oxford for All proposal, and the Herald Way Placemaking Project Schematic Design. I did want to ask for one change in consultation with,

1147
03:08:59.110 --> 03:09:18.699
Boardroom: the city manager, I would like to refer this to the AA02, budget process, and, if necessary, the, FY27, annual appropriations process, or budget process as well.

1148
03:09:19.070 --> 03:09:21.970
Boardroom: And then on item 33,

1149
03:09:22.000 --> 03:09:41.149
Boardroom: This is the vibrant storefront policy. It is a referral to the city manager and the city attorney. There have been so many, thought partners to us on this item, and I want to specifically call out with appreciation, the mayor.

1150

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03:09:41.210 --> 03:09:45.700
Boardroom: As well as Councilmembers Blackaby and Councilmember O'Keefe.

1151
03:09:45.750 --> 03:10:02.539
Boardroom: And there are probably going to be too many staff members to list, but I wanted to specifically call out Eleanor and Ruel in the Economic, Development Department.

1152
03:10:02.710 --> 03:10:13.330
Boardroom: They, we basically will decide them together, and it would not be on this agenda without, your input.

1153
03:10:13.740 --> 03:10:20.470
Boardroom: Please know, That this, too, It's only, it's a very important step

1154
03:10:20.580 --> 03:10:23.120
Boardroom: But this is only a first step.

1155
03:10:23.930 --> 03:10:33.579
Boardroom: The success of the downtown and all commercial districts in Berkeley, is the tide that lifts all boats.

1156
03:10:35.160 --> 03:10:47.729
Boardroom: And I understand that just this item alone, may not be able to bring back, the closure of another bookstore. That was very unfortunate.

1157
03:10:48.500 --> 03:10:59.269
Boardroom: However, we are, continuing to work on a set of items, that will, ensure

1158
03:10:59.290 --> 03:11:04.299
Boardroom: That we are, despite the challenging times that we are in.

1159
03:11:04.310 --> 03:11:21.029
Boardroom: Always putting ourselves in a position where our downtown and our commercial districts are on the rise. And I'm looking forward to engaging with the community and my thought partners here on this dies to continue those efforts. Thank you.

1160
03:11:22.010 --> 03:11:25.519
Boardroom: Thank you very much, Councilmember, Councilmember Kisarwani.

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1161
03:11:27.930 --> 03:11:28.730
Boardroom: Oh, that's true.

1162
03:11:29.460 --> 03:11:44.029
Boardroom: I skipped you. Councilmember O'Keefe? Okay, it doesn't matter, but sure. Thanks. Let's see… got a lot of things here. Okay, the first thing, I actually really want to call attention to a very procedural item, item 20.

1163
03:11:44.060 --> 03:11:56.170
Boardroom: Which is, it's just a formality, but it's, allowing the city to accept donations for the, Michael Seltzer Memorial Play Structure. I don't know if you guys remember that, but it's, it's a really lovely idea.

1164
03:11:56.190 --> 03:12:11.649
Boardroom: to make a play structure to a resident of District 5, who tragically, who grew up in District 5, who, tragically passed away just over a year ago. And I just really want to thank, Peter Case and Michael Selter's family for all the work they're doing, too.

1165
03:12:11.720 --> 03:12:20.139
Boardroom: raise money for that, and, so this is just a little procedural thing, but I wanted to highlight it, because I think it's a really wonderful, project, and I… I hope it succeeds.

1166
03:12:22.060 --> 03:12:31.639
Boardroom: I would like to donate $250 to, the Berkeley Holiday Fund, item 28, and, the Black Joy Kwanzaa Toy Drive, item 31.

1167
03:12:32.300 --> 03:12:34.890
Boardroom: And I want… oh, as a,

1168
03:12:35.090 --> 03:12:42.879
Boardroom: proud member of a teacher's union, I want to express my support for item 30, the, unionization of a Colby Long, so…

1169
03:12:44.460 --> 03:12:54.879
Boardroom: I hope that works out. And I want to express gratitude to Councilmember Trey Gube for allowing me to co-sponsor item 33, which he just talked about. It's a great item. And,

1170
03:12:56.010 --> 03:13:14.889

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Boardroom: I also want to thank, Councilmember Kesarwani for, item 29, the… I've already, I think I'm already donating to that, but, the Urban Compassion Project is a really, really wonderful, wonderful, endeavor, and I really just… I'm happy to be able to support it. And, similarly, item 37, the,

1171
03:13:14.980 --> 03:13:28.720
Boardroom: The orchestra, I'm… I'm not a musician, but I am extremely musician-adjacent, so any opportunity to support music, I will jump at, very quickly, so thank you very much for that. And I think that's it, I've got more things, but that's enough.

1172
03:13:29.000 --> 03:13:32.620
Boardroom: Thank you very much, Councilmember. Councilmember Kasarwani.

1173
03:13:32.770 --> 03:13:54.380
Boardroom: Thank you very much, Madam Mayor. I want to thank my colleagues who've generously donated to item number 29, to the nonprofit organization, the Urban Compassion Project. We had, over, I think, about 60 volunteers who came and cleared 24,000 pounds of debris in the Harrison Corridor recently, and

1174
03:13:54.380 --> 03:14:11.509
Boardroom: We want to support this group so that they can continue their good efforts. And, so thank you again to my colleagues for supporting that item. And, I wanted to make some donations, first to item number 28, the Berkeley Holiday Fund. I'd like to donate $100.

1175
03:14:11.690 --> 03:14:19.890
Boardroom: Item number 31, the, Berkeley Black Joy Club Kwanzaa Toy Drive. I'd like to donate $100.

1176
03:14:20.120 --> 03:14:36.059
Boardroom: And, and then, I think this is the final opportunity to donate item number 37, the Berkeley Symphony Orchestra Winter Promenade. I'd like to be recorded as donating $100 to that as well. I think, Madam Mayor, you're going to,

1177
03:14:36.210 --> 03:14:45.920
Boardroom: talk about items 26 and 27. I… I just wanted to, just say for the record my support for the, city manager's version in each case.

1178
03:14:46.010 --> 03:15:00.060

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Boardroom: And, on item number 30, I want to thank Councilmember Taplin for bringing that item forward to support the unionizing efforts at Ecole. I'm mispronouncing Belingue. I don't know if that's wrong.

1179
03:15:00.660 --> 03:15:06.100
Boardroom: I don't know how to say it, but, is there room to co-sponsor that item, or is it full?

1180
03:15:06.370 --> 03:15:24.619
Boardroom: Thank you so much, but we just… we… it is full. Okay, I snagged it. See, you shouldn't let me go before you. Oh, okay, okay. Well, that's wonderful that so many people are in support of that, and, and then I did want to just, say, for the record, for item number 36, I'm very happy to co-sponsor the item from Councilmember Blackaby to…

1181
03:15:24.620 --> 03:15:33.379
Boardroom: work on providing, more notification, and for me, I think the real concern, I just want to state, is the public works projects.

1182
03:15:33.380 --> 03:15:36.830
Boardroom: And, and, you know, we have a number of big,

1183
03:15:36.900 --> 03:15:57.289
Boardroom: infrastructure projects that are happening, that have been happening for weeks, I think about on University Avenue, and so I do want to make sure that we can notify neighbors, when that's occurring, so that they can plan for that. And, I'm less concerned about the housing projects, because I think we're already doing the noticing with the yellow signs for the big projects, and then

1184
03:15:57.290 --> 03:16:05.520
Boardroom: for ADUs and middle housing, we have the neighbor notice. So, so, so I see it as more of a public works referral, so I just wanted to say that. I see Councilmember Blackaby is nodding.

1185
03:16:05.520 --> 03:16:14.440
Boardroom: So… Yeah, it's for, like, traffic when it actually comes to construction. So, but it's… it's impact on the right-of-way and… and the ability to… anyway, but yes, I…

1186
03:16:14.660 --> 03:16:26.140
Boardroom: we're on the same page. Okay, so it's more a public works referral than a planning referral. Okay, okay, I just wanted to clarify that, and then I think that that's all I have for now. Thank you very much.

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1187
03:16:27.410 --> 03:16:29.609
Boardroom: Thank you. Councilmember Lunapara.

1188
03:16:29.940 --> 03:16:39.919
Boardroom: Thank you. I want to first thank Councilmember Kesawani for bringing forward item 29. I'm proud to be a co-sponsor and contribute $800.

1189
03:16:40.100 --> 03:16:54.230
Boardroom: I also thank you to my colleagues for donating to the discretionary item for the Berkeley Symphony Orchestra Winter Promenade. It's on December 4th, from 5 to 7.30 at the Berkeley City Club, so please attend if you're free next Thursday.

1190
03:16:54.230 --> 03:17:01.839
Boardroom: For items 28 and 30, I would like to contribute $200 to each item.

1191
03:17:02.100 --> 03:17:14.749
Boardroom: Thank you to the council members who authored that. I'm also proud to be a co-sponsor of the resolution in support of the French Bilingual School. I'm not… I don't speak French, and I'm not gonna be tricked into saying it.

1192
03:17:14.750 --> 03:17:27.639
Boardroom: For their unionization effort. Thank you, Councilmember Taplin, for supporting those workers in your district. I also want to echo Councilmember Blackaby's comments about Berkeley Community Media.

1193
03:17:27.920 --> 03:17:32.689
Boardroom: And a huge shout-out to their executive director, David Flores, for all the great work that they do.

1194
03:17:32.750 --> 03:17:51.390
Boardroom: And for item 1, I also wanted to talk about it quickly, just to make sure the public is aware about why we're doing this. After we passed our ordinance, we were sued by RealPage, the corporation that was also sued by the… that was then sued by the Biden administration for their anti-competitive cartel-like behavior, which is,

1195
03:17:51.390 --> 03:18:07.440
Boardroom: the, former president's quote. And since we passed our ordinance, cities across the country have followed our lead, and Governor

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Newsom recently signed AB 325 into law, which was endorsed by our council and has similar strong language that we passed in February.

1196
03:18:07.590 --> 03:18:08.410
Boardroom: Thank you.

1197
03:18:08.640 --> 03:18:22.909
Boardroom: Thank you, and Councilmember Bartlett, I know you had something else you left off? Thank you, Madam Mayor. I forgot to, to donate, $250 to, item 37, the, Berkeley Symphony Orchestra Winter Promenade. Thank you for, putting this forward, Councilmember Lunabara.

1198
03:18:23.550 --> 03:18:25.509
Boardroom: Thank you. Councilmember Taplin.

1199
03:18:25.910 --> 03:18:36.900
Boardroom: Something to add? Yes, thank you. I wanted to thank my colleagues for their support of the resolution in support of the Colby Lang Union, and I wanted to confirm that we are adding Councilor O'Keefe as a co-sponsor. Thank you.

1200
03:18:37.460 --> 03:19:01.359
Boardroom: Okay, thank you very much. So I just want to clarify that the Berkeley Holiday Fund is not a party. It actually sends grants to over 1,200 people each year during the holiday time, so I just want to make sure folks know that. I really want to appreciate staff for applying for and winning so many grants. Awesome job! Our staff is so great. I think we should clap for our staff on that.

1201
03:19:01.640 --> 03:19:03.270
Boardroom: Okay,

1202
03:19:03.270 --> 03:19:23.260
Boardroom: And I also want to thank the Civic Arts Commission and the Housing Advisory Commission for their work on the Affordable Housing Report. I know a lot of work and collaboration went into the report and recommendations, and I do feel like we need to better understand the implications to be able to balance all of our priorities, so I really appreciate.

1203
03:19:23.260 --> 03:19:44.339
Boardroom: For item 26, I just want to clarify that Council is adopting 26B, and for item 27, that Council will be adopting 27B, which refers recommendations 1 to 7 to the City Manager for either incorporation into

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existing work in progress for analysis and action if feasible, or for Council ranking via the RRV process.

1204
03:19:44.470 --> 03:19:59.450
Boardroom: And I'd like to make number 2 a citywide referral to develop an incentive program in that case… in the case we recommend RV. For item 29, I'd like to thank Councilmember Kesarwani, and also to her staff, Beth, who…

1205
03:19:59.970 --> 03:20:01.840
Boardroom: Who's here? Hi, Beth.

1206
03:20:01.840 --> 03:20:26.069
Boardroom: For all the coordination with the Urban Compassion Project, who together with unhoused folks living in the Harrison and 8th Street encampment, cleared 24,000 pounds of debris on November 8th. I know you said this already, but I just want to highlight 24,000 pounds, and also the fact that it was with the residents there, the unhoused residents. So, I'm proud to be able to contribute to this effort and appreciate those who joined.

1207
03:20:26.470 --> 03:20:28.819
Boardroom: Us in contributing as well.

1208
03:20:29.140 --> 03:20:48.669
Boardroom: For item 30, I just wanted to make sure folks know I support this, and also I sent my own letter separately before this, so I'm glad to be able to join and have us, send it as a whole council. 31, I want to donate $250 to the Creations Berkeley Black Joy Kwanzaa Toy Drive.

1209
03:20:48.680 --> 03:21:08.620
Boardroom: And for item 32, I'm happy to be a co-sponsor with my colleagues on the Vibrant storefront Policy. It's urgent that we find short-term strategies to address ground floor vacant storefronts while we seek long-term businesses for future stability. This is something that I've been working very closely with Councilmember Tregeb on this year, and I just want to thank you all.

1210
03:21:08.710 --> 03:21:13.079
Boardroom: Wow, it's our last consent calendar for the year. Okay, anyone else? Did I miss anything?

1211
03:21:13.530 --> 03:21:14.330
Boardroom: Okay.

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1212
03:21:14.570 --> 03:21:20.860
Boardroom: Alright, we will take public comment on consent calendar and information items only. Thank you very much for your patience.

1213
03:21:24.050 --> 03:21:31.650
Boardroom: Hi, good evening, my name is Jeff Melcher. I live, at the Addison Court Housing Cooperative, so I'm speaking to, item 26.

1214
03:21:31.980 --> 03:21:43.400
Boardroom: And, we're just down the street, we're your neighbors. We're just really a block away. And I just wanted to give a shout-out to, Lourdes Chang, who's been helping us for the past couple years.

1215
03:21:43.750 --> 03:21:56.219
Boardroom: get the paperwork together, go through all the process, and really grateful to be working with the City of Berkeley and the Northern California Land Trust. We're a… we're a low-income.

1216
03:21:56.330 --> 03:22:02.709
Boardroom: Media-income, non-profit to try to keep housing affordable in this little 10-unit place.

1217
03:22:02.960 --> 03:22:07.049
Boardroom: And, so being part of District 2,

1218
03:22:07.260 --> 03:22:21.170
Boardroom: Mr. Taplin, we should invite you over for, you know, barbecue sometime. Yes, please do. But, anyway, thanks so much, and I just wanted to appreciate all of you for, working on this item. Thank you. Thank you.

1219
03:22:24.270 --> 03:22:27.589
Boardroom: Hi, good evening, and I am also here to…

1220
03:22:27.820 --> 03:22:34.159
Boardroom: speak to item 26 and 13. I think you have an extra minute from Solly in the back.

1221
03:22:34.280 --> 03:22:36.499
Boardroom: Oh, well, thank you. Go ahead.

1222
03:22:36.970 --> 03:22:46.670

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Boardroom: I tend to run long. I just… this is a very personal thank you. I have a relationship with almost all of the

1223
03:22:46.870 --> 03:23:03.679
Boardroom: these examples of what we're talking about when we talk about community-based, community-oriented, permanently affordable housing. That is, these are legacies to the whole Berkeley community, but I knew some of the people who the… who…

1224
03:23:04.010 --> 03:23:08.560
Boardroom: these buildings are named after. My proudest accomplishment

1225
03:23:09.020 --> 03:23:28.220
Boardroom: and I'll… is… is that Addison Court Housing Cooperative was a 10-unit garden apartment, and I was able to introduce, some… a long-time resident to the Northern California Land Trust. And if I've done anything good in this world, that turns out to be one.

1226
03:23:28.220 --> 03:23:32.160
Boardroom: And they have proven over and over just how

1227
03:23:32.770 --> 03:23:46.130
Boardroom: working through challenges of having a contract that has to do with being an affordable, limited equity housing cooperative, and the work that the Land Trust has done to support that. This is what…

1228
03:23:46.680 --> 03:24:02.600
Boardroom: This is what the poster child for social housing as a movement, as housing as a human right, that we grow more and more of these kinds of buildings and support the residents to grow in their own leadership and management capacities.

1229
03:24:02.600 --> 03:24:08.979
Boardroom: Thank you for personally ensuring that we're still supporting these community legacies.

1230
03:24:09.750 --> 03:24:10.870
Boardroom: Thank you.

1231
03:24:10.990 --> 03:24:12.390
Boardroom: Thank you, Betsy.

1232
03:24:12.570 --> 03:24:13.760

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Boardroom: And Solly.

1233
03:24:16.690 --> 03:24:17.740
Boardroom: Thank you, Sal.

1234
03:24:18.520 --> 03:24:20.279
Boardroom: Give it to me? You wanna give it to me?

1235
03:24:22.260 --> 03:24:30.760
Boardroom: Okay, on number one, first, really pleased to see this, moving forward, and…

1236
03:24:30.830 --> 03:24:44.900
Boardroom: Next, we need to look towards algorithms and AI and housing discrimination. Also, again, it's good to see on number 3, our unrelenting commitment to us as a sanctuary city. On number,

1237
03:24:46.690 --> 03:24:50.600
Boardroom: The Affordable Housing for Artists provision.

1238
03:24:50.750 --> 03:25:02.809
Boardroom: Wherever it is… oh, here, next. Number 24. It's really good to see that we're being independent enough of the federal government to continue to seek external grants.

1239
03:25:02.840 --> 03:25:05.990
Boardroom: That's what we need to do, and private partnerships.

1240
03:25:05.990 --> 03:25:29.369
Boardroom: And also in philanthropy. As to number 27B, if this, the affordable housing for artists is to move forward, it's important that the initial proposal said something about, after 2 years of being non-productive, you could be evicted by a jury of your peers. They don't need any more homeless people. Thank you. Thank you.

1241
03:25:33.830 --> 03:25:41.489
Boardroom: Good evening. I have 3 people who are gonna cede their time to me, and we have civic Arts

1242
03:25:41.510 --> 03:25:50.069
Boardroom: Commission and HACC Commission people here. Leah Simon Weisberg is the chair of the HACC, Cameron Wu is the chair of the Civic Arts Commission, and…

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1243
03:25:50.070 --> 03:26:13.990
Boardroom: I'm sorry, Audrey. And Audrey is on the Civic Arts Commission. I'm Debbie Potter, I'm also on the Housing Advisory Committee. Just make sure you speak in the mic so we can hear you. Okay, and I didn't realize my time was ticking away. Oh, sorry, can you give her the time? I think she's explaining who's giving her the minutes, so go ahead. Just so you know that we're well represented with the two commissions, but I timed my speech at home, so hopefully it's just under 4 minutes, so,

1244
03:26:14.720 --> 03:26:15.650
Boardroom: So…

1245
03:26:16.280 --> 03:26:37.710
Boardroom: Do you guys want to stand? Just start, okay. Okay. Good evening. I'm, Debbie Potter, I am a member of a HACC, and I was a member of the Joint Subcommittee of the HACC and the Civic Arts Commission that produced the report, Keeping Creativity Local, A Strategic Response to Affordable Housing for Artists, item 27A and B on your consent calendar.

1246
03:26:37.730 --> 03:26:56.720
Boardroom: Over the past 20 years, the city has commissioned and approved several studies that look at the importance of the arts and artists to the city's economy, culture, and identity, and make recommendations about how to sustain an economic and cultural sector that is highly valued, but not well compensated.

1247
03:26:56.850 --> 03:27:12.099
Boardroom: The number one recommendation in all reports is the need to increase access to affordable housing and affordable spaces for artists and arts organizations. Unfortunately, recommendations in these reports have not advanced within the city.

1248
03:27:12.190 --> 03:27:20.929
Boardroom: This report has 7 specific recommendations to begin to address increasing access to affordable housing for low-income artists.

1249
03:27:21.100 --> 03:27:31.629
Boardroom: It is our understanding that for any of the proposed recommendations to move forward, the Council needs to provide specific direction on each of the seven recommendations.

1250
03:27:31.650 --> 03:27:46.649
Boardroom: If such direction is not provided, the report, along with its recommendations, will join the list of other reports from the past 20

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years lamenting the loss of the city's artists, especially low-income artists and artists of color.

1251
03:27:47.160 --> 03:27:59.460
Boardroom: While the HACC and Civic Arts Commission unanimously approved recommending Council adoption of all seven recommendations, we are requesting Council direction on three specific recommendations.

1252
03:27:59.500 --> 03:28:10.590
Boardroom: 1. Adopt an ordinance implementing AB812 to allow up to 10% of BMR units within cultural districts to be set aside for low-income artists.

1253
03:28:10.710 --> 03:28:16.529
Boardroom: The ordinance has been drafted, we actually drafted it for you, and it's included in the report as an appendix.

1254
03:28:16.730 --> 03:28:32.549
Boardroom: Adopting the enabling Ordinance is the first required step in setting aside BMR units for low-income artists. From our perspective, adopting this ordinance is low-hanging fruit that jumpstarts the city's commitment to affordable housing for artists.

1255
03:28:32.760 --> 03:28:34.020
Boardroom: Number two.

1256
03:28:34.080 --> 03:28:44.650
Boardroom: Integrate policies to incentivize affordable housing and affordable commercial space for artists in the San Pablo Specific Plan and Corridors zoning Update.

1257
03:28:44.680 --> 03:28:54.589
Boardroom: These policy recommendations can be included in the City's ongoing planning efforts as an efficient and effective way to capture work done by the commissions.

1258
03:28:54.700 --> 03:29:00.989
Boardroom: And number 3, place an affordable housing bond measure on the November 2028 ballot.

1259
03:29:01.260 --> 03:29:18.350
Boardroom: November 2028 will mark 10 years since the passage of Measure O, the Affordable Housing Bond Measure approved by 77.5% of Berkeley

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voters. Approval of Measure A was the single most important action to promote affordable housing in the city.

1260
03:29:18.370 --> 03:29:28.870
Boardroom: This momentum must continue, and with only $1.8 million remaining in unallocated Measure O funds, that can only happen with a new bond measure.

1261
03:29:28.990 --> 03:29:44.430
Boardroom: The initiative process is technical and lengthy, and it should get underway as soon as possible. Council action on these three recommendations will go a long way in retaining low-income artists in the city and continuing the city's vibrant arts community and culture.

1262
03:29:44.490 --> 03:30:01.310
Boardroom: And with 20 seconds, I will say that we appreciate the feedback from the Council about the report and the work that was done, but I truly hope that the direction can be given clearly on the individual recommendations so there's actually action

1263
03:30:01.310 --> 03:30:07.560
Boardroom: Within the city staff structure to move these recommendations forward, because that's really critical.

1264
03:30:07.820 --> 03:30:11.700
Boardroom: Okay, with that, thank you. Thank you. Thank you so much.

1265
03:30:17.360 --> 03:30:18.120
Boardroom: Okay.

1266
03:30:18.510 --> 03:30:35.590
Boardroom: Good evening again, John Kainer, Downtown Berkeley Association. Number 8, I want to thank, staff and council for your support of the renewal of the Downtown Berkeley Property-Based Business Improvement District for another 10 years, 2027 to 2036.

1267
03:30:35.700 --> 03:30:46.559
Boardroom: I want to particularly thank Councilmember Tregeb for item 32, for the, revitalizing projects and the vibrant storefront policy.

1268
03:30:46.560 --> 03:31:05.940
Boardroom: Particularly this vibrant storefront policy, I also want to do a shout-out to Ruel Cook, who came back from our IDA conference in DC, talking to the folks in Cambridge, and found out that they require window

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film or some kind of treatment on windows. Digital printing has gotten really cheap. Look at what we've just done at the Walgreens space and the B of A space.

1269
03:31:06.070 --> 03:31:11.159
Boardroom: We need to make sure every vacant storefront looks cared for.

1270
03:31:11.160 --> 03:31:28.390
Boardroom: Regarding the revitalization projects, Harold Way Project, thank you so much for the planning money, and then the Addison Catenary Lighting Project to beautify and make a placemaking project. You're gonna hear more from Tom Parrish of the Berkeley Rep. Thanks, John. Oh, the buzzer didn't go off, but…

1271
03:31:28.390 --> 03:31:30.619
Boardroom: Thank you for finishing it up.

1272
03:31:31.480 --> 03:31:45.590
Boardroom: Hello all, my name's Tom Parrish, I'm the Managing Director of Berkeley Repertory theater, I'm also Vice President of the Downtown Berkeley Association, and I wanted to come and speak in support of, item 8, for the Downtown Property-Based Improvement District.

1273
03:31:45.590 --> 03:31:58.309
Boardroom: Item 32, thank you, Councilmember Tregob, for that budget referral, particularly the Addison Street Catenary Lighting Project, which will add to the safety, vitality, and placemaking in the Arts District downtown.

1274
03:31:58.490 --> 03:32:11.050
Boardroom: I want to speak in support of item 33, the Vibrant Storefront Policy, and also to our colleagues, from the Arts Commission, item 27 for affordable housing for artists. Thank you.

1275
03:32:11.340 --> 03:32:12.730
Boardroom: Thank you very much.

1276
03:32:15.920 --> 03:32:30.650
Boardroom: Hello, Mayor and Council, David Flores here. I'm the Executive Director for Berkeley Community Media, here to speak in support of item 17. Just to give you all a little understanding of what that money is for, it's for, replacing some of our equipment that's, become outdated or gotten broken, you know.

1277

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03:32:30.660 --> 03:32:50.359
Boardroom: We're a public access station, so members of the public are using our equipment and give it some pretty hard use. But then, additionally, we're hoping to, retrofit our head end, which at this point is running Windows 7. So, you know, it's a little outdated, and not only that, all of our computers have what's called planned obsolescence, so can't really bring it up to…

1278
03:32:50.360 --> 03:33:05.100
Boardroom: all the computers up to speed, but, the head end's a real big thing, because we'll be able to get a much greater final end product to folks who are viewing our meetings at home, doing a direct RTMP stream from Zoom to our head end, so without some of the,

1279
03:33:05.300 --> 03:33:11.099
Boardroom: things that have given us issue in the past. So, that's all I have to say. Thank y'all so much for your time. Thank you!

1280
03:33:11.460 --> 03:33:19.749
Boardroom: Okay, folks online? Folks online, we have 5 hands raised, 6 hands raised. First is Cheryl Davil, a former council member.

1281
03:33:20.550 --> 03:33:35.930
Cheryl Davila, Former Councilmember, Founder CEMTF: So, yeah, I think it's interesting that there's so much money that… from your discretionary funds, to donate. It seems like… I haven't calculated all the numbers I've heard, but…

1282
03:33:36.060 --> 03:33:43.830
Cheryl Davila, Former Councilmember, Founder CEMTF: Seems like you guys got more money, I don't know. Might want to comment on that. But anyway…

1283
03:33:43.940 --> 03:33:56.889
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, free Palestine, free Palestine, arms embargo now, sign the petition, and… try to have some compassion, empathy.

1284
03:33:56.890 --> 03:33:58.070
Boardroom: Did you have…

1285
03:33:58.070 --> 03:34:00.380
Cheryl Davila, Former Councilmember, Founder CEMTF: Love in 2026.

1286
03:34:00.380 --> 03:34:01.940

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Boardroom: or information items?

1287
03:34:04.310 --> 03:34:05.909
Cheryl Davila, Former Councilmember, Founder CEMTF: Are you talking to me?

1288
03:34:06.400 --> 03:34:11.929
Boardroom: Yes, I'm wondering if you have comment on the consent calendar information items. That's what this time period is for.

1289
03:34:12.280 --> 03:34:17.290
Cheryl Davila, Former Councilmember, Founder CEMTF: I understand what it's for, and I don't need you to be obnoxious and tell me that every…

1290
03:34:19.090 --> 03:34:22.090
Boardroom: Okay, next is Kelly Hammergren.

1291
03:34:25.470 --> 03:34:32.559
kelly hammargren: Item 22, Urban Trees. Can we please plant native trees?

1292
03:34:32.700 --> 03:34:48.709
kelly hammargren: I am not opposed to traffic circles, but I do ask that we put nature and small trees into new traffic circles to make them visible and serve nature instead of curb-height, bricked-in traffic circles, which are barely visible and a hazard.

1293
03:34:49.170 --> 03:34:57.850
kelly hammargren: On 33, on vibrant storefronts, can we please put meeting with our small business owners, especially those who rent their space?

1294
03:34:58.020 --> 03:35:10.559
kelly hammargren: To establish standards for commercial retail spaces and new constructions to be proactive instead of being reactive after we're saddled with unrentable spaces.

1295
03:35:10.750 --> 03:35:27.970
kelly hammargren: On 32, thank you for postponing this request. I would hope our city is working on securing the site of the stalled project at Kittredge, Harold Way, and Alston for 100% affordable housing as either a donation or eminent domain.

1296
03:35:28.350 --> 03:35:29.990

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Boardroom: Thank you. Thanks, Kelly.

1297
03:35:31.130 --> 03:35:33.049
Boardroom: Next is David Scheer.

1298
03:35:36.060 --> 03:35:55.290
David Shere: Hi. On the loan forgiveness proposal, I do think that there is more to the story here than what's in the companion report. I understand that's what you're gonna pass, I respect that. The description of the fiscal impact says… I think it's debatable. It says the city would be, quote, foregoing full repayment in the short term.

1299
03:35:55.290 --> 03:36:13.979
David Shere: Collectively estimated at $5 million. That's if you forgave the interest. And I think it's really important to understand that there is not $5 million that's going to be coming back to the city in the short or any term. These loans are repaid on a residual receipts basis, and there's not $5 million, there's probably not a tenth of that

1300
03:36:13.980 --> 03:36:20.720
David Shere: coming back from these projects. When HHCS is doing budgeting, they don't assume that any of that money is coming in.

1301
03:36:20.920 --> 03:36:39.649
David Shere: even though these buildings aren't meaningfully paying back the loans, having the debt on the books can have a negative impact on their ability to access other types of financing. I'm sure it's very complicated, and I hope… so I hope that Council and staff will revisit the HDF guidelines. Last… I just have to heap praise on the folks.

1302
03:36:39.650 --> 03:36:40.090
Boardroom: Right?

1303
03:36:40.330 --> 03:36:41.529
David Shere: The Artist Housing Report.

1304
03:36:41.530 --> 03:36:43.420
Boardroom: Sorry, thank you so much.

1305
03:36:43.630 --> 03:36:47.850
Boardroom: Appreciate your comment. Next is Carla Appleberry.

1306
03:36:52.220 --> 03:37:03.819

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Carla Appleberry: Good evening, council members, Mayor Ishii, and everyone here tonight. My name is Carla Appleberry, Founders of Creations Berkeley Media and Performing Arts, and I want to express my sincere gratitude

1307
03:37:03.840 --> 03:37:14.179
Carla Appleberry: Councilmember Bartlett, thank you for your support and for allocating funds to our organization. Your commitment to uplifting youth and creative programs in Berkeley truly makes a difference.

1308
03:37:14.180 --> 03:37:26.110
Carla Appleberry: To the full City Council and Mayor Ishii, thank you for your ongoing leadership and for supporting community-based arts and youth development. Your decisions directly impact the futures of the young people we serve.

1309
03:37:26.110 --> 03:37:51.100
Carla Appleberry: Creations Berkeley has now entered our fourth year. We've become a creative home for youth across the city. We offer dance, media, performing arts programs, school-based enrichment, and opportunities for young people to perform, create, and express themselves confidently throughout the community. Before I close, I'd like to invite you and all of the Berkeley community to our Boots on the Ground Workshop fundraiser this Sunday from 2 to 4 at the Sports Basement, the Old Iceland.

1310
03:37:51.100 --> 03:37:56.670
Carla Appleberry: For more information, you can find it at creationberkeley.com forward slash events. Thank you.

1311
03:37:56.680 --> 03:37:58.620
Boardroom: Thank you. Thank you, Carla.

1312
03:37:59.240 --> 03:38:01.579
Boardroom: Next is Jesse Sheehan.

1313
03:38:11.280 --> 03:38:12.599
Jerry’s iPad: Q, can you hear me?

1314
03:38:12.760 --> 03:38:13.450
Boardroom: Yes.

1315
03:38:15.370 --> 03:38:23.409

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Jerry’s iPad: Yes, hello, I just wanted to bring up on, thank you for giving the money to the folks who'd cleaned up Harrison Street.

1316
03:38:23.450 --> 03:38:40.029
Jerry’s iPad: That was very helpful. Again, this goes back to what I was discussing earlier. I know you have a hiring freeze, Mrs. Ishii. It appears that the city manager's office needs help. Again, the Harrison house, it shouldn't have been 26 tons of trash there. This is Peter Radu.

1317
03:38:40.310 --> 03:38:59.339
Jerry’s iPad: the Arts Commission projects. If you don't think our special events are where all these arts come from, you have Peter Radu writing this archaic thing about, it makes it impossible to throw a special event in Berkeley. Peter Radu was your political enemy's hire.

1318
03:38:59.950 --> 03:39:05.939
Boardroom: Yeah, can you keep your comments off of our staff and just… you can speak more broadly on our topics?

1319
03:39:05.940 --> 03:39:16.269
Jerry’s iPad: Yes, ma'am, but it's this guy. He's attacked the… he's a joke in the police department during your homeless sweeps, he's a joke among business owners, and he was hired.

1320
03:39:17.210 --> 03:39:19.750
Boardroom: Next is Kim Anno.

1321
03:39:21.730 --> 03:39:24.730
kim Anno: Yes, thank you so much for recognizing me.

1322
03:39:24.890 --> 03:39:46.379
kim Anno: It has been a decade and a half to fight for artists' affordable housing in the City of Berkeley, of which I had a lot to do with it for many years, and I so want to congratulate the unprecedented collaboration between the Housing Advisory Commission and the Civic Arts Commission to hammer out, finally, the Artists Affordable Housing

1323
03:39:46.380 --> 03:40:00.580
kim Anno: report, and I want to thank them from the bottom of my heart, and I want everybody to consider this. It's a pillar of civil society to take care of the artists, especially the ones who do not have housing. Thank you.

1324
03:40:01.040 --> 03:40:02.160

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Boardroom: Thank you, Kim.

1325
03:40:03.330 --> 03:40:05.880
Boardroom: Next is Jeff Lomax.

1326
03:40:07.840 --> 03:40:09.940
Geoff Lomax - KK6IZS: Yeah, good evening, Council. I just…

1327
03:40:10.000 --> 03:40:31.299
Geoff Lomax - KK6IZS: You know, I'd hope, you know, this billion dollar figure that was cited in terms of value added on the arts side, and it's an impressive number, and it sounds good. If you try to actually unpack it and go follow the references in the report, you basically get a proprietary software, is what I understand, or at least that's what I tried to do, and I…

1328
03:40:31.350 --> 03:40:42.850
Geoff Lomax - KK6IZS: So I think it would be just a service, in that report to either break down how that number was derived, or give it a little bit more detail, because

1329
03:40:43.000 --> 03:40:49.280
Geoff Lomax - KK6IZS: A standard in data analysis is that it's reproducible and accessible.

1330
03:40:49.280 --> 03:41:03.200
Geoff Lomax - KK6IZS: And at the moment, unless I'm missing something, that figure violates both those common principles of data analysis. So, while it's a very nice number to be able to cite, it would be very helpful to understand how it was derived. Thank you.

1331
03:41:05.020 --> 03:41:06.119
Boardroom: Thank you.

1332
03:41:07.730 --> 03:41:11.630
Boardroom: Next is, maria Hasid?

1333
03:41:20.080 --> 03:41:21.990
Maria Hassid - Brower Center: Hi, can you hear me? Can you hear me?

1334
03:41:21.990 --> 03:41:22.680
Boardroom: Yes.

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1335
03:41:23.440 --> 03:41:31.790
Maria Hassid - Brower Center: My name is Maria Seed, I'm the Executive Director of the Downtown Berkeley, of the, of the David Brower Center, and I'm… I'm…

1336
03:41:32.010 --> 03:41:44.530
Maria Hassid - Brower Center: want to speak in support of the Property-Based Business Improvement District for the Downtown Berkeley Association. I just want to put in how valuable this resource has been to me and to the Center.

1337
03:41:45.030 --> 03:42:04.469
Maria Hassid - Brower Center: And also, in terms of the support of the vibrant Storefront Policy and the Downtown Berkeley River Revitalization Project. Berkeley really lives and breathes on its downtown, and it's really important that the city government continues to support in its rebirth post-pandemic. Thank you.

1338
03:42:05.640 --> 03:42:13.440
Boardroom: Thank you. Okay, and then we have, last speaker is Bill.

1339
03:42:14.200 --> 03:42:15.180
Boardroom: Pounding?

1340
03:42:22.460 --> 03:42:24.030
Boardroom: Should be able to unmute.

1341
03:42:26.560 --> 03:42:27.270
Boardroom: No.

1342
03:42:28.040 --> 03:42:30.649
Bill Powning: Hang on. There you go. Can you hear me? I'm sorry.

1343
03:42:30.650 --> 03:42:31.620
Boardroom: Yes, now we can hear you.

1344
03:42:31.620 --> 03:42:34.889
Bill Powning: Great. So, my name's Bill Powning, I'm a Berkeley resident.

1345
03:42:35.330 --> 03:42:42.870
Bill Powning: I just wanted to make a, say thank you to the Park District for,

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1346
03:42:43.100 --> 03:42:50.549
Bill Powning: providing pickleball courts in Berkeley, and realizing that there's… there's been a huge demand

1347
03:42:50.790 --> 03:43:08.150
Bill Powning: We've really enjoyed the courts at Cedar Rose, and we appreciate the city creating these new courts at Tom Bates, which is, item 21. So, thank you in particular to Scott Ferris and the rest of the City Park staff.

1348
03:43:09.490 --> 03:43:10.400
Bill Powning: That's it.

1349
03:43:10.660 --> 03:43:23.199
Boardroom: Thank you! I'm not sure what item that was, but I love that you're loving our staff, so that's great. Thank you very much. Are there other… okay. Oh.

1350
03:43:23.510 --> 03:43:28.090
Boardroom: And are there additional comments from Councilmembers? Yes, Councilmember Taplin?

1351
03:43:28.430 --> 03:43:40.930
Boardroom: Thank you very much. I just wanted to, thank the members of HACC and Civil Arts Commission who spoke tonight. I did want to share that, we did pass a referral to, develop an AB812 ordinance.

1352
03:43:41.000 --> 03:43:52.869
Boardroom: Last year, and that was ranked, number 26 among the council referrals. Happy to, happy to regroup and strategize on moving that forward.

1353
03:43:52.990 --> 03:44:05.570
Boardroom: And, and same goes for the other recommendations as well. Thank you. Councilmember, I'd like to be part of those conversations as well, if you could also include my office. Oh, yes, yes, please. Thank you. Thank you. Okay, Councilmember Trega.

1354
03:44:06.580 --> 03:44:15.720
Boardroom: Yeah, thank you. I, similarly wanted to provide some additional context on item 33.

1355

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03:44:15.830 --> 03:44:28.619
Boardroom: This particular item is a, while it doesn't say short-term referral in it, it essentially is a short-term referral, such that

1356
03:44:28.940 --> 03:44:39.359
Boardroom: When we go on recess, our hardworking city administration staff We'll continue the work of

1357
03:44:39.700 --> 03:44:49.880
Boardroom: Efractuating this and bringing, a forced reading to the Council, shortly after we get back from recess.

1358
03:44:49.980 --> 03:44:52.020
Boardroom: There is,

1359
03:44:52.480 --> 03:45:12.360
Boardroom: another item that I can't speak too much about, but I will say that, it is prospective in nature, and it looks at, a number of strategies to revitalize the downtown and commercial districts with

1360
03:45:12.490 --> 03:45:14.280
Boardroom: Small businesses?

1361
03:45:14.590 --> 03:45:16.810
Boardroom: And… the arts.

1362
03:45:16.910 --> 03:45:32.009
Boardroom: And anyone else, that is, part of this community in mind. So if you would like more information, or to get more engaged, please reach out to our office. Thank you.

1363
03:45:32.010 --> 03:45:38.029
Boardroom: Thank you. Is there a motion to approve the consent calendar? So moved. Okay, second.

1364
03:45:38.040 --> 03:45:40.470
Boardroom: Okay, a second from Councilmember Trey Gubb.

1365
03:45:40.630 --> 03:45:55.260
Boardroom: Is there any opposition to approving the consent calendar? Alright, we have approved the consent calendar! Thank you very much. We jumped back into this meeting from the previous one, so I'm gonna give us our 15-minute break now. So, thank you, everyone.

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1366
03:45:55.420 --> 03:45:56.750
Boardroom: Last.

1367
03:45:57.430 --> 03:46:07.550
Boardroom: Last meeting of the year, it's very sad. I'm very sad to miss you all. I'm sad. Okay, anyway, we're moving on to the action calendar.

1368
03:46:09.980 --> 03:46:24.450
Boardroom: All right, and I just wanna just say right now, I'm gonna move item 42, the retail sale of alcohol after the bid items, and before the fire code items, so that you all, those who are connected to that can go home.

1369
03:46:24.500 --> 03:46:32.530
Boardroom: We're going to… We have public hearings, so I'm gonna open the public hearing for the renewal of the Elmwood bid for the calendar year 2026.

1370
03:46:32.970 --> 03:46:36.179
Boardroom: And I'm gonna pass it over to the City Manager.

1371
03:46:37.640 --> 03:46:41.860
Boardroom: No, we don't have any comments or a presentation on this one, Madam Mayor.

1372
03:46:42.030 --> 03:46:46.940
Boardroom: Alright, very good then. Council?

1373
03:46:47.300 --> 03:46:58.369
Boardroom: Yes, Councilmember Humbert? Yeah, I just want to incorporate by reference the remarks I made earlier about this item during the consent calendar that I made mistakenly.

1374
03:46:58.510 --> 03:47:07.939
Boardroom: Thank you. Thank you all for, your service on this. Thank you. Thank you. Any other comments or questions on this item?

1375
03:47:09.790 --> 03:47:16.950
Boardroom: I just want to state my support for the Elmwood. I'm a big fan. So, thank you. Is there any public comment?

1376

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03:47:18.030 --> 03:47:25.509
Boardroom: Okay, very good. Is there a motion? Close the public hearing. Oh, we will motion to close the public hearing. I so move. Second.

1377
03:47:26.800 --> 03:47:29.439
Boardroom: Alright, any opposition to closing the public hearing?

1378
03:47:30.930 --> 03:47:37.890
Boardroom: Okay, the public hearing is closed. I move to pass this item. Any opposition to passing this item?

1379
03:47:38.830 --> 03:47:39.650
Boardroom: Okay.

1380
03:47:39.860 --> 03:47:54.250
Boardroom: Motion is approved. We have renewed the Elmwood Avenue bid for the calendar year of 2026. Congratulations, Elmwood! Alright, moving on to item 39, we are going to open the public hearing for the renewal of the Solano Avenue bid for calendar year 2026.

1381
03:47:55.460 --> 03:48:13.870
Boardroom: No presentation for this one as well, so, are there any other questions or comments from my Councilmember colleagues? Yes, Councilmember O'Keefe? I think I'm required to say something. Solana's amazing. I guess I want to give a shout-out to Fern Solomon of Fern's Garden, who's, if you don't know her, she's the best person, and you should go to her store and buy things.

1382
03:48:14.170 --> 03:48:16.770
Boardroom: That's all I have to say.

1383
03:48:17.930 --> 03:48:31.730
Boardroom: Absolutely. Also a fan of the Solano Avenue bid, and just generally Solano Avenue. Especially as we're going into the holiday season, folks. Remember to shop local. Okay. Yes. Any comments on this item?

1384
03:48:32.740 --> 03:48:36.989
Boardroom: Okay, is there a motion to close the public hearing for this item? So moved.

1385
03:48:37.760 --> 03:48:40.239
Boardroom: Second. Any opposition?

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1386
03:48:40.590 --> 03:48:46.860
Boardroom: Alright, we have closed the public hearing for this item. Is there a motion to approve the item?

1387
03:48:47.410 --> 03:48:48.499
Boardroom: All right. Second.

1388
03:48:48.890 --> 03:48:51.619
Boardroom: Very good. Any opposition to approving?

1389
03:48:52.410 --> 03:48:57.709
Boardroom: Alright, very good. We have approved the renewal of the Solano Avenue bid for the calendar year 2026.

1390
03:48:58.020 --> 03:48:59.450
Boardroom: Congratulations.

1391
03:48:59.610 --> 03:49:13.369
Boardroom: Alright, and as I said, I was going to move Item 42 up, so we are going to move item 42, which is the amendments to Title 23, to allow the retail sale of alcohol in the Telegraph Avenue Commercial Zoning District.

1392
03:49:13.640 --> 03:49:14.620
Boardroom: Hello!

1393
03:49:14.940 --> 03:49:25.560
Boardroom: Good evening, Mayor and Council Members. Jordan Klein, Director of Planning and Development. I'm joined at the staff table by Faye Messner and Justin Horner from the Land Use Policy Team.

1394
03:49:26.660 --> 03:49:39.250
Boardroom: We have a brief presentation prepared only if you request it. This is a pretty relatively straightforward item to allow the retail sales of alcohol in the CT District.

1395
03:49:39.310 --> 03:49:46.810
Boardroom: In accordance with a council referral, to do the same, so we're… we can just be available for questions as well.

1396
03:49:46.920 --> 03:49:49.270
Boardroom: Are there any questions for my council colleagues?

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1397
03:49:50.890 --> 03:49:51.970
Boardroom: Nope.

1398
03:49:52.460 --> 03:49:57.700
Boardroom: Alright, since this is a public hearing, is there any comment on this item?

1399
03:49:58.670 --> 03:50:04.860
Boardroom: We… any in-person public comment for… Item 42.

1400
03:50:05.310 --> 03:50:07.420
Boardroom: Amendments to the zoning ordinance?

1401
03:50:08.490 --> 03:50:11.760
Boardroom: Okay, we have one hand raised online.

1402
03:50:12.060 --> 03:50:15.680
Boardroom: First commenter is, Alfred Tu.

1403
03:50:18.220 --> 03:50:30.600
Alfred Twu: Hi there, thank you! I'm here to speak in support of this item. The Telegraph CT District already has some liquor stores that were there before this prohibition was passed.

1404
03:50:30.770 --> 03:50:38.019
Alfred Twu: And repealing it would allow us to have a full-service grocery store or supermarket, which is much needed. Thank you.

1405
03:50:39.030 --> 03:50:40.950
Boardroom: Okay, thank you. Thank you very much.

1406
03:50:41.220 --> 03:50:43.679
Boardroom: That's it, just one commenter.

1407
03:50:43.980 --> 03:50:46.850
Boardroom: Very good. Alright, any comments from my Council colleagues?

1408
03:50:47.130 --> 03:50:48.770
Boardroom: Yes, Councilmember Lunapara.

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1409
03:50:49.510 --> 03:51:06.050
Boardroom: I am so happy this is happening. Thank you so much to planning staff. I want to thank also the Planning Commissioner, my Commissioner, Alfred Tru, the TBID, my staff, and city staff for helping formulate this change seamlessly.

1410
03:51:06.050 --> 03:51:15.160
Boardroom: As Southside lacks a full-service grocery store, the current prohibition contributes to a lack of healthy, affordable, accessible food options for many Southside residents and visitors.

1411
03:51:15.160 --> 03:51:24.910
Boardroom: And this code change will align the city's regulations on alcohol beverage retail sales in the Telegraph Avenue Commercial District with those on the every other commercial district in Berkeley.

1412
03:51:24.910 --> 03:51:40.199
Boardroom: Not only is this distinction for Telegraph… was this distinction for Telegraph specifically ridiculous, but this change will also help bolster existing efforts to fill empty storefronts and expand local grocery options in a neighborhood that needs more accessible, affordable, and healthy food options.

1413
03:51:40.200 --> 03:51:45.400
Boardroom: So, I'm very excited to approve it, and I'll move to close the public hearing first.

1414
03:51:47.020 --> 03:51:50.359
Boardroom: Okay, is there… oh, I just want to make sure, are there any other comments?

1415
03:51:50.500 --> 03:51:52.800
Boardroom: Yes, go ahead.

1416
03:51:54.530 --> 03:52:00.060
Boardroom: I just want to say a major thank you to Councilmember

1417
03:52:00.320 --> 03:52:17.770
Boardroom: Lunapara for her leadership on this significant and, frankly, historic change. It really is historic. And to Director Klein, Justin Horner, and Faye Messner for their work on this. I'm excited to get this done for the reasons articulated by Councilmember Lunapara. Thank you.

1418

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03:52:18.870 --> 03:52:29.310
Boardroom: Okay, very good. Yes, thank you so much for your work on this, very exciting. Alright, there's already a motion on the floor to close the public hearing.

1419
03:52:29.410 --> 03:52:36.189
Boardroom: For item number 42, and the second, so is there any opposition to closing the public hearing?

1420
03:52:36.720 --> 03:52:38.880
Boardroom: Seeing none, we have closed the public hearing.

1421
03:52:39.260 --> 03:52:47.520
Boardroom: And… Is there a motion? I'll make a motion to approve item 42. Second.

1422
03:52:49.070 --> 03:52:51.210
Boardroom: Any opposition to approving this item?

1423
03:52:52.400 --> 03:52:58.869
Boardroom: Okay, motion is approved. Very good! Alright, we have approved item 42.

1424
03:52:59.160 --> 03:53:04.059
Boardroom: And thank you very much, staff, for being available to answer any of our questions. Thank you so much for your work.

1425
03:53:04.760 --> 03:53:10.660
Boardroom: I knew… I knew it was much more work than just that brief amount of time, so… Okay.

1426
03:53:11.940 --> 03:53:16.549
Boardroom: Alright, so we are moving on to item number 40.

1427
03:53:17.250 --> 03:53:18.110
Boardroom: Okay.

1428
03:53:19.180 --> 03:53:38.620
Boardroom: So, before we have… before we go into item number 40, as our fire department sets up, I want to make sure that folks… actually, I'm gonna… yeah, I'm gonna… I wanna make sure that folks know that I have spoken, with the city manager about this item. I know that there are a lot of concerns.

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1429
03:53:38.620 --> 03:53:45.150
Boardroom: And I want to say that a lot of the concerns are around these, Appendix D,

1430
03:53:45.180 --> 03:53:46.830
Boardroom: And,

1431
03:53:47.320 --> 03:53:56.439
Boardroom: And because of that, I really want to make sure folks understand, especially when it comes to this 26 feet or 20 feet piece,

1432
03:53:56.450 --> 03:54:07.950
Boardroom: I know that there's some confusion about when does 26… when is 26 foot… feet needed, because of the situation with Telegraph Avenue, and then I know that there's a situation that's been on Adeline.

1433
03:54:07.950 --> 03:54:09.409
Boardroom: As well.

1434
03:54:09.410 --> 03:54:30.709
Boardroom: And so, I want to let folks know that the City Manager is committed to working with City staff on transportation design standards, and I'll be preparing a referral for the January 20th City Council meeting formally requesting this action, and so hopefully that will give folks, you know, a sense that, we want to make sure that there's clarity, that folks understand.

1435
03:54:30.710 --> 03:54:38.069
Boardroom: how this will impact events, and also any physical changes that we make to the street for safety.

1436
03:54:38.330 --> 03:54:39.140
Boardroom: Okay.

1437
03:54:39.390 --> 03:54:41.679
Boardroom: Passing this over to you all. Thank you very much.

1438
03:54:42.260 --> 03:54:53.670
Boardroom: Good evening, Council and Mayor. Tonight I'm joined by Deputy Chief Keith May, Assistant Chief Colin Arnold, and Fire Marshal Drew White. And we're presenting on… first on the…

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1439
03:54:54.510 --> 03:54:58.109
Boardroom: Second… is it… Is it the reading of the fire code first?

1440
03:54:58.470 --> 03:55:09.190
Boardroom: on the reading of the fire code, with a focus on Sections 503 and Appendix D. I'm going to give a brief verbal presentation, and I'm happy to dive into any specific questions, and we can pull up some visuals if needed.

1441
03:55:09.320 --> 03:55:26.250
Boardroom: So Section 503 is an optional section that Berkeley's adopted since at least 2008. It establishes baseline criteria for fire apparatus access roads. It defines when the roads are required, how wide they must be, what clearances and surfaces are necessary, and how it must be maintained.

1442
03:55:26.880 --> 03:55:33.819
Boardroom: These requirements have been applied by staff for many years, and have facilitated both major development and transportation projects across the city.

1443
03:55:34.480 --> 03:55:40.140
Boardroom: Appendix D is also an optional appendix that Berkeley has also adopted since at least 2008.

1444
03:55:40.330 --> 03:55:45.030
Boardroom: It provides more detailed and prescriptive guidance, things like turning radius.

1445
03:55:45.140 --> 03:55:52.350
Boardroom: Maximum dead end lengths, and exact roadway widths needed for more complex emergencies that we usually have in taller buildings.

1446
03:55:54.400 --> 03:56:06.009
Boardroom: It's also applied, the 26-foot rule is in Appendix D, and that's also applied adjacent to hydrants immediately, in the 20 feet adjacent to hydrants on each side… on each side of a hydrant.

1447
03:56:06.850 --> 03:56:17.739
Boardroom: Both Section 503 and Appendix D, if both Section 503 and Appendix D were removed from the fire code, staff are still obligated to enforce the minimum 20-foot access

1448

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03:56:17.960 --> 03:56:32.499
Boardroom: roadway access width that exists within California Code of Regulations, Title 19. Title 19 assigns that responsibility directly to the fire chief, and in certain cases, also allows for the roadway width to be wider to support safe emergency operations.

1449
03:56:32.500 --> 03:56:38.550
Boardroom: So, in essence, to boil that down, removing Section 503 and Appendix D does not remove the state requirement.

1450
03:56:38.690 --> 03:56:42.360
Boardroom: That's found in the CCR. It simply removes the public-facing.

1451
03:56:42.490 --> 03:56:45.799
Boardroom: prescriptive, section of the BMC.

1452
03:56:45.960 --> 03:56:49.730
Boardroom: Reducing public clarity and predictability.

1453
03:56:49.910 --> 03:56:56.370
Boardroom: For the local adoption process, or for local pro… as local projects move through the, project design pipeline.

1454
03:56:56.800 --> 03:56:59.410
Boardroom: So, examples of transportation projects…

1455
03:56:59.620 --> 03:57:16.839
Boardroom: that have been adopted and implemented since, 2008 that have undergone a review of… that included both Appendix D and Section 503, include just a couple, there's many more, but Bancroft Way, the Bus and Bike Lane Project, Fulton Street.

1456
03:57:17.110 --> 03:57:28.209
Boardroom: Calming and bike lane, the MLK Calming and pedestrian Islands, Downtown Shattuck reconfiguration, Delaware Bike Lane, speed humps and BART improvements, the Gilman Roundabouts.

1457
03:57:28.440 --> 03:57:35.840
Boardroom: Dana Street Bike Lane, Southside Complete Streets, and San Pablo Parallel Streets Project, which is at 100% design phase.

1458
03:57:36.050 --> 03:57:45.199

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Boardroom: So these are just some examples showing the fire code is compatible with these multimodal urban street designs, and has not been a barrier to these safety improvements.

1459
03:57:45.630 --> 03:57:51.140
Boardroom: On the housing front, the city has issued building permits for an average of roughly 500.

1460
03:57:51.330 --> 03:58:02.260
Boardroom: New housing units per year over the past decade, so with a housing stock of approximately 53,000 housing units, that's the equivalent of adding about 1% to the total housing stock each year.

1461
03:58:03.100 --> 03:58:09.899
Boardroom: This reinforces that the COATS also supports housing production while maintaining essential access for emergency operations.

1462
03:58:10.740 --> 03:58:21.159
Boardroom: Why does roadway width matter? And probably some visuals would be helpful here during a question and answer phase, but it's important to note that while the focus is on the fire department tonight.

1463
03:58:21.410 --> 03:58:28.859
Boardroom: All commercial vehicles, including transit buses, refuse trucks, and fire engines, are 8 to 8.5 feet wide.

1464
03:58:29.140 --> 03:58:35.569
Boardroom: the chassis is. That doesn't include the mirrors. When you add the mirrors, that's 9 to 9.5 feet width.

1465
03:58:36.080 --> 03:58:39.070
Boardroom: So, on narrow lanes, especially when parked cars.

1466
03:58:39.250 --> 03:58:42.280
Boardroom: Are not right on the curb and encroaching of the travel lane.

1467
03:58:42.390 --> 03:58:45.910
Boardroom: The margin for error for collision is pretty small.

1468
03:58:47.290 --> 03:58:59.990
Boardroom: The fire code, while applicable to fire apparatus, also helps protect all users, bus riders, pedestrians, cyclists, and emergency

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responders by preventing these predictable sideswipe and collision hazards.

1469
03:59:01.060 --> 03:59:06.109
Boardroom: When it comes to tall buildings, why, why is 20 foot… 26 foot, important?

1470
03:59:06.610 --> 03:59:11.279
Boardroom: Even small fires in taller buildings can represent a big challenge for us.

1471
03:59:11.520 --> 03:59:16.719
Boardroom: It's logistically intensive to get equipment and firefighters up to the fire floor.

1472
03:59:16.880 --> 03:59:20.990
Boardroom: And as a representation of that, our initial response to a fire

1473
03:59:21.100 --> 03:59:24.649
Boardroom: In a tall building is 13 pieces of apparatus.

1474
03:59:25.120 --> 03:59:31.359
Boardroom: 6 engines, 2 fire trucks, 2 ambulances, 2 chiefs, and an EMS supervisor. That's 37 people.

1475
03:59:31.940 --> 03:59:46.420
Boardroom: If the fire is confirmed, then we strike additional alarms immediately, which brings a lot more resources to the scene. So you can imagine how complex, a configuration of apparatus that represents on a street.

1476
03:59:46.800 --> 03:59:56.889
Boardroom: And specifically, that 26-foot width also helps us deploy the outriggers on our aerial apparatus, which extend 4 feet on each side of the apparatus.

1477
03:59:57.060 --> 04:00:02.480
Boardroom: And that's necessary to create the stabilization that's needed to extend that 100-foot ladder.

1478
04:00:03.970 --> 04:00:13.449

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Boardroom: So, these conditions can't be safely supported and constrained roadway widths. Appendix D helps us define where wider access is necessary.

1479
04:00:16.360 --> 04:00:26.650
Boardroom: not to be morbid, but the Fire Code is a book of tragedies, and it's built on decades of real-world lessons, situations where things have gone wrong.

1480
04:00:26.850 --> 04:00:30.529
Boardroom: And resulted in loss of life, property, and damage to the environment.

1481
04:00:31.080 --> 04:00:34.800
Boardroom: So, long-standing provisions that have been consistently

1482
04:00:34.950 --> 04:00:48.350
Boardroom: Preventing predictable tragedies should be carefully changed and considered, only after a staff analysis is brought back to Council, which wasn't possible before tonight's meeting, just because of the short amount of time we had.

1483
04:00:50.800 --> 04:00:58.169
Boardroom: So, finally, staff is recommending approval of the second reading of the 2025 Fire Code, including Sections 503 and Appendix D.

1484
04:00:58.820 --> 04:01:10.639
Boardroom: We remain fully committed to working collaboratively on creative, multimodal designs, supporting Berkeley's housing, transit, and public space goals, and maintaining dependable emergency citywide access.

1485
04:01:11.010 --> 04:01:12.850
Boardroom: Thank you. Thank you, Chief.

1486
04:01:13.030 --> 04:01:15.340
Boardroom: Councilmember Taplin, you have a question?

1487
04:01:15.520 --> 04:01:28.579
Boardroom: Yes, thank you so much. thank you for being here. We really appreciate, your time and the opportunity to ask these questions. I, I do have 5 questions. The first two are for the City Manager.

1488
04:01:29.390 --> 04:01:43.149

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Boardroom: Senator Budenhagen, process-wise, what would be the operational effect of the Council adopting a recommendation during tonight's second reading that substantially deviated from the first reading? What are the consequences of the City of Berkeley failing to adopt the California Fire Code?

1489
04:01:45.050 --> 04:01:59.699
Boardroom: If there were substantive changes to tonight's first reading, a second reading, then it would become a first reading, and there would be a requirement to do a second reading, to adopt whatever changes were made.

1490
04:01:59.800 --> 04:02:10.670
Boardroom: I should note the earliest, because of noticing requirements, and the City Clerk can weigh in on this, the earliest that the second reading could happen, this month, well, the earliest it could happen is December 26th.

1491
04:02:12.030 --> 04:02:21.760
Boardroom: There are noticing requirements, and so you can't just, like, do a second reading a few days after, because there may be people who care about this and who want to know about it and need to have time to think it through.

1492
04:02:22.080 --> 04:02:26.029
Boardroom: So that would be… that would be one impact. And then…

1493
04:02:26.220 --> 04:02:35.460
Boardroom: the ordinance would go into effect 30 days after the approval of the second reading. So, in this case, that would be January 20…

1494
04:02:35.760 --> 04:02:37.359
Boardroom: Whatever, 6th or after.

1495
04:02:37.660 --> 04:02:43.809
Boardroom: So then, for January 1st through January 25th, if it went on the 26th.

1496
04:02:43.910 --> 04:02:52.679
Boardroom: we would basically default to the state fire code, and then starting on January 26th, if that one was when the second reading was, it would… that…

1497
04:02:53.010 --> 04:02:55.019

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Boardroom: Whatever was approved would take effect.

1498
04:02:55.890 --> 04:03:01.160
Boardroom: Thank you, and, can you speak to, which of the local amendments

1499
04:03:01.240 --> 04:03:19.220
Boardroom: would be left in the balance where we did not adopt this tonight? The Chief Sprite could speak to that more, definitively than I can. I'll defer to him. Yeah, so essentially what you see when you go look at the BMC, that entire section, all those amendments would, not be enforceable until…

1500
04:03:19.300 --> 04:03:22.669
Boardroom: 30 days after the second reading. So that includes…

1501
04:03:23.300 --> 04:03:34.820
Boardroom: All of Berkeley's local amendments, including the regulation of, hazardous materials transport, the appeals process, storage of explosives, and other, and other…

1502
04:03:34.960 --> 04:03:39.389
Boardroom: Local amendments that are in the BMC currently. There's a long list.

1503
04:03:40.420 --> 04:03:48.419
Boardroom: Thank you very much. My next several questions are for the fire team. So Section 503.4.1 states.

1504
04:03:48.540 --> 04:03:57.790
Boardroom: Traffic calming devices shall be prohibited unless approved by the fire code official. What was the rationale for adopting Section 503 and Appendix C in 2008?

1505
04:03:57.970 --> 04:04:01.650
Boardroom: Have circumstances in the city changed since then, and if so, how?

1506
04:04:04.960 --> 04:04:06.520
Boardroom: So,

1507
04:04:06.970 --> 04:04:19.569

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Boardroom: everybody who was in administration in 2008 is not here anymore, so my presumption is that it was added to the International Code, then adopted as, included in the state as an optional

1508
04:04:19.840 --> 04:04:32.129
Boardroom: optional, amendment, and then the city adopted it at that point. It's just a pass down. And, it's been consistently, used from that time.

1509
04:04:32.450 --> 04:04:36.739
Boardroom: However, I think it's important to note, it's not…

1510
04:04:37.090 --> 04:04:42.799
Boardroom: While it reads as a prohibition, that's not actually how it's played out in real life.

1511
04:04:42.960 --> 04:04:45.730
Boardroom: I don't know that staff,

1512
04:04:45.990 --> 04:04:52.799
Boardroom: between fire and PD, or… I'm sorry, I don't know that fire staff in the collaborative relationship that we have with PW have

1513
04:04:53.020 --> 04:04:59.700
Boardroom: Specifically denied the installation of traffic control devices. We…

1514
04:04:59.820 --> 04:05:06.150
Boardroom: There's a collaborative effort that tries to solve the problem when a design comes through that doesn't meet the fire department standards.

1515
04:05:06.370 --> 04:05:08.750
Boardroom: Where there's concerns, and…

1516
04:05:08.910 --> 04:05:15.159
Boardroom: My experience is, though, that solutions are arrived at that meet all the needs.

1517
04:05:16.740 --> 04:05:23.930
Boardroom: Thank you, and just real quick, I watched that play out in my neighborhood, so thank you for that. Yeah.

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1518
04:05:24.730 --> 04:05:26.850
Boardroom: So, Appendix C,

1519
04:05:27.030 --> 04:05:38.530
Boardroom: states where a fire hydrant is located on a fire apparatus road. The minimum road width shall be 26 feet. Are there other instances where the 26-foot rule would apply in

1520
04:05:38.540 --> 04:05:56.259
Boardroom: Can you speak to the, I mean, and my apologies, for… you did respond to a lot of this already, but I think, no problem. Can you restate the operational basis for each scenario and why this is necessary for apparatus responding to fires? Yeah, the two major categories that we see in Berkeley are…

1521
04:05:56.260 --> 04:05:59.069
Boardroom: 20 feet adjacent to a fire hydrant.

1522
04:05:59.100 --> 04:06:17.550
Boardroom: And then when buildings reach a certain height, so generally over 3 stories or around 30 feet. That's called out in Appendix D. There's also a provision of Independence D that has to do with high pile storage, which we don't really have that situation in Berkeley happen that often. That would be another scenario that that would come into play.

1523
04:06:18.650 --> 04:06:25.580
Boardroom: Thank you. And my last two questions are pretty similar, so I'll just sort of ask a combined version of it.

1524
04:06:25.770 --> 04:06:42.539
Boardroom: But as you stated, 503 and Appendix C were adopted in 2008, and despite that, several traffic calming, bike, pedestrian facility, and other roadway projects have been completed. Can you speak to the collaborative process that does take place, regarding each project, and,

1525
04:06:42.540 --> 04:06:46.720
Boardroom: Similarly, in some of the communications to Council leading up to tonight.

1526
04:06:47.030 --> 04:07:01.770
Boardroom: There seemed to be, at times, an intimation that by repealing 503 and Appendix C, the department would no longer play a role in

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determining roadway changes. Can you, elucidate how projects would be evaluated, were…

1527
04:07:01.920 --> 04:07:05.450
Boardroom: We to repeal those… Yep.

1528
04:07:05.580 --> 04:07:09.810
Boardroom: So, first, the design review process, that's managed by Public Works Transportation.

1529
04:07:09.930 --> 04:07:22.620
Boardroom: So they're really the experts on that process, but I can speak from our experience as a stakeholder in that process. So when a transportation project is proposed, actually it starts off

1530
04:07:22.820 --> 04:07:38.140
Boardroom: almost always meeting most of our standards because the transportation engineers are familiar with what we're looking for, what AC Transit's looking for, what Public Works Refuse is looking for. So usually the initial designs are pretty close to compliant with all those standards.

1531
04:07:38.560 --> 04:07:55.720
Boardroom: But, there's a series of designs that come to FHIRE and other stakeholders through that design review process, and, comments are… there's either discussion and comments given, and then written, feedback from us to Public Works on,

1532
04:07:55.880 --> 04:08:03.190
Boardroom: Summary documenting that conversation, and what we would like to see modified in order for that project to move forward.

1533
04:08:03.470 --> 04:08:18.420
Boardroom: the engineers make revisions, and then, the next iteration of that design comes, back to all the stakeholders, and additional comments are made if necessary, so on and so forth. I think that happens about 3 times for each project.

1534
04:08:18.520 --> 04:08:23.020
Boardroom: And then, and then the project moves forward to, implementation.

1535
04:08:23.600 --> 04:08:37.410

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Boardroom: The second part of your question, so if, 503 and Appendix D were removed, what would that process look like? It's really a question for Public Works, but my assumption is, one, the process would look largely similar.

1536
04:08:38.780 --> 04:08:53.040
Boardroom: Primarily because we would still have the responsibility to enforce that minimum roadway width that's found in the CCR Title 19. There, and because there's not

1537
04:08:53.240 --> 04:09:07.380
Boardroom: that I can think of, times where we have said, you cannot build that traffic control device. I don't think that relationship would largely change. It's collaborative. We work together to get projects through as they're proposed and dropped into the process.

1538
04:09:07.840 --> 04:09:14.340
Boardroom: Did I answer your questions? Councilmember? Yes, thank you very much. Those are my questions. Thank you, Councilmember Bartlett?

1539
04:09:15.310 --> 04:09:30.869
Boardroom: Oh, thank you. And, of course, again, as always, thank you for your excellent work. You are definitely the, preeminent public safety people, in our region around fire, for sure. Thank you. And so, this upgrade, and this, this, I guess.

1540
04:09:30.990 --> 04:09:48.539
Boardroom: The adaptation, the people are kind of surprised why the change is happening now, right? And I understand, there's a… the fire chief is involved with… the fire marshal's involved with incorporating state law, and there's other issues like that. Is that what's happening?

1541
04:09:48.780 --> 04:09:56.160
Boardroom: This is no change from how the code has been adopted in previous years. This language has been included since 2008.

1542
04:09:56.200 --> 04:10:09.819
Boardroom: If there's a specific situation you're talking about, I could maybe respond to that. Okay, yeah, I'm talking about the, I guess, really, let's get cut to the quick here. Juneteenth. Okay, so what do these changes mean for Juneteenth?

1543
04:10:10.040 --> 04:10:22.259

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Boardroom: So, it's not a change, but, what we did request, during this special events permitting process, was… well, one, staff from multiple departments, are…

1544
04:10:22.420 --> 04:10:27.760
Boardroom: Concerned about the safety of participants of that event in its current location.

1545
04:10:28.130 --> 04:10:31.310
Boardroom: They…

1546
04:10:31.830 --> 04:10:40.110
Boardroom: you know, there was a request to have the event moved several blocks. Obviously, there's, a lot of displeasure with that.

1547
04:10:40.400 --> 04:10:59.429
Boardroom: And the conversation we had recently with the city manager and the mayor was that that event can continue to move forward as long as they provide a fire lane, as they did this year, which is, a minimum of 20 feet, to provide access if an emergency occurs in the event or in buildings adjacent to the event.

1548
04:11:00.620 --> 04:11:06.370
Boardroom: Okay, so, okay, thank you. So, the fire land that, that they provided last year.

1549
04:11:06.480 --> 04:11:10.969
Boardroom: I didn't even notice it. I guess, it's okay to continue. They're here.

1550
04:11:11.330 --> 04:11:17.689
Boardroom: Right. Okay, well, thank you, we'll follow up later. Thanks so much. Yeah, you bet. Thank you. Any other questions?

1551
04:11:18.300 --> 04:11:22.279
Boardroom: Okay… Public comment on this item?

1552
04:11:22.990 --> 04:11:42.689
Boardroom: Sorry, Mayor, I have questions. Oh, yeah, sorry. You do have questions, I'm sorry. Apologies. Go ahead, Councilmember. Thank you, and thank you to the Fire Department for being willing to answer our questions. First, can you clarify if the 26-foot, clear width adjacent to hydrants in Appendix D applies to just…

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1553
04:11:42.830 --> 04:11:48.240
Boardroom: Right next to the hydrant, or the whole street? Yeah, 20 feet on each side of the hydrant.

1554
04:11:48.540 --> 04:12:05.929
Boardroom: Okay, so just right next to the Hydra. Correct. Okay, great, thank you. My, how does BFD determine if a traffic calming device will delay response to the degree that BFD would not approve it, or what is the fire department's general approach to those conversations?

1555
04:12:06.040 --> 04:12:11.430
Boardroom: Generally, TCDs come in the form of, an entire project design.

1556
04:12:11.910 --> 04:12:21.200
Boardroom: So we evaluate the whole project, in its totality. But generally speaking, to kind of specifically answer your question.

1557
04:12:21.200 --> 04:12:36.480
Boardroom: From prior testing we've done, where we're running fire apparatus over primarily speed humps, different designs, we know that they generally add about 10 seconds per device to the response, just because the trucks have to slow down, obviously.

1558
04:12:36.620 --> 04:12:45.449
Boardroom: So, that's a general answer, and we're doing a specific analysis right now.

1559
04:12:46.950 --> 04:12:59.049
Boardroom: to try to have a more broad idea based on all the different TCDs that are, on the menu, to understand what are the impacts of all those different devices, so we can be a little more specific and actually have some,

1560
04:12:59.480 --> 04:13:09.839
Boardroom: more scientific data than just running the apparatus with a stopwatch, over these different devices. So, that is hopefully going to be done in the… sometime in 26.

1561
04:13:10.630 --> 04:13:13.020
Boardroom: Okay, thank you so much.

1562
04:13:13.130 --> 04:13:15.569
Boardroom: I also… I have a question about…

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1563
04:13:15.940 --> 04:13:23.200
Boardroom: What counts as a mountable barrier or a flex post that is considered as part of the minimum width requirement.

1564
04:13:24.320 --> 04:13:43.949
Boardroom: Does BFD consider areas separated by these barriers as clear width for the purposes of determining whether a street meets minimum width requirements? And if there's a policy or practice, is it documented somewhere? There's not a policy or practice on this, but, generally, you're correct, it would largely be dependent on what type of barrier it is.

1565
04:13:44.040 --> 04:13:51.919
Boardroom: And, but also there could be a number of other factors that would be specific to each project. So, one example is…

1566
04:13:52.320 --> 04:14:02.749
Boardroom: Is the roadway that these are being installed in a primary response route that's used multiple times a day, for emergency response, and is crossing the barrier something that would be necessary on…

1567
04:14:03.200 --> 04:14:13.430
Boardroom: Many of those responses because traffic in the travel lanes couldn't pull over due to parked cars or, other… other immovable obstructions.

1568
04:14:13.630 --> 04:14:18.190
Boardroom: And if that were the case, that might be something we would not consider.

1569
04:14:18.390 --> 04:14:24.620
Boardroom: but if it's on a… not a primary response route, and the primary purpose

1570
04:14:24.620 --> 04:14:41.240
Boardroom: of that space would be to, during a fire event or another complex emergency where vehicles are, infrequently using that space for deployment of outriggers, yeah, absolutely, we would consider, that space as part of the required width. Does that make sense?

1571
04:14:41.340 --> 04:14:42.710
Boardroom: Yeah, thank you.

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1572
04:14:45.620 --> 04:15:04.600
Boardroom: Can fully or partially pedestrianized streets meet clear width requirements? Like, is there a possibility to design streets that are… that do meet this width, the clear width requirements? And would street furniture and other movable elements be acceptable in or near the clear zones?

1573
04:15:04.760 --> 04:15:17.350
Boardroom: So, our understanding, based on what we've seen in other jurisdictions, is that, there are some type of barriers at each end that are, you know, retractable bollards, things we can drive over.

1574
04:15:17.350 --> 04:15:35.600
Boardroom: the things that can be easily moved that aren't gonna delay us from getting into that area, and within the pedestrianized zone, there needs to be an unobstructed fire lane of 20 feet. It could also double as bike lanes, but there cannot be furniture or other things that have to be moved out of the way in that 20-foot fire lane.

1575
04:15:37.170 --> 04:15:47.280
Boardroom: Thank you. And I should say, Councilmember, we're always open to creative ideas that people find in other jurisdictions, and be able to evaluate if those would work here.

1576
04:15:47.390 --> 04:15:49.629
Boardroom: Awesome, I really appreciate that. Thank you.

1577
04:15:51.240 --> 04:16:06.039
Boardroom: I have a question about Milvia, specifically. Can you explain what, fire department feedback was incorporated into the Milvia street design? Because there are narrow areas between concrete bike lane barriers that are less than 20 feet.

1578
04:16:06.040 --> 04:16:17.380
Boardroom: And wider areas are still below 20… or under 26 feet. And can you explain why these are not subject to the 26 feet foot rule when there are

1579
04:16:17.380 --> 04:16:26.179
Boardroom: taller buildings on the street. Yeah, so unfortunately, everybody who worked on that project on our team is retired.

1580
04:16:26.490 --> 04:16:37.649

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Boardroom: But, in kind of quickly looking at, I mean, we're familiar with that street, of course, and looking at the surrounding areas, I think there could be a variety of things that…

1581
04:16:38.060 --> 04:16:51.319
Boardroom: influence that decision. For example, all those BSD buildings have fire apparatus access roads that are in the campus, courtyard, there's the parking lot, so there's other access points to those buildings.

1582
04:16:51.710 --> 04:17:03.070
Boardroom: There's also potentially the consideration of what was built on the east side, which is two parking lots at the moment. If those were, you know, potentially gonna become…

1583
04:17:03.240 --> 04:17:08.610
Boardroom: Tall buildings, then there might need to be a re-evaluation of that street layout.

1584
04:17:08.840 --> 04:17:21.270
Boardroom: The fire marshal could have also considered the public benefit that the project would bring. That's a high-traffic area with thousands of students crossing it every day, and also, you know, completing the bike boulevard.

1585
04:17:21.270 --> 04:17:32.269
Boardroom: So, there also could have been a consideration of the public benefit, and the fire marshal has the ability to, in certain circumstances, to not require 26 feet.

1586
04:17:33.770 --> 04:17:36.350
Boardroom: And that's their, that's their, their decision to make.

1587
04:17:37.080 --> 04:17:42.520
Boardroom: Okay, but there's no kind of policy that… that…

1588
04:17:42.630 --> 04:17:50.640
Boardroom: dictates what public benefit could mean. No. And that's my… that's my interpretation of what might have happened without…

1589
04:17:50.750 --> 04:17:51.900
Boardroom: Having the notes.

1590

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04:17:52.050 --> 04:17:59.030
Boardroom: Okay, I understand, thanks. Yeah. And then my last question is, how do clear with requirements affect parking?

1591
04:17:59.360 --> 04:18:08.300
Boardroom: in… in areas in… in the hills that have also taller structures, or in streets in Southside and downtown.

1592
04:18:08.550 --> 04:18:09.300
Boardroom: Yeah.

1593
04:18:09.680 --> 04:18:24.360
Boardroom: So, throughout the city, there's a number of streets that are existing and non-conforming. So, just like, structures and the building code, we don't apply the fire code retroactively to streets that are non-conforming. Our goal is generally to.

1594
04:18:24.440 --> 04:18:32.189
Boardroom: not create additional streets that are, are, not meeting the standards. So, does that answer your question?

1595
04:18:32.610 --> 04:18:42.020
Boardroom: Yes, thank you. Yeah. I also, I had a question for the city clerk, because I was a little confused about the second reading,

1596
04:18:42.630 --> 04:18:46.389
Boardroom: Situation, because we, we have, in the past.

1597
04:18:46.930 --> 04:18:56.519
Boardroom: adopted second readings a week after, first readings, and from my understanding, it has… we have also done it in special meetings, but I could be wrong about that. Do you mind just clarifying?

1598
04:18:57.420 --> 04:18:59.580
Boardroom: Right, so the, the,

1599
04:18:59.940 --> 04:19:12.090
Boardroom: Adoption of, the fire code and the building code has, very, unique, requirements in the, in the government code for how it's adopted, like.

1600
04:19:12.250 --> 04:19:30.249

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Boardroom: the first reading can be on consent, but then the second reading is a public hearing. That's obviously very different than how we do most, ordinance amendments. And in the government code, there are specific noticing requirements for the second reading public hearing.

1601
04:19:30.570 --> 04:19:39.459
Boardroom: It has to be published, twice, with at least 5 days in between the two notices.

1602
04:19:39.580 --> 04:19:40.900
Boardroom: You know, and then…

1603
04:19:41.070 --> 04:19:57.949
Boardroom: the 14-day noticing period starts when the first notice is published, so it's… that's when we figured all that into the calendar, that's how we came up with the December 26th date would be the earliest possible time you could have a public hearing for a new second reading.

1604
04:19:58.440 --> 04:20:01.440
Boardroom: Got it. Thank you so much. Those are all my questions, thanks.

1605
04:20:01.830 --> 04:20:08.520
Boardroom: I also realized, did you want to present your supplemental, or do you want to wait till comments, or…

1606
04:20:09.090 --> 04:20:13.190
Boardroom: Yeah, yeah, I think, I…

1607
04:20:13.510 --> 04:20:16.540
Boardroom: I wanna, I wanna express

1608
04:20:16.680 --> 04:20:36.399
Boardroom: which I did already, but I want to, again, express my gratitude to the Berkeley Fire Department for their amazing work. I want to emphasize that the goal of the supplemental was not intended to overrule or override the fire department, but instead to encourage and invite more dialogue about some of the challenges and apprehension about certain aspects of the fire code and its enforcement.

1609
04:20:36.400 --> 04:20:47.670
Boardroom: And I want to frame the supplemental as not a struggle between competing priorities, but an example of how we can come together to find a solution, that we can all trust in.

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1610
04:20:47.670 --> 04:20:58.209
Boardroom: In hearing from community members and diving into the code myself, we wrote this supplemental, which proposes to pass everything as proposed, except for…

1611
04:20:58.300 --> 04:21:05.870
Boardroom: Appendix D, Section 105.2, which governs with requirements on streets with tall buildings.

1612
04:21:05.870 --> 04:21:21.300
Boardroom: and then… and refers, the provisions of 503 and all of Appendix D to the City Manager, the Disaster and Fire Safety Commission, and the Transportation and Infrastructure Commission to provide collaborative process and engage community members.

1613
04:21:21.360 --> 04:21:38.049
Boardroom: I can talk a little more about the reasons for this, but I… in lieu of this information that we're getting from the City Clerk, I think we need to have a further conversation about how best to proceed, and incorporating maybe some of the elements of the supplemental.

1614
04:21:38.560 --> 04:21:50.300
Boardroom: I think, there's, the way that especially the 26-foot rule, has been…

1615
04:21:50.660 --> 04:22:02.409
Boardroom: enforced differently at different periods of time has, I think, led to a lot of confusion, and I think it would be great that we… when… if we adopted a code that we are all fully,

1616
04:22:02.870 --> 04:22:12.970
Boardroom: that we are all, confident in, and that we actually want enforced as written. And… I…

1617
04:22:14.870 --> 04:22:25.919
Boardroom: And it is unfortunate timing that we're in, so we're not going to be able to fully flesh through all of the very complicated pieces of this, of this code, but…

1618
04:22:26.070 --> 04:22:44.959
Boardroom: I hope that we can figure out a way forward. And Councilmember, I think that what I said at the beginning of what we were saying, I was hoping would address some of your concerns, and so… Do you

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mind repeating it? Yeah, so I know I was explaining it very quickly, and there were a lot of words, so…

1619
04:22:45.200 --> 04:22:51.640
Boardroom: I wanted to say that, basically, I've been having conversations with the city manager about this.

1620
04:22:51.660 --> 04:23:08.340
Boardroom: And that he's agreed to work with staff on transportation design standards to address this lack of, I would say murkiness, I would say murkiness, about this 26-foot rule, when it applies, and how it applies, because I know we've had multiple issues

1621
04:23:08.490 --> 04:23:27.409
Boardroom: Specifically with the Telegraph fair, and also with Juneteenth, and just some confusion. And so, you know, the city manager and I both feel that this would help address those concerns, and also would, of course, involve community participation, conversations about concerns that the community, you know, would have.

1622
04:23:27.440 --> 04:23:30.840
Boardroom: So that way, you know, they could understand it.

1623
04:23:30.970 --> 04:23:39.109
Boardroom: And that I've committed to preparing a referral for the January 20th Berkeley City Council meeting to formally request this action.

1624
04:23:41.580 --> 04:23:46.010
Boardroom: Can I ask a question? Yeah. This is question period. Around…

1625
04:23:46.060 --> 04:24:04.209
Boardroom: this would not just be only for festivals, but also for design. Right, also for design, I'm sorry, yes, and to address the fact that there are some concerns around safety changes that would be made to the street, and how that might impact things. So, you know, really making sure it's clear that we're all on the same page.

1626
04:24:04.660 --> 04:24:22.229
Boardroom: Thank you. Yeah, thank you. I apologize for leaving that out. That's very important. And Councilmember Humbert, did you have questions? I did, although I think one of them, I only had two, was answered by the chiefs in response to one of Councilmember Luna Parra's questions, I think.

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1627
04:24:22.600 --> 04:24:37.850
Boardroom: I want to thank you all for being here, for your presentation, for answering our questions, and for the incredible good work that you do on a daily basis. It's… it's heroic work, and I'm very grateful. I want you to know that I'm…

1628
04:24:38.120 --> 04:24:40.770
Boardroom: I continue to be… just…

1629
04:24:41.040 --> 04:24:47.339
Boardroom: Very, very concerned about traffic violence, about the deaths and injuries that are happening on our streets.

1630
04:24:47.490 --> 04:25:00.159
Boardroom: that's one of the reasons why I joined, Councilmember Lunapara and her supplemental. And that's from where, you know, that's the place that my questions…

1631
04:25:00.420 --> 04:25:02.880
Boardroom: are coming from.

1632
04:25:03.700 --> 04:25:08.499
Boardroom: And so the first question is, you know, I just want… I just want to understand

1633
04:25:08.650 --> 04:25:11.269
Boardroom: We're, or sort of,

1634
04:25:11.460 --> 04:25:15.459
Boardroom: Lift up publicly the data about

1635
04:25:15.870 --> 04:25:29.050
Boardroom: how many people are killed and injured on our streets in traffic violence versus how many people are killed or injured in, structure fires. So, could you answer, you know.

1636
04:25:29.210 --> 04:25:33.219
Boardroom: Could you give me the data on that, you know, the comparison? Sure.

1637
04:25:34.060 --> 04:25:36.559
Boardroom: Yeah, absolutely, and I, you know.

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1638
04:25:36.850 --> 04:25:41.890
Boardroom: Oftentimes, we find ourselves in this position of having these conversations,

1639
04:25:43.040 --> 04:25:49.520
Boardroom: And it's paramount to me that everybody understands that we also

1640
04:25:49.740 --> 04:26:03.170
Boardroom: really struggle with the number of traffic incidents that occur on our streets. I mean, we're the ones that see all this stuff firsthand and experience the trauma of people maimed and dying in the back of the ambulance in front of us. It's horrible.

1641
04:26:05.770 --> 04:26:15.419
Boardroom: So, to answer your question directly, and then I'll give a little more context, we did a quick scan of the last 5 years, structure fire data in the last 5 years. There's been 6 fatalities.

1642
04:26:15.550 --> 04:26:17.289
Boardroom: And 54 injuries.

1643
04:26:17.930 --> 04:26:21.200
Boardroom: The challenge with that is that

1644
04:26:21.410 --> 04:26:25.329
Boardroom: That data doesn't capture the number of people that,

1645
04:26:25.500 --> 04:26:27.709
Boardroom: Removed from that incident before they were injured?

1646
04:26:28.130 --> 04:26:37.590
Boardroom: Or it doesn't capture… Modern fires grow so rapidly, and that doesn't capture what could have happened if

1647
04:26:37.690 --> 04:26:52.560
Boardroom: It had taken us another minute, 2 minutes, 3 minutes to establish fire attack, and fires could have spread from the room of origin to the whole structure, or the primary structure to the neighboring structure, so it's really difficult to quantify the negative, kind of, what didn't happen and what was prevented.

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1648
04:26:53.000 --> 04:26:56.229
Boardroom: And, if we're gonna have a conversation about numbers.

1649
04:26:56.600 --> 04:27:06.060
Boardroom: We all have to remember 60% of the call volume that we run are medical emergencies. That's almost 7,000 patients transported per year.

1650
04:27:06.580 --> 04:27:08.289
Boardroom: That is…

1651
04:27:08.690 --> 04:27:22.370
Boardroom: about, 1,500 of those patients get a critical intervention, so that's a, something that is life-altering. Medication, bleeding control, CPR,

1652
04:27:22.580 --> 04:27:23.630
Boardroom: And…

1653
04:27:23.920 --> 04:27:38.150
Boardroom: Of those 1,500 people, about 800 a year, 750 a year, are transported through the hospital, meaning that time is… even after the critical intervention, time is still of the essence. And so,

1654
04:27:38.350 --> 04:27:48.909
Boardroom: If we're gonna talk about numbers, then those people also have to be considered, and that's… that's why… that's the primary reason that you see us advocating, is we have this experience with people

1655
04:27:50.740 --> 04:28:05.809
Boardroom: 1,000 people, 1,500 people a year that are in these life-threatening positions, and we're worried that the outcome's gonna be worse, as it takes us longer to get to the scene, and for the ambulance then to get from the scene back to the hospital. So…

1656
04:28:06.020 --> 04:28:13.960
Boardroom: That's an important thing that is always left out of this conversation when we're comparing traffic violence to fire fatalities and injuries. Right.

1657
04:28:15.690 --> 04:28:27.539
Boardroom: Do you have… but, having said all that, and I understand that, and that's all legitimate, do you have any data on the number of, you know, people killed and injured on our streets during the same period?

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1658
04:28:27.540 --> 04:28:40.379
Boardroom: That's not something that we track, I think that's something that Vision Zero tracks. Okay. But I'm familiar with the general numbers. And they're more significant, right, than the numbers that you mentioned with respect to fires?

1659
04:28:40.580 --> 04:28:50.230
Boardroom: prospective fires, but not for the emergency medical incidents. Correct. I appreciate that. Yeah. The other one, and this is the one I think that you may have answered,

1660
04:28:50.540 --> 04:28:52.829
Boardroom: Although my question's a little bit different.

1661
04:28:53.030 --> 04:28:58.540
Boardroom: If it's important to maintain the 26-foot rule, as opposed to the state 20-foot rule.

1662
04:28:58.700 --> 04:29:10.859
Boardroom: Why isn't that rule, the 26-foot rule, being applied to the narrow streets in the hills, but to remove parking from those roadways? Yeah, it's… They're 3-story buildings.

1663
04:29:10.860 --> 04:29:18.900
Boardroom: at least on many blocks in the hills, I think. Probably not all of them, but many of them. The same, you know, situate… the same,

1664
04:29:19.130 --> 04:29:35.899
Boardroom: situations could apply there. Yeah, it's at the answer I provided before, which was there are many streets, both in the hills and in the flats, that are existing and non-conforming, and just like the building code, when there's a change to the building code, we don't go and retroactively apply that to the entire city, so…

1665
04:29:35.900 --> 04:29:43.280
Boardroom: We don't retroactively apply the street width to existing non-conforming streets anywhere in the city. It's when there's,

1666
04:29:43.490 --> 04:29:50.259
Boardroom: A modification to structures, along that roadway that necessitated… that would trigger

1667

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04:29:50.490 --> 04:29:55.329
Boardroom: The requirement for… or the need for 26 foot. And, and it's…

1668
04:29:55.690 --> 04:30:07.419
Boardroom: There's also a huge difference in a single-family or a duplex, a fire in a duplex or a single-family home, versus a, four-story, 5-story.

1669
04:30:07.460 --> 04:30:22.449
Boardroom: apartment building with 100 occupants and a fire's on the fourth floor. It's just a completely different type of response, different type of firefighting. Yeah, no, thank you. Yeah. I appreciate that. I appreciate that response. So if somebody built a new three-story building.

1670
04:30:22.450 --> 04:30:32.619
Boardroom: In the hills, you might require the removal of parking adjacent to that building, is that right? Potentially. We'd have to, of course, look at that when the permit was applied.

1671
04:30:32.640 --> 04:30:36.220
Boardroom: Okay, thank you. Those are my questions. I appreciate your answers.

1672
04:30:36.270 --> 04:30:38.470
Boardroom: Thank you, Councilmember. Councilmember Trekup?

1673
04:30:39.450 --> 04:30:52.830
Boardroom: Thank you, Madam Mayor. You mentioned that, there… there are some… I think…

1674
04:30:52.980 --> 04:31:03.200
Boardroom: I'm probably using the wrong term, but travel routes, or high, high-frequency routes that, emergency response uses…

1675
04:31:03.500 --> 04:31:07.040
Boardroom: Is there a list of such routes documented somewhere?

1676
04:31:07.300 --> 04:31:18.749
Boardroom: We have a map that was just produced as, as part of a study we're doing this year. It's based on a pretty limited data set of, I think, responses collected over 3 days.

1677

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04:31:18.880 --> 04:31:31.050
Boardroom: But from our analysis, looking at it, it looks pretty accurate. We'd like to collect more data to make sure that, it's really representative, but we do have a map that, that we can share.

1678
04:31:33.710 --> 04:31:44.910
Boardroom: I would welcome that, not… I don't need it in order for me to decide, on, tonight's, vote, but I…

1679
04:31:45.020 --> 04:31:55.779
Boardroom: I think it would be valuable, could it provide, kind of, A certain level of…

1680
04:31:55.990 --> 04:32:07.889
Boardroom: fidelity around, say, two parallel streets, let's take the Milvian-Shattuck case, where maybe if, you know.

1681
04:32:07.890 --> 04:32:16.210
Boardroom: Whatever determination was made around that, the dedicated bike lanes that are protected were fine there.

1682
04:32:16.210 --> 04:32:27.870
Boardroom: maybe Shaddock would be used as the travel, avenue. Does the map provide, kind of a minimum set of,

1683
04:32:29.120 --> 04:32:38.670
Boardroom: Routes for emergency responders. The map… the map, purely shows

1684
04:32:39.150 --> 04:32:51.949
Boardroom: by width of line, how many times a fire vehicle traveled Code 3 to an emergency along specific routes. So it's… that's what it's showing, is the routes that our drivers are using most frequently.

1685
04:32:52.090 --> 04:32:55.420
Boardroom: And of course, that's gonna change as the city changes.

1686
04:32:55.560 --> 04:32:57.710
Boardroom: Because our drivers are…

1687
04:32:57.840 --> 04:33:04.739
Boardroom: Very familiar with every block of the city, and they're gonna start to… if something makes it more difficult to get through.

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1688
04:33:04.980 --> 04:33:11.459
Boardroom: One location, they're gonna start to find other routes, and that can obviously impact how long it takes us to travel.

1689
04:33:11.860 --> 04:33:12.779
Boardroom: Yeah.

1690
04:33:12.930 --> 04:33:18.009
Boardroom: Had another question, you… so…

1691
04:33:18.150 --> 04:33:31.650
Boardroom: You mentioned, your… your best hypothesis in, around the Milvia determination that it was fine to have, protected bike lanes on both sides of the street.

1692
04:33:31.710 --> 04:33:43.229
Boardroom: Is there essentially a catch-all statement of overriding determination that a fire chief or the fire marshal can make, say, like.

1693
04:33:44.210 --> 04:33:52.600
Boardroom: You know, what… That the public interest, essentially, is such that, it is worth,

1694
04:33:52.710 --> 04:34:05.249
Boardroom: putting in, additional, devices to slow down traffic and protect, pedestrians, bicyclists, and automobile businesses. I'm not following your, your question.

1695
04:34:05.970 --> 04:34:06.840
Boardroom: You're…

1696
04:34:08.160 --> 04:34:20.700
Boardroom: You said that your best guess was that someone made a determination that, the treatments on Milvia were fine because of some kind of,

1697
04:34:20.900 --> 04:34:28.720
Boardroom: Overriding public determ… or determination that, for… for the betterment of the… the public.

1698
04:34:28.869 --> 04:34:37.199

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Boardroom: That was sufficient to go below, 26 feet.

1699
04:34:37.349 --> 04:34:42.079
Boardroom: And I think my question is really, how commonplace is it to…

1700
04:34:42.250 --> 04:34:56.969
Boardroom: make such a determination. Yeah, well, that was one of, I think, three things I listed as potential reasons. And again, that's… that is not based on any conversations or anything I've read, that's based on my analysis of… of looking at it this afternoon.

1701
04:34:59.790 --> 04:35:14.590
Boardroom: And so I would say generally, like, that's a rare occurrence that we would, would make. I think we generally try to adhere to the standards that we have put forward in the code.

1702
04:35:15.730 --> 04:35:26.789
Boardroom: But we also, you know, are gonna evaluate every situation on a case-by-case basis, and they're all so different with so many different variables, that it's hard to give you a really specific, concrete answer.

1703
04:35:27.240 --> 04:35:38.039
Boardroom: Yeah, right? Hence, they are discretionary, right? Okay, I wanted to ask,

1704
04:35:38.869 --> 04:35:50.380
Boardroom: let's say, hypothetically, we were to take an action tonight such that the clock resets, and, you know, that means, I guess, at the earliest.

1705
04:35:50.520 --> 04:35:56.540
Boardroom: second reading would be January, or sometime after January 26th. Well, the…

1706
04:35:57.490 --> 04:36:04.759
Boardroom: that something would actually be implemented. What is the…

1707
04:36:05.300 --> 04:36:07.480
Boardroom: I would say the most,

1708
04:36:07.800 --> 04:36:13.730
Boardroom: The highest level of risk in your professional opinion between

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1709
04:36:13.970 --> 04:36:19.910
Boardroom: The code we are under, and the code we're being asked to adopt.

1710
04:36:20.610 --> 04:36:36.300
Boardroom: Councilmember, I feel like that's a very hard question for him to answer, given that he can't, you know, tell what the future could bring, and I would hate for you to make a guess, and then for that to happen. I feel like… Yeah, let me, let me try,

1711
04:36:38.130 --> 04:36:52.639
Boardroom: there, there are certain provisions, in the code that… going beyond, Appendix D, around, you know, transport of explosives, and I,

1712
04:36:53.689 --> 04:37:05.729
Boardroom: what would be… what are… what is the order of magnitude around, kind of that gap? I'm not even talking about Appendix D,

1713
04:37:06.000 --> 04:37:10.939
Boardroom: What is the thing, if we don't adopt this code?

1714
04:37:11.090 --> 04:37:18.839
Boardroom: That would probably be, the greatest level of risk that, kind of your…

1715
04:37:19.450 --> 04:37:32.859
Boardroom: I honestly can't give you an answer, because it's such a complex question, and you're talking about humans that are gonna see an opportunity, and people are going to exploit that opportunity, and I don't know what that would look like.

1716
04:37:33.119 --> 04:37:35.630
Boardroom: Yeah. We've never done that before. I don't know.

1717
04:37:36.240 --> 04:37:42.260
Boardroom: That's fair. I think my…

1718
04:37:43.349 --> 04:37:48.580
Boardroom: My other two questions are for the city manager,

1719
04:37:48.710 --> 04:37:57.460

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Boardroom: What would it look like to adopt a second reading of a new code tonight?

1720
04:37:57.650 --> 04:38:00.730
Boardroom: And have a,

1721
04:38:01.029 --> 04:38:16.190
Boardroom: commission-based process, to recommend further, changes or to solicit input. And who, which stakeholder… how would you envision the stakeholder

1722
04:38:16.290 --> 04:38:18.239
Boardroom: Engagement process being done.

1723
04:38:18.380 --> 04:38:19.930
Boardroom: Guess that's my last question.

1724
04:38:20.300 --> 04:38:21.220
Boardroom: Two parts.

1725
04:38:23.050 --> 04:38:25.850
Boardroom: The stakeholder process being done for

1726
04:38:25.980 --> 04:38:31.090
Boardroom: the referral that the mayor's talking about making, or if you…

1727
04:38:31.210 --> 04:38:33.870
Boardroom: Adopted the code tonight and referred it.

1728
04:38:34.640 --> 04:38:39.310
Boardroom: To commit referral? That part.

1729
04:38:39.790 --> 04:38:43.009
Boardroom: To the city manager for further input.

1730
04:38:44.210 --> 04:38:53.839
Boardroom: I mean, if you adopted the second reading as is tonight, then that would go into effect 30 days from today, and then if the referral was to the city manager to come back with

1731
04:38:54.230 --> 04:39:00.710

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Boardroom: more information about some specific aspects of this, maybe… I don't know if you're referring to Councilmember Lunepar and Humbert's

1732
04:39:01.200 --> 04:39:02.970
Boardroom: Specifics or something else.

1733
04:39:03.240 --> 04:39:06.070
Boardroom: That could happen as well.

1734
04:39:06.930 --> 04:39:17.120
Boardroom: And are you open to, engaging certain commissions that may have a nexus to this issue?

1735
04:39:17.259 --> 04:39:19.260
Boardroom: As part of the,

1736
04:39:20.180 --> 04:39:27.669
Boardroom: Looking at if, if we were to adopt this and, refer further, input.

1737
04:39:28.419 --> 04:39:33.429
Boardroom: To you. My preference would be that it passes tonight as a second reading, as staff recommend.

1738
04:39:36.000 --> 04:39:47.100
Boardroom: Right. Councilmember, you're over your time. Do you have… It's… No, he's… It's fine. I'm…

1739
04:39:48.760 --> 04:39:51.850
Boardroom: In… in the memo that we received.

1740
04:39:51.970 --> 04:39:55.900
Boardroom: There was a… an openness to…

1741
04:39:56.990 --> 04:39:59.929
Boardroom: Asking us to adopt this tonight.

1742
04:40:00.150 --> 04:40:02.010
Boardroom: And,

1743
04:40:08.340 --> 04:40:13.129

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Boardroom: solicit, or… Councilmember, can you maybe state this as a comment later?

1744
04:40:13.470 --> 04:40:26.099
Boardroom: I will do my best. Thank you. Okay, thank you. Alright, Councilmember Taplin, did you have an additional question? Yes, thank you very much, and I really hate to have to ask this, but as you know, Medic 1 has responded to my mother quite a bit over the years.

1745
04:40:26.700 --> 04:40:34.850
Boardroom: Can you… do you have data, about the percentage of EMS transport that is related to stroke or cardiac arrest?

1746
04:40:35.060 --> 04:40:37.269
Boardroom: Can you speak to what happens

1747
04:40:37.450 --> 04:40:41.779
Boardroom: In that window between first response and transport to the hospital.

1748
04:40:41.990 --> 04:40:47.060
Boardroom: And how might the closure of the hospital affect, EMS transport?

1749
04:40:48.850 --> 04:40:51.210
Boardroom: Yeah, I can generally speak to…

1750
04:40:51.900 --> 04:41:01.000
Boardroom: Morbidity for several types of emergency medical incidents that occur, cardiac arrest, stroke,

1751
04:41:01.360 --> 04:41:20.449
Boardroom: And sepsis, anything where the body's being deprived of oxygen, specifically the brain, the chances of survival, in the example of cardiac arrest, go down 7-10% per minute. Berkeley has one of the highest cardiac arrest survival rates in the country right now. That's walking out of the hospital with

1752
04:41:20.760 --> 04:41:23.160
Boardroom: Neurologically intact.

1753
04:41:23.510 --> 04:41:31.779

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Boardroom: For strokes, it's obviously a progressive, injury, so the longer that, it takes to get

1754
04:41:32.020 --> 04:41:42.940
Boardroom: from the patient to get the patient to the hospital, the more severe the injury is. I don't have the data in front of me on what that is. There's a similar statistic for trauma.

1755
04:41:43.060 --> 04:41:45.399
Boardroom: Not just vehicle trauma, but any type of trauma.

1756
04:41:45.720 --> 04:41:53.199
Boardroom: The longer that people are bleeding out, bleeding internally, the lower the chances of survival are.

1757
04:41:54.520 --> 04:42:08.070
Boardroom: There's a variety of other medical conditions that have time, kind of critical, nature associated with them, any type of breathing incident, asthma, anaphylaxis, allergic reactions,

1758
04:42:08.520 --> 04:42:20.849
Boardroom: So, it's… there's a variety, and I can show you some data on emergency medical calls, if that'd be kind of helpful or illustrative to see… to understand what I'm talking about. I have a couple slides I can show you.

1759
04:42:21.180 --> 04:42:25.029
Boardroom: Or we can follow up with more specific data after the meeting.

1760
04:42:25.900 --> 04:42:27.330
Boardroom: Yes, thank you very much.

1761
04:42:28.000 --> 04:42:36.089
Boardroom: I think that data was, was, illuminating enough. Thank you. Appreciate it. Okay, I will open up for public comment now.

1762
04:42:44.900 --> 04:42:47.549
Boardroom: City Mayor, City Council,

1763
04:42:48.380 --> 04:42:59.260
Boardroom: City Manager, my name is Gerald Baptiste Jr. I am a board member for the Berkeley Juneteenth Festival. I'm here basically, just first of all, to thank you guys for the wonderful job you've done so far.

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1764
04:42:59.530 --> 04:43:08.029
Boardroom: My time is limited, so I'm not gonna have the original speech I had at first. I'm just gonna use some of the things that were said already tonight. And,

1765
04:43:08.030 --> 04:43:20.640
Boardroom: Councilmember Luna Perra, we support you 100% in what you said. I think that this probably needs to be tabled for further consideration and conversation. Based upon, the lack of input by us as a stakeholder.

1766
04:43:20.700 --> 04:43:28.979
Boardroom: I like what you said earlier, in the sense that Berkeley and the, Ohlone, Indians here, this is basically sacred ground, so holy.

1767
04:43:29.040 --> 04:43:46.829
Boardroom: a holy site here, and South Berkeley in particular, is the same thing to us. That is our holy ground. That's our sanctuary. That's where we have been having this festival for over 40 years, and what we'd like to do more than anything else is actually partner with the fire department.

1768
04:43:47.490 --> 04:43:55.009
Boardroom: That went fast. Thank you. I know, it does go fast. Thank you. We love to meet with you guys. Sounds good. Thank you. Always great to have collaboration.

1769
04:43:55.050 --> 04:44:10.800
Boardroom: Carol? Just addressing the accuracy of data. So when I was hit by a car as a pedestrian crossing the street at Martin Luther King and University, I was taken away in an ambulance, but the police report wrote it down as a minor injury.

1770
04:44:11.190 --> 04:44:16.120
Boardroom: When it was clearly not a minor injury, so I'm just saying some data may not be accurate.

1771
04:44:16.330 --> 04:44:17.170
Boardroom: Thank you.

1772
04:44:17.440 --> 04:44:18.769
Boardroom: Alright, thank you.

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1773
04:44:22.880 --> 04:44:27.700
Boardroom: Good evening, Lucky Thomas, Juneteenth Festival board member.

1774
04:44:27.930 --> 04:44:31.289
Boardroom: Former, Berkeley firefighter, and,

1775
04:44:32.650 --> 04:44:36.720
Boardroom: I'm really pleased to hear, what the fire department had to say in regards to

1776
04:44:36.940 --> 04:44:46.959
Boardroom: The code adoption, it really resonates with me. I was, fire marshal for 10 years, and adopted fire code, 3 times, so…

1777
04:44:48.020 --> 04:45:05.879
Boardroom: There is one section that I do have issue with, and the mayor and council member knows, and also the fire marshal knows, is it is the fire access road and the 26 feet. And once it's codified, the concern is whether it's weaponized and how it's enforced.

1778
04:45:05.990 --> 04:45:12.810
Boardroom: And, but in terms of the triennial, the code is adopted every 3 years.

1779
04:45:13.400 --> 04:45:15.479
Boardroom: I would not want, for the sake of

1780
04:45:15.640 --> 04:45:27.699
Boardroom: fire and life safety. I would not want to hold up this code adoption for that, but would like to look at how we can look at maybe a more restrictive code… He has an extra minute, Rose. But supportive of the community.

1781
04:45:28.050 --> 04:45:39.090
Boardroom: Thank you. Oh, you didn't need it. Okay. Do you, do you want it? Oh, yeah, I'll take it. Okay, go ahead. I'll take it, yeah. I'm just getting started. Okay, so, so, so, so anyway,

1782
04:45:39.090 --> 04:45:49.910
Boardroom: So, the code adoption, it is a complex process, right? And again, I really believe that the festivals are really caught in the middle in terms of

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1783
04:45:49.910 --> 04:46:03.070
Boardroom: fire response to just daily operations. And as… when I was fire marshal, the same thing we were stressing was, but it's… it's more now. So, there was the,

1784
04:46:03.750 --> 04:46:16.129
Boardroom: You had the bicycle lanes here now, you had calming devices, and so those are all the things that really stress the fire department in meeting its performance measures and ensuring that it's providing the safety for the public.

1785
04:46:16.430 --> 04:46:30.749
Boardroom: as Berkeley Juneteenth, we want to make certain that we are safe, our community is safe, the city of Berkeley is safe, and we would like to partner with the fire department, and that's what I'd like to pass on. Thank you. Thank you very much, appreciate it.

1786
04:46:37.620 --> 04:46:53.569
Boardroom: Good evening. Thank you, City Council, Madam Mayor, thank you, Berkeley Fire Department. Very saddened to hear about the loss of Captain Hall. And I also want to say, Medic 1 has responded to my mother several times, too, so…

1787
04:46:53.850 --> 04:47:09.550
Boardroom: Thank you for all the work. I'm here representing the Berkeley Farmers Markets as the Farmers Market Program Manager. We've operated 3 times a week for almost 40 years, and in the roughly 5,000 markets that we've done, we've never had a fire.

1788
04:47:09.690 --> 04:47:20.180
Boardroom: So, I do hope, that the city will continue to engage with the farmers markets with special events around ways that we can work

1789
04:47:20.180 --> 04:47:35.099
Boardroom: with this code, and possibly create local amendments which recognize Berkeley's unique geography and history, so we can continue to have the vibrant city and special events that we have always had. Thank you. Thank you.

1790
04:47:43.050 --> 04:47:51.390
Boardroom: Good evening, everybody. Thank you. I'm Jacob Cohen, I work with the North Shattuck Association operations and events.

1791
04:47:54.460 --> 04:48:01.150

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Boardroom: I think the primary concern we have, one of the concerns we have is what is the economic impact

1792
04:48:01.330 --> 04:48:07.220
Boardroom: Going to be, as it relates to special events, if we enforce some of these things in this

1793
04:48:07.630 --> 04:48:09.620
Boardroom: in this proposal.

1794
04:48:10.890 --> 04:48:25.299
Boardroom: Here's what we think at the North Shattuck Association. If these codes are currently… are implemented as currently written, public events will be negatively impacted, and we're concerned about that. The separation between tents and parked vehicles, the rules.

1795
04:48:25.500 --> 04:48:31.089
Boardroom: About the separation between groups of tents and the 26-foot fire lane.

1796
04:48:31.640 --> 04:48:36.790
Boardroom: We request the Council establish a public process to further improve on the amendments.

1797
04:48:37.250 --> 04:48:46.050
Boardroom: And engage in the collaborative process that has been mentioned already, and… Thank you. Thank you.

1798
04:48:47.290 --> 04:48:56.469
Boardroom: Just, just to clarify, folks, this is not a new, new thing, this is just approving what has already existed since 2008, so just to clarify. Go ahead.

1799
04:48:56.850 --> 04:48:58.940
Boardroom: Well, it's being enforced differently now.

1800
04:48:59.120 --> 04:49:03.499
Boardroom: John Kaner, Downtown Berkeley Association,

1801
04:49:03.620 --> 04:49:10.099
Boardroom: The 26-foot rule's gonna kill most of the events in the downtown, except, Shattuck, Oxford.

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1802
04:49:10.220 --> 04:49:13.220
Boardroom: and, and MLK.

1803
04:49:13.410 --> 04:49:22.529
Boardroom: If you think about Alston, where we've had Barry Book Festival, Earth Day, Addison, where we've had Freight Fest, Center Street, where we had Eats, Beats, and Brews, Salsa Sundays.

1804
04:49:22.790 --> 04:49:33.830
Boardroom: All of those events could not happen. We have added 15 tall buildings in the last… since I've been with the DBA, many before that. We have 17 more on the drawing board.

1805
04:49:33.830 --> 04:49:47.889
Boardroom: With this density, we're gonna lose the ability to do special events. I think we need some flexibility. Totally respect the work that the fire department does, but when these events are just a day long, maybe we have a little bit of flexibility and we revisit this.

1806
04:49:47.940 --> 04:49:55.120
Boardroom: We're gonna lose the heart and soul of the downtown if we aren't allowed to do events in our downtown. Thank you very much.

1807
04:50:02.620 --> 04:50:17.849
Boardroom: Hello, I'm Benjamin Frye, Street Safety Advocate. I just wanted to start out by saying, thank you for, Council and staff and fire to… for, re-enabling… getting the Telegraph Street Fair, back on, when it ran or foul of the 26-foot rule.

1808
04:50:17.970 --> 04:50:39.059
Boardroom: I support the mayor in, and, encourage Council to adopt an ordinance to use the NACTO design standards in order to help clarify a lot of these rules, in, when, designing our streets to help clarify things and make sure that our projects are moving quickly. We need, to start saving the lives of the people who are being hit and killed.

1809
04:50:39.140 --> 04:50:42.150
Boardroom: on our streets, which I've witnessed myself.

1810
04:50:42.580 --> 04:51:01.309
Boardroom: The optional sections 503 and Appendix D need not delay projects or event… put any of our events in jeopardy. I would ask the Council to support the revisions to those sections, like many of our city

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neighbors have done, to those rules themselves, and so we should be following suit and making sure there's clarity there.

1811
04:51:01.310 --> 04:51:05.540
Boardroom: Thank you for your commitment to resolving these issues. Appreciate it. Thank you.

1812
04:51:10.370 --> 04:51:25.260
Boardroom: Good evening, Council. I'm Ben Gerhardstein with Walk Bike Berkeley. For years, we have been engaged in really constructive dialogue with the Berkeley Fire Department, and thank them for their service, and we share a commitment, to public safety here in Berkeley.

1813
04:51:25.260 --> 04:51:34.670
Boardroom: To that end, we have been advocating, as you know, for an opportunity to modify certain sections of the fire code and ensure that they support both the City's Vision Zero goals

1814
04:51:34.670 --> 04:51:42.440
Boardroom: and our effective emergency response goals. And we appreciate the attention all of you have given to this. It really does show.

1815
04:51:42.970 --> 04:51:59.699
Boardroom: We support the Mayor's plan to develop transportation design standards. I think we can all benefit from having detailed street designs for various road types, that optimize on our mobility, on our safety, emergency response, and sustainability goals.

1816
04:51:59.700 --> 04:52:05.029
Boardroom: While also clarifying and ensuring consistent application of fire codes.

1817
04:52:05.430 --> 04:52:18.280
Boardroom: In addition, we would welcome a Council referral to collaborate with commissions and city staff to recommend future changes to Section 503 and Appendix D. Oh. Okay, thank you.

1818
04:52:21.300 --> 04:52:24.610
Boardroom: Good evening, I have a minute, as well, from back there.

1819
04:52:25.110 --> 04:52:32.920
Boardroom: Good evening, Mayor and members of the City Council. I hadn't planned on speaking about this, but I really appreciated the nuance of the conversation, and particularly,

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1820
04:52:33.050 --> 04:52:46.849
Boardroom: The mayor's emphasis on a process that will bring stakeholders together, as Councilmember Lunapara said, this is not a zero-sum game, between safety on the one side, fire safety, and pedestrian safety. We can find compromises that really result in better safety for everyone.

1821
04:52:47.180 --> 04:53:05.099
Boardroom: It seems like it's not going to be feasible to have an amendment at this time, and so I'm really looking forward to that collaborative process, to enable, cultural events and traffic safety to continue. I wanted to address one issue, particularly about the retroactive application of the fire code. I may be misunderstanding, but I think it's…

1822
04:53:05.220 --> 04:53:10.599
Boardroom: I think it's a mistake to analogize the retroactive application of the building code.

1823
04:53:10.720 --> 04:53:28.489
Boardroom: to buildings, to structures, and the retroactive application of the fire code to parking. So, you know, when a building is built, it costs… it could cost many hundreds of thousands to millions of dollars to bring it up to modern standard for the building code. If parking is not up to the code standard, the cost is paint.

1824
04:53:28.860 --> 04:53:51.859
Boardroom: And, you know, certainly we know parking in the hills is a very contentious issue. God knows people are apparently willing to file recalls over their plant, so I don't know what they would do about parking being taken away, but I do think that it is a different situation, and I think that it is worth revisiting. You know, we know that there are many of these streets, particularly in the hills, but throughout our community, where the parking arrangement makes them unsafe.

1825
04:53:51.890 --> 04:53:59.729
Boardroom: And, for fire and evacuation. And I think that's a different thing than requiring building code to be, applied to new buildings, or to old buildings.

1826
04:53:59.770 --> 04:54:00.800
Boardroom: So, thank you.

1827
04:54:01.240 --> 04:54:02.180

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Boardroom: Thank you.

1828
04:54:05.940 --> 04:54:23.719
Boardroom: Good evening. I just wanted to come up here to say that I think that it's been brought up several times, this idea that, like, this is the, this is the, like, the existing law and what's been on the books for several years, but I'd like to point out that if this was the,

1829
04:54:23.720 --> 04:54:39.419
Boardroom: like, if this is not the stan… clearly, people are coming up and saying that something has changed in the enforcement, and if the status quo that was liked was having this on the books and just not enforcing it, it doesn't seem very logical to me to have

1830
04:54:39.540 --> 04:54:44.089
Boardroom: a lot on the books that you don't want enforced. I would also like to…

1831
04:54:44.480 --> 04:54:46.769
Boardroom: Bring up the fact that, you know.

1832
04:54:46.900 --> 04:55:03.450
Boardroom: pedestrian deaths are way, way too common in Berkeley. Literally a few weeks ago, I was walking, and I saw a caution tape on the street, and a fallen bicycle, and blood, and I was like, oh, look, it's another week in Berkeley, because it's not the first… like, this shouldn't be a common issue.

1833
04:55:03.450 --> 04:55:09.740
Boardroom: And so I really hope that the City Council will take action to prioritize street safety. Thank you. Thank you.

1834
04:55:14.380 --> 04:55:20.179
Boardroom: Yeah, I'm, Tom Yamaguchi, District 2. I just want to just express my gratitude, and…

1835
04:55:20.220 --> 04:55:36.920
Boardroom: For the, the council, for listening to the community, and really working for, creative solutions. I'm thankful to the fire department, too. I also expressed my condolences to the loss of one of your team members. I have memories when I used to work at the,

1836
04:55:36.930 --> 04:55:54.969

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Boardroom: at the, the polls at the 8th Street and, Fire Station and Dwight Way, how kind and how generous and supportive, the, the crew was there, so I really appreciate that. I just want to also add that earlier, Tom Bates, our, former mayor, was here, and

1837
04:55:54.970 --> 04:56:10.249
Boardroom: Tom Bates had a vision of having Berkeley as a bicycle, a world-class, world-class bicycling city, and I think that we're on that way there, and I appreciate Tom Bates, I appreciate the current council. Thank you.

1838
04:56:10.490 --> 04:56:11.919
Boardroom: Thank you very much.

1839
04:56:12.040 --> 04:56:13.170
Boardroom: Comments online?

1840
04:56:13.620 --> 04:56:21.520
Boardroom: Okay, so this is public comment on item 40, fire to code amendments, going to speakers…

1841
04:56:21.930 --> 04:56:26.329
Boardroom: on Zoom, so please raise your hand if you'd like to… to speak.

1842
04:56:27.720 --> 04:56:31.329
Boardroom: Currently have, 14 hands raised.

1843
04:56:31.880 --> 04:56:34.680
Boardroom: First speaker is David Mendelson.

1844
04:56:45.430 --> 04:56:47.989
Boardroom: David Mendelson, you should be able to unmute.

1845
04:56:53.450 --> 04:56:54.270
David Mendelsohn: Thank you.

1846
04:56:55.960 --> 04:56:56.520
Boardroom: Okay, go ahead.

1847
04:56:59.340 --> 04:57:04.840
David Mendelsohn: I want to make two quick points. When it comes to street design and safety improvements.

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1848
04:57:05.410 --> 04:57:09.800
David Mendelsohn: The fire department should have input, but it should not have a veto.

1849
04:57:10.570 --> 04:57:15.720
David Mendelsohn: Our council members are elected. They're charged with making decisions for the city as a whole.

1850
04:57:16.420 --> 04:57:23.839
David Mendelsohn: The fire department is not elected, and its advice should be considered, but it is not charged with setting overall priorities for the city.

1851
04:57:24.020 --> 04:57:26.019
David Mendelsohn: In the way our elected officials are.

1852
04:57:26.500 --> 04:57:33.859
David Mendelsohn: It would be inappropriate to limit the Council's decision-making ability by adopting the optional Section 503 and Appendix D.

1853
04:57:34.860 --> 04:57:37.359
David Mendelsohn: Berkeley's streets, this is my second point.

1854
04:57:37.590 --> 04:57:44.850
David Mendelsohn: were laid out 100 years ago and more. The state code was developed much more recently for far more sprawling and suburban settings.

1855
04:57:45.240 --> 04:57:48.940
David Mendelsohn: Forcing the city to conform to a code that doesn't fit it would be a mistake.

1856
04:57:49.360 --> 04:57:51.950
David Mendelsohn: Oakland, Emeryville, and San Francisco.

1857
04:57:52.260 --> 04:57:56.690
David Mendelsohn: have all made modifications to the state code, and Berkeley should too. Thank you.

1858
04:57:58.640 --> 04:58:02.130

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Boardroom: Thank you. Thank you. Next is Jesse Sheehan.

1859
04:58:06.530 --> 04:58:22.969
Jerry’s iPad: Yes, hello, I would like to point out, that, these provisions have already been weaponized before they'd even been adopted. We have the City Manager's office, with last year's Holiday Festival and this year's Holiday Festival, as well as our Grateful Day Festivals.

1860
04:58:23.100 --> 04:58:41.619
Jerry’s iPad: this code was weaponized already by the City Manager's office, and I know it was before Mr. Budenhagen had come in, and again, this was Peter Radu, who weaponized it. So, Chief Sprigg, you have to blame Peter Radu for the distrust in these sorts of things.

1861
04:58:42.200 --> 04:58:52.699
Jerry’s iPad: Yes, the City Council should tell us what we do in our neighborhood with recommendations, and it shouldn't be dictated to us through City Manager's Office using the fire department's

1862
04:58:53.440 --> 04:58:57.800
Jerry’s iPad: Whether or not it's a regulation has been clear, but city.

1863
04:58:58.900 --> 04:59:09.099
Jerry’s iPad: officials were lied to by the city manager's office, and this was weaponized, and it affected the Juneteenth Festival, and it affects our entire community.

1864
04:59:09.100 --> 04:59:10.899
Boardroom: Thank you, your time is up.

1865
04:59:12.200 --> 04:59:15.420
Boardroom: Next is Cheryl Davil, a former council member.

1866
04:59:19.720 --> 04:59:27.589
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah, juneteenth… Should continue to stay where it is.

1867
04:59:28.120 --> 04:59:30.270
Cheryl Davila, Former Councilmember, Founder CEMTF: And.

1868
04:59:31.120 --> 04:59:33.310
Boardroom: You know, it's interesting how…

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1869
04:59:33.310 --> 04:59:42.819
Cheryl Davila, Former Councilmember, Founder CEMTF: these things have been going on for such a long time, decades, and now, all of a sudden, things are gonna be changed. That's interesting,

1870
04:59:43.380 --> 04:59:46.669
Cheryl Davila, Former Councilmember, Founder CEMTF: And it's not all the way around, it's, like, some…

1871
04:59:47.000 --> 04:59:52.159
Cheryl Davila, Former Councilmember, Founder CEMTF: Rules apply in some parts of the city, some rules apply…

1872
04:59:52.300 --> 04:59:56.530
Cheryl Davila, Former Councilmember, Founder CEMTF: Different rules apply in other parts of the city.

1873
04:59:56.560 --> 05:00:13.799
Cheryl Davila, Former Councilmember, Founder CEMTF: And yeah, I don't know if, the elected officials should be the ones to decide, because they kind of are… can be bought, sold, and delivered. They're not always elected, they're selected, and they play their game to give… to win. So,

1874
05:00:14.330 --> 05:00:24.109
Cheryl Davila, Former Councilmember, Founder CEMTF: Yeah… I think that… y'all need to do better on lots of things, including.

1875
05:00:24.110 --> 05:00:24.810
Boardroom: Comment.

1876
05:00:27.490 --> 05:00:30.109
Boardroom: Next is Mari Cruz.

1877
05:00:35.240 --> 05:00:37.400
Maricruz (she/her) | VPET | SHE BR: I'd like to give my minute to Jonathan.

1878
05:00:38.760 --> 05:00:40.010
Boardroom: Jonathan Miller?

1879
05:00:40.200 --> 05:00:40.830
Maricruz (she/her) | VPET | SHE BR: Yes.

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1880
05:00:40.830 --> 05:00:42.360
Boardroom: Strada? Okay.

1881
05:00:42.580 --> 05:00:47.820
Boardroom: That's the next speaker. Jonathan Miller-Estrada. Jonathan will have 2 minutes.

1882
05:00:50.680 --> 05:00:51.750
Jonathan Miller Estrada (Rochdale Board Rep 1): Hello, can you hear me?

1883
05:00:52.100 --> 05:00:53.000
Boardroom: Yes.

1884
05:00:53.580 --> 05:00:54.200
Jonathan Miller Estrada (Rochdale Board Rep 1): Okay.

1885
05:00:55.220 --> 05:01:00.060
Jonathan Miller Estrada (Rochdale Board Rep 1): Before, before I begin, I have additional minutes from Jeremiah as well on Zoom.

1886
05:01:00.260 --> 05:01:03.380
Jonathan Miller Estrada (Rochdale Board Rep 1): Hello, City Council members, my name is Jonathan Miller, and I am…

1887
05:01:03.380 --> 05:01:06.540
Boardroom: Can we just, Jeremiah?

1888
05:01:06.680 --> 05:01:07.260
Boardroom: Yes.

1889
05:01:07.260 --> 05:01:07.630
Jonathan Miller Estrada (Rochdale Board Rep 1): Yes.

1890
05:01:07.630 --> 05:01:10.630
Boardroom: We're gonna find Jeremiah first, make sure you have your minute.

1891
05:01:10.960 --> 05:01:11.769
Jonathan Miller Estrada (Rochdale Board Rep 1): No worries, no worries.

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1892
05:01:12.030 --> 05:01:13.929
Jeremiah Hernandez: Yeah, Jonathan has my minute, thank you.

1893
05:01:13.930 --> 05:01:15.330
Boardroom: Okay, thank you.

1894
05:01:15.740 --> 05:01:18.090
Boardroom: So Jonathan has 3 minutes.

1895
05:01:21.770 --> 05:01:22.800
Jonathan Miller Estrada (Rochdale Board Rep 1): Hello, my brother.

1896
05:01:24.460 --> 05:01:25.590
Boardroom: Okay, yeah.

1897
05:01:25.590 --> 05:01:26.489
Jonathan Miller Estrada (Rochdale Board Rep 1): Can you hear me?

1898
05:01:26.490 --> 05:01:27.760
Boardroom: Yes, yes, you have 3…

1899
05:01:27.760 --> 05:01:28.850
Jonathan Miller Estrada (Rochdale Board Rep 1): Perfect.

1900
05:01:30.080 --> 05:01:32.139
Jonathan Miller Estrada (Rochdale Board Rep 1): Give me a second, sorry, I'm getting my notes.

1901
05:01:40.400 --> 05:01:41.320
Jonathan Miller Estrada (Rochdale Board Rep 1): Okay.

1902
05:01:41.810 --> 05:01:52.680
Jonathan Miller Estrada (Rochdale Board Rep 1): Hello, City Council members. My name is Jonathan Miller, and I am a member, a member of the Berkeley Food and Cooperative. We have various fire safety.

1903
05:01:52.990 --> 05:02:05.339
Jonathan Miller Estrada (Rochdale Board Rep 1): But we are concerned about several provisions of the fire code that Council is considering adopting. Section 503.2.1 and Appendix D regulates roadway width and includes the 26-foot rule

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1904
05:02:05.340 --> 05:02:14.290
Jonathan Miller Estrada (Rochdale Board Rep 1): Which states that any street with building more than 30 feet high must have at least 26 feet of unobstructed roadway.

1905
05:02:14.950 --> 05:02:20.649
Jonathan Miller Estrada (Rochdale Board Rep 1): This food rule will create a de facto ban on the streets closure for events in entire neighborhoods.

1906
05:02:20.700 --> 05:02:39.080
Jonathan Miller Estrada (Rochdale Board Rep 1): We've already seen how this has impacted the BSC, our annual block party, which takes part outside and brings together approximately 250 people for performances, vendors selling goods and speeches from social organizers, spreading awareness about the various ways in which we can be mobilized.

1907
05:02:39.080 --> 05:02:47.529
Jonathan Miller Estrada (Rochdale Board Rep 1): To care for our community was canceled last spring because we were told the 26-foot rule would make it impossible to host any street event on the south side.

1908
05:02:47.550 --> 05:03:06.789
Jonathan Miller Estrada (Rochdale Board Rep 1): This took away the opportunity for the community to explore affordable housing in Berkeley, where housing is at a height demand while dealing with low supply, creating an unaffordable housing environment for students and lowering economic activity to flow in the city of Berkeley. Events like Telegraph Holiday Fair and the annual Juneteenth Celebration have also been impacted by this policy.

1909
05:03:06.790 --> 05:03:16.939
Jonathan Miller Estrada (Rochdale Board Rep 1): The 26-foot rule can only be enforced selectively because it was designed for suburbs with wide streets, not for older cities like Berkeley with narrower streets.

1910
05:03:16.940 --> 05:03:34.929
Jonathan Miller Estrada (Rochdale Board Rep 1): This is why Oakland, Emeryville, and San Francisco have been elected to modify or exclude this rule altogether. Our commission can help the City design rules that work for Berkeley streets, as Austin has. Please pass the fire code with the 26-foot rule requirement.

1911
05:03:34.930 --> 05:03:40.750

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Jonathan Miller Estrada (Rochdale Board Rep 1): Thank you for your consideration and commitment to balancing safety and vital community Programming. Thank you so much.

1912
05:03:41.620 --> 05:03:52.050
Boardroom: Thank you, and just… just so you know, Juneteenth can stay where it is, and Telegraph will be still… the holiday market will still be on Telegraph… on Telegraph, excuse me.

1913
05:03:53.410 --> 05:03:55.599
Boardroom: Okay, next is Kelly Hammergren.

1914
05:04:02.140 --> 05:04:14.159
kelly hammargren: Okay, I'm looking at the transcript here, and our fire department told us we have 7,000 transports per year.

1915
05:04:14.380 --> 05:04:18.520
kelly hammargren: And 750 hospital transports.

1916
05:04:19.280 --> 05:04:25.380
kelly hammargren: And we had… 6 street fatalities and 54 injuries.

1917
05:04:27.720 --> 05:04:36.900
kelly hammargren: I'm a retired nurse. I spent years in intensive care, and I know how precious the minutes are before

1918
05:04:37.660 --> 05:04:40.880
kelly hammargren: Or someone gets the needed care.

1919
05:04:41.440 --> 05:04:42.580
kelly hammargren: And…

1920
05:04:43.180 --> 05:04:50.190
kelly hammargren: I think we really need to listen to our fire department, and I would hope that that's where we go.

1921
05:04:50.500 --> 05:05:00.979
kelly hammargren: Instead of, putting other priorities ahead and creating hazardous situations for the public. Thank you.

1922
05:05:01.230 --> 05:05:02.360
Boardroom: Thank you, Kelly.

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1923
05:05:05.280 --> 05:05:09.980
Boardroom: Next is just… identified as iPhone.

1924
05:05:11.780 --> 05:05:16.870
Boardroom: Should be able to unmute.

1925
05:05:27.390 --> 05:05:28.069
Boardroom: Yes, go ahead.

1926
05:05:28.160 --> 05:05:44.609
iPhone (6): Hi, yes, I, I am the organizer of the Telegraph Avenue Holiday Street Fair, and I just wanted to say thank you, and I'm glad we were able to find some resolution to keep this historic event in its home.

1927
05:05:44.700 --> 05:05:52.740
iPhone (6): And allow all of these small businesses that depend on it to continue to thrive. And I just wanted to say thank you.

1928
05:05:53.890 --> 05:05:57.130
Boardroom: Thank you. Everybody go this weekend.

1929
05:05:58.480 --> 05:06:03.410
Boardroom: And next is Alfred Tu.

1930
05:06:07.930 --> 05:06:26.129
Alfred Twu: Hi, thank you, everyone. I want to echo the points made by the vast majority of previous speakers. When this issue first came up, I looked into what our neighboring cities with historic downtown areas did. Oakland requires 20 feet, San Jose requires 20 feet.

1931
05:06:26.290 --> 05:06:28.340
Alfred Twu: Hayward requires 20 feet.

1932
05:06:28.520 --> 05:06:31.089
Alfred Twu: San Francisco requires 14 feet.

1933
05:06:31.410 --> 05:06:42.760
Alfred Twu: So, clearly, our neighboring cities are able to make this work, and we should be able to as well. I urge the Council to support Councilmember Gunipara's supplemento. Thank you.

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1934
05:06:43.460 --> 05:06:44.330
Boardroom: Thank you.

1935
05:06:46.990 --> 05:06:49.279
Boardroom: Next is Nancy Rader.

1936
05:06:50.930 --> 05:07:00.919
Nancy Rader: Good evening, Nancy Rader speaking on behalf of the Berkeley Fire Safe Council tonight. The Council urges you to adopt the fire code update tonight, as proposed.

1937
05:07:00.920 --> 05:07:13.789
Nancy Rader: The updated code will ensure that all traffic calming street infrastructure is reviewed for impacts on emergency response, including early response to wildfire conditions and thousands of emergency medical calls annually.

1938
05:07:13.850 --> 05:07:31.990
Nancy Rader: As the Mayor noted and the Chief explained, these standards have been in place since 2008, and the City has approved all kinds of new street infrastructure and street fares, while keeping everyone safe. Every single person in Berkeley benefits from fast emergency response, where every minute, if not every second, counts.

1939
05:07:31.990 --> 05:07:50.909
Nancy Rader: The City's 2023 Standards of Coverage and Community Risk Assessment found that complete emergency response already exceeds best practice here in Berkeley by over 7 minutes, and that the department is struggling to meet current demand, much less demand with the future growth of the city and university.

1940
05:07:51.530 --> 05:07:55.890
Nancy Rader: To keep everyone in our city safe, proposed infrastructure must be reviewed.

1941
05:07:55.890 --> 05:07:57.309
Boardroom: Greatness, your time's up.

1942
05:07:57.310 --> 05:07:58.010
Nancy Rader: Thank you.

1943
05:07:59.040 --> 05:08:01.190

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Boardroom: Next is Janice Ching.

1944
05:08:03.960 --> 05:08:15.219
Janis Ching: Good evening, thank you. I'd like to comment on something that hasn't really been discussed, and that is that with the increased height and density that we all see in Berkeley, that there is increased fire risk.

1945
05:08:15.220 --> 05:08:26.739
Janis Ching: And the middle housing ordinance allows 35-foot heights throughout the city, so we might see even more, and have more need for the extra height, sorry, the extra street width.

1946
05:08:26.800 --> 05:08:37.570
Janis Ching: Another point brought up tonight was about Milvia Street, where, recent bike tracks were put in, which sounds like they reduced the width to under 26 foot feet.

1947
05:08:37.650 --> 05:08:49.209
Janis Ching: there's a new six-story senior housing building on that street, and I'm wondering how that is impacted, and after, you know, what we see, you know, how fires can spread so…

1948
05:08:49.210 --> 05:08:59.809
Janis Ching: Excuse me, so quickly, that does concern me, that we are, creating existing and non-conforming streets with… with the bicycle tracks.

1949
05:08:59.820 --> 05:09:07.330
Janis Ching: And like Kelly, I work in healthcare, and I've, I've seen the impact of all the, accidents and injuries.

1950
05:09:07.440 --> 05:09:07.970
Janis Ching: So…

1951
05:09:07.970 --> 05:09:09.649
Boardroom: Janice, your time's up.

1952
05:09:09.650 --> 05:09:10.450
Janis Ching: Thank you.

1953
05:09:12.410 --> 05:09:14.469
Boardroom: Next is Beth Rossner.

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1954
05:09:16.650 --> 05:09:21.799
Beth Roessner: Thank you. Good evening, Mayor and Council. This is Beth Rossner from the Berkeley Chamber of Commerce.

1955
05:09:21.800 --> 05:09:41.319
Beth Roessner: The Chamber supports strong fire and life safety standards, but we are concerned that large community events, such as the weekly farmers markets and the Juneteenth Festival and others mentioned tonight, could be significantly affected by the rules related to permits, fire access, temporary structures, and equipment.

1956
05:09:41.550 --> 05:09:50.239
Beth Roessner: These events are essential to Berkeley's culture and small business economy, and even small operational changes can impact their feasibility.

1957
05:09:50.240 --> 05:10:02.809
Beth Roessner: So, we ask that we please collaborate with event organizers before any code enforcement to ensure safety improvements do not unintentionally threaten long-standing community events. Thank you.

1958
05:10:04.430 --> 05:10:05.290
Boardroom: Thank you, Beth.

1959
05:10:05.930 --> 05:10:08.049
Boardroom: Next is Charles Siegel.

1960
05:10:11.950 --> 05:10:31.420
Charles Siegel: Hello, so I want to point out that the 26-foot rule was designed for new cities with wider streets than Berkeley streets. It's not just the narrow streets and the hills. Most of the streets in the Flatlands, typical street is two traffic lanes and two parking lanes, and that

1961
05:10:31.510 --> 05:10:35.590
Charles Siegel: Has only about 22 feet of clear road space.

1962
05:10:36.590 --> 05:10:53.869
Charles Siegel: And any street with build… any street like that with buildings over 30 feet high is out of conformity. Most of the streets in downtown Berkeley do not conform to the 26-foot rule. Most of the streets in Southside do not conform to the 26-foot rule.

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1963
05:10:54.040 --> 05:10:59.030
Charles Siegel: And there's really no great benefit to worrying about

1964
05:10:59.340 --> 05:11:03.830
Charles Siegel: A farmer's market that doesn't conform to the rule one day a week.

1965
05:11:03.970 --> 05:11:10.720
Charles Siegel: And ignoring all of these streets in downtown that don't conform 365 days a year.

1966
05:11:11.180 --> 05:11:15.120
Charles Siegel: So, we really can do something that is actually workable.

1967
05:11:15.120 --> 05:11:17.170
Boardroom: Charles, I'm sorry your time's up.

1968
05:11:18.440 --> 05:11:20.520
Boardroom: Next is Sarah Bell.

1969
05:11:24.150 --> 05:11:32.460
Sarah Bell (she/her): Hi, thank you, Council. I wanted to speak in support of the direction expressed in Councilmember's

1970
05:11:32.460 --> 05:11:48.639
Sarah Bell (she/her): Lunapara's and Humbert's, supplemental. I think there are trade-offs here, and, I think we, I really appreciate the previous commenter who mentioned that, you know, the fire department should have input, but they should not have a veto.

1971
05:11:50.180 --> 05:12:08.420
Sarah Bell (she/her): we, I think, I also agree with a previous commenter that, if these codes are too strict to enforce, let's not codify them. I also, I think, it rings false to say that these codes are already in place, because if they're not being enforced, then they're clearly not, in reality, actually in place.

1972
05:12:08.510 --> 05:12:27.299
Sarah Bell (she/her): So, Oakland, SF, Sacramento, they've all removed or greatly modified the 26-foot rule. Clearly, it's possible to do. So, again, agreeing with previous commenters, let's follow suit. And, I'd like to… I don't have time. Thank you so much, let's proceed thoughtfully.

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1973
05:12:27.300 --> 05:12:28.919
Boardroom: Thank you. Thanks, Sarah.

1974
05:12:30.480 --> 05:12:32.300
Boardroom: Next is Theo.

1975
05:12:35.180 --> 05:12:41.760
Theo: Hi, Council. My name is Theo Gordon. I'm a member of the Disaster and Fire Safety Commission, although I'm speaking for myself tonight.

1976
05:12:41.760 --> 05:12:56.929
Theo: I just wanted to, support the direction of the supplemental from Councilmembers Linda Parra and Humbert, and I really just wanted to call out that this process that we're talking about today is in stark contrast to the process that I witnessed

1977
05:12:56.930 --> 05:13:21.889
Theo: for the Ember Ordinance. Over the last year, the Disaster Fire Safety Commission has met multiple times. There's been an entire other work group stood up, and several council meetings and community outreach sessions, all to make some changes to landscaping requirements. And I want to know… I think that we should be asking ourselves, why are we not doing that same thing when it comes to street design in the flats. We have vital community events that were almost destroyed because

1978
05:13:21.890 --> 05:13:37.400
Theo: of the application of this rule, and I think that we can go through the commission process, and work with community stakeholders before we codify this. Again, as others have said, we can look at other cities, our peer cities, and yeah.

1979
05:13:37.400 --> 05:13:38.609
Boardroom: Thank you, Theo.

1980
05:13:40.100 --> 05:13:47.550
Boardroom: How many comments do you have? We have 4 more hands. Okay, thank you. Next is, david Scheer.

1981
05:13:53.290 --> 05:14:01.010
David Shere: Hi. I… I just… I want to emphasize…

1982
05:14:01.120 --> 05:14:07.449

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David Shere: That this is not a neutral technical change that we're talking about here.

1983
05:14:07.800 --> 05:14:17.100
David Shere: This is the fire department weighing in on major political issues about the distribution of public resources in the city.

1984
05:14:17.900 --> 05:14:29.189
David Shere: A few years ago, after substantial public controversy and public investment, we were told that the fire department was essentially vetoing the Hopkins Street bike project.

1985
05:14:29.340 --> 05:14:46.989
David Shere: That is what got me interested in local politics. The enforcement of these rules is incredibly selective and systemically biased. It is incredibly dangerous for the leaders of the city and for BFD to allow emergency services to become politicized in this way.

1986
05:14:47.040 --> 05:14:58.909
David Shere: I am personally outraged and infuriated at the idea that I and my children can't move around the city safely because trucks need to be able to drive down every street going 50 miles an hour. Thank you.

1987
05:15:01.960 --> 05:15:03.870
Boardroom: Next is David.

1988
05:15:09.930 --> 05:15:11.180
Darrell: Do you mean Daryl?

1989
05:15:11.960 --> 05:15:18.139
Boardroom: Oh, yes, sorry, David's the next one. Daryl.

1990
05:15:19.500 --> 05:15:20.119
Boardroom: Go ahead.

1991
05:15:20.120 --> 05:15:21.470
Darrell: Good evening.

1992
05:15:21.540 --> 05:15:25.360
Darrell: Thanks. Good evening, Council. I want to reiterate.

1993
05:15:25.380 --> 05:15:38.959

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Darrell: I extremely support our fire department. I don't care what the outcome is, I've always supported fire funding measures, I'll continue to do so. We have a great fire department, and we have low fire deaths in part because they're just really skilled firefighters.

1994
05:15:38.960 --> 05:15:50.189
Darrell: All I want to understand is why the rule on street width is not applied to streets where the parking clearance is less than 20 feet.

1995
05:15:50.200 --> 05:16:06.250
Darrell: throughout the high-fire zone hills. I have firefighter friends who tell me on numerous occasions that engines get stuck and cannot go through the parking in the hills. And I just don't understand why parking is allowed there, but we're applying these rules to one-time-a-year festivals.

1996
05:16:06.250 --> 05:16:12.479
Darrell: I'm not saying that the rules can't change. Maybe we do need to adopt, and that's fine. I'm just trying to understand

1997
05:16:12.900 --> 05:16:22.929
Darrell: can we get some consistency with these application of the rules? And that's why I think that Lunapara's supplemental will help deal with that problem. Just consistency, that's all I'm asking.

1998
05:16:23.250 --> 05:16:24.009
Boardroom: Thank you.

1999
05:16:25.370 --> 05:16:31.069
Boardroom: next is David. David, you should be able to talk.

2000
05:16:32.850 --> 05:16:45.479
David: Okay, hello. Yes, I'm an artist, I'm a vendor, I'm a community organizer. I appreciate the fire department and city council, and I understand that surrounding cities are not really pushing this 26-foot rule.

2001
05:16:45.660 --> 05:16:55.259
David: I don't understand why the city of Berkeley is pushing it so, so, so, so much, and making this happen. Because as a society, a city.

2002
05:16:55.270 --> 05:17:05.790

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David: as a community, we need cultural events in our streets. And it was mentioned that the farmers market, Juneteenth, and the Telegraph Holiday Fair wouldn't be affected.

2003
05:17:05.880 --> 05:17:18.159
David: How can we get that in writing, where it's documented and on the books? For 10 years, 20 years, 50 years down the line, they're gonna still happen, so that organizers don't have to stress, oh, are we gonna be able to have our event?

2004
05:17:18.160 --> 05:17:31.399
David: So, if it's not gonna be affected, we need to have it on the books, that no matter what happens, no cultural event is gonna be affected by this 26-foot rule, like, if it goes into effect. That's it, thank you.

2005
05:17:33.340 --> 05:17:37.589
Boardroom: Just to clarify, the farmer's market wasn't included in what I said earlier?

2006
05:17:38.840 --> 05:17:41.299
Boardroom: Next is Lisa Bullwinkle.

2007
05:17:45.150 --> 05:17:55.960
Lisa Bullwinkel - Bkly Arts Commission: Hi, good evening. My name is Lisa Bullwinkle, I'm an art commissioner, and I am an event producer, and I've produced almost 250 street fairs and festivals.

2008
05:17:55.970 --> 05:18:06.769
Lisa Bullwinkel - Bkly Arts Commission: in Berkeley and Oakland, without any problems, I might add. And I want to thank the fire department for always being there to help me, and to help our neighborhood when we needed you.

2009
05:18:07.320 --> 05:18:19.060
Lisa Bullwinkel - Bkly Arts Commission: But most of the time, it's been totally safe. As event producers, we want to be safe. We don't want to create a problem or have fires in the community, and we understand.

2010
05:18:19.060 --> 05:18:28.820
Lisa Bullwinkel - Bkly Arts Commission: we have to play by the rules, but we need to have them applied equitably. So I am in favor of Councilmember Luna Perraz,

2011

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05:18:28.980 --> 05:18:34.589
Lisa Bullwinkel - Bkly Arts Commission: amendment to this, and I would highly recommend establishing some sort of

2012
05:18:34.660 --> 05:18:49.109
Lisa Bullwinkel - Bkly Arts Commission: Community body that is, able to go over some of this until we can work this out in an equitable manner so that we maintain our incredible cultural events in the city and don't turn into a waste…

2013
05:18:52.210 --> 05:18:55.360
Boardroom: Next is Sam Greenberg.

2014
05:18:57.110 --> 05:19:07.439
Sam Greenberg: Hi everyone, Sam Greenberg here, part of Walk Like Berkeley. I want to echo all the many previous commenters, and the way I, you know, I…

2015
05:19:07.860 --> 05:19:25.429
Sam Greenberg: see this is that we're making choices about public space in our city, about whether we want our city to be more of a city or more of a suburb, and there's no reason why we should be making choices, that are different from our neighbors, more in the direction of our public space.

2016
05:19:25.600 --> 05:19:39.860
Sam Greenberg: our streets being, like, a suburb. I don't think that's what any of us would agree on here, and that needs to be our North Star. How do we make this work in a way that results in the urban space we want?

2017
05:19:39.950 --> 05:19:58.159
Sam Greenberg: But right now, that's… that's the way we're making decisions, when the hills have, you know, differential, you know, this is applied in a differential way in the hills, and, you know, I… so I echo previous commenters, and thank you for your thoughtful consideration of all the complexities here.

2018
05:19:58.160 --> 05:20:00.250
Boardroom: Thank you, Sam.

2019
05:20:01.900 --> 05:20:09.230
Boardroom: That's it. Okay, so… Someone asked, how do we make sure this is clear? And…

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2020
05:20:09.230 --> 05:20:27.560
Boardroom: That is definitely what we were talking about earlier about transportation design standards as a way to kind of make sure it's clear. But what I'm gonna do is I'm gonna move the recommendation with the understanding that we'll be coming back in January with a referral for staff to develop transportation design standards. Second.

2021
05:20:28.530 --> 05:20:31.770
Boardroom: Okay. Okay, Madam Mayor, can I make a substitute motion?

2022
05:20:32.910 --> 05:20:38.579
Boardroom: And, I'm sorry, I want to share my screen. It's not that long, but I'm having…

2023
05:20:38.870 --> 05:20:40.979
Boardroom: Today is December 2nd, I think I've…

2024
05:20:41.520 --> 05:20:47.349
Boardroom: Okay, let me try to log in. It's gonna take me a moment, though, if you… I don't know if you all want to wait, or give me a moment.

2025
05:20:49.080 --> 05:20:49.870
Boardroom: Yeah.

2026
05:20:51.060 --> 05:20:59.229
Boardroom: Do we want to wait? I don't know if you want to wait. I think we should just… I think we should take some comments. Okay, go ahead. Okay, Councilmember Taplin, you're next.

2027
05:21:00.190 --> 05:21:15.860
Boardroom: thank you so much. I just wanna, just for the record, the 20-foot rule is state code, that's not changing, that's not going anywhere, that's gonna apply. I do have to say, I understand it's difficult when, the city has.

2028
05:21:15.950 --> 05:21:26.109
Boardroom: previously not enforced rules, but now we are. I understand that is disruptive, but that's what happens when you have new leadership, and they have

2029
05:21:26.470 --> 05:21:40.790

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Boardroom: priorities that include enforcing our laws, so I do want to welcome all of our festival people to continue working with the city and our fire department and all the other departments to ensure that our festivals can happen in a compliant, successful manner.

2030
05:21:41.170 --> 05:21:47.769
Boardroom: and, you know, I want to highlight some things I heard earlier on.

2031
05:21:48.080 --> 05:21:58.689
Boardroom: I fully believe that all of our city departments, all of our staff, all of our colleagues and council members and community members are interested in collaborating and finding solutions.

2032
05:21:59.010 --> 05:22:00.090
Boardroom: And…

2033
05:22:00.260 --> 05:22:16.020
Boardroom: We understand that when we're making changes to the right-of-way, it involves a great number of stakeholders, both internal and external, and it is entirely our job to weigh all the needs and concerns of those stakeholders and arrive at solutions that are mutually beneficial.

2034
05:22:16.120 --> 05:22:31.119
Boardroom: We may not always agree, staff and council may not always agree, council members may not always agree, but it is very important that all of the people who the changes impact have a say in the outcomes of those changes.

2035
05:22:31.360 --> 05:22:42.080
Boardroom: And it is entirely appropriate for our city to include both the fire department and the Public Works Department when it comes to changes in the right-of-way. I want to just be very transparent about that.

2036
05:22:44.510 --> 05:22:53.879
Boardroom: you know, obviously, or, you know, not obviously, perhaps, but I am a cyclist, I am a transit rider, I'm a pedestrian, I also have elders in my life, and so emergency access.

2037
05:22:54.050 --> 05:23:03.000
Boardroom: bicycle, pedestrian safety, transit priority, are all things I care about. I don't… parking is not one of my priorities, but the things I mentioned

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2038
05:23:03.260 --> 05:23:04.780
Boardroom: previously are.

2039
05:23:04.880 --> 05:23:16.240
Boardroom: And… I… don't think we… have… I don't think there's any way around Addressing all of those… needs. And…

2040
05:23:17.050 --> 05:23:19.660
Boardroom: I… I do take issue with this.

2041
05:23:20.790 --> 05:23:31.530
Boardroom: this, certain statements Claiming that the fire department has vetoed or killed projects I…

2042
05:23:31.720 --> 05:23:34.359
Boardroom: I think that is entirely…

2043
05:23:36.450 --> 05:23:42.080
Boardroom: I understand the frustration regarding certain specific projects, but I do not think that this city

2044
05:23:43.170 --> 05:23:52.020
Boardroom: Is a city that… Would allow its constituent members to harm our collective goals.

2045
05:23:52.480 --> 05:23:57.789
Boardroom: And I don't think I've seen that from this department, I don't think I've seen that from any of our department.

2046
05:23:58.620 --> 05:24:05.750
Boardroom: And I also want to acknowledge that, yeah, like, no one from 2008 is here, to my knowledge. I'm not sure…

2047
05:24:06.510 --> 05:24:12.100
Boardroom: Mr. Newman, I'm not sure if you…

2048
05:24:14.440 --> 05:24:33.569
Boardroom: You know, but we're all here now, and so we inherit our codes, our laws, and if we want to change those or re-evaluate those, we should, but we should do that in a formal, productive manner that allows for real

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input, both from our professional staff and the community. This is a second reading.

2049
05:24:34.090 --> 05:24:35.010
Boardroom: Okay.

2050
05:24:35.730 --> 05:24:40.249
Boardroom: This is a second reading, the first reading of which was a unanimous council vote.

2051
05:24:43.430 --> 05:24:44.510
Boardroom: So…

2052
05:24:45.100 --> 05:24:50.410
Boardroom: you know, I would have… and I know, I know, of course, hindsight's 20-20, but I, you know, as…

2053
05:24:51.370 --> 05:24:53.999
Boardroom: As, you know, we're all on, we're all on various…

2054
05:24:54.110 --> 05:24:58.640
Boardroom: policy committees, I would have appreciated knowing that there was this great concern

2055
05:24:59.090 --> 05:25:01.160
Boardroom: back in September, so that we could have…

2056
05:25:01.510 --> 05:25:05.879
Boardroom: you know, taking steps to address it ahead of time, but here we are in December at a second reading.

2057
05:25:06.110 --> 05:25:21.780
Boardroom: And I won't be supporting any motion that derails the adoption of our fire code, especially at this late stage. If members of the Council want to do additional referrals to revisit certain elements, great, I welcome that.

2058
05:25:21.880 --> 05:25:25.280
Boardroom: as I understand, the mayor is contemplating that, and I would support that.

2059
05:25:25.380 --> 05:25:38.020

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Boardroom: And I will be supporting the mayor's motion, and that's why I seconded it, but… but I, you know, like, in full, you know, to speak candidly and frankly.

2060
05:25:38.150 --> 05:25:50.499
Boardroom: I think we should… Treat these choices, these decisions, with… More of a proactive attitude.

2061
05:25:51.150 --> 05:25:53.629
Boardroom: So that we can…

2062
05:25:54.210 --> 05:26:01.300
Boardroom: initiate all these things that we claim to want about, you know, collaboration and process and…

2063
05:26:01.610 --> 05:26:10.219
Boardroom: And, you know, we should do these things on the front end instead of trying to, you know, shoehorn things in during a second reading. Thank you.

2064
05:26:12.600 --> 05:26:15.840
Boardroom: Thank you, yeah, Councilmember, go ahead.

2065
05:26:16.060 --> 05:26:27.690
Boardroom: Thank you very much, Madam Mayor. Thank you to our… Sorry, I just had one last thing. I'm so sorry. You know, I, you know, and I love all my, I love all my speakers tonight.

2066
05:26:28.270 --> 05:26:33.840
Boardroom: I just have to say, it's not just trucks going 50 miles per hour.

2067
05:26:34.080 --> 05:26:41.040
Boardroom: It's people in ambulances who are holding on for their lives for those moments.

2068
05:26:41.900 --> 05:26:48.430
Boardroom: You know, and… That matters. Just like… just like…

2069
05:26:48.540 --> 05:26:59.370
Boardroom: you know, the people who deserve safe streets matter. All this matters, right? And it's our job to ensure that every road user is safe. But I really, really want us to stop

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2070
05:27:00.670 --> 05:27:08.370
Boardroom: To stop pitting vulnerable road users against each other, because you don't know who's in those vehicles.

2071
05:27:08.850 --> 05:27:12.640
Boardroom: Okay, so let's just have some respect and some grace for that. Thank you.

2072
05:27:14.070 --> 05:27:29.229
Boardroom: Okay, so… yeah, for transparency's sake, we can't start a public hearing after 10pm, and the next two items on our agenda are both public hearings, so we're trying to figure that out, so I just want to make sure folks know.

2073
05:27:29.380 --> 05:27:38.630
Boardroom: But this one has already been opened, so this one is fine, but the next two, so I just want to say that before we move on so folks know what's going on. Okay, go ahead.

2074
05:27:38.640 --> 05:27:51.659
Boardroom: Thank you, Madam Mayor, and I want to thank the fire department for your presentation tonight, and, express my, you know, my deepest condolences on the loss of, Stephen Hall, and,

2075
05:27:51.850 --> 05:28:09.940
Boardroom: especially, my condolences to his family. And I want to… so moving into this item, I want to thank, Councilmembers Lunapara and Humbert for their supplemental item. I want to thank Mayor Ishii for her motion that recognizes the importance of having transportation design standards.

2076
05:28:10.210 --> 05:28:13.129
Boardroom: So I, so I think there…

2077
05:28:13.350 --> 05:28:23.839
Boardroom: there, there seems to be a recognition. I don't want to speak for others, but, you know, obviously there is some concern with what happened with the street fairs,

2078
05:28:24.000 --> 05:28:30.080
Boardroom: in the emails, and I think just in the… in the discourse, there is…

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2079
05:28:30.310 --> 05:28:43.620
Boardroom: people are looking at what happened with Hopkins. I don't want to go into that, it's very complicated. There is, some disappointment in some language in the bike plan, and I feel like all of that is sort of…

2080
05:28:43.860 --> 05:29:00.950
Boardroom: being brought to this review of the fire code. I just want to acknowledge that. And, so I'd like to find a way to thread the needle and find a way for us to adopt this fire code tonight, but recognize that we, have these very specific sections

2081
05:29:01.040 --> 05:29:15.829
Boardroom: In, section 503.2.1, 503.2.2, and 503.4.1, those sections mentioned by the council members in their supplemental, and Appendix D, including Section

2082
05:29:16.080 --> 05:29:24.029
Boardroom: D105.2 that I think, could benefit from some further public input. So.

2083
05:29:24.260 --> 05:29:40.209
Boardroom: So having said that, I did want to ask, and maybe this is a question for the City Manager about the Mayor's proposal, and I do appreciate it, you know, having some kind of transportation design standards. City Manager, can you explain if that were to…

2084
05:29:40.210 --> 05:29:45.390
Boardroom: come before the Council in January and pass, you know, how long would that take?

2085
05:29:45.960 --> 05:29:53.030
Boardroom: It's really hard to say, because it's not defined. So, depending on the scope of that, it could be…

2086
05:29:53.920 --> 05:29:57.770
Boardroom: Fairly quick, like a few months, or it could be…

2087
05:29:58.580 --> 05:30:03.609
Boardroom: a, you know, a year. I mean, it really depends on what the scope of that whole…

2088
05:30:03.610 --> 05:30:20.780

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Boardroom: design is. Okay, so, and if I could answer also, just because it would be my item that I would be bringing forward, just to say that I would work really closely with the city manager to make sure we have an understanding of that timeline, and that it's, you know, that it happens as quickly as possible, but also that we're making sure we

2089
05:30:20.780 --> 05:30:24.530
Boardroom: We take care of, you know, addressing all these concerns, so…

2090
05:30:24.910 --> 05:30:35.299
Boardroom: Okay, thank you, I appreciate that. So, okay, so that's helpful to understand. I also want to just recognize, you know, I think we're all concerned about.

2091
05:30:35.380 --> 05:30:50.099
Boardroom: the fire department's ability to respond to emergencies, all emergencies, you know, whether it's a structure fire, whether it's a 911 call for a health emergency, or whether it's serious injuries on the street itself.

2092
05:30:50.200 --> 05:30:51.670
Boardroom: So…

2093
05:30:52.060 --> 05:31:05.220
Boardroom: And I want to just state for the record, I want our fire department, I want, you know, people with expertise to provide input into our safety infrastructure that we want to add to our streets.

2094
05:31:05.280 --> 05:31:22.269
Boardroom: as a result of the passage of Measure FF, you know, I really believe it's important for our Public Works Department and our Fire Department and other relevant departments to work collaboratively, to promote the safety of everyone in our city. And, you know, I think

2095
05:31:22.270 --> 05:31:37.049
Boardroom: Chief, you've demonstrated your commitment to that. I just want to recognize, you know, with the Street Trauma Prevention Program, where we're trying to have somebody in our fire department who can, work closely with Public Works so that we can do that collaborative work.

2096
05:31:37.100 --> 05:31:47.049
Boardroom: So, okay, having said all of that, those are my comments. I wanna… I'm gonna share screens so people can just see my… the motion that I have.

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2097
05:31:47.230 --> 05:31:51.000
Boardroom: That's not the motion. Here's the motion. Is that visible?

2098
05:31:52.740 --> 05:31:54.240
Boardroom: You want a bigger…

2099
05:31:54.270 --> 05:32:06.399
Boardroom: Okay. Oh, I see, okay, I see it over there. Is that big enough? Okay. So, this is my… I guess this would be my substitute motion to adopt the fire code as proposed by the city manager tonight.

2100
05:32:06.400 --> 05:32:20.480
Boardroom: But further, to refer the sections that were of concern in the supplemental from Councilmembers Humbert and Lunapata to… which are sections 503.2.1, 503.2.2, and 503.4.1, and Appendix D, including

2101
05:32:20.480 --> 05:32:22.830
Boardroom: Section D105.2

2102
05:32:23.140 --> 05:32:42.019
Boardroom: D105.2 speaks to the 26 feet, by the way, and those other three sections, my understanding here is that there are some words that are used, like shoulders or public safety objectives, that, I think the community wants to have a better understanding of what those words mean.

2103
05:32:42.020 --> 05:32:53.779
Boardroom: So, so that's the idea of referring these specific sections to the City Manager and the Facilities, Infrastructure, Transportation, Environmental… Environment Sustainability Policy Committee to develop and recommend

2104
05:32:53.780 --> 05:33:10.189
Boardroom: potential revisions, or definitions, or clarifications, whatever they come up with, for Council consideration by April 2026. That's the motion. Councilmember, is this really a friendly amendment to my motion? Because really, it's just the same thing, but you're adding this section.

2105
05:33:10.620 --> 05:33:13.119
Boardroom: I think it's a separate motion.

2106
05:33:13.640 --> 05:33:19.980

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Boardroom: I'll second. Do you want to, just to clarify, just to clarify, what is the difference that you see

2107
05:33:20.130 --> 05:33:35.830
Boardroom: You're leaving out the transportation design standards piece? Well, are you referring these sections to fights? If you are, then that's great. Oh, no, I can, that's what I'm saying. So, you know, my question was, are you making a friendly amendment to mine, which…

2108
05:33:35.830 --> 05:33:48.870
Boardroom: is that if you want to take these amendments, I'm happy to make them as a friendly amendment. Yeah, great. Then I'll accept them as a friendly amendment. Okay, are you accepting these, Councilmember Chaplin? May I ask a question? Yes. Why is the pricing on public safety?

2109
05:33:49.730 --> 05:33:55.469
Boardroom: Because I think the concerns are related to street infrastructure, so…

2110
05:33:55.620 --> 05:34:01.519
Boardroom: my feeling… I mean, they could… it could go to either one. I think it's complicated to send to both.

2111
05:34:01.770 --> 05:34:10.410
Boardroom: And I, I think, you know, the motion is to send it to fights. I mean, policy-wise.

2112
05:34:10.570 --> 05:34:14.950
Boardroom: I mean, if this were our general rules, I would send it to public safety, but I'm wondering, Mr. Clerk.

2113
05:34:18.610 --> 05:34:32.220
Boardroom: Do the rules provide any guidance as to whether it makes more sense to send this to Fights or Public Safety, or is that entirely Council discretion? That's a discretionary call, but it can only be referred to one committee.

2114
05:34:34.320 --> 05:34:39.700
Boardroom: It can only be referred to one. Okay. So, so, you know, our proposal is to send it to fights.

2115
05:34:42.800 --> 05:34:45.019
Boardroom: And are you okay with that as my seconder?

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2116
05:34:46.950 --> 05:34:50.440
Boardroom: Yes, I just…

2117
05:34:50.830 --> 05:34:55.060
Boardroom: it's two of the authors of the Supper are on fights, so I don't know if it would…

2118
05:34:55.840 --> 05:34:59.370
Boardroom: change anything. Sorry, can you say that again?

2119
05:34:59.680 --> 05:35:07.179
Boardroom: I guess, I guess it's… I guess it wouldn't… I guess because this would close out this for Brown Act, and then it would start new? Yep. Okay, yeah. Then yes, I accept.

2120
05:35:07.420 --> 05:35:11.509
Boardroom: Okay, great. So, yeah, then I think we'll hopefully be unanimous then.

2121
05:35:12.530 --> 05:35:32.650
Boardroom: Well, we'll see. Okay, do folks have additional comments? And before… sorry, before we move forward, I do want to just say, so we will continue with the WUI item, the number 41, but we will not be able to do 43 tonight.

2122
05:35:32.650 --> 05:35:44.249
Boardroom: which is the amendments to Title 21 to allow separate sale of ADUs, so I just want to make sure folks understand that. So we will be able to close out with the WUI item, but not the other one right after.

2123
05:35:44.400 --> 05:35:50.080
Boardroom: So, okay. Madam Mayor, I'm sorry, I don't want to get us off track, but why can we do one but not the other?

2124
05:35:50.380 --> 05:35:56.299
Boardroom: Do you want to have… I think it makes sense to have the city attorney address that. Okay.

2125
05:35:58.200 --> 05:36:07.270
Boardroom: Since the two items are related, we felt comfortable moving forward with the two, but given that it's past 10 o'clock.

2126

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05:36:07.560 --> 05:36:20.470
Boardroom: Okay. It's a bit risky to have that other item. Okay, and it was just, alright, okay, I'm disappointed in that, but that's what it is. Okay. So, alright, we have one motion.

2127
05:36:20.840 --> 05:36:29.870
Boardroom: This plus the, your statement, Mayor, to do a referral in January related to, transportation design standards.

2128
05:36:32.420 --> 05:36:38.110
Boardroom: We should, yeah, and we should close the public hearing first. Okay. Motion to close the public hearing.

2129
05:36:38.260 --> 05:36:44.359
Boardroom: Second. Any opposition to closing the public hearing? No. Okay, the public hearing is closed.

2130
05:36:44.510 --> 05:36:45.650
Boardroom: Okay.

2131
05:36:47.090 --> 05:37:00.970
Boardroom: Alright, so, comments on that. Councilmember Trajka, did you have comments? Yes. Thank you, Madam Mayor. I want to thank our community for your active participation in shaping our streets and shared spaces.

2132
05:37:01.470 --> 05:37:09.800
Boardroom: And I also want to thank our fire department for their foresight and their tireless work to keep Berkeley safe and prepared for emergencies.

2133
05:37:10.870 --> 05:37:13.290
Boardroom: Over the last few weeks, I've heard of…

2134
05:37:13.410 --> 05:37:22.400
Boardroom: a wide range of perspectives on sections 50321, 50322, 50341, and Appendix D.

2135
05:37:22.420 --> 05:37:35.929
Boardroom: What comes true clearly is a shared desire to balance robust emergency preparedness with the everyday safety and activation of our streets for people walking, biking, brawling, and moving through Berkeley in many different ways.

2136

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05:37:36.310 --> 05:37:42.250
Boardroom: I've heard from residents, in the span of these past 2-3 weeks.

2137
05:37:42.410 --> 05:37:49.610
Boardroom: biking and micromobility advocates, ADA accessibility,

2138
05:37:49.800 --> 05:37:59.910
Boardroom: Stakeholders, and others who have emphasized, the importance of keeping our transportation network connected, accessible, and safe.

2139
05:38:00.430 --> 05:38:05.809
Boardroom: I've also heard from event organizers and their devoted attendees.

2140
05:38:05.970 --> 05:38:14.230
Boardroom: And everyone has raised thoughtful questions about how these amendments may affect the planning of long-standing and new cultural events.

2141
05:38:14.660 --> 05:38:22.180
Boardroom: And I appreciate the willingness across the board to collaborate and adjust so that our approach reflects Parkley's evolving needs.

2142
05:38:23.570 --> 05:38:33.820
Boardroom: I really appreciated this discussion. I will be supporting, this supplemental. I believe it is a win-win.

2143
05:38:35.240 --> 05:38:40.810
Boardroom: I wanted to share, that…

2144
05:38:40.960 --> 05:38:52.220
Boardroom: My reasoning, for supporting, moving forward, with, these new codes tonight.

2145
05:38:53.350 --> 05:39:00.430
Boardroom: I spent nearly 13 years, this was my first career as a safety engineer at Livermore Labs.

2146
05:39:00.930 --> 05:39:02.779
Boardroom: Day in and day out.

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2147
05:39:03.150 --> 05:39:13.180
Boardroom: My life, and the life of everyone at the lab, depended on the professional input when it came to matters around fire and emergency response.

2148
05:39:13.440 --> 05:39:16.920
Boardroom: To the fire department and fire protection engineers.

2149
05:39:17.750 --> 05:39:32.609
Boardroom: So when I asked the question about, acceptable level of risk, which I have done many times in my professional career, and, for very understandable reasons, the level of risk

2150
05:39:32.740 --> 05:39:36.910
Boardroom: Of not moving forward tonight could not be quantified.

2151
05:39:37.060 --> 05:39:41.910
Boardroom: The old safety engineer in me, came back and said.

2152
05:39:43.380 --> 05:39:46.989
Boardroom: I'm going to take the precautionary principle here.

2153
05:39:47.280 --> 05:39:48.970
Boardroom: I am not willing

2154
05:39:49.270 --> 05:40:02.210
Boardroom: to accept additional risk on behalf of the City of Berkeley, and everyone who lives here, and everyone who relies on the expertise and the incredible work

2155
05:40:02.420 --> 05:40:04.940
Boardroom: And the professionalism.

2156
05:40:05.160 --> 05:40:09.690
Boardroom: Of our fire department and all of our first responders.

2157
05:40:10.190 --> 05:40:26.160
Boardroom: I do appreciate, that this supplemental and all of our discussions here and all the public comments has opened the door to a fuller conversation about how these standards are being interpreted and applied across our city.

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2158
05:40:27.800 --> 05:40:52.299
Boardroom: And this gives us time to continue to, make, informed, recommendations. We can look at what other cities, like Oakland, are doing. There is an opportunity to refine this. So I really appreciate this discussion, and I also want to, appreciate, the mayor's, desire, even before we had this discussion, to.

2159
05:40:52.320 --> 05:41:04.119
Boardroom: bring back an item around transportation design standards, and I'm glad that we are able to, just do that tonight. So…

2160
05:41:04.170 --> 05:41:10.520
Boardroom: Thank you. And I also, just… In my last…

2161
05:41:11.120 --> 05:41:17.069
Boardroom: 20 seconds. I know that everyone, is passionate, and…

2162
05:41:17.450 --> 05:41:23.920
Boardroom: comments were made with sincerity. But I want to apologize.

2163
05:41:24.270 --> 05:41:27.590
Boardroom: To the fire chief and the fire department?

2164
05:41:28.140 --> 05:41:32.870
Boardroom: For whatever comments were made that fell short.

2165
05:41:33.070 --> 05:41:47.990
Boardroom: of recognizing the professionalism that you demonstrate every single day. I'm honored to be on a council that has a fire department that, is the growth standard

2166
05:41:48.090 --> 05:41:54.270
Boardroom: In the state and the nation, in its professionalism, day in and day out. Thank you for keeping us safe.

2167
05:41:56.830 --> 05:41:58.180
Boardroom: Councilmember Humbert.

2168
05:42:00.800 --> 05:42:08.020
Boardroom: Thank you, Madam Mayor, and thank you, Councilmember Trigoub, for making that last statement. I join in it, fully.

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2169
05:42:08.430 --> 05:42:15.420
Boardroom: I think everybody has been struggling with this a bit, because fire codes are complicated in general.

2170
05:42:15.520 --> 05:42:28.460
Boardroom: They're truly complicated. I'm a lawyer, and I'm used to dense, you know, regulatory texts and statutory texts, and fire codes are, like, they're on a different planet.

2171
05:42:28.920 --> 05:42:41.759
Boardroom: And this has turned up to 11 because we have international codes, local codes, and a state code that in various ways reference and overlap with one another, and perhaps, even in some cases, contain contradictions.

2172
05:42:42.170 --> 05:42:55.360
Boardroom: It's clear that we're also seeing heightened public interest in this issue because of our ongoing failure to achieve Vision Zero. Two people were hit by drivers in my district and died this year.

2173
05:42:55.460 --> 05:43:10.929
Boardroom: And that just deeply affects me. And also because we've seen our street fairs and farmers markets having to contend with major disruptions because of portions of the fire code. We've received dozens and dozens of emails from Safe Street advocates.

2174
05:43:11.060 --> 05:43:28.099
Boardroom: From the folks having, who are involved with the farmers markets and the, and the, and the festivals, and dozens and dozens from folks who want us to pass this without any amendment or further consideration. You know, I'll be honest.

2175
05:43:28.100 --> 05:43:33.219
Boardroom: and admit that I'm still not sure why we adopted optional provisions of the state code.

2176
05:43:33.220 --> 05:43:43.620
Boardroom: Which our neighboring cities did not adopt, then proceeded not to vigorously enforce them for what appears to have been years and years, only to suddenly start enforcing them this past year.

2177
05:43:43.870 --> 05:43:48.640
Boardroom: This has created a lot of confusion and frustration for those who organize our street fairs.

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2178
05:43:48.830 --> 05:44:01.640
Boardroom: for the public and our street safety advocates. But I think we're reaching a really good place. I mean, I think we have to pass these code provisions on this second reading, and I think the motion

2179
05:44:01.640 --> 05:44:11.959
Boardroom: You know, that's a combination of the Mayor's motion and Councilmember, Kesarwani's motion, you know, with influence from, obviously the…

2180
05:44:12.070 --> 05:44:21.649
Boardroom: the supplemental that, Councilmember, Lunapara drafted, I think we're in a good place, and, I'm gonna support that. Thank you.

2181
05:44:22.110 --> 05:44:24.130
Boardroom: Thank you. Councilmember Blackby.

2182
05:44:24.360 --> 05:44:37.689
Boardroom: Thanks, Madam Mayor, and thanks to the fire department team. I'll be really, really brief. I know we've had a lot of discussion. I also agree that it's really important that we adopt the fire code tonight. That is, especially, it is a fire code that we've had in place.

2183
05:44:37.710 --> 05:44:47.169
Boardroom: We are not making changes to what has been on the books for a while, and I think it's important to acknowledge that. That said, I do think it's really important that we continue this dialogue. There are a lot of…

2184
05:44:47.200 --> 05:44:58.039
Boardroom: very, passionate people on all sides of this discussion. And again, I think, like so many times before, we're really being asked to balance

2185
05:44:58.070 --> 05:45:01.450
Boardroom: You know, the interests of different stakeholders.

2186
05:45:01.460 --> 05:45:16.819
Boardroom: As well as, really, in this case, balancing, the different kind of components of public safety. Because you're really saying, you know, how much of what we do should be around preventative, traffic calming and, you know, preventing, traffic violence.

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2187
05:45:16.820 --> 05:45:28.250
Boardroom: From a preventative standpoint, versus the emergency response needs of, how the fire department responds to fires, but also other kinds of emergencies, health emergencies, not just traffic emergencies.

2188
05:45:28.250 --> 05:45:45.870
Boardroom: And those aren't necessarily competing interests, but we need to somehow harmonize them and sort of figure out what our approach as a community is to how we balance those interests and balance those priorities. So, it's a lot more than we could do, you know, tonight. I think we will benefit from having a much more, you know, detailed conversation, I support.

2189
05:45:45.870 --> 05:46:05.109
Boardroom: the proposal to send it to committee, where we can have that kind of a process, and maybe come out of this on the other side with something where we all, feel better about what… and at least there's agreement, hopefully as a community, in terms of how we balance those interests. So, again, thank you for being here, and thank you for the Mayor's motion, and, Councilmember Kesarwani's

2190
05:46:05.140 --> 05:46:07.360
Boardroom: Amendment 2, which I will be supporting.

2191
05:46:07.990 --> 05:46:09.729
Boardroom: Thank you. Councilmember Lenopara.

2192
05:46:10.250 --> 05:46:24.279
Boardroom: Thank you. I… I… there's not much I want to add. I appreciate my colleagues' comments. I'm also very… I wanted to say that I'm very grateful to the fire chief, to the city manager, and…

2193
05:46:24.290 --> 05:46:40.509
Boardroom: And their teams to find a way to keep the annual Juneteenth Festival and Telegraph Holiday Fair in their traditional locations. This was a successful collaboration, and it proves that we can find solutions that honor both safety and community vitality, and so I really appreciate everyone's effort in that.

2194
05:46:40.700 --> 05:46:42.030
Boardroom: I also wanna…

2195
05:46:42.250 --> 05:46:51.380

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Boardroom: I guess, broadly summarize my over… what I've been really thinking about since we started, digging into this.

2196
05:46:52.510 --> 05:47:06.819
Boardroom: the staff put together a memo that very clearly demonstrated that Appendix D has rarely substantively impacted street design in the almost two decades it has been implemented. And this is helpful, but it also raises a question that I've been really grappling with.

2197
05:47:06.840 --> 05:47:20.439
Boardroom: What is the ultimate goal of continuing to adopt a policy that we hope not to enforce? That doesn't make any sense to me. So I'm looking forward to thinking about that some more, and figuring out how we can,

2198
05:47:21.490 --> 05:47:27.229
Boardroom: work and figure out a solution to a lot of the concerns that we heard tonight. Thanks.

2199
05:47:29.540 --> 05:47:34.449
Boardroom: Thank you very much. Did you move your supplemental?

2200
05:47:36.270 --> 05:47:38.520
Boardroom: I'm gonna be supporting the main motion. Okay.

2201
05:47:38.720 --> 05:47:47.069
Boardroom: Just to make sure I understand, because Councilmember Traja had said he would support yours, so I just wanted to make sure everyone understood.

2202
05:47:47.240 --> 05:47:58.779
Boardroom: I would… I… to clarify, I am supporting the amended motion. Very good. Okay. …on the floor. All right. In that case, let's take the… take the roll.

2203
05:47:59.280 --> 05:48:03.179
Boardroom: Okay. On the, on the motion,

2204
05:48:03.370 --> 05:48:10.299
Boardroom: to adopt the code, the understanding that the mayor will introduce an item in January 2026 regarding

2205
05:48:10.660 --> 05:48:18.050

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Boardroom: development of traffic design standards, and to refer the items mentioned by Councilmember Kastarwani, the City Manager, and the

2206
05:48:18.170 --> 05:48:21.250
Boardroom: Facilities, Policy Committee.

2207
05:48:22.460 --> 05:48:31.550
Boardroom: Okay. On the motion, Councilmember Kesarwani? Yes. Taplin? Yes. Bartlett is absent. Tregeb? Aye.

2208
05:48:31.860 --> 05:48:32.920
Boardroom: O'Keefe?

2209
05:48:33.220 --> 05:48:37.379
Boardroom: Yes. Blackaby? Yes. Lunapara? Yes.

2210
05:48:37.470 --> 05:48:53.280
Boardroom: Humbert? Yes. And Mary Ishii? Yes. Okay, motion carries. Okay, thank you all. Thank you very much, I really appreciate it. Thank you for being here. Well, and now you have to stay, because we're going to the next one. Okay, so I'm gonna open the, public hearing for…

2211
05:48:53.490 --> 05:49:00.419
Boardroom: And 41, which is the adoption of and amendments to the California Wild Urban Interface Code. It's the second reading.

2212
05:49:00.570 --> 05:49:03.509
Boardroom: Did you have anything that you were going to present to us?

2213
05:49:05.890 --> 05:49:09.840
Boardroom: We do not have, a presentation,

2214
05:49:10.160 --> 05:49:22.030
Boardroom: substantially beyond the one that we had from, the first reading. We've got a couple of updates and comments to make, just to bring you up to speed with where we're at. Sounds good. Thank you. So this would be the second

2215
05:49:22.670 --> 05:49:23.350
Boardroom: Get closer.

2216
05:49:23.960 --> 05:49:34.320

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Boardroom: Thanks. This will be the second reading of the WUI Code, which, is an additional new code that is applied in addition to the fire code for areas of the city that have exposure to wildfire risk.

2217
05:49:34.480 --> 05:49:47.070
Boardroom: Those areas are predominantly determined by the, maps that were previously adopted, establishing high, very high, or excuse me, high and very high fire hazard severity zones in the Berkeley Hills.

2218
05:49:47.200 --> 05:50:03.239
Boardroom: And the code is applied depending on where you live in those zones. The code essentially applies both to building standards for new construction, generally called home hardening, and then what are called fire protection measures under the WUI code, which would be vegetation management.

2219
05:50:04.440 --> 05:50:08.559
Boardroom: The WUI code essentially carries over the state,

2220
05:50:09.070 --> 05:50:26.520
Boardroom: The state recommendations for building construction, the one major change that was made as a local amendment to the WUI code would be the adoption of a… what's called Rigid Zone Zero, which is the lack of any combustibles within the first 5 feet of any structure, and that also includes vegetation.

2221
05:50:27.720 --> 05:50:39.609
Boardroom: The only thing that I wanted to highlight to the group tonight is that as a part of the initial adoption of these local amendments, you requested that a WUI workgroup be established, to review a couple of priorities.

2222
05:50:39.720 --> 05:50:51.120
Boardroom: And I just want to briefly let you know where we're at with those priorities. The workgroup has essentially concluded the Emerging Science and Code Language Review. The code language is what you see before you as a part of this measure.

2223
05:50:51.280 --> 05:51:03.439
Boardroom: The group has not been able to complete the, mandate to review the Board of Forestry ruling, and align that, or review that with the city's policies, because the Board of Forestry has not made

2224
05:51:03.590 --> 05:51:08.139

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Boardroom: their final ruling. We expect emergency rulemaking at some point next year.

2225
05:51:08.300 --> 05:51:16.689
Boardroom: And the group is currently working on pivoting to focusing on the resident guide for the remainder of the year, including clarity around the AMMR process.

2226
05:51:17.040 --> 05:51:19.289
Boardroom: Where they're making some great progress.

2227
05:51:19.500 --> 05:51:27.650
Boardroom: In the, packet tonight, you have a supplemental, which is a cover letter from the workgroup. In there, I just wanted to highlight that the workgroup, as a part of their work.

2228
05:51:27.810 --> 05:51:34.339
Boardroom: Also, suggested some other areas that were outside the purview of the group for Council to consider.

2229
05:51:34.450 --> 05:51:40.270
Boardroom: Some of those may be attainable, some of those may not be, but the group felt it was important to pass those on.

2230
05:51:40.620 --> 05:51:57.490
Boardroom: And then one, final piece from the group is that there was a recommendation from the group that because we were not able to complete, that Board of Forestry mandate, that the group… that Council consider having the group revisit that at the time that that emergency rulemaking happens, so that we can

2231
05:51:57.940 --> 05:51:59.089
Boardroom: Wrap that up.

2232
05:51:59.560 --> 05:52:05.979
Boardroom: I believe that's the only… those are really the only substantive changes from the last time we talked, but I'm happy to answer any questions.

2233
05:52:06.090 --> 05:52:09.779
Boardroom: Thank you very much. Are there any questions from my Council colleagues?

2234

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05:52:11.060 --> 05:52:13.720
Boardroom: Okay. Is there public comment on this item?

2235
05:52:16.250 --> 05:52:19.539
Boardroom: Any public comment on this item?

2236
05:52:19.790 --> 05:52:25.520
Boardroom: There's two hands… Oh, okay.

2237
05:52:25.980 --> 05:52:34.389
Boardroom: I've got a couple folks, maybe, heading this way for public comment. Go ahead and come forward.

2238
05:52:41.630 --> 05:52:56.660
Boardroom: said there were two hands online as well? Oh, three? While we're waiting for that comment, one more thing that I promised I would add is that the group also suggested or made themselves available if Council in the future did want to hear from the group during a work session, they did want you to know that they were available.

2239
05:52:56.890 --> 05:52:58.520
Boardroom: Great, thank you!

2240
05:52:58.710 --> 05:52:59.499
Boardroom: Come on up!

2241
05:53:01.610 --> 05:53:03.042
Boardroom: Let's do it.

2242
05:53:04.820 --> 05:53:10.990
Boardroom: I'm Margaret Roos-Collins, I'm one of the members of the workgroup, and wee.

2243
05:53:11.300 --> 05:53:17.179
Boardroom: Just wanted to give you a little bit more of what Colin was saying, or less, actually.

2244
05:53:17.340 --> 05:53:26.450
Boardroom: But we're starting to work on flushing out a creative idea that the fire department has about

2245
05:53:28.410 --> 05:53:36.760

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Boardroom: keeping some treasured plants in Zone Zero by creating equivalent ember protection in other ways.

2246
05:53:36.900 --> 05:53:38.330
Boardroom: And so…

2247
05:53:38.590 --> 05:53:45.739
Boardroom: One of the things I want to say is this fire department has a great attitude about how to gentle us into this, and…

2248
05:53:45.880 --> 05:53:52.390
Boardroom: Try to preserve what doesn't add to risk, and find ways to make that happen.

2249
05:53:52.580 --> 05:54:03.230
Boardroom: And I think what you can do, and what we were asking for, is the kinds of changes that will make all this effort more effective. So…

2250
05:54:03.340 --> 05:54:07.110
Boardroom: You know, it was 100 years ago that the city first tried to get rid of

2251
05:54:09.770 --> 05:54:13.900
Boardroom: Thank you. Yeah.

2252
05:54:14.820 --> 05:54:18.050
Boardroom: She's got a minute from someone in the audience. Go ahead.

2253
05:54:18.320 --> 05:54:30.879
Boardroom: It was 100 years ago that the city tried to get rid of shake roofs, but there's been a repair loophole. You could close it. It's hard for people to give up plants and still have shake roofs. That's an example.

2254
05:54:30.940 --> 05:54:44.360
Boardroom: Out there causing risk. Another thing is, please be sure your city doesn't allow new structures, whether they're tool sheds or ADUs or anything else, within 5 feet of a property line up there, so that…

2255
05:54:44.450 --> 05:54:48.630
Boardroom: Zone 0 falls entirely inside the property boundary, but…

2256

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05:54:48.730 --> 05:54:50.389
Boardroom: I think we're gonna get there.

2257
05:54:51.390 --> 05:54:56.340
Boardroom: I can't imagine a better… Group, in this whole group, to make it happen.

2258
05:54:56.630 --> 05:54:58.340
Boardroom: It's great to hear, thank you.

2259
05:55:03.550 --> 05:55:05.139
Boardroom: Oh, I do get 2 minutes.

2260
05:55:05.730 --> 05:55:11.839
Boardroom: I'm Judy Dale, I'm a resident of, Council District 5.

2261
05:55:12.270 --> 05:55:15.699
Boardroom: I wanted to say about the…

2262
05:55:15.880 --> 05:55:21.139
Boardroom: the WUI legislation you're considering tonight, please look at this as a first pass.

2263
05:55:21.300 --> 05:55:26.109
Boardroom: And not the last thing you're ever gonna do on this, because it's very important to keep considering

2264
05:55:26.380 --> 05:55:29.559
Boardroom: What we need to do, for fire protection.

2265
05:55:30.140 --> 05:55:41.420
Boardroom: I feel like the Council really jumped the gun and rushed to, decision on this, and that there has been inadequate public input.

2266
05:55:41.790 --> 05:55:45.330
Boardroom: Inadequate consideration of how effective this will be.

2267
05:55:45.720 --> 05:55:54.310
Boardroom: Inadequate consideration of the negative effects of all the vegetation removal, and inadequate evaluation of alternatives.

2268

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05:55:56.860 --> 05:56:07.369
Boardroom: The WUI work group has done a good job of making the legislation clearer and more easily understood, but they haven't been able to finish their work, particularly on

2269
05:56:07.630 --> 05:56:16.309
Boardroom: Making the legislation, reflect unique local conditions of the city of Berkeley.

2270
05:56:16.750 --> 05:56:21.930
Boardroom: You know, the legislation is based on the state

2271
05:56:22.540 --> 05:56:25.919
Boardroom: State Board of Forestry regulations, and…

2272
05:56:26.050 --> 05:56:34.819
Boardroom: They seem to have been devised basically for more rural or, you know, not an urban situation that we have here.

2273
05:56:34.950 --> 05:56:36.360
Boardroom: And,

2274
05:56:36.850 --> 05:56:44.820
Boardroom: So it would be really good if we could adapt our regulations to the specific fire situation that we have in Berkeley.

2275
05:56:46.640 --> 05:56:58.390
Boardroom: There's a recently passed, assembly bill, 1455, an urgent statute that, specifically allows local agencies to develop

2276
05:56:58.710 --> 05:57:05.889
Boardroom: Alternative practices that provide for substantially similar practical effects, which is, you know, that's what we're after.

2277
05:57:06.290 --> 05:57:11.410
Boardroom: And it looks like the state… Thank you.

2278
05:57:12.160 --> 05:57:16.250
Boardroom: Thanks for your public comment. I hope you let the workgroup do more. Thank you. Finish.

2279
05:57:16.830 --> 05:57:23.670

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Boardroom: I think you said there's two hands online, is that right? Yes, the, first speaker is Alfred Tu.

2280
05:57:25.410 --> 05:57:31.159
Alfred Twu: Thank you. This is a great item. Those clarifications are going to be really helpful for a lot of my neighbors.

2281
05:57:31.270 --> 05:57:33.180
Alfred Twu: Full support. Thank you.

2282
05:57:33.880 --> 05:57:35.199
Boardroom: Thank you, Alfred.

2283
05:57:36.890 --> 05:57:39.989
Boardroom: And next is, Richard Ilgen.

2284
05:57:46.230 --> 05:57:58.160
Richard Illgen: Good evening. I'm also a member of the WUI Working Group, and we've been working… sorry, I have a respiratory illness, so I'm having trouble talking. But, we've been working for…

2285
05:57:58.640 --> 05:58:17.810
Richard Illgen: steeped in this for 2 months, and I need to say a couple of things about it. One is, I disagree with staff. We have not completed any review of science on this. We were waiting for the state to act, and we need to get sciences applied to Zone Zero, so we have not completed any scientific review. We've barely started it.

2286
05:58:17.840 --> 05:58:23.270
Richard Illgen: Secondly, there are folks in the community going around saying that

2287
05:58:23.490 --> 05:58:32.509
Richard Illgen: the… that the misdemeanors have been removed from this. The misdemeanors have not been removed. Misdemeanors are still part of this.

2288
05:58:32.930 --> 05:58:46.049
Richard Illgen: They took the word misdemeanor out of the section on violations, but they specifically said it's subject to penalties prescribed by law, all of the legal remedies, civil or criminal.

2289
05:58:46.410 --> 05:58:47.519

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Richard Illgen: So on, so…

2290
05:58:47.650 --> 05:59:06.060
Richard Illgen: So the misdemeanor has not been removed, much disagreement of many people in the community who have wanted that… to see that go, and it's still there. Now, I know the fire department probably takes the position, well, we don't intend to use them very much, or they're only as last resort, but you have to spell that out in the legislation.

2291
05:59:06.210 --> 05:59:09.430
Richard Illgen: You have to say that in legislation, they don't say that.

2292
05:59:09.780 --> 05:59:15.190
Richard Illgen: It's not there. So, as far as the legislation is concerned,

2293
05:59:15.790 --> 05:59:34.919
Richard Illgen: the misdemeanors are still part of this. And also, I know some people have been concerned about the appeals process. It's still the same, in fact, it's even worse, because now they've clarified it, that anything happening under WUI has to go through the appeal process, which gives people only very little time, and goes to the city council for all the appeals under WUI.

2294
05:59:34.920 --> 05:59:47.380
Richard Illgen: Is that what you really want? Do you want to hear all those appeals? And I'd also like to see us continue the work of the working group into the next year, and to cover all the other issues we didn't get to. Thank you.

2295
05:59:47.380 --> 05:59:48.220
Boardroom: Thank you.

2296
05:59:50.900 --> 05:59:54.910
Boardroom: That's all. Councilmember Treyka.

2297
05:59:55.060 --> 06:00:03.179
Boardroom: Thank you. I just wanted to ask, the chiefs, if you could comment on,

2298
06:00:03.350 --> 06:00:12.220
Boardroom: what the previous commenter mentioned on misdemeanors. Can you explain the extent to which it is or is not in the code, and for what?

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2299
06:00:14.670 --> 06:00:27.390
Boardroom: I can briefly tackle part of this, and then I'll turn to other folks at the table. The original language back in June of last year had a clause in it that was considered to be applied to the WU language.

2300
06:00:27.480 --> 06:00:44.090
Boardroom: None of that language is included in the WUI code. That's the section that I'd be responsible for. So there isn't language around misdemeanors in the WUI Code. That doesn't necessarily apply to other sections of the Berkeley Municipal Code as it pertains to violations, of any,

2301
06:00:44.680 --> 06:00:50.329
Boardroom: Of any code section, and so that's outside the purview of the WUI code, we'd fall under the same jurisdiction.

2302
06:00:51.130 --> 06:00:56.159
Boardroom: I don't know if I'm missing anything. Yeah, I think he covered it. It's not in the WI code, and that's what we were asked to do.

2303
06:00:56.400 --> 06:00:57.659
Boardroom: Thank you so much.

2304
06:00:58.860 --> 06:01:00.720
Boardroom: Thank you, Councilmember Blackaby.

2305
06:01:00.960 --> 06:01:19.820
Boardroom: Thanks, Madam Mayor, and thank you again to the BFD team for being here, and for being so diligent and working with us, and with the workgroup. I also want to thank the workgroup. I'll just say, you know, at the beginning, you know, folks were selected to serve on the workgroup not because there was unanimity of thought.

2306
06:01:19.940 --> 06:01:23.430
Boardroom: But because Colin and the team and the chief

2307
06:01:23.480 --> 06:01:30.390
Boardroom: wanted a diversity of opinions, and you've heard some of them tonight, and I think that we are the better for this sort of

2308
06:01:30.390 --> 06:01:51.000

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Boardroom: going through this process, and trying to kind of hammer it out. So I just, again, I want to thank them for convening the process, and for improving. I think, you know, we, in June, sort of set the… kind of planted the flag and said, this is where we're heading. As one of the public commenters mentioned, you know, there will continue to be room for improvement.

2309
06:01:51.000 --> 06:01:59.930
Boardroom: But I think as a body, and as a fire department, I think we felt it was important to say, let's plant the flag and move in this direction. And we will improve, learn, get better.

2310
06:02:00.140 --> 06:02:12.660
Boardroom: you know, and educate ourselves, educate the public, and make this better as we go. But it was important to sort of plant the flag and say, this is the direction that we're heading. And this workgroup has been an important part of

2311
06:02:12.660 --> 06:02:21.810
Boardroom: really kind of crystallizing and addressing some of the big concerns. Doesn't address all the concerns, there's still concerns, and I get it, we're going to continue to work through that, but I just want to thank them for the work.

2312
06:02:21.830 --> 06:02:35.429
Boardroom: I also, just to share, this… I literally got this direct mail piece, the day of the first reading, and I was… sorry I didn't get home to see it before I came to the meeting, but I do just want folks to know, like, you know, in addition to

2313
06:02:35.730 --> 06:02:47.820
Boardroom: everything that we've been talking about, you know, the department is communicating with folks that are in this very high zone, and giving them information about, you know, what does it mean to do Zone Zero.

2314
06:02:47.860 --> 06:02:58.749
Boardroom: And I just, I want to compliment the team for, again, continuing to go the extra mile. We're not done, we have a lot more to do, but in terms of, like, providing materials.

2315
06:02:58.780 --> 06:03:12.839
Boardroom: you know, helping to sort of, you know, give people information, scheduling personal home consultations, even in advance of the inspection starting next year. Again, this is just kind of part of this piece where

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2316
06:03:12.890 --> 06:03:23.440
Boardroom: We're talking about why we're doing Zone Zero, highlighting the kind of work that we're doing. People can download their own self-inspections checklist that they can start the process for themselves.

2317
06:03:23.520 --> 06:03:42.270
Boardroom: And then we're highlighting, as well, you know, individual neighbors who are doing work, and talking about their experiences with the process. So, this is a process. This is gonna continue, and we're gonna continue to kind of, as we move towards fuller participation, this is a really important part of the effort.

2318
06:03:42.600 --> 06:03:45.240
Boardroom: On the workgroup, letter,

2319
06:03:45.590 --> 06:04:04.480
Boardroom: again, it was really thoughtful. And there were actually two reports back to Council, one that came a few weeks ago and one that came more recently, that really, I think, very accurately described the work that had been done and some questions and issues that remain. And I want to thank them for that. And so,

2320
06:04:04.740 --> 06:04:23.529
Boardroom: I know we'll still have more discussion, but I do want to incorporate some of those suggestions in what we're doing tonight. On that letter, they identified, and as Margaret mentioned, you know, questions about can we work with, the Zero Waste Department to develop more non-combustible trash and recycling bins?

2321
06:04:23.530 --> 06:04:27.200
Boardroom: That's a great idea, what's possible there.

2322
06:04:27.200 --> 06:04:34.989
Boardroom: Can we do more to sort of move away from woodshake roofs in the very high-fire zone, so that we don't have as many of them?

2323
06:04:34.990 --> 06:04:51.369
Boardroom: That is a fantastic idea. There are questions about the size of the wire mesh holes that the vector control team uses when they're dealing with rodents, and can we shrink those down so that they're more consistent with what we need for Zone Zero? Again, it's a great idea.

2324
06:04:51.500 --> 06:04:54.770

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Boardroom: They even had the idea that, you know.

2325
06:04:54.810 --> 06:04:59.960
Boardroom: Neighbors are removing privacy hedges that they may have had for many, many years.

2326
06:04:59.970 --> 06:05:12.190
Boardroom: And they're being asked to remove those privacy hedges if they're within 5 feet of the house, but can we facilitate the permitting of metal privacy screens that maybe are a little non-conforming because they're a little higher than what might otherwise be allowed?

2327
06:05:12.190 --> 06:05:26.099
Boardroom: to replace, what those hedges might provide. So I think, again, these are very thoughtful suggestions, and we need to be responsive, I think, to what the workgroup has done. So, as part of the motion I'm gonna offer tonight, I'll share it here.

2328
06:05:27.530 --> 06:05:35.719
Boardroom: My proposal tonight is, that we do approve staff's recommendation in the report, adopt the second reading of the ordinance.

2329
06:05:35.800 --> 06:05:42.040
Boardroom: I do explicitly, again, want to thank the members of this group for their efforts, including their very detailed and thoughtful recommendations.

2330
06:05:42.070 --> 06:05:58.749
Boardroom: I do want to refer to the City Manager, the items in the letter, those four things that I mentioned in particular, so that the City Manager and staff can work through those. Some of them may be more implementable more quickly, some of them may take more time to flesh out, so I'm not… we're not kind of saying that this is on a…

2331
06:05:58.750 --> 06:06:07.470
Boardroom: Everything will be on an expedited time frame, but it's at least go through the referral process, ask staff to come back with specific proposals for how we might implement them.

2332
06:06:07.660 --> 06:06:09.490
Boardroom: And then third,

2333
06:06:09.690 --> 06:06:26.979

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Boardroom: They make a good point that, again, we had expected the State Board of Forestry to be already done with their rulemaking. They've taken a lot longer than expected. And one of the things we asked the work group was to comment on those regulations and identify the differences between our local EMBER regulation and what the state says.

2334
06:06:27.090 --> 06:06:37.870
Boardroom: So what my request would be is after the Board of Forestry does finalize those regulations, I'd ask that the City Manager then reconvene this group that's already done their work, reconvene the group.

2335
06:06:38.140 --> 06:06:55.430
Boardroom: after those regulations are promulgated to help provide feedback on those differences, so that when the fire chief and staff comes back to Council with an update, within 90 days of those new rules going into effect, we have the benefit of this work group's input into that process.

2336
06:06:55.550 --> 06:07:01.179
Boardroom: So that's my motion. Approve stack recommendation with those three additional elements. Second.

2337
06:07:01.690 --> 06:07:06.570
Boardroom: And I, again, thank you to staff, thank you to the department, and thank you to the work group for all your great work.

2338
06:07:06.800 --> 06:07:08.779
Boardroom: Thank you. Councilmember Humbert?

2339
06:07:09.530 --> 06:07:11.009
Boardroom: Thank you, Madam Mayor.

2340
06:07:12.310 --> 06:07:24.609
Boardroom: I want to thank, Chief Sprague and Chief Arnold and all the chiefs here tonight for their work on this, and everybody in BFD that's, that's,

2341
06:07:25.140 --> 06:07:31.659
Boardroom: worked really hard on this, this process. It's been a long and difficult process, and it continues.

2342
06:07:31.770 --> 06:07:47.769

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Boardroom: I also want to express really deep gratitude to Councilmember Blackaby, who has truly gone through trial by fire code, which apparently continues, Councilmember.

2343
06:07:48.390 --> 06:07:58.950
Boardroom: Let's see, can I read my own handwriting? And I want to thank you for your yeoman's labor on this critically important safety effort. I absolutely…

2344
06:07:59.170 --> 06:08:01.890
Boardroom: I'm fully invested in it,

2345
06:08:02.340 --> 06:08:19.040
Boardroom: You're a relatively new council member, and you really took on, you know, this major piece of work, and again, I'm grateful. And thank you as well, to our city attorney and her staff, and to all the neighbors, commissioners, and others who participated in this process.

2346
06:08:19.310 --> 06:08:37.840
Boardroom: I know there is now a lot of uncertainty with the state regulation, but I think there's a strong argument for doing the right and safe thing independent of safe state action, so I believe we should continue moving forward, and that we're on the right path. So thank you. Thank you, everyone.

2347
06:08:38.720 --> 06:08:41.849
Boardroom: Thank you. Any other comments from Councilmembers?

2348
06:08:43.580 --> 06:09:01.769
Boardroom: Okay, I just want to say I'm thoroughly in support of Councilmember Blackaby's motion, and, that the WUI Citizen Committee has really been a valuable voice as we develop these policies. I really want to thank the Fire Department for taking the time to engage in such really robust community dialogue.

2349
06:09:01.890 --> 06:09:20.279
Boardroom: being in the trenches with you all over the last year, I really appreciate just your patience and your thoughtfulness, and, just the level of respect that you bring. So, thank you all very much, and of course, to Councilmember Blackaby, I've got your back, so, thank you.

2350
06:09:20.280 --> 06:09:28.350
Boardroom: Alright. In that case, there… We'll do a motion to close the public hearing. Yes, we need a motion to close the public hearing. Thank you.

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2351
06:09:28.740 --> 06:09:31.719
Boardroom: Okay. Is there any opposition to closing the public hearing?

2352
06:09:31.910 --> 06:09:34.459
Boardroom: Okay, public hearing is closed.

2353
06:09:34.930 --> 06:09:42.709
Boardroom: All right, and we have a motion as well. Yes, as read by Councilmember Blackaby. On the motion.

2354
06:09:42.900 --> 06:09:44.540
Boardroom: Councilmember Kesarwani?

2355
06:09:45.130 --> 06:09:46.090
Boardroom: Yes.

2356
06:09:46.220 --> 06:09:47.979
Boardroom: Taplin? Yes.

2357
06:09:48.280 --> 06:09:54.050
Boardroom: Trega? Aye. O'Keefe? Yes. Blackaby? Yes. Lunapara?

2358
06:09:54.160 --> 06:09:58.520
Boardroom: Yes. Humbert? Yes. And Mayor Ishin? Yes.

2359
06:09:59.120 --> 06:10:15.139
Boardroom: Okay, thank you. And then, regarding item 20… 43… Yes. Yes. Yes. Regarding item 43, I'd like to make a motion to continue the ADU item to the… which is item number 43, to the next meeting. To the next meeting? January 20th, yes. Okay, the…

2360
06:10:15.140 --> 06:10:25.569
Boardroom: I feel like that's gonna be a really busy meeting, but okay, well, to the next… to the January 20th meeting. Is there a second?

2361
06:10:25.760 --> 06:10:29.970
Boardroom: No, but it's just… it's always busy. Second by O'Keefe.

2362
06:10:32.300 --> 06:10:38.350

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Boardroom: Sorry, what did you say? Who was it? Okay, a second from Councilmember O'Keefe, thank you. Yes, okay.

2363
06:10:38.450 --> 06:10:48.910
Boardroom: On the motion, there's a procedural motion. On the motion to continue item 43 to January 20th, Councilmember Kassarwani? Yes. Taplin? Yes.

2364
06:10:49.290 --> 06:10:50.310
Boardroom: Trey Go.

2365
06:10:52.600 --> 06:10:53.960
Boardroom: Very good.

2366
06:10:54.110 --> 06:11:02.000
Boardroom: You could say yes from… On advice of counsel, I am recused.

2367
06:11:02.280 --> 06:11:04.779
Boardroom: Oh, yeah, that's right. Oh, that's right.

2368
06:11:05.520 --> 06:11:09.780
Boardroom: Yeah.

2369
06:11:09.890 --> 06:11:27.750
Boardroom: Okay. Councilmember O'Keefe? Yes. Blackaby? Yes. Munapara? Yes. Humbert? Yes. And Mayor Ishii? Can I change my vote to, just recuse?

2370
06:11:27.860 --> 06:11:30.310
Boardroom: Yes. Yeah. Okay, thank you.

2371
06:11:30.440 --> 06:11:32.679
Boardroom: Okay. And, and I will vote yes.

2372
06:11:33.430 --> 06:11:45.559
Boardroom: Yes, Mary Shee, yes. Yes. Okay. 1, 2… Okay, that's… We almost didn't pass it. Okay, motion passes. Whew, okay. All right. All of these people,

2373
06:11:46.060 --> 06:12:00.519
Boardroom: all of these people, who have to recuse themselves. So, wait, everyone's packing up. We're not done yet! Hold on a second. Okay, so we

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have public comment for items not listed on the agenda. Is there any public comment for items not listed on the agenda?

2374
06:12:03.170 --> 06:12:11.779
Boardroom: Okay, so before we end, I know I'm holding you all, hostage a little bit longer, sorry? There's one online. Okay, go ahead. Okay.

2375
06:12:12.170 --> 06:12:18.590
Boardroom: This is, non-agenda public comments, caller ending in 000.

2376
06:12:23.010 --> 06:12:26.799
1510****000: Well, this is it again. I wish you a happy… very happy holidays.

2377
06:12:26.990 --> 06:12:30.830
1510****000: You are doing a very good job. I wish if I had you here before.

2378
06:12:31.030 --> 06:12:32.720
Boardroom: Well, the fact is…

2379
06:12:32.890 --> 06:12:35.340
1510****000: Tens of thousands.

2380
06:12:35.620 --> 06:12:39.240
1510****000: of consumer electronics people in… not only in Berkeley, the whole Bay Area.

2381
06:12:39.550 --> 06:12:40.690
1510****000: Rely on us.

2382
06:12:41.010 --> 06:12:46.079
1510****000: And they get dropped off by other companies. The only one left, really, Best Buy, and people hate it.

2383
06:12:46.580 --> 06:12:47.949
1510****000: Well, let's work together.

2384
06:12:48.130 --> 06:12:52.289
1510****000: Let's get our business. We're in business, we never go out of business.

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2385
06:12:52.740 --> 06:12:55.360
1510****000: Let's grow our business.

2386
06:12:55.520 --> 06:12:57.860
1510****000: In… Brent?

2387
06:12:57.980 --> 06:13:02.019
1510****000: small as it was supposed to have happened. There are places available there.

2388
06:13:02.740 --> 06:13:04.900
1510****000: And again, wish you happy holidays.

2389
06:13:05.040 --> 06:13:09.510
1510****000: And, great city. I've been living here for over 62 years.

2390
06:13:09.690 --> 06:13:14.960
1510****000: Let's make… let's make Berkeley great again. Have a good night.

2391
06:13:16.100 --> 06:13:20.490
Boardroom: Thank you. Okay, thank you so much for your public comment. Any other public comments?

2392
06:13:21.000 --> 06:13:25.780
Boardroom: No, okay, alright, before we leave, I just want to say a few things. Number one.

2393
06:13:26.090 --> 06:13:43.120
Boardroom: Happy holidays to all of you. I hope you get to spend some restful time with your family, your friends, whoever. I also want to say a reminder to folks that, that we have a lot of need in our community, especially right now, when it comes to food security and

2394
06:13:43.180 --> 06:13:59.910
Boardroom: you were all invited to the Berkeley Food Network slash my office's holiday party on Sunday, so I just want to remind folks about that. And invite you, if you, you know, aren't able to attend, you know, to still continue to support, our nonprofits that we have in our city, including the Berkeley Food Network.

2395
06:13:59.930 --> 06:14:03.209

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Boardroom: And then, I just want to say, like.

2396
06:14:03.250 --> 06:14:21.539
Boardroom: that we've had a year together now, and I'm really grateful for all of the work that we've been able to do together. I'm just incredibly proud of our council, and just our ability to work on really challenging issues. I really want to thank our city manager, and our city attorney, and all of our staff. I, like…

2397
06:14:21.540 --> 06:14:41.370
Boardroom: I'm honestly very touched by the work we've been able to do, and I just am incredibly grateful for all… grateful for all of you, so thank you very much, and thank you to the public for attending as well. And, with that, I will see if there's a motion to adjourn. Before we adjourn, I want to… and thank the Mayor for her leadership in setting the great tone. Thank you. Thank you. Thanks. Thank you.

2398
06:14:41.870 --> 06:14:43.100
Boardroom: Thanks, everyone.

2399
06:14:44.630 --> 06:14:52.739
Boardroom: Alright, well, we've got a motion to adjourn. If there is no opposition to the motion, then we are adjourned. Thank you all.

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